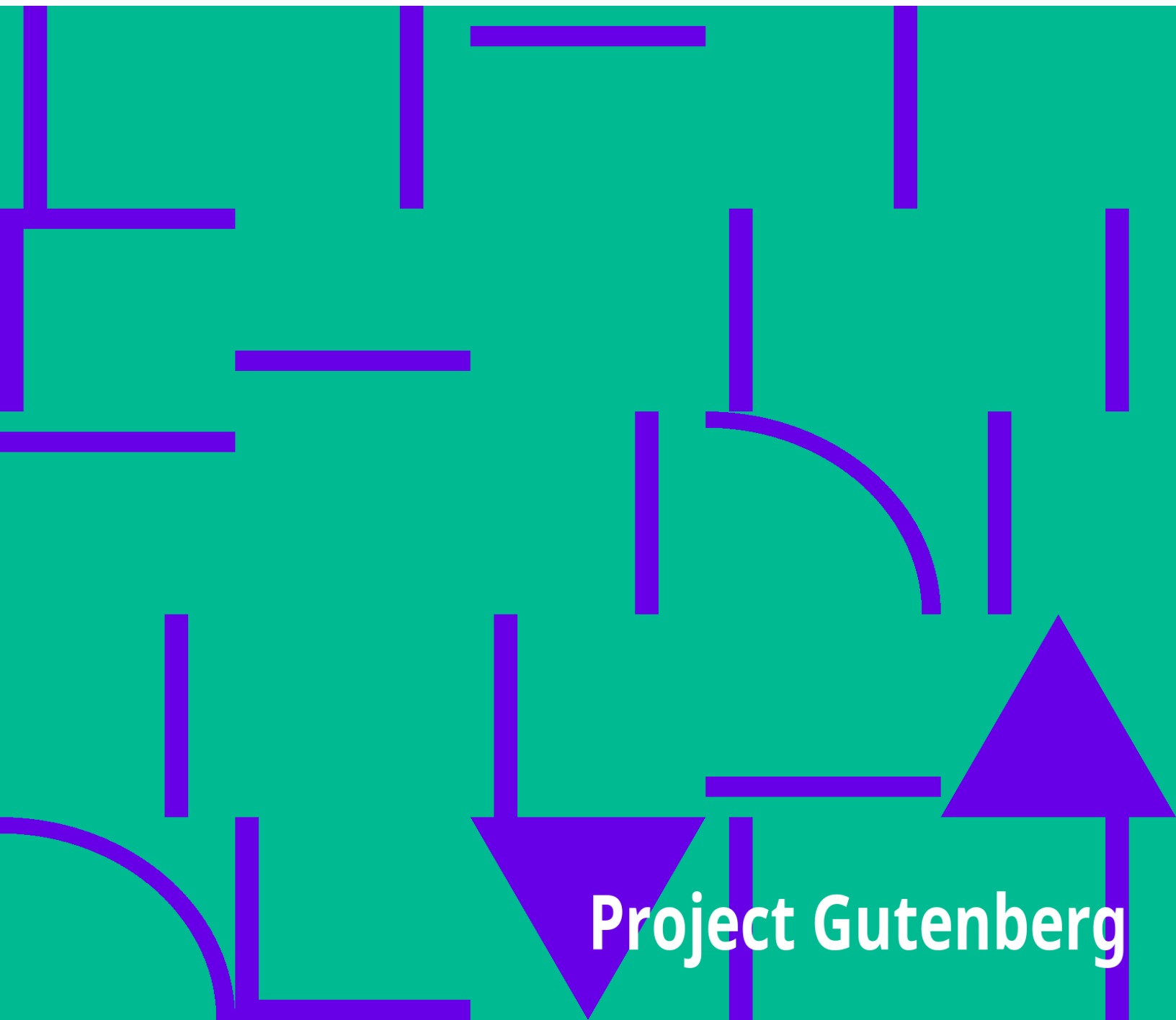


They of the High Trails

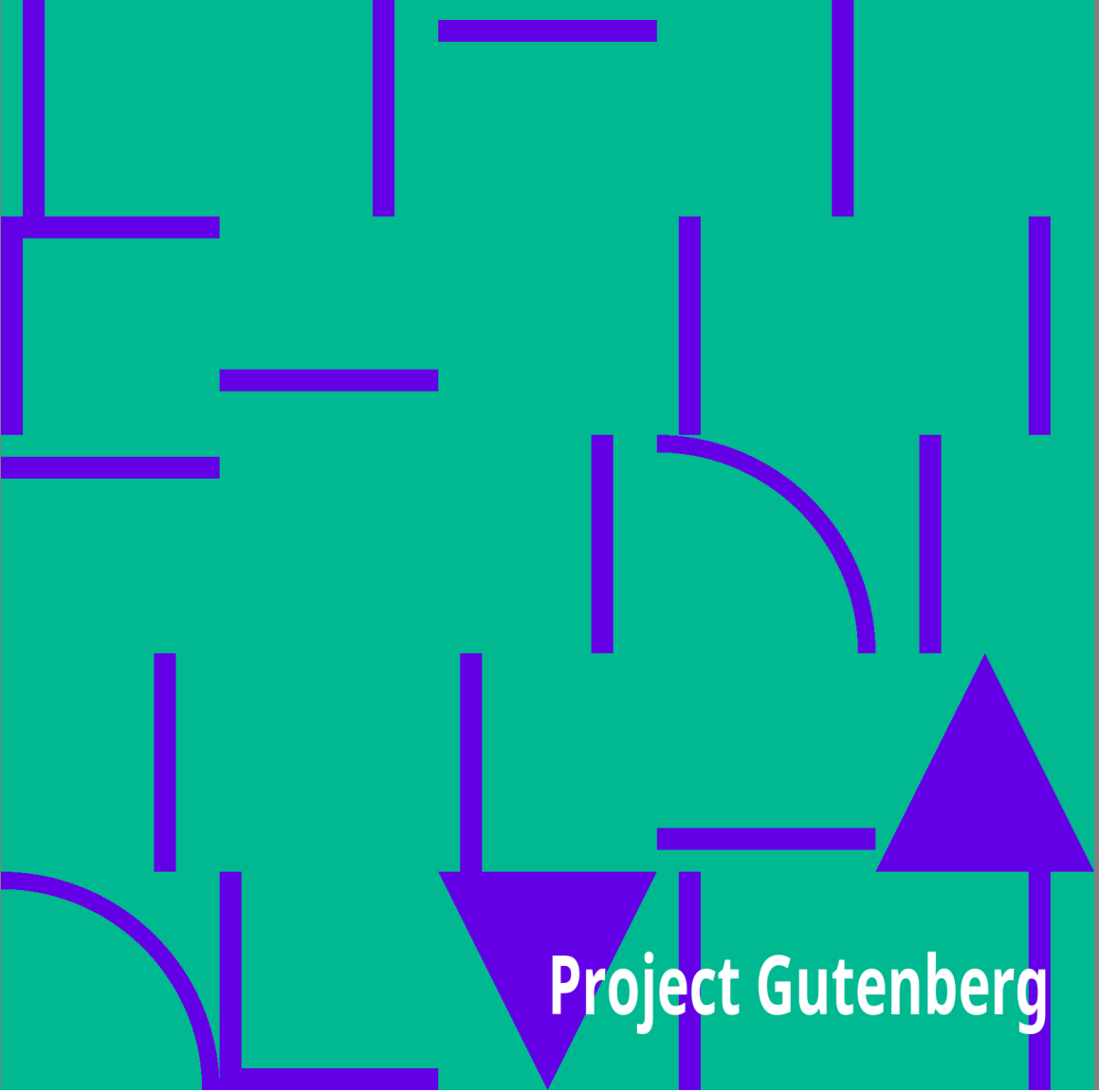
Hamlin Garland

The background of the lower half of the image is a teal color, overlaid with a pattern of various purple geometric shapes. These include horizontal and vertical lines of different lengths, some curved lines, and two triangles (one pointing up and one pointing down).

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They of the High Trails

Hamlin Garland



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THEY OF THE HIGH TRAILS

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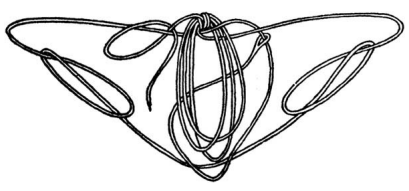
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"TAKE ME BACK—INSIDE," ALICE SAID. "I FEEL COLD
HERE."

[See page 220][ToList](#)

THEY OF THE HIGH TRAILS



HAMLIN GARLAND

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"TAKE ME BACK—INSIDE," ALICE SAID. "I FEEL
COLD HERE"

[*Frontispiece*](#)

"YOU'RE PRETTY SWIFT, AREN'T YOU?" SHE SAID,
CUTTINGLY

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THE WOMAN CARRIED HERSELF SO
UNGRACEFULLY AND DRESSED SO PLAINLY THAT
EVEN THE SALOON-DOOR LOAFERS CAST
CONTEMPTUOUS GLANCES UPON HER

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THE AUTHOR'S FOREWORD

Many changes have swept over the mountain West since twenty years ago, but romance still clings to the high country. The Grub-Staker, hammer in hand, still pecking at the float, wanders the hills with hopeful patience, walking the perilous ledges of the cliffs in endless search of gold.

The Cow-Boss, reckless rear-guard of his kind, still urges his watch-eyed bronco across the roaring streams, or holds his milling herd in the high parks, but the Remittance Man, wayward son from across the seas, is gone. Roused to manhood by his country's call, he has joined the ranks of those who fight to save the shores of his ancestral isle.

The Prospector still pushes his small pack-mule through the snow of glacial passes, seeking the unexplored, and therefore more alluring, mountain ranges.

The Lonesome Man still seeks forgetfulness of crime in the solitude, building his cabin in the shadow of great peaks.

The Trail-Tramp, mounted wanderer, horseman of the restless heart, still rides from place to place, contemptuous of gold, carrying in his folded blanket all the vanishing traditions of the wild.

The Fugitive still seeks sanctuary in the green timber—finding the storms of the granite peaks less to be feared than the fury of the law.

The Leaser—the tenderfoot hay-roller from the prairies—still tries his luck in some abandoned tunnel, sternly toiling for his faithful sweetheart in the low country; and

The Forest Ranger, hardy son of the pioneers, representing the finer social order of the future, rides his lonely woodland trail, guarding with single-hearted devotion our splendid communal heritage of mine and stream.

On the High Trail, SPRING, 1916.

THE GRUB-STAKER

*—hammer in hand, still pecking at the
float, wanders the Rockies with hopeful
patience, walking the perilous ledges of
the cliffs in endless search of gold.*

THEY OF THE HIGH TRAILS



I

THE GRUB-STAKER

I

"There's gold in the Sierra Blanca country—everybody admits it," Sherman F. Bidwell was saying as the Widow Delaney, who kept the Palace Home Cooking Restaurant in the town of Delaney (named after her husband, old Dan Delaney), came into the dining-room. Mrs. Delaney paused with a plate of steaming potatoes, and her face was a mask of scorn as she addressed the group, but her words were aimed especially at Bidwell, who had just come in from the lower country to resume his prospecting up the gulch.

"It's aisy sayin' gould is in thim hills, but when ye find it rainbows will be fishin'-rods." As she passed the potatoes over Bidwell's head she went on: "Didn't Dan Delaney break his blessed neck a-climbin' the high places up the creek—to no purpis includin' that same accident? You min may talk and talk, but talk don't pay for petaties and bacon, mind that. For eight years I've been here and I'm worse off to-day than iver before—an' the town, phwat is it? Two saloons and a boardin'-house—and not a ton of ore dug—much less shipped out. Y'r large words dig no dirt, I'm thinkin', Sherm Bidwell."

Bidwell was a mild-spoken man who walked a little sidewise, with eyes always on the ground as though ceaselessly searching for pieces of float. He replied to his landlady with some spirit: "I've chashayed around these mountains ever since I got back from Californy in fifty-four and I know good rocks. I can't just lay my pick on the vein, but I'm due to find it soon, for I'm a-gettin' old. Why, consider the float, it's everywhere—and you know there's colors in every sand-bar? There's got to be a ledge somewhere close by."

The widow snorted. "Hah! Yiss, flo-at! Me windysills is burthened with dirty float—but where's the gould?"

"I'll find it, Mrs. Delaney—but you must be patient," he mildly replied.

"Pashint! Me, pashint! Sure Job was a complainin' mill-wheel beside me, Sherm Bidwell. Me boarders have shrunk to five and you're one o' the five—and here you are after another grub-stake to go picnicking into the mountains wid. I know your smooth tongue—sure I do—but ye're up against me determination this toime, me prince. Ye don't get a pound o' meat nor a measure o' flour from Maggie Delaney—"

Bidwell sat with an air of resigned Christian fortitude while the widow delivered herself. To tell the truth, he had listened to these precise words before—and resented them only because spoken publicly.

The other boarders finished their supper in silence and went out, but Bidwell lingered to wheedle the mistress while she ate her own fill at the splotched and littered table. The kerosene-lamp stood close to her plate and brought out the glow of her cheek and deepened the blue of her eyes into violet. She was still on the right side of forty and well cared for.

Bidwell shot a shy glance at her. "I like to stir you up, Maggie darlin'; it makes you purty as a girl."

She caught up a loaf of bread and heaved it at him. He caught it deftly and inquired, guilelessly: "Is this the first of my grub-stake, lassie?"

"It is *not*! 'Tis the last crumb ye'll have of me. Out wid ye! Grub-stake indade! You go out this night, me bucko!"

Bidwell rose in pretended fright and shuffled to the door. "I don't need much—a couple o' sacks o' flour—"

She lifted an arm. "You tramp!"

He slammed the door just in time to prevent a cup from flying straight into his smiling eyes. After a moment of silent laughter, and with a wink at the men in the "office," he reopened the door and said:

"Ye're a warm-hearted, handsome girl, Maggie. Two strips o' bacon—"

A muffled cry and a crash caused him to again slam the door and withdraw.

Coming back to the middle of the room, he took out his pipe and began to fill it. One of the younger men said:

"You'll get that grub-stake over the eye; the widdy is dangerous to-night."

Sherm seemed not much concerned. Having fired his pipe, he took a piece of rock from his pocket. "What do you think o' this?" he inquired, casually.

The other examined it eagerly, and broke out: "Jee—cripes! Why, say! that's jest *rotten* with gold. Where'd you find it?"

"Out in the hills," was the placid reply; "a new vein—high up."

The third man took the rock and said: "That vein has got to be low down—that can't come from high up. We're on the wrong trail. Think o' Cripple Creek—mine's right under the grass on the hills. Yer can't fool me."

"But we know the veins are high—we've seen 'em," argued the other men.

"Yes—but they're different veins. This rock comes from lower down."

"What do you say to that, Sherm?"

"One guess is as good as another," he replied, and moved away with his piece of ore.

"The old man's mighty fly this evenin'. I wonder if he really has trailed that float to a standstill. I'd sooner think he's stringin' us."

Bidwell went out on the edge of the ravine, and for a long time sat on a rock, listening to the roar of the swift stream and looking up at the peaks which were still covered with heavy yellow snow, stained with the impalpable dust which the winter winds had rasped from the exposed ledges of rock. It was chill in the cañon, and the old man shivered with cold as well as with a sense of discouragement. For twenty years he had regularly gone down into the valleys in winter to earn money with which to prospect in summer—all to no purpose. For years Margaret Delaney had been his very present help in time of trouble, and now she had broken with him, and under his mask of smiling incredulity he carried a profoundly disturbed conscience. His benefactress was in deadly earnest—she meant every word she said—that he felt, and unless she relented he was lost, for he had returned from the valley this time without a dollar to call his own. He had a big, strong mule and some blankets and a saddle—nothing further.

The wind grew stronger and keener, roaring down the cañon with the breath of the upper snows, and the man's blood cried out for a fire (June

stands close to winter in the high ranges of the Crestones), and at last he rose stiffly and returned to the little sitting-room, where he found the widow in the midst of an argument with her boarders to prove that they were all fools together for hangin' to the side of a mountain that had no more gould in it than a flatiron or a loomp o' coal—sure thing!

"What you goin' to do about our assays?" asked young Johnson.

"Assays, is it? Annybody can have assays—that will pay the price. Ye're all lazy dogs in the manger, that's phwat ye air. Ye assay and want somebody else to pay ye fer the privilege of workin'. Why don't ye work yer-silves—ye loots? Sit around here expectin' some wan ilse to shovel gould into yer hat. Ye'll pay me yer board—moind that," she ended, making a personal application of her theories; "ivery wan o' ye."

If any lingering resolution remained in Bidwell's heart it melted away as he listened to Mrs. Delaney's throaty voice and plain, blunt words. Opening the door timidly, he walked in and without looking at the angry woman seized upon his bundles, which lay behind the door.

The widow's voice rang out: "Where ye gawun wid thim bags?"

Bidwell straightened. "They're my bundles, I reckon. Can't a man do as he likes with his own?"

"Not whin he's owin' fer board. Put thim boondles down!"

The culprit sighed and sat down on the bundles. Even young Johnson lost his desire to laugh, for Bidwell looked pathetically old and discouraged at the moment, as he mildly asked:

"You wouldn't send a man out in the night without his blankets, would you?"

"I'd send a sneak to purgatory—if I c'u'd. Ye thought ye'd ooze out, did ye? Nice speciment you are!"

Bidwell was roused. "If I had planned to sneak I wouldn't 'a' come into the room with you a-standin' in the middle of the floor," he replied, with some firmness. "You ordered me out, didn't you? Well, I'm goin'. I can't pay you—you knew that when you told me to go—and I owe you a good deal—I admit that—but I'm going to pay it. But I must have a little time."

The other men, with a grateful sense of delicacy, got up and went out, leaving Bidwell free space to justify himself in the eyes of the angry woman.

As the door slammed behind the last man the widow walked over and gave Bidwell a cuff. "Get *off* thim boondles. Gaw set on a chair like a man, an' not squat there like a baboon." She pitched his bundles through an open door into a small bedroom. "Ye know where yer bed is, I hope! I do' know phwat Dan Delaney w'u'd say to me, housin' and feedin' the likes o' you, but I'll do it wan more summer—and then ye gaw flyin'. Ye hear that now!"

And she threw the door back on its hinges so sharply that a knob was broken.

Bidwell went in, closed the door gently, and took to his bed, dazed with this sudden change in the climate. "She's come round before—and surprised me," he thought, "but never so durn sudden as this. I hope she ain't sick or anything."

Next morning at breakfast Maggie was all smiles. The storm of the evening before had given place to brilliant sunshine. She ignored all winks and nudgings among her boarders, and did not scruple to point out to Bidwell the choicest biscuit on the plate, and to hand him the fattest slice of bacon, all of which he accepted without elation.

"Old Sherm must be one o' these hypnotical chaps," said Johnson as they were lighting their pipes in the sitting-room. "He's converted the widow into another helping. He's goin' to get his flour and bacon all right!"

"You bet he is, and anything else he wants. Beats me what she finds in that old side-winder, anyhow."

"Oh, Sherm isn't so worse if he had a decent outfit."

Bidwell was deeply touched by Maggie's clemency, and would have put his feelings into the best terms he was familiar with, but the widow stopped him.

"The best way to thank me is to hustle out and trail up that flo-at. If it's there, find it. If it's not there, give o'er the search, for ye are a gray man, Sherm Bidwell, and I'm not the woman I was eight years ago."

In the exaltation of the moment Bidwell rose, and his shoulders were squared as he said: "I'm a-goin', Maggie. If I find it I'll come back and marry you. If I don't—I'll lay my useless old bones in the hills."

"Ah—go 'long! Don't be a crazy fool!" she said, but her face flushed with pleasure at the sincerity of his tone. "Ye've made such promises ivery time before."

"I know I have, but I mean it now."

"Aho! so that's the way of it—ye didn't mean it before? Is that phwat ye're sayin'?"

His proud pose collapsed. "You know what I mean—only you're such a tormentin' little devil."

"Thank ye for the compliment, Mr. Bidwell."

Bidwell turned. "I'm going after old Nebuchadnezzar," he said, firmly. "I can't waste time on a chicken-headed woman—"

"Out wid ye before I break the measly head of ye!" she retorted.

An hour later, with his mule packed with food and blankets and tools, he moved off up the trail. The other men stood to watch him go, consumed with curiosity, yet withholding all question.

The widow did not so much as look from the door as her grub-staker disappeared.

II

Three days later Bidwell crept stealthily down the trail, leading his mule as silently as possible. He timed his arrival so that Mrs. Delaney would be in the kitchen alone with the Chinaman, getting the dishes ready for breakfast.

"Who is ut?" called the widow as he softly knocked.

"Me—Sherm," he replied.

"Saints in hevin! What's the matter? Are ye sick?" she gasped as she flung the door open.

"Sh! Don't speak so loud," he commanded. "Sit down; I want to speak solemn-like to you."

His tone impressed her deeply. "Have ye struck ut?" she asked, tremulously.

"I hain't found it yet, but I want to tell ye—I believe I've had a hunch. Send the 'chink' away."

Something in his tone stopped all scornful words upon her lips. Ordering the Chinaman to bed, she turned and asked:

"Phwat do ye mean? Spake, man!"

"Well, sir, as I started up the trail something kept sayin' to me, 'Sherman, you're on the wrong track.' It was just as if you pulled my sleeve and nudged me and said, '*This way!*' I couldn't sleep that night. I just lay on the ground and figured. Up there high—terrible high—are seams of ore—I know that—but they're in granite and hard to get at. That's one gold belt. There's money in a mine up there, but it will take money to get it. Then there's another gold belt down about here—or even lower—and I've just come to the conclusion that our mine, Maggie, is down here in the foot-hills, not on old Blanca."

The air of mystery which enveloped and transformed the man had its effect on the woman. Her eyes opened wide.

"Was it a voice like?"

"No, it was more like a pull. Seemed to be pulling me to cross the creek where I found that chunk of porph'ritic limestone. I couldn't sleep the second night—and I've been in camp up there in Burro Park tryin' to figure it all out. I hated to give up and come back—I was afraid ye'd think I was weakening—but I can't help it. Now I'll tell you what I'm going to do—I'm going to make a camp over on the north side of the creek. I don't want the boys to know where I've gone, but I wanted you to know what I'm doing—I wanted you to know—it's plum ghostly—it scared me."

She whispered, "*Mebbe it's Dan.*"

"I thought o' that. Him and me were always good friends, and he was in my mind all the while."

"But howld on, Sherm; it may be the divil leadin' ye on to break y'r neck as did Dan. 'Twas over there he fell."

"Well, I thought o' that, too. It's either Dan or the devil, and I'm going to find out which."

"The saints go wid ye!" said the widow, all her superstitious fears aroused. "And if it *is* Dan he'll sure be good to you fer my sake."

III

Sierra Blanca is the prodigious triple-turreted tower which stands at the southern elbow of the Sangre de Cristo range. It is a massive but symmetrical mountain, with three peaks so nearly of the same altitude that the central dome seems the lowest of them all, though it is actually fourteen thousand four hundred and eighty feet above the sea. On the west and south this great mass rises from the flat, dry floor of the San Luis Valley in sweeping, curving lines, and the piñons cover these lower slopes like a robe of bronze green.

At eight thousand feet above the sea these suave lines become broken. The piñons give place to pine and fir, and the somber cañons begin to yawn. It was just here, where the grassy hills began to break into savage walls, that Bidwell made his camp beside a small stream which fell away into Bear Creek to the south. From this camp he could look far out on the violet and gold of the valley, and see the railway trains pass like swift and monstrous dragons. He could dimly see the lights of Las Animas also, and this led him to conceal his own camp-fire.

Each day he rode forth, skirting the cliffs, examining every bit of rock which showed the slightest mineral stain. Scarcely a moment of the daylight was wasted in this search. His mysterious guide no longer touched him, and this he took to be a favorable omen. "I'm near it," he said.

One day he hitched his mule to a small dead pine at the foot of a steep cliff, and was climbing to the summit when a stone, dislodged by his feet, fell, bounced, thumped the mule in the ribs, and so scared the animal that he pulled up the tree and ran away.

Angry and dispirited (for he was hungry and tired) Bidwell clambered down and began to trail the mule toward camp. The tree soon clogged the runaway and brought him to a stand in a thicket of willows.

As Bidwell knelt to untie the rope his keen eyes detected the glitter of gold in the dirt which still clung to the moist root of the pine. With a sudden conviction of having unearthed his fortune, the miner sprang to his saddle and hurried back to the spot whence the tree had been rived. It was dusk by the time he reached the spot, but he could detect gold in the friable rock which lined the cavity left by the uprooted sapling. With a mind too excited to sleep he determined to stay with his find till morning. To leave it involved no real risk of losing it, and yet he could not bring himself to even build a camp-fire, for fear some one might be drawn from the darkness to dispute his claim.

It was a terribly long night, and when old Blanca's southern peak began to gleam out of the purple receding waves of the night the man's brain was numb with speculation and suspense. Hovering over the little heap of broken rock which he had scooped out with his hands, he waited in almost frenzied impatience for the sun.

He could tell by the feeling that the ore was what miners of his grade call "rotten quartz," and he knew that it often held free gold in enormous richness. It was so friable he could crumble it in his hands, and so yellow with iron-stains that it looked like lumps of clay as the dawn light came. A stranger happening upon him would have feared for his reason, so pale was his face, so bloodshot his eyes.

At last he could again detect the gleam of gold. Each moment as the light grew the value of the ore increased. It was literally meshed with rusty free gold. The whole mound was made up of a disintegrated ledge of porphyry and thousands of dollars were in sight. As his mind grasped these facts the miner rose and danced—*but he did not shout!*

All that day he worked swiftly, silently, like an animal seeking to escape an enemy, digging out this rock and carrying it to a place of concealment in a deep thicket not far away. He did not stop to eat or drink till mid-afternoon, and then only because he was staggering with weakness and his hands were growing ineffective. After eating he fell asleep and did not wake till deep in the night. For some minutes he could not remember what had

happened to him. At last his good fortune grew real again. Saddling his mule, he rode up the creek and crossed miles above his newly discovered mine, in order to conceal his trail, and it was well toward dawn before he tapped on the widow's window.

"Is that you, Sherm?" she asked.

"Yes. Get up quick; I have news!"

When she opened the kitchen door for him she started back. "For love of God, man, phwat have you been doin' wid yersilf?"

"Be quiet!" he commanded, sharply, and crept in, staggering under the weight of a blanket full of ore. "You needn't work any more, Maggie; I've got it. Here it is!"

"Man, ye're crazy! What have you there? Not gould!"

"You bet it is! Quartz jest *rotten* with gold. Where can I hide it?" His manner would not have been wilder had his bag of ore been the body of a man he had murdered. "Quick! It's almost daylight."

"Let me see ut. I do *not* believe ut."

He untied the blanket, and as the corners unrolled, disclosing the red-brown mass, even her unskilled eyes could see the gleaming grains of pure metal. She fell on her knees and crossed herself.

"Praise be to Mary! Where did ye find ut—and how?"

"Not a word about that. I'm scared. If any one should find it while I am away they could steal thousands of dollars. Why, it's like a pocket in a placer! Get me every sack you can. Give me grub—and hide this. There are tons of it! This is the best of it. We are rich—rich as Jews, Maggie!"

They worked swiftly. The widow emptied a cracker-barrel and put the ore at the bottom, and then tumbled the crackers in on top of the ore. She set out some cold meat and bread and butter, and while Bidwell ate she brought out every rag that could serve as a sack.

"I'll have more for ye to-morrow. I wish I c'u'd go wid ye, Sherm. I'd like to set me claws at work at that dirt."

"I need help, but I am afraid to have a man. Well, I must be off. Good-by. I'll be back to-night with another load. I guess old Sherm is worth a kiss yet—eh—Maggie!"

"Be off wid ye. Can't ye see the dawn is comin'?" A moment later she ran up to him and gave him a great hug. "There—now haste ye!"

"Be silent!"

"As the grave itself!" she replied, and turned to brush up the cracker-crumbs. "That Chinese divil has sharp eyes," she muttered.

IV

It was inevitable that the golden secret should escape. Others besides the Chinese cook had sharp eyes, and the Widow Delaney grew paler and more irritable as the days wore on. She had a hunted look. She hardly ever left her kitchen, it was observed, and her bedroom door had a new lock. Every second night Bidwell, gaunt and ragged, and furtive as a burglar, brought a staggering mule-load of the richest ore and stowed it away under the shanty floor and in the widow's bedroom. Luckily miners are sound sleepers, or the two midnight marauders would have been discovered on the second night.

One day John, the cook, seized the cracker-barrel, intending to put it into a different corner. He gave it a slight wrench, looked a little surprised, and lifted a little stronger. It did not budge. He remarked:

"Klackels belly hebbby. No sabbe klackels allee same deese."

"*Let that alone!*" screamed Mrs. Delaney. "Phwat will ye be doin' nixt, ye squint-eyed monkey? I'll tell ye whin to stir things about."

The startled Chinaman gave way in profound dismay. "Me goin' s'leep lound klackel-ballell, you sabbe?"

"Well, I'll do the sweepin' there. I nailed that barrel to the flure apurpis. L'ave it alone, will ye?"

This incident decided her. That night, when Bidwell came, she broke out:

"Sherm, I cannot stand this anny longer. I'm that nairvous I can't hear a fly buzz widout hot streaks chasin' up and down me spine like little red

snakes. And man, luk at yersilf. Why, ye're hairy as a go-at and yer eyes are loike two white onions. I say stop, Sherm dear!"

"What'll we do?" asked Bidwell in alarm.

"Do? I'll tell ye phwat we'll do. We'll put our feets down and say, 'Yis, 'tis true, we've shtruck ut, and it's ours.' Then I'll get a team from Las Animas and load the stuff in before the face and eyes of the world, and go wid it to sell it, whilst you load y'r gun an' stand guard over the hole in the ground. I'm fair crazy wid this burglar's business. We're both as thin as quakin' asps and full as shaky. You go down the trail this minute and bring a team and a strong wagon—no wan will know till ye drive in. Now go!"

Bidwell was ruled by her clear and sensible words, and rode away into the clear dark of the summer's night with a feeling that it was all a dream—a vision such as he had often had while prospecting in the mountains; but, as day came on and he looked back upon the red hole he had made in the green hillside, the reality of it all came to pinch his heart and make him gasp. His storehouse, his well of golden waters, was unguarded, and open to the view of any one who should chance to look that way. He beat his old mule to a gallop in the frenzy of the moment.

The widow meanwhile got breakfast for the men, and as soon as they were off up the trail she set the awed and wondering Chinaman to hauling the sacks of ore out from beneath the shanty and piling them conveniently near the roadway. She watched every movement and checked off each sack like a shipping-clerk. "Merciful powers! the work that man did!" she exclaimed, alluding to Bidwell, who had dug all that mass of ore and packed it in the night from the mine to its safe concealment.

Of course, Mrs. Clark, the storekeeper's wife, saw them at work and came over to see what was going on.

"Good morning, Mrs. Delaney. You're not going to move?"

"I am."

"I'm sorry. What's the reason of it? Why, that looks like ore!" she said as she peered at a sack.

"It *is* ore! and I'm goin' to ship it to the mill. Have ye anny objection?" asked Mrs. Delaney, defiantly.

"Where did it come from?"

"That's *my* business. There's wan more under there," she said to the Chinaman, and as he came creeping out like a monstrous bug tugging a pair of Bidwell's overalls (ore-filled), as if they formed the trunk of a man whom he had murdered and hidden, Mrs. Clark turned and fled toward the store to tell her husband.

"There ye go, now! Ye screech-owl," sneered the Widow Delaney. "It's all up wid us; soon the whole world will know of ut. Well—we're here first," she defiantly added.

Clark came over, pale with excitement. "Let me see that ore!" he called out as he ran up and laid his hand on a sack.

"Get off—and stay off!" said Maggie, whipping a revolver out of her pocket. "That's my ore, and you let it alone!"

Clark recoiled in surprise, but the widow's anxiety to protect her property added enormously to his excitement. "The ore must be very rich," he argued. "How do I know but that comes from one of my claims?" he asked.

The widow thrust the muzzle of the revolver under his nose. "Would ye call me a thafe? 'Tis well Bidwell is not here; he'd do more than make ye smell of a gun. Go back to yer own business—if ye value a whole skin—an' stay away from phwat does not concern ye."

All this was characteristically intemperate of Maggie, and by the time Bidwell came clattering up the trail with a big freight-wagon the whole gulch was aroused, and a dozen men encircled the heap of motley bags on which Mrs. Delaney sat, keeping them at bay.

When she heard the wagon her nerves steadied a little and she said, more soberly: "Boys, there comes Bidwell with a wagon to haul this stuff away, and, Johnson, you help him load it while I go see about dinner."

As Bidwell drove up a mutter of amazement ran round the group and each man had his say.

"Why, Bid, what's the matter? You look like a man found dead."

"I'm just beginning to live!" said Bidwell, and the reply was long remembered in Bear Gulch.

"Well, now ye know all about it, ye gawks, take hold and help the man load up. I'll have dinner ready fer ye in a snort," repeated the widow.

Clark drew his partners aside. "He packed that ore here; he must have left a trail. You take a turn up the cañon and see if you can't find it. It's close by somewhere."

Bidwell saw them conferring and called out: "You needn't take any trouble, Clark; I'll lead you to the place after dinner. My claim is staked and application filed—so don't try any tricks on me."

The widow's eyes were equally keen, and the growing cupidity of the men did not escape her. Coming out with a big meat sandwich, she said: "'Twill not do to sit down, Sherm; take this in yer fist and go. They'll all be slippin' away like snakes if ye don't. I'll take John and the ore—we'll make it somehow—and I'll stay wid it till it's paid for."

She was right. The miners were struggling with the demons of desire and ready to stampede at any moment. Hastily packing his mule, Bidwell started up the trail, saying:

"Fall in behind me, boys, and don't scrouge. The man who tries to crowd me off the trail will regret it."

They were quiet enough till he left the trail and started down toward the Bear. Then Johnson cried, "I know where it is!" and plunged with a whoop into the thicket of willows that bordered the creek.

"Mebbe he does and mebbe he don't," said Clark. "I'm going to stick by Bid till we get the lay o' the land."

They maintained fairly good order until Bidwell's trail became a plain line leading up the hillside; then the stampede began. With wild halloos and resounding thwacking of mules they scattered out, raced over the hilltop, and disappeared, leaving Bidwell to plod on with his laden burro.

When he came in sight of his mine men were hammering stakes into the ground on all sides of the discovery claim, and Clark and Johnson were in a loud wrangle as to who reached the spot first. Leading his mule up to the cliff wall where he had built a shelter, Bidwell unpacked his outfit, and as he stood his rifle against a rock he said:

"I'm planted right here, neighbors. My roots run deep underground, and the man who tries to jump this claim will land in the middle of hell fire—now, that's right."

Their claims once staked and their loud differences stilled, the men had leisure to come and examine the discovery claim.

"You've the best of it," said Cantor, an old miner. "There may not be an ounce of gold outside your vein. It's a curious formation; I can't tell how it runs."

Toward night the other miners left and went back to camp, leaving Bidwell alone. As darkness came on he grew nervous again. "They'd kill me if they dared," he muttered, as he crouched in his shelter, his gun on his knee. He was very sleepy, but resolved not to close his eyes. "If I only had a dog—some one I could trust; but I haven't a soul," he added, bitterly, as his weakness grew. The curse of gold sat heavily upon him and his hands were lax with weariness.

"I was a fool to let Maggie go off with that ore," he muttered, his mind following the widow in her perilous journey down the gulch. He did not distrust her; he only feared her ability to override the difficulties of her mission. For the best part of his life he had sought the metal beneath his feet, and, now that he had found it, his blood ran cold with suspicion and fear.

Daylight brought a comparative sense of safety, and, building a fire, he cooked his breakfast in peace—though his eyes were restless. "Oh, they'll come," he said, aloud. "They'll boil in here on me in another hour or two."

And they did. The men from Delaney came first, followed a little later by their partners from the high gulches, and after them the genuine stampedeers. The merchants, clerks, hired hands, barbers, hostlers, and half-starved lawyers from the valley towns came pouring up the trail and, pausing just long enough to see the shine of gold in Bidwell's dump, flung themselves upon the land, seizing the first unclaimed contiguous claim without regard to its character or formation. Their stakes once set, they began to roam, pawing at the earth like prairie-dogs and quite as ineffectually. Swarms of the most curious surrounded Bidwell's hole in the ground, picking at the ore

and flooding the air with shouts and questions till the old man in desperation ordered them off his premises and set up a notice:

"Keep off this ground or meet trouble!"

To his friends he explained, "Every piece of rock they carry off is worth so much money."

"Ye've enough here to buy the warrld, mon," protested Angus Craig, an old miner from the north.

"I don't know whether I have or not," said Bidwell. "It may be just a little spatter of gold."

That night the whole range of foot-hills was noisy with voices and sparkling with camp-fires. From the treeless valleys below these lights could be seen, and the heavily laden trains of the San Luis Accommodation trailed a loud hallelujah as the incoming prospectors lifted their voices in joyous greeting to those on the mountainside.

"It's another Cripple Creek!" one man shouted, and the cry struck home. "We're in on it," they all exulted.

Bidwell did not underestimate his importance in this rush of gold-frenzied men. He was appalled by the depth and power of the streams centering upon him. For weeks he had toiled to the full stretch of his powers without sufficient sleep, and he was deathly weary, emaciated to the bone, and trembling with nervous weakness, but he was indomitable. A long life of camping, prospecting, and trenching had fitted him to withstand even this strain, and to "stay with it" was an instinct with him. Therefore he built a big fire not far from the mine and spread his blankets there; but he did not lie down till after midnight, and only then because he could not keep awake, even while in sitting posture. "I must sleep, anyhow," he muttered. "I can't stand this any longer. I must sleep"—And so his eyes closed.

He was awakened by a voice he knew calling out: "Is this the way ye watch y'r mine, Sherm Bidwell?" And, looking up, he saw the Widow Delaney sitting astride a mule and looking down at him with tender amusement. "Ye are a pitcher; sure! Ye look like wan o' the holy saints of ould—or a tramp. Help me off this baste and I'll turn to and scorch a breakfast for ye."

He staggered stiffly to his feet and awkwardly approached her. "I had only just dropped off," he apologized.

"Ye poor lad!" she said, compassionately. "Ye're stiff as a poker wid cold."

"How did ye come out with the ore?" he asked.

"Thrust y'r Maggie! I saw it loaded into a car and sent away. Bedad, I had a moind to go wid it to the mill, but I says, Sherm nor mesilf can be in two places to wanst. So I gave o'er the notion and came home. They'll thieve the half of it, av coorse, but so goes the world, divil catch it!"

The widow was a powerful reinforcement. She got breakfast while Bidwell dozed again, and with the influence of hot coffee and the genial sun the firm grew confident of holding at least the major part of their monstrous good luck.

"Thrust no wan but me," said the widow in decisive warning. "The world is full of rogues. From this toime ivery man's hand is agin' y'r gold—schamin' to reach y'r pockets. Rest yersilf and I'll look after the gould. From this toime on we work only wid our brains."

She did indeed become the captain. On her advice he sent a man for ore-sacks and tools, while other willing hands set to work to build a cabin to shelter them.

"We're takin' no chances," she said; "we camp right here."

That day Las Animas, Crestone, Powder Gulch, and Los Gatos emptied themselves upon the hills, and among them were representatives of big firms in Denver, Colorado Springs, and Pueblo. The path past the Maggie Mine was worn deep by the feet of the gold-seekers, and Bidwell's rude pole barrier was polished by the nervous touch of greedy palms.

About ten o'clock a quiet man in a gray suit of clothes asked Bidwell if he wanted to sell. Bidwell said, "No," short and curt, but Maggie asked, with a smile, "How much?"

"Enough to make you comfortable for life. If it runs as well as this sample I'll chance fifty thousand dollars on it."

Maggie snorted. "Fifty thousand! Why, I tuk twice that to the mill last night."

"Let me get in and examine the mine a little closer. I may be able to raise my bid."

"Not till ye make it wan hundred thousand may you even have a luk at it," she replied.

Other agents came—some confidential, others coldly critical, but all equally unsuccessful. The two "idiots" could not see why they should turn over the gold which lay there in sight to a syndicate. It was theirs by every right, and though the offers went far beyond their conception they refused to consider them.

All day axes resounded in the firs, and picks were busy in the gullies. Camp goods, provisions, and bedding streamed by on trains of mules, and by nightfall a city was in its initial stages—tent stores, open-air saloons, eating-booths, and canvas hotels. A few of the swarming incomers were skeptical of the find, but the larger number were hilariously boastful of their locations, and around their evening camp-fires groups gathered to exult over their potentialities.

The sun had set, but the western slope of the hill was still brilliant with light as Bidwell's messenger with his sumpter horse piled high with bales of ore-sacks came round the clump of firs at the corner of Bidwell's claim. He was followed by a tall man who rode with a tired droop and nervous clutching at the rein.

Bidwell stared and exclaimed, "May I be shot if the preachers aren't takin' a hand in the rush!"

The widow looked unwontedly rosy as she conclusively said, "I sent for him, man dear!"

"You did? What for?"

The widow was close enough now to put her hand in the crook of his elbow. "To make us wan, Sherm darlin'. There's no time like the prisent."

Bidwell tugged at his ragged beard. "I wish I had time to slick up a bit."

"There'll be plinty of time for that afterward," she said. "Go welcome the minister."

In the presence of old Angus Craig and young Johnson they were married, and when the minister gave Mrs. Bidwell a rousing smack she wiped her lips with the back of her hand and said to Bidwell:

"Now we're ayquy partners, Sherm, and all old scores wiped out."

And old Angus wagged his head and said, "Canny lass, the widdy!"

When the news of this marriage reached the camp demons of laughter and disorder were let loose. Starting from somewhere afar off, a loud procession formed. With camp-kettles for drums and aspen-bark whistles for pipes, with caterwaul and halloo, the whole loosely cohering army of prospectors surrounded the little log cabin of the Maggie Mine and shouted in wild discord:

"Bidwell! Come forth!"

"A speech! A speech!"

Bidwell was for poking his revolver out through the unchinked walls and ordering the mob to disperse, but his wife was diplomatic.

"'Tis but an excuse to get drink," she said. "Go give them treat."

So Bidwell went forth, and, while a couple of stalwart friends lifted him high, he shouted, sharp and to the point, "It's on me, Clark!"

The mob, howling with delight, rushed upon him and bore him away, struggling and sputtering, to Clark's saloon, where kegs of beer were broached and the crowd took a first deep draught. Bidwell, in alarm for Maggie, began to fight to get back to the cabin. But cries arose for the bride.

"The bride—let's see the bride!"

Bidwell expostulated. "Oh no! Leave her alone. Are you gentlemen? If you are, you won't insist on seeing her."

In the midst of the crowd a clear voice rang out:

"The bride, is it? Well, here she is. Get out o' me way."

"Clear the road there for the bride!" yelled a hundred voices as Maggie walked calmly up an aisle densely walled with strange men. She had been accustomed to such characters all her life, and knew them too well to be afraid. Mounting a beer-keg, she turned a benign face on the crowd. The light of the torches lighted her hair till it shone like spun gold in a halo round her head. She looked very handsome in the warm, sympathetic light of the burning pitch-pine.

"Oh yiss, Oi'll make a speech; I'm not afraid of a handful of two-by-fours like you tenderfeet from the valley, and when me speech is ended ye'll go home and go to bed. Eleven days ago Sherm, me man, discovered this lode. Since then we've both worked night and day to git out the ore—we're dog-tired—sure we are—but we're raisonable folk and here we stand. Now gaze y'r fill and go home and l'ave us to rest—like y'r dacent mothers would have ye do."

"Good for you, Maggie!" called old Angus Craig, who stood near her. "Mak' way, lads!"

The men opened a path for the bride and groom and raised a thundering cheer as they passed.

Old Angus Craig shook his head again and said to Johnson: "Sik a luck canna last. To strike a lode and win a braw lass a' in the day, ye may say. Hoo-iver, he waited lang for baith."

THE COW-BOSS

*—the reckless cowboy on his watch-eyed
bronco still lopes across the grassy foot-
hills—or holds his milling herd in the
high parks.*

II

THE COW-BOSS

I

The post-office at Eagle River was so small that McCoy and his herders always spoke of the official within as "the Badger," saying that he must surely back into his den for lack of room to turn round. His presentment at the arched loophole in his stockade was formidable. His head was large, his brow high and seamed, his beard long and tangled, and the look of his hazel-gray eyes remote with cold abstraction.

"He's not a man to monkey with," said McCoy when the boys complained that the old seed had put up a sign, "NO SPITTING IN THIS OFFICE." "I'd advise you to act accordingly. I reckon he's boss of that thing while he's in there. He's a Populist, but he's regularly appointed by the President, and I don't see that we're in any position to presume to spit if he objects. No, there ain't a thing to do but get up a petition and have him removed—and I won't agree to sign it when you do."

Eagle River was only a cattle-yard station, a shipping-point for the mighty spread of rolling hills which make up the Bear Valley range to the north and the Grampa to the south. Aside from the post-office, it possessed two saloons, a store, a boarding-house or two, and a low, brown station-house. That was all, except during the autumn, when there was nearly always an outfit of cowboys camped about the corrals, loading cattle or waiting for cars.

On the day when this story opens, McCoy had packed away his last steer, and, being about to take the train for Kansas City, called his foreman aside.

"See here, Roy, seems to me the boys are extra boozed already. It's up to you to pull right out for the ranch."

"That's what I'm going to try to do," answered Roy. "We'll camp at the head of Jack Rabbit to-night."

"Good idea. Get 'em out of town before dark—every mother's son of 'em. I'll be back on Saturday."

Roy Pierce was a dependable young fellow, and honestly meant to carry out the orders of his boss; but there was so little by way of diversion in Eagle, the boys had to get drunk in order to punctuate a paragraph in their life. There was not a disengaged woman in the burg, and bad whisky was merely a sad substitute for romance. Therefore the settlers who chanced to meet this bunch of herders in the outskirts of Eagle River that night walked wide of them, for they gave out the sounds of battle.

They could all ride like Cossacks, notwithstanding their dizzy heads, and though they waved about in their saddles like men of rubber, their faithful feet clung to their stirrups like those of a bat to its perch. In camp they scuffled, argued, ran foot-races, and howled derisive epithets at the cook, who was getting supper with drunken gravity, using pepper and salt with lavish hand.

Into the midst of this hullabaloo Roy, the cow-boss, rode, white with rage and quite sober.

"I'll kill that old son of a gun one of these days," said he to Henry Ring.

"Kill who?"

"That postmaster. If he wasn't a United States officer, I'd do it now."

"What's the matter? Wouldn't he shuffle the mail fer you?"

"Never lifted a finger. '*Nothing*,' he barked out at me. Didn't even look up till I let loose on him."

"What did he do then?"

"Poked an old Civil War pistol out of the window and told me to hike."

"Which you did?"

"Which I did, after passing him a few compliments. 'Lay down your badge,' I says, 'come out o' your den, and I'll pepper you so full of holes that your hide won't hold blue-joint hay.' And I'll do it, too, the old hound!"

"But you got out," persisted Ring, maliciously.

"I got out, but I tell you right now he's got something coming to him. No mail-sifter of a little two-for-a-cent town like Eagle is goin' to put it all over me that way and not repent of it. I've figured out a scheme to get even with him, and you have got to help."

This staggered Henry, who began to side-step and limp. "Count me out on that," said he. "The old skunk treated me just about the same way. I don't blame you; a feller sure has a right to have his postmaster make a bluff at shuffling the deck. But, after all—"

However, in the end the boss won his most trusted fellows to his plan, for he was a youth of power, and besides they had all been roiled by the grizzled, crusty old official, and were quite ready to take a hand in his punishment.

Roy developed his plot. "We'll pull out of camp about midnight, and ride round to the east, sneak in, and surround the old man's shack, shouting and yelling and raising Cain. He'll come out of his hole to order us off, and I'll rope him before he knows where he's at; then we'll toy with him for a few minutes—long enough to learn him a lesson in politeness—and let him go."

No one in the gang seemed to see anything specially humorous in this method of inculcating urbanity of manner, and at last five of them agreed to stand their share of the riot, although Henry Ring muttered something about the man's being old and not looking very strong.

"He's strong enough to wave a two-foot gun," retorted Roy, and so silenced all objection.

One night as soon as the camp was quiet Pierce rose and, touching his marauders into activity, saddled and rode away as stealthily as the leader of a band of Indian scouts. He made straightway over the divide to the east, then turned, and, crossing the river, entered the town from the south, in order to deceive any chance observer.

Just below the station, in a little gully, he halted his war-party and issued final orders. "Now I'll ride ahead and locate myself right near the back door; then when I strike a light you fellows come in and swirl round the shack like a gust o' hell. The old devil will come out the back door to see what's doin', and I'll jerk him end-wise before he can touch trigger. I won't hurt him any more than he needs. Now don't stir till I'm in position."

Silently, swiftly, his pony shuffled along the sandy road and over the railway-crossing. The town was soundless and unlighted, save for a dim glow in the telegraph office, and the air was keen and crisp with frost. As he approached the Badger's shack Pierce detected a gleam of light beneath the curtain of the side windows. "If he's awake, so much the better," he thought, but his nerves thrilled as he softly entered the shadow.

Suddenly the pony trod upon something which made a prodigious crash. The door opened, a tall young girl appeared in a wide flare of yellow light which ran out upon the grass like a golden carpet. With eager, anxious voice she called out:

"Is that you, Doctor?"

The raider stiffened in his saddle with surprise. His first impulse was to set spurs to his horse and vanish. His next was to tear off his disguise and wait, for the voice was sweeter than any he had ever heard, and the girl's form a vision of beauty.

Alarmed at his silence, she again called out: "Who are you? What do you want?"

"A neighbor, miss," he answered, dismounting and stepping into the light. "Is there anything I can do for you?"

At this moment hell seemed to have let loose the wildest of its warriors. With shrill whoopings, with flare of popping guns, Roy's faithful herders came swirling round the cabin, intent to do their duty, frenzied with delight of it.

Horried, furious at this breach of discipline, Pierce ran to meet them, waving his hat and raising the wild yell, "Whoo-ee!" with which he was wont to head off and turn a bunch of steers. "Stop it! Get out!" he shouted as he succeeded in reaching the ears of one or two of the raiders. "It's all off—there's a girl here. Somebody sick! Skeedoo!"

The shooting and the tumult died away. The horsemen vanished as swiftly, as abruptly, as they came, leaving their leader in panting, breathless possession of the field. He was sober enough now, and repentant, too.

Slowly he returned to the door of the shack with vague intent to apologize. Something very sudden and very terrible must have fallen upon

the postmaster.

After some hesitation he knocked timidly on the door.

"Have they gone?" the girl asked.

"Yes; I've scared 'em away. They didn't mean no harm, I reckon. I want to know can't I be of some kind of use?"

The door opened cautiously and the girl again appeared. She was very pale and held a pistol in her hand, but her voice was calm. "You're very good," she said, "and I'm much obliged. Who are you?"

"I am Roy Pierce, foreman for McCoy, a cattleman north of here."

"Was it really a band of Indians?"

"Naw. Only a bunch of cow-punchers on a bat."

"You mean cowboys?"

"That's what. It's their little way of havin' fun. I reckon they didn't know you was here. I didn't. Who's sick?"

"My uncle."

"You mean the postmaster?"

"Yes."

"When was he took?"

"Last night. They telegraphed me about six o'clock. I didn't get here till this morning—I mean yesterday morning."

"What's the ail of him?"

"A stroke, I'm afraid. He can't talk, and he's stiff as a stake. Oh, I wish the doctor would come!"

Her anxiety was moving. "I'll try to find him for you."

"I wish you would."

"You aren't all alone?"

"Yes; Mrs. Gilfoyle had to go home to her baby. She said she'd come back, but she hasn't."

Roy's heart swept a wide arc as he stood looking into the pale, awed, lovely face of the girl.

"I'll bring help," he said, and vanished into the darkness, shivering with a sense of guilt. "The poor old cuss! Probably he was sick the very minute I was bullyragging him."

The local doctor had gone down the valley on a serious case, and would not be back till morning, his wife said, thereupon Roy wired to Claywall, the county-seat, for another physician. He also secured the aid of Mrs. James, the landlady of the Palace Hotel, and hastened back to the relief of the girl, whom he found walking the floor of the little kitchen, tremulous with dread.

"I'm afraid he's dying," she said. "His teeth are set and he's unconscious."

Without knowing what to say in way of comfort, the herder passed on into the little office, where the postmaster lay on a low couch with face upturned, in rigid, inflexible pose, his hands clenched, his mouth foam-lined. Roy, unused to sickness and death, experienced both pity and awe as he looked down upon the prostrate form of the man he had expected to punish. And yet these emotions were rendered vague and slight by the burning admiration which the niece had excited in his susceptible and chivalrous heart.

She was tall and very fair, with a face that seemed plain in repose, but which bewitched him when she smiled. Her erect and powerful body was glowing with health, and her lips and eyes were deliciously young and sweet. Her anxious expression passed away as Roy confidently assured her that these seizures were seldom fatal. He didn't know a thing about it, but his tone was convincing.

"I knew a man once who had these fits four or five times a year. Didn't seem to hurt him a bit. One funny thing—he never had 'em while in the saddle. They 'most always come on just after a heavy meal. I reckon the old man must of over-et."

Mrs. James came in soon—all too soon to please him—but he reported to her his message to Claywall. "A doctor will be down on 'the Cannonball' about five o'clock," he added.

"That's very kind and thoughtful of you," said the girl. Then she explained to Mrs. James that Mr. Pierce had just driven off a horrid band of cowboys who were attacking the town.

The landlady snorted with contempt. "I'm so used to boozy cowboys howlin' round, I don't bat an eye when they shoot up the street. They're all a lot of cheap skates, anyway. You want to swat 'em with the mop if they come round; that's the way I do."

Roy was nettled by her tone, for he was now very anxious to pose as a valourous defender of the innocent; but agreed with her that "the boys were just having a little 'whiz' as they started home; they didn't mean no harm."

"Ought I to sit in there?" the girl asked the woman, with a glance toward the inner room.

"No; I don't think you can do any good. I'll just keep an eye on him and let you know if they's any change."

The girl apologized for the looks of the kitchen. "Poor uncle has been so feeble lately he couldn't keep things in order, and I haven't had any chance since I came. If you don't mind, I'll rid things up now; it'll keep my mind occupied."



"YOU'RE PRETTY SWIFT, AREN'T YOU?" SHE SAID,
CUTTINGLY [ToList](#)

"Good idea!" exclaimed Roy. "I'll help."

He had been in a good many exciting mix-ups with steers, bears, cayuses, sheriffs' posses, and Indians, but this was easily the most stirring and amazing hour of his life. While his pony slowly slid away up the hill to feed, he, with flapping gun and rattling spurs, swept, polished, and lifted things for Lida—that was her name—Lida Converse.

"My folks live in Colorado Springs," she explained in answer to his questions. "My mother is not very well, and father is East, so I had to come. Uncle Dan was pretty bad when I got here, only not like he is now. This fit came on after the doctor went away at nine."

"I'm glad your father was East," declared the raider, who was unable to hold to a serious view of the matter, now that he was in the midst of a

charming and intimate conversation. "Just think—if he had 'a' come, I'd never have seen *you*!"

She faced him in surprise and disapproval of his boldness. "You're pretty swift, aren't you?" she said, cuttingly.

"A feller's got to be in this country," he replied, jauntily.

She was prepared to be angry with him, but his candid, humorous, admiring gaze disarmed her. "You've been very nice," she said, "and I feel very grateful; but I guess you better not say any more such things to me—to-night."

"You mustn't forget I chased off them redskins."

"You said they were cowboys."

"Of course I did; I wanted to calm your mind."

She was a little puzzled by his bluffing. "I don't believe there are any Indians over here."

"Well, if they were cowboys, they were a fierce lot."

She considered. "I've told you I feel grateful. What more can I do?"

"A good deal; but, as you say, that can go over till to-morrow. Did I tell you that I had a bunch of cattle of my own?"

"I don't remember of it."

"Well, I have. I'm not one of these crazy cowboys who blows in all his wad on faro and drink—not on your life! I've got some ready chink stacked away in a Claywall bank. Want to see my bank-book?"

She answered, curtly: "Please take that kettle of slop out and empty it. And what time did you say the express was due?"

Roy was absorbed, ecstatic. He virtually forgot all the rest of the world. His herders could ride to the north pole, his pony might starve, the Cannonball Express go over the cliff, the postmaster die, so long as he was left in service to this princess.

"Lord A'mighty! wasn't I in luck?" he repeated to himself. "Suppose I'd 'a' roped *her* instead of the old man!"

When he returned from listening for the train he found her washing her hands at the end of her task, and the room in such order as it had never known before. The sight of her standing there, flushed and very womanly, rolling down her sleeves, was more than the young fellow could silently observe.

"I hope the old man'll be a long time getting well," he said, abruptly.

"That's a nice thing to say! What do you mean by such a cruel wish?"

"I see my finish when you go away. No more lonely ranch-life for me."

"If you start in on that talk again I will not speak to you," she declared, and she meant it.

"All right, I'll shut up; but I want to tell you I'm a trailer for keeps, and you can't lose me, no matter where you go. From this time on I forget everything in the world but you."

With a look of resolute reproof she rose and joined Mrs. James in the inner room, leaving Roy cowed and a good deal alarmed.

"I reckon I'm a little *too* swift," he admitted; "but, oh, my soul! she's a peach!"

When the train whistled, Lida came out again. "Will you please go to meet the doctor?" she asked, with no trace of resentment in her manner.

"Sure thing; I was just about starting," he replied, instantly.

While he was gone she asked Mrs. James if she knew the young man, and was much pleased to find that the sharp-tongued landlady had only good words to say of Roy Pierce.

"He's no ordinary cowboy," she explained. "If he makes up to you you needn't shy."

"Who said he was making up to me? I never saw him before."

"I want to know! Well, anybody could see with half an eye that he was naturally rustlin' round you. *I* thought you'd known each other for years."

This brought tears of mortification to the girl's eyes. "I didn't mean to be taken that way. Of course I couldn't help being grateful, after all he'd done;

but I think it's a shame to be so misunderstood. It's mean and low down of him—and poor uncle so sick."

"Now don't make a hill out of an ant-heap," said the old woman, vigorously. "No harm's done. You're a mighty slick girl, and these boys don't see many like you out here in the sage-brush and piñons. Facts are, you're kind o' upsettin' to a feller like Roy. You make him kind o' drunk-like. He don't mean to be sassy."

"Well, I wish you'd tell him not to do anything more for me. I don't want to get any deeper in debt to him."

The Claywall physician came into the little room as silently as a Piute. He was a plump, dark little man of impassive mien, but seemed to know his business. He drove the girl out of the room, but drafted Mrs. James and Roy into service.

"It's merely a case of indigestion," said he; "but it's plenty serious enough. You see, the distended stomach pressing against the heart—"

The girl, sitting in the kitchen and hearing the swift and vigorous movement within, experienced a revulsion to the awe and terror of the midnight. For the second time in her life death had come very close to her, but in this case her terror was shot through with the ruddy sympathy of a handsome, picturesque young cavalier. She could not be really angry with him, though she was genuinely shocked by his reckless disregard of the proprieties; for he came at such a dark and lonely and helpless hour, and his prompt and fearless action in silencing those dreadful cowboys was heroic. Therefore, when the doctor sent Roy out to say that her uncle would live, a part of her relief and joy shone upon the young rancher, who was correspondingly exalted.

"Now you must let me hang round till he gets well," he said, forgetful of all other duties.

"That reminds me. You'll need some breakfast," she said, hurriedly; "for here comes the sun." And as she spoke the light of the morning streamed like a golden river into the little room.

"It's me to the wood-pile, then," cried Roy, and his smile was of a piece with the sunshine on the wall.

II

Beside the fallen monarch of the wood the lifting saplings bud and intertwine. So over the stern old postmaster these young people re-enacted the most primitive drama in the world. Indifferent to the jeers of his fellows, Roy devoted himself to the service of "The Badger's Niece," and was still in town when McCoy returned from "the East"; that is to say, from Kansas City.

Lida had ceased to protest against the cowboy's attendance and his love-making, for the good reason that her protests were unavailing. He declined to take offense, and he would not remain silent. A part of his devotion was due, of course, to his sense of guilt, and yet this was only a small part. True, he had sent warnings and dire threats to silence his band of marauders; but he did not feel keenly enough about their possible tale-bearing to carry his warnings in person. "I can't spare the time," he argued, knowing that Lida would be going home in a few days and that his world would then be blank.

"I lose too much of you," he said to her once; "I can't afford to have you out of my sight a minute."

She had grown accustomed to such speeches as these, and seldom replied to them, except to order the speaker about with ever-increasing tyranny. "You're so anxious to work," she remarked, "I'll let you do a-plenty. You'll get sick o' me soon."

"Sick of you! Lord heavens! what'll I do when you leave?"

"You'll go back to your ranch. A fine foreman you must be, fooling round here like a tramp. What does your boss think?"

"Don't know and don't care. Don't care what anybody thinks—but you. You're my only landmark these days. You're my sun, moon, and stars, that's what you are. I set my watch by you."

"You're crazy!" she answered, with laughter.

"Sure thing! Locoed, we call it out here. You've got me locoed—you're my pink poison blossom. There ain't any feed that interests me but you. I'm lonesome as a snake-bit cow when I can't see you."

"Say, do you know Uncle Dan begins to notice you. He asked me to-day what you were hanging round here for, and who you were."

"What did you tell him?"

"I told him you were McCoy's hired man just helping me take care of him."

"That's a lie. I'm *your* hired man. I'm takin' care of you—willing to work for a kiss a day."

"You'll not get even that."

"I'm *not* getting it—yet."

"You'll never get it."

"Don't be too sure of that. My life-work is *collecting* my dues. I've got 'em all set down. You owe me a dozen for extra jobs, and a good hug for overtime."

She smiled derisively, and turned the current. "The meals you eat are all of a dollar a day."

"They're worth a bushel of diamonds—when you cook 'em. But let me ask you something—is your old dad as fierce as Uncle Dan?"

She nodded. "You bet he is! He's crusty as old crust. Don't you go up against my daddy with any little bank-book. It's got to be a fat wad, and, mind you, no cloves on your breath, either. He's crabbed on the drink question; that's why he settled in Colorado Springs. No saloons there, you know."

He considered a moment. "Much obliged. Now here's something for you. You're not obliged to hand out soft words and a sweet smile to every doggone Injun that happens to call for mail. Stop it. Why, you'll have all the cow-punchers for fifty miles around calling for letters. That bunch that was in here just now was from Steamboat Springs. Their mail don't come here; it comes by way of Wyoming. They were runnin' a bluff. It makes me hot to have such barefaced swindling going on. I won't stand for it."

"Well, you see, I'm not really deputized to handle the mail, so I must be careful not to make anybody mad—"

"Anybody but me. I don't count."

"Oh, *you* wouldn't complain, I know that."

"I wouldn't, hey? Sure of that? Well, I'm going to start a petition to have myself made postmaster—"

"Better get Uncle Dan out first," she answered, with a sly smile. "The office won't hold you both."

At the end of a week the old postmaster was able to hobble to the window and sort the mail, but the doctor would not consent to his cooking his own meals.

"If you *can* stay another week," he said to Lida, "I think you'd better do it. He isn't really fit to live alone."

Thereupon she meekly submitted, and continued to keep house in the little kitchen for herself, her uncle, and for Roy, who still came regularly to her table, bringing more than his share of provisions, however. She was a good deal puzzled by the change which had come over him of late. He was less gay, less confident of manner, and he often fell into fits of abstraction.

He was, in fact, under conviction of sin, and felt the need of confessing to Lida his share in the zealous assault of the cowboys that night. "It's sure to leak out," he decided, "and I'd better be the first to break the news." But each day found it harder to begin, and only the announcement of her intended departure one morning brought him to the hazard. He was beginning to feel less secure of her, and less indifferent to the gibes of the town jokers, who found in his enslavement much material for caustic remark. They called him the "tired cowboy" and the "trusty."

They were all sitting at supper in the kitchen one night when the old postmaster suddenly said to Roy: "Seems to me I remember you. Did I know you before I was sick?" His memory had been affected by his "stroke," and he took up the threads of his immediate past with uncertain fingers.

"I reckon so; leastwise I used to get my mail here," answered Roy, a bit startled.

The old man looked puzzled. "Yes; but it seems a little more special than that. Someway your face is associated with trouble in my mind. Did we have any disagreement?"

After the postmaster returned to his chair in the office, Roy said to Lida, "They're going to throw your uncle out in a few weeks."

"You don't mean it!"

"Sure thing. He really ain't fit to be here any more. Don't you see how kind o' dazed he is? They're going to get him out on a doctor's certificate—loss of memory. Now, why don't you get deputized, and act in his place?"

"Goodness sakes! I don't want to live here."

"Where do you want to live—on a ranch?"

"Not on your life! Colorado Springs is good enough for me."

"That's hard on Roy. What could I do to earn a living there?"

"You don't have to live there, do you?"

"Home is where you are." She had come to the point where she received such remarks in glassy silence. He looked at her in growing uneasiness, and finally said: "See here, Lida, I've got something to tell you. You heard the old man kind o' feelin' around in his old hay-mow of a mind about me? Well, him and me did have a cussin'-out match one day, and he drewed a gun on me, and ordered me out of the office."

"What for?"

"Well, it was this way—I think. He was probably sick, and didn't feel a little bit like sorting mail when I asked for it. He sure was aggravatin', and I cussed him good and plenty. I reckon I had a clove on my tongue that day, and was irritable, and when he lit onto me, I was hot as a hornet, and went away swearing to get square." He braced himself for the plunge. "That was *my* gang of cowboys that came hell-roaring around the night I met you. They were under my orders to scare your uncle out of his hole, and I was going to rope him."

"Oh!" she gasped, and drew away from him; "that poor, sick old man!"

He hastened to soften the charge. "Of course I didn't know he was sick, or I wouldn't 'ave done it. He didn't look sick the day before; besides, I didn't intend to hurt him—much. I was only fixin' for to scare him up for pullin' a gun on me, that was all."

"That's the meanest thing I ever heard of—to think of that old man, helpless, and you and a dozen cowboys attacking him!"

"I tell you I didn't know he was ailin', and there was only six of us."

Her tone hurt as she pointed at him. "And *you* pretend to be so brave."

"No, I don't."

"You *did*!"

"No, I didn't. *You* said I was brave and kind, but I denied it. I never soberly claimed any credit for driving off that band of outlaws. That's one reason why I've been sticking so close to business here—I felt kind o' conscience-struck."

Her eyes were ablaze now. "Oh, it is! You've said a dozen times it was on *my* account."

"That's right—about eighty per cent, on yours and twenty per cent, on my own account—I mean the old man's."

"The idea!" She rose, her face dark with indignation. "Don't you dare come here another time. I never heard of anything more—more awful. You a rowdy! I'll never speak to you again. Go away! I despise you."

Her anger and chagrin were genuine, that he felt. There was nothing playful or mocking in her tone at the moment. She saw him as he was, a reckless, vengeful young ruffian, and as such she hated him.

He got upon his feet slowly, and went out without further word of defense.

III

The sun did not rise for Roy Pierce on the day which followed her departure. His interest in Eagle River died and his good resolutions weakened. He went on one long, wild, wilful carouse, and when McCoy

rescued him and began to exhort toward a better life, he resigned his job and went back to the home ranch, where his brothers, Claude and Harry, welcomed him with sarcastic comment as "the returning goat."

He tried to make his peace with them by saying, "I'm done with whisky forever."

"Good notion," retorted Claude, who was something of a cynic; "just cut out women *and* drink, and you'll be happy."

Roy found it easier to give up drink than to forget Lida. To put away thought of her was like trying to fend the sunlight from his cabin window with his palm. He was entirely and hopelessly enslaved to the memory of her glowing face and smiling eyes. What was there in all his world to console him for the loss of her?

Mrs. Pierce wonderingly persisted in asking what had come over him, that he should be so sad and silent, and Claude finally enlightened her.

"He's all bent up over a girl—the postmaster's niece—of Eagle River, who had to quit the country to get shut of him."

The mother's heart was full of sympathy, and her desire to comfort her stricken son led to shy references to his "trouble" which made him savage. He went about the ranch so grimly, so spiritlessly, that Claude despairingly remarked:

"I wish the Lord that girl *had* got you. You're as cheerful to have around as a poisoned hound. Why don't you go down to the Springs and sit on her porch? That's about all you're good for now."

This was a bull's-eye shot, for Roy's desire by day and his dream by night was to trail her to her home; but the fear of her scornful greeting, the thought of a cutting query as to the meaning of his call, checked him at the very threshold of departure a dozen times.

He had read of love-lorn people in the *Saturday Storyteller*, which found its way into the homes of the ranchers, but he had always sworn or laughed at their sufferings as a part of the play. He felt quite differently about these cases. Love was no longer a theme for jest, an abstraction, a far-off trouble; it had become a hunger more intolerable than any he had ever known, a pain that made all others he had experienced transitory and of no account.

Even Claude admitted the reality of the disease by repeating: "Well, you *have* got it bad. Your symptoms are about the worst ever. You're locoed for fair. You'll be stepping high and wide if you don't watch out."

In some mysterious way the whole valley now shared in a knowledge of the raid on the post-office, as well as in an understanding of Roy's "throw-down" by the postmaster's niece, and the expression of this interest in his affairs at last drove the young rancher to desperation. He decided to leave the state. "I'm going to Nome," he said to his brothers one day.

"Pious thought," declared Claude. "The climate may freeze this poison out of you. Why, sure—go! You're no good on earth here."

Roy did not tell him or his mother that he intended to go by way of the Springs, in the wish to catch one last glimpse of his loved one before setting out for the far northland. To speak with her was beyond his hope. No, all he expected was a chance glimpse of her in the street, the gleam of her face in the garden. "Perhaps I may pass her gate at night, and see her at the window."

IV

The town to him was a maze of bewildering complexity and magnificence, and he wandered about for a day in awkward silence, hesitating to inquire the way to the Converse home. He found it at last, a pretty cottage standing on a broad terrace, amid trees and vines vivid with the autumn hues; and if any thought of asking Lida to exchange it for a shack on a ranch still lingered in his mind, it was instantly wiped out by his first glance at the place.

He walked by on the opposite side of the street, and climbed the mesa back of the house to spy upon it from the rear, hoping to detect his loved one walking about under the pear-trees. But she did not appear. After an hour or so he came down and paced back and forth with eyes on the gate, unable to leave the street till his soul was fed by one look at her.

As the sun sank, and the dusk began to come on, he grew a little more reckless of being recognized, and, crossing the way, continued to sentinel the gate. He was passing it for the fourth time when Lida came out upon the

porch with an older woman. She looked at the stranger curiously, but did not recognize him. She wore a hat, and was plainly about to go for a walk.

Roy knew he ought to hurry away, but he did not. On the contrary, he shamelessly met her with a solemn, husky-voiced greeting. "Hello, girl! How's Uncle Dan?"

She started back in alarm, then flushed as she recognized him. "How dare you speak to me—like that!"

In this moment, as he looked into her face, his courage began to come back to him. "Why didn't you answer my letters?" he asked, putting her on defense.

"What business had you to write to me? I told you I would not answer."

"No, you didn't; you only said you wouldn't *speak* to me again."

"Well, you knew what I meant," she replied, with less asperity.

Someway these slight concessions brought back his audacity, his power of defense. "You bet I did; but what difference does that make to a sick man? Oh, I've had a time! I'm no use to the world since you left. I told you the truth—you're my sun, moon, and stars, and I've come down to say it just once more before I pull out for Alaska. I'm going to quit the state. The whole valley is on to my case of loco, and I'm due at the north pole. I've come to say good-by. Here's where I take my congee."

She read something desperate in the tone of his voice. "What do you mean? You aren't really leaving?"

"That's what. Here's where I break camp. I can't go on this way. I've got the worst fever anybody ever had, I reckon. I can't eat or sleep or work, just on account of studying about you. You've got me goin' in a circle, and if you don't say you forgive me—it's me to the bone-yard, and that's no joke, you'll find."

She tried to laugh, but something in his worn face, intense eyes, and twitching lips made her breathing very difficult. "You mustn't talk like that. It's just as foolish as can be."

"Well, that don't help me a little bit. You no business to come into my life and tear things up the way you did. I was all right till you came. I liked

myself and my neighbors bully; now nothing interests me—but just you—and your opinion of me. You think I was a cowardly coyote putting up that job on your uncle the way I did. Well, I admit it; but I've been aching to tell you I've turned into another kind of farmer since then. You've educated me. Seems like I was a kid; but I've grown up into a man all of a sudden, and I'm startin' on a new line of action. I'm not asking much to-day, just a nice, easy word. It would be a heap of comfort to have you shake hands and say you're willing to let the past go. Now, that ain't much to you, but it's a whole lot to me. Girl, you've got to be good to me this time."

She was staring straight ahead of her with breath quickened by the sincere passion in his quivering voice. The manly repentance which burdened his soul reached her heart. After all, it was true: he had been only a reckless, thoughtless boy as he planned that raid on her uncle, and he had been so kind and helpful afterward—and so merry! It was pitiful to see how changed he was, how repentant and sorrowful.

She turned quickly, and with a shy, teary smile thrust her hand toward him. "All right. Let's forget it." Then as he hungrily, impulsively sought to draw her nearer, she laughingly pushed him away. "I don't mean—so much as you think." But the light of forgiveness and something sweeter was in her face as she added: "Won't you come in a minute and see mother and father—and Uncle Dan?"

"I'm *wild* to see Uncle Dan," he replied with comical inflection, as he followed her slowly up the path.

THE REMITTANCE MAN

—wayward son from across the seas—is gone. Roused to manhood by his country's call, he has joined the ranks of those who fight to save the shores of his ancestral isle.



III

THE REMITTANCE MAN

I

The Kettle Hole Ranch house faces a wide, treeless valley and is backed by an equally bare hill. To the west the purple peaks of the Rampart range are visible. It is a group of ramshackle and dispersed cabins—not Western enough to be picturesque, and so far from being Eastern as to lack cleanliness or even comfort, and the young Englishman who rode over the hill one sunset was bitterly disappointed in the "whole plant."

"I shall stay here but one night," said he, as he entered the untidy house.

He stayed five years, and the cause of this change of mind lay in the person of Fan Blondell, the daughter of the old man who owned the ranch and to whom young Lester had been sent to "learn the business" of cattle-raising.

Fan was only seventeen at this time, but in the full flower of her physical perfection. Lithe, full-bosomed, and ruddy, she radiated a powerful and subtle charm. She had the face of a child—happy-tempered and pure—but every movement of her body appealed with dangerous directness to the sickly young Englishman who had never known an hour of the abounding joy of life which had been hers from the cradle. Enslaved to her at the first glance, he resolved to win her love.

His desire knew no law in affairs of this kind, but his first encounter with Blondell put a check to the dark plans he had formed—for the rancher had the bearing of an aged, moth-eaten, but dangerous old bear. His voice was a rumble, his teeth were broken fangs, and his hands resembled the paws of a gorilla. Like so many of those Colorado ranchers of the early days, he was a Missourian, and his wife, big, fat, worried and complaining, was a Kentuckian. Neither of them had any fear of dirt, and Fan had grown up not merely unkempt, but smudgy. Her gown was greasy, her shoes untied, and yet, strange to say, this carelessness exercised a subduing charm over Lester, who was fastidious to the point of wasting precious hours in filling

his boots with "trees" and folding his neckties. The girl's slovenly habits of dress indicated, to his mind, a similar recklessness as to her moral habits, and it sometimes happens that men of his stamp come to find a fascination in the elemental in human life which the orderly no longer possess.

Lester, we may explain, was a "remittance man"—a youth sent to America by his family on the pretense of learning to raise cattle, but in reality to get him out of the way. He was not a bad man; on the contrary, he was in most ways a gentleman and a man of some reading—but he lacked initiative, even in his villainy. Blondell at once called him "a lazy hound"—provoked thereto by Lester's slowness of toilet of a morning, and had it not been for Fan—backed by the fifty dollars a month which Lester was paying for "instruction"—he would have been "booted off the place."

Fan laughed at her father. "You better go slow; George Adelbert is heeled."

Blondell snorted. "Heeled! He couldn't unlimber his gun inside of fifteen minutes."

"Well, he can ride."

The old man softened a little. "Yes, he can ride, and he don't complain, once he gets mounted, but he carries 'pajammys' in his saddle-bags and a tooth-brush on his slicker; hanged if he don't use it, too!"

"That's what I like about him," she answered, defiantly. "We're all so blamed careless about the way we live. I wish he'd jack us all up a bit."

Truly Fan was under conviction, brought to a realization of her slouchiness by Lester's care of his own room as well as by his lofty manners. She no longer wore her dress open at the throat, and she kept her yellow hair brushed, trying hard to make each meal a little less like a pig's swilling. She knew how things ought to be done, a little, for at "The Gold Fish Ranch" and at Starr Baker's everything was spick and span (Mrs. Baker especially was a careful and energetic housekeeper), but to keep to this higher level every day was too great an effort even for a girl in love. She dropped back, now and again, weary and disheartened.

It was her mating-time. She leaned to Lester from the first glance. The strangeness of his accent, his reference to things afar off, to London and Paris, appealed to her in the same way in which poetry moved her—dimly,

vaguely—but his hands, his eyes, his tender, low-toned voice won her heart. She hovered about him when he was at home, careless of the comments of the other men, ignoring the caustic "slatting" of her mother. She had determined to win him, no matter what the father might say—for to her all men were of the same social level and she as good as the best. Indeed, she knew no other world than the plains of Colorado, for she was born in the little dugout which still remained a part of the kitchen. The conventions of cities did not count with her.

She was already aware of her power, too, and walked among the rough men of her acquaintance with the step of an Amazonian queen, unafraid, unabashed. She was not in awe of Lester; on the contrary, her love for him was curiously mingled with a certain sisterly, almost maternal pity; he was so easily "flustered." He was, in a certain sense, on her hands like an invalid.

She soon learned that he was wax beneath her palm—that the touch of a finger on his arm made him uneasy of eye and trembling of limb. It amused her to experiment with him—to command him, to demand speech of him when he was most angry and disgusted with the life he was living. That he despised her father and mother she did not know, but that he was sick of the cowboys and their "clack" she did know, and she understood quite as well as if he had already told her that she alone kept him from returning at once to Denver to try some other manner of earning a living. This realization gave her pride and joy.

She had but one jealousy—he admired and trusted Mrs. Baker and occasionally rode over there to talk with her, and Fan could not understand that he sought intellectual refuge from the mental squalor of the Blondells, but she perceived a difference in his glance on his return. Mrs. Baker, being a keen-sighted, practical little woman, soon fell upon the plainest kind of speech with the young Englishman.

"This is no place for you," she defiantly said. "The rest of us are all more or less born to the plains and farm-life, but you're not; you're just 'sagging,' that's all. You're getting deeper into the slough all the time."

"Quite right," he answered, "but I don't know what else I can do. I have no trade—I know nothing of any art or profession, and my brother is quite

content to pay my way so long as he thinks I'm on a ranch, and in the way of learning the business."

She, with her clear eyes searching his soul, replied: "The longer you stay the more difficult it will be to break away. Don't you see that? You're in danger of being fastened here forever."

He knew what she meant, and his thin face flushed. "I know it and I am going to ask Starr to give me a place here with you, and I'm about to write my brother stating full reasons for the change. He might advance me enough to buy into Starr's herd."

She considered this. "I'll take the matter up with Starr," she replied, after a pause. "Meanwhile, you can come over and stay as a visitor as long as you please—but don't bring Fan," she added, sharply. "I can't stand slatterns, and you must cut loose from her once for all."

Again he flushed. "I understand—but it isn't easy. Fan has been mighty good to me; life would have been intolerable over there but for her."

"I should think life would have been intolerable *with* her," Mrs. Baker answered, with darkening brow, and then they talked of other things till he rose to ride away.

He headed his horse homeward, fully resolved to give notice of removal, but he did not. On the contrary, he lost himself to Fan. The girl, glowing with love and anger and at the very climax of her animal beauty, developed that night a subtlety of approach, a method of attack, which baffled and in the end overpowered him. She was adroit enough to make no mention of her rivals; she merely set herself to cause his committal, to bend him to her side. As the romping girl she played round him, indifferent to the warning glances of her mother, her eyes shining, her cheeks glowing, till the man he was, the life he had lived, the wishes of his brother, were fused and lost in the blind passion of the present. "This glorious, glowing creature can be mine. What does all the rest matter?" was his final word of renunciation.

In this mood he took her to his arms, in this madness he told her of his love (committing himself into her hands, declining into her life), and in the end requested of her parents the honor of their daughter's hand.

Mrs. Blondell wept a tear or two and weakly gave her consent, but the old ranchman thundered and lightened. "What can you do for my girl?" he

demanded. "As I understand it, you haven't a cent—the very clothes you've got on your back are paid for by somebody else! What right have you to come to me with such a proposal?"

To all this Lester, surprised and disconcerted, could but meekly answer that he hoped soon to buy a ranch of his own—that his brother had promised to "set him up" as soon as he had mastered the business.

Blondell opened his jaws to roar again when Fan interposed and, taking a clutch in his shaggy beard, said, calmly: "Now, dad, you hush! George Adelbert and I have made it all up and you better fall in gracefully. It won't do you any good to paw the dirt and beller."

Lester grew sick for a moment as he realized the temper of the family into which he was about to marry, but when Fan, turning with a gay laugh, put her round, smooth arm about his neck, the rosy cloud closed over his head again.

II

Blondell was silenced, but not convinced. A penniless son-in-law was not to his liking. Fan was his only child, and the big ranch over which he presided was worth sixty thousand dollars. What right had this lazy Englishman to come in and marry its heiress? The more he thought about it the angrier he grew, and when he came in the following night he broke forth.

"See here, mister, I reckon you better get ready and pull out. I'm not going to have you for a son-in-law, not this season. The man that marries my Fan has got to have sabe enough to round up a flock of goats—and wit enough to get up in the morning. So you better vamoose to-morrow."

Lester received his sentence in silence. At the moment he was glad of it. He turned on his heel and went to packing with more haste, with greater skill, than he had ever displayed in any enterprise hitherto. His hurry arose from a species of desperation. "If I can only get out of the house!" was his inward cry.

"Why pack up?" he suddenly asked himself. "What do they matter—these boots and shirts and books?" He caught a few pictures from the wall

and stuffed them into his pockets, and was about to plunge out into the dusk when Fan entered the room and stood looking at him with ominous intentness.

She was no longer the laughing, romping girl, but the woman with alert eye and tightly closed lips. "What are you doing, Dell?"

"Your father has ordered me to leave the ranch," he answered, "and so I'm going."

"No, you're not! I don't care what he has ordered! You're not going"—she came up and put her arms about his neck—"not without me." And, feeling her claim to pity, he took her in his arms and tenderly pressed her cheek upon his bosom. Then she began to weep. "I can't live without you, Dell," she moaned.

He drew her closer, a wave of tenderness rising in his heart. "I'll be lonely without you, Fan—but your father is right. I am too poor—we have no home—"

"What does that matter?" she asked. "I wouldn't marry you for any amount of *money*! And I know you don't care for this old ranch! *I'll* be glad to get shut of it. I'll go with you, and we'll make a home somewhere else." Then her mood changed. Her face and voice hardened. She pushed herself away from him. "No, I won't! I'll stay here, and so shall you! Dad can't boss me, and I won't let him run you out. Come and face him up with me."

So, leading him, she returned to the kitchen, where Blondell, alone with his wife, was eating supper, his elbows on the table, his hair unkempt, his face glowering, a glooming contrast to his radiant and splendid daughter, who faced him fearlessly. "Dad, what do you mean by talking this way to George Adelbert? He's going to stay and I'm going to stay, and you're going to be decent about it, for I'm going to marry him."

"No, you're not!" he blurted out.

"Well, I am!" She drew nearer and with her hands on the table looked down into his wind-worn face and dim eyes. "I say you've got to be decent. Do you understand?" Her body was as lithe, as beautiful, as that of a tigress as she leaned thus, and an unalterable resolution blazed in her eyes as she went on, a deeper significance coming into her voice: "Furthermore, I'm as good as married to him right now, and I don't care who knows it."

The old man's head lifted with a jerk, and he looked at her with mingled fear and fury. "What do you mean?"

"Anything you want to have it mean," she replied. "You drive him out and you drive me out—that's what I mean."

Blondell saw in her face the look of the woman who is willing to assume any guilt, any shame for her lover, and, dropping his eyes before her gaze, growled a curse and left the room.

Fan turned to her lover with a ringing, boyish laugh, "It's all right, Dell; he's surrendered!"

III

Lester passed the month before his marriage in alternating uplifts and depressions, and the worst of it lay in the fact that his moments of exaltation were sensual—of the flesh, and born of the girl's presence—while his depression came from his sane contemplation of the fate to which he was hastening. He went one day to talk it all over with Mrs. Baker, who now held a dark opinion of Fan Blondell. She frankly advised him to break the engagement and to go back to England.

"I can't do that, my dear Mrs. Baker. I am too far committed to Fan to do that. Besides, I know she would make a terrible scene. She would follow me. And besides, I am fond of her, you know. She's very beautiful, now—and she does love me, poor beggar! I wonder at it, but she does." Then he brightened up. "You know she has the carriage of a duchess. Really, if she were trained a little she would be quite presentable anywhere."

Mrs. Baker shook her head. "She's at her best this minute. Look at the mother; that's what she'll be like in a few years."

"Oh no—not really! She's an improvement—a vast improvement—on the old people, don't you think?"

"You can't make a purse out of a sow's ear. Fan will sag right down after marriage. Mark my words. She's a slattern in her blood, and before the honeymoon is over she'll be slouching around in old slippers and her nightgown. That is plain talk, Mr. Lester, but I can't let you go into this trap with your eyes shut."

Lester went away with renewed determination to pack his belongings and bolt, but the manly streak in his blood made it impossible for him to go without some sort of explanation to her.

The other hands, who called him "George Adelbert" in mockery, were more and more contemptuous of him, and one or two were sullen, for they loved Fan and resented this "lily-fingered gent," who was to their minds "after the old man's acres." Young Compton, the son of a neighboring rancher, was most insulting, for he had himself once carried on a frank courtship with Fan, and enjoyed a brief, half-expressed engagement. He was a fine young fellow, not naturally vindictive, and he would not have uttered a word of protest had his successful rival been a man of "the States," but to give way to an English adventurer whose way was paid by his brother was a different case altogether.

Of George Adelbert's real feeling the boys, of course, knew nothing. Had they known of his hidden contempt for them they would probably have taken him out of the country at the end of a rope, but of his position with Fan they were in no doubt, for she was very frank with them. If they accused her of being "sweet on the bloody Englishman" she laughed. If they threatened his life in a jocular way she laughed again, but in a different way, and said: "Don't make a mistake; George Adelbert is a fighter from way back East." And once, in a burst of rage, she said: "I won't have you saying such things, Lincoln Compton. I won't have it, I tell you!" No one could accuse her of disloyalty or cowardice.

In his letters home Lester had put his fiancée's best foot forward. "She's quite too good for me," he wrote to his brother. "She's young and beautiful and sole heiress of an estate twice as big as our whole family can muster. She's uncultivated, the diamond in the rough, and all that sort of thing, you understand, but she'll polish easily." He put all this down in the sardonic wish to procure some sort of settlement from his brother. He got it by return mail.

Edward was suavely congratulatory, and in closing said: "I'm deucedly glad you're off my hands just now, my boy, for I'm confoundedly hard up. You're doing the sensible thing—only don't try to bring your family home—not at present."

Lester was thrown into despairing fury by this letter, which not only cut him off from his remittances, but politely shut the paternal door in his own face as well as in the face of his bride. For the moment he had some really heroic idea of setting to work to show them what he could do. "The beggar! He squats down on the inheritance, shoves me out, and then takes on a lot of 'side' as to his superiority over me! He always was a self-sufficient ass. I'd like to punch his jaw!"

Then his rage faded out and a kind of sullen resignation came to him. What was the use? Why not submit to fate? "Everything has been against me from the start," he bitterly complained, and in this spirit he approached his wedding-day.

The old man, acknowledging him as a son-in-law prospective, addressed him now with gruff kindness, and had Lester shown the slightest gain in managerial ability he would have been content—glad to share a little of his responsibility with a younger man. In his uncouth, hairy, grimy fashion Blondell was growing old, and feeling it. As he said to his wife: "It's a pity that our only child couldn't have brought a real man, like Compton, into the family. There ain't a hand on the place that wouldn't 'a' been more welcome to me. What do you suppose would become of this place if it was put into this dandy's hands?"

"I don't know, pa. Fan, for all her slack ways, is a purty fair manager. She wouldn't waste it. She might let it run down, but she'd hang on to it."

"But she's a fool about that jackass."

"She is now," answered the mother, with cynical emphasis, which she softened by adding, "Dell ain't the kind that would try to work her."

He sighed with troubled gaze and grumbled an oath. "I don't know what to think of him! He gits me." And in that rather mournful spirit he went about his work, leaving the whole matter of the marriage festival in the hands of the women. In a dim way he still felt that haste was necessary, although Fan's face was as joyous, as careless, and as innocent as a child's. As she galloped about the country with her George Adelbert she sowed her "bids" broadcast, as if wishing all the world to share her happiness. There was nothing exclusive, or shrinking, or parsimonious in Frances Blondell.

IV

The marriage feast was indeed an epoch-making event in the county. It resembled a barbecue and was quite as inclusive. Distinctions of the social sort were few in Arapahoe County. Cattle-rustlers and sheepmen were debarred, of course, but aside from these unfortunates practically the whole population of men, women, children, and babies assembled in the Kettle Hole Ranch grove. The marriage was to be "*al fresco*," as the Limone *Limerick* repeated several times.

Blondell found it a hard day, for what with looking after the roasting ox and the ice and the beer, he was almost too busy to say hello to his guests. Fan had contrived to get a clean shirt on him by the trick of whisking away his old one and substituting a white one in its place. He put this on without realizing how splendid it was, but rebelled flatly at the collar, and by the time the ox was well basted his shirt was subdued to a condition which left him almost at ease with himself.

Fan received the people at the door of the shack—her mother being too busy in the preparation for dinner to do more than say "Howdy?" to those who deliberately sought her out; but Fan was not embarrassed or wearied. It was her great day—she was only a little disturbed when George Adelbert fled to his room for a little relief from the strain of his position, for he lacked both her serenity of spirit and her physical health.

Once Lester would have enjoyed the action and comment of these people as characters in a play, but now the knowledge that he was about to sink to their level and be nailed there filled him with a fear and disgust which not even the radiant face and alluring body of his bride could conceal or drive out. These lumbering ranchers, these tobacco-chewing, drawling lumpkins, were they to be his companions for the rest of his life? These women with their toothless, shapeless mouths, these worn and weary mothers in home-made calico and cheap millinery, were they to be the visitors at his fireside? What kind of woman would they make of Fan?

By one o'clock the corrals were full of ponies and the sheds and yards crowded with carriages all faded by the pitiless sun and sucked dry by the never-resting wind of the plain.

Meanwhile the young women had set long tables in the back yard and covered them with food—contributed chicken, home-made biscuit, cake, and pie, while the young fellows had been noisily working at constructing a "bowery" for the dance which was to follow the ceremony at three. And at last Fan raised a bugle-call for "*dinner!*" and they all came with a rush.

The feast did not last long, for every one was hungry and ate without permitting delay or distraction. Nearly all remarked on having had a very early breakfast, and they certainly showed capacity for not merely beef and beer, but pie and ice-cream, and when they shoved back, and lighted the cigars which Lester had provided with prodigal hand, they all agreed that the barbecue was "up to the bills."

The ceremony at three was short, almost hurried, so great was the bustle about the house and yard. Fan wore no veil and George Adelbert made no change from the neat sack-suit which he had put on at rising. At the close of the clergyman's blessing he was called upon for a second time to pump the hard hands and stringy arms of his neighbors as they filed by to bid them both a hearty God-speed.

After this painful procession was ended Fan dragged him away to the bower where the young folks were already dancing with prodigious clatter. "How young she is!" he exclaimed, as he saw her mix with the crowd of tireless, stamping, prancing cowboys.

As the dance went on he grew furious with her lack of reserve, her indelicacy. Her good-natured laughter with the men who crowded about her familiarly was a kind of disloyalty. She seemed at times to be exchanging doubtful jests with them; and at last, to protect her from the results of her own fatuity, he danced with her himself—danced almost incessantly, notwithstanding the heat and the noise.

At sunset they all returned to the tables and ate up what remained of the ox and the pies.

Lester was well enough acquainted with these rough youths to know that some deviltry was preparing, and, already furious with his bride and distrustful of the future, his self-command at last gave way. Drawing Fan away from the crowd he said, tenderly:

"I've had enough of this! I'm having Aglar harness the buckskins into the red cart, and I want you to go to the house and pack a few things—we're going to Limone and catch the early train for Denver."

"We can't do that, Dell; we got to stay here and feed this gang once more."

"Oh, hang the gang! I'm sick of them. Get ready, I tell you! Who cares what these beggars think?"

She laughed. "You're jealous of them." Then, rising to his passion, she answered, "All right; I'll sneak some clothes into a bag and we'll slide out and leave the gang."

A half-hour later they stole away toward the back of the garden and out upon the prairie, where a Mexican was holding a spirited team. Fan was giggling so hard that she was barely able to lift the valise which she carried in her hand.

"Don't you tell," she said to the Mexican. "If they ask, say we went to Holcombe."

"All right. I *sabe*," the Mexican replied. Even as he spoke the music in the bower ceased and voices were heard in question.

Fan sobered. "They've missed us already."

Lester took the reins. "Send 'em south, Aglar," and at his chirp the team sprang forward out upon the road into the coolness and silence of the midnight plain.

Fan, clutching Lester's arm, shook with laughter. "It's like eloping—ain't it?"

The tone of her voice irritated him. "Good Heaven! how vulgar she is! And she is my wife," was his thought; and he took no pleasure in her nearness.

Wild whoops reached them from the ranch-house now hid in the valley behind them, and a few moments later the yells broke out again perceptibly nearer.

"They're after us!" cried Fan, vastly excited and pleased. "It's a race now," and, catching the whip from his hand, she lashed the horses into a

gallop.

He said: "I'll turn into the Sun-Fish Trail; we'll throw 'em off the track."

"No use," she laughed. "No use, Dell; they can read a trail like Injuns; besides, they're overtaking us. We might as well turn and go back."

His only answer was a shout to the horses. He was burning with fury now. All his hidden contempt, his concealed hatred of the vulgarians behind him, filled his heart. It was like them, the savages, to give chase.

With shrill whoops in imitation of Comanches the cowboys came on, riding their swift and tireless ponies; like skimming hawks they swept down the swells, and the bride, clinging to her husband's arm, called each of them by his name.

"Link Compton is in the lead. Pull up!" She reached a firm hand and laid it on the lines. "Pull up, Dell; it's no use."

He tried to shake off her grasp, but could not. Her voice changed to command. "Don't be a fool!" she called, sharply, and, laying both hands upon the reins, she brought the horses into a trot in spite of his furious objection, just as the first of the pursuing cowboys rode alongside and, seizing one of the horses by the bit, cried out:

"Come back. We need you!"

Even as he spoke a whistling rope settled round the fleeing couple and the team came to a stand, surrounded by a hooting mob of mounted men. The noose, tight-drawn, was like a steel embrace, and Compton called:

"Thought you'd give us the slip, did ye? Well, I don't think!"

"Leave us alone, you ruffians," shouted Lester, "or it'll be the worse for you!"

They all laughed at this, and Compton drew the rope tighter, pinning Lester's arms to his side.

"Boys—" began Fan in appeal, but she got no further.

Lester, wrenching his right arm loose, began to shoot. What happened after that no one ever clearly knew, but the team sprang wildly forward, and

Compton's pony reared and fell backward, and the bride and groom were thrown violently to the ground.

When Fan opened her eyes she saw the big stars above her and felt a sinewy arm beneath her head. Compton was fanning her with his hat and calling upon her to speak, his voice agonized with fear and remorse.

Slowly it all came back to her, and, struggling to a sitting position, she called piteously: "Dell, where are you? Dell!" Her voice rose in fear, a tone no man had ever heard in it before. She staggered to her feet and dazedly looked about her. A group of awed, silenced, dismounted men stood not far away, and on the ground, lying in a crumpled, distorted heap, was her husband. With a shriek of agony she fell on her knees beside him, calling upon him to open his eyes, to speak to her.

Then at last, as the conviction of his death came to her, she lifted her head and with a voice of level, hoarse-throated hate, she imprecated her murderers. "I'll kill you, every one of you! I'll kill you for this—you cowardly wolves—I'll kill—"

V

They lifted them both up for dead, and Compton, taking Fan in his strong arms, held her like a child as they drove slowly back to the ranch. All believed Lester dead; but Compton, who held his ear to Fan's lips, insisted that she was breathing, and indeed she recovered from her swoon before they reached the house.

Blondell, more powerfully moved than ever before in his life, after a swift curse upon the culprits took his girl to his bosom and carried her to her bed.

As her brain cleared, Fan rose and, staggering across the room, took her husband's head in her arms. "Bring some water. Dell is hurt. Don't you see he is hurt? Be quick!"

"Has somebody gone for the doctor?" asked the mother, to whom this was the raving of dementia. "Somebody go."

No one had, for all believed the man to be dead; but Compton exclaimed, "I'll go!" turning to vault his horse, glad of something to do, eager to escape the sight of Fan's agonized face.

The dash of cold water on his bruised face brought a flutter of life to Lester's eyelids, and in triumph the bride cried out:

"I told you so! He is alive! Oh, Dell, can't you speak to me?"

He could not so much as lift his eyelids, but his breathing deepened, and with that sign of returning vitality Fan was forced to be content. She was perfectly composed now, and helped to bathe his crushed and bleeding head and his broken shoulder with a calmness very impressive to all those who were permitted to glance within the room.

Slowly the guests departed. The cowboys, low-voiced and funereal of mien, rode away in groups of three or four.

The doctor came hurrying down the slope about ten of the morning, his small roan mustang galloping, his case of instruments between his feet. He was very young, and, luckily, very self-confident, and took charge of "the case" with thrilling authority.

"The coma was induced," he explained, "by the concussion of the brain. The shoulder is also badly contused and the collar-bone broken, but if brain fever does not set in the man will live. The treatment so far as it has gone is admirable."

Compton returned with him, or a little before him, and seemed to be waiting for arrest. He was a lean, brown young fellow with good, gray eyes and a shapely nose. "Yes, I threw the rope," he confessed to every one. "It was all in fun, but he shot my horse, and as he reared up he jerked the people out of the buggy. I guess the broncos jumped ahead at the same time. But it was my fault. I had no business to rope 'em. In fact, we had no business chasing 'em up at all."

At last Blondell gruffly told him to go home. "If the man dies we'll come after you," he added, with blunt ferocity.

"All right," responded the young fellow, with lofty spirit. "I'll be there—but I want to see Fan a moment before I leave. I want to know if there is anything I can do for her or him."

Blondell was for refusing this utterly, but his wife said: "You didn't mean nothing, Link—I'm sure of that—and I've always liked you, and so has Fan. She won't lay it up against you, I know. I'll tell her you're here."

Fan, sitting beside Lester's bed, turned at her mother's word and saw the young fellow standing in the doorway in mute appeal. Her glance was without anger, but it was cold and distant. She shook her head, and the young rancher turned away, shaken with sobs. That look was worse than her curse had been.

From the dim, grim region of his delirium and his deathlike unconsciousness George Lester struggled slowly back to life. His reawakening was like a new birth. He seemed born again, this time an American—a Western American. In the measure of a good old homely phrase, some sense (a sense of the fundamental oneness of humanity) had been beaten into his head.

As he lay there, helpless and suffering, he was first of all aware of Fan, whose face shone above him like the moon, and was soon able to understand her unwearying devotion and to remember that she was his wife.

She was always present when he woke, and he accepted her presence as he accepted sunshine, knowing nothing of the sleeplessness and toil which her attendance involved—a knowledge of this came later.

At times gruff old Blondell himself bent his shaggy head above his bed to ask how he felt, and no mother could have been more considerate than Mrs. Blondell.

"What right have I to despise these people?" he asked himself one day. "What have I done to lift myself above them?" (And this question extended to the neighbors, to the awkward ranchers who came stiffly and with a sort of awe into his room to "pass a good word," as they said.) "They are a good sort, after all"—his heart prompted him to admit.

But his deepest penitence, his tenderest gratitude, rose to Fan, whom care and love had marvelously refined. He was able to forget her careless speech and to look quite through her untidy ways to the golden, good heart which beat beneath her unlovely gowns. Nothing was too hard, too menial, for her hands, and her smile warmed his midnight sick-room like sunshine.

He was curiously silent even after his strength was sufficient for speech. Content to lie on his bed and watch her as she moved about him, he answered only in monosyllables, while the deep current of his love gathered below his reticence. As he came to a full understanding of what he had been and to a sense of his unworthy estimate of her and her people, his passion broke bounds.

"Fan!" he called out one morning, "I'm not fit to receive all your care and devotion—but I'm going to try to be; I'm going to set to work in earnest when I get up. Your people shall be my people, your cares my cares." He could not go on, and Fan, who was looking down at him in wonder, stooped and laid a kiss on his quivering lips.

"You get well, boy; that's all you need to worry about," she said, and her face was very sweet—for she smiled upon him as if he were a child.

THE LONESOME MAN

*—the murderer still seeks forgetfulness in
the solitude, building his cabin in the
shadow of great peaks.*



IV

THE LONESOME MAN

The road that leads to the historic north shoulder of Solidor is lonely now. The stages that once crawled painfully upward through its flowery meadows are playhouses for the children of Silver Plume, and the brakes that once howled so resoundingly on the downward way are rusting to ashes in the weeds that spring from the soil of the Silverado Queen's unused corral. The railway, half a hundred miles to the north, has left the famous pass to solitude and to grass.

Once a week, or possibly oftener, a cattleman or prospector rides across, or a little band of tourists plod up or down,—thinking they are penetrating to the heart of the Rockies,—but for the most part the trail is passing swiftly to the unremembered twilight of the tragic past. There are, it is true, one or two stamp-mills above Pemberton, but they draw their supplies from the valley to the west and not from the plain's cities, and the upper camps have long since been deserted by the restless seeker of sudden gold.

It is a desolate, unshaded country, made so by the reckless hand of the tenderfoot prospector, who, in the days of the silver rush, cut and burned the timber sinfully, and the great peaks are meticolated with the rotting boles of noble pines and spotted with the decaying stumps of the firs which once made the whole land as beautiful as a park. Here and there, however, a segment of this splendid ancient forest remains to give some hint of what the ranges were before the destroying horde of silver-seekers struck and scarred it.

Along this trail and above the last vestige of its standing trees a man could be seen, walking eastward and upward, one bright afternoon in August, a couple of years ago. He moved slowly, for he was heavily built and obviously not much used to climbing, for he paused often to breathe. The air at that altitude is thin and, to the one not accustomed to it, most unsatisfying. In the intervals of his pauses the traveler's eyes swept the heights and explored each cañon wall as if in search of a resting-place. Around him the conies cried and small birds skimmed from ledge to ledge,

but his dark face did not lighten with joy of the beauty which shone over his head nor to that which flamed under his feet. It was plain that he was too preoccupied with some inner problem, too intent on his quest, to give eye or ear to the significance of bird or flower.

Huge Solidor, bare and bleak, rose grandly to the north, propping the high-piled shining clouds, and the somber, dust-covered fields of snow showed to what far height his proud summit soared above his fellows. Little streams of icy water trickled through close-knit, velvety sward whereon small flowers, white and gold and lilac, showed like fairy footprints. Down from the pass a chill wind, delicious and invigorating, rushed as palpably as if it were a liquid wave. In all this upper region no shelter offered to the tired man.

A few minutes later, as he rounded the sloping green bastion which flanks the peak to the south, the man's keen eyes lighted upon a small cabin which squatted almost unnoticeably against a gray ledge some five hundred feet higher than the rock whereon he stood. The door of this hut was open and the figure of a man, dwarfed by distance, could be detected intently watching the pedestrian on the trail. Unlike most cabin-dwellers, he made no sign of greeting, uttered no shout of cheer; on the contrary, as the stranger approached he disappeared within his den like a marmot.

There was something appealing in the slow mounting of the man on foot. He was both tired and breathless, and as he neared the cabin (which was built on ground quite twelve thousand feet above sea-level) his limbs dragged, and every step he made required his utmost will. Twice he stopped to recover his strength and to ease the beating of his heart, and as he waited thus the last time the lone cabin-dweller appeared in his door and silently gazed, confronting his visitor with a strangely inhospitable and prolonged scrutiny. It was as if he were a lonely animal, jealous of his ground and resentful even of the most casual human inspection.

The stranger, advancing near, spoke. "Is this the trail to Silver Plume?" he asked, his heaving breast making his speech broken.

"It is," replied the miner, whose thin face and hawk-like eyes betrayed the hermit and the man on guard.

"How far is it across the pass?"

"About thirty miles."

"A good night's walk. Are there any camps above here?"

"None."

"How far is it to the next cabin?"

"Some twelve miles."

The miner, still studying the stranger with piercing intensity, expressed a desire to be reassured. "What are you doing up here on this trail? Are you a mining expert? A spy?" he seemed to ask.

The traveler, divining his curiosity, explained. "I stayed last night at the mill below. I'm a millwright. I have some property to inspect in Silver Plume, hence I'm walking across. I didn't know it was so far; I was misinformed. I'm not accustomed to this high air and I'm used up. Can you take care of me?"

The miner glanced round at the heap of ore which betrayed his craft, and then back at the dark, bearded, impassive face.

"Come in," he said at last, "I'll feed you." But his manner was at once surly and suspicious.

The walls of the hovel were built partly of logs and partly of boulders, and its roof was compacted of dirt and gravel; but it was decently habitable. The furniture (hand-rived out of slabs) was scanty, and the floor was laid with planks, yet everything indicated many days of wear.

"You've been here some time," the stranger remarked rather than asked.

"Ten years."

Thereafter the two men engaged in a silent duel. The millwright, leaning back in his rude chair, stretched his tired limbs and gazed down the valley with no further word of inquiry, while his grudging host prepared a primitive meal and set it upon a box which served as a table.

"You may eat," he curtly said.

In complete silence and with calm abstraction the stranger turned to the food and ate and drank, accepting it all as if this were a roadhouse and he a

paying guest. The sullen watchfulness of his host seemed not to disturb him, not even to interest him.

At length the miner spoke as if in answer to a question—the question he feared.

"No, my mine has not panned out well—not yet. The ore is low-grade and the mill is too far away."

To this informing statement the other man did not so much as lift an eyebrow. His face was like a closed door, his eyes were curtained windows. He mused darkly as one who broods on some bitter defeat.

Nevertheless, he was a human presence and the lonely dweller on the heights could not resist the charm of his guest's personality, remote as he seemed.

"Where do you live?" he asked.

There was a moment's hesitation.

"In St. Paul."

"Ever been here before?"

The dark man shook his shaggy head slowly, and dropped his eyes as if this were the end of the communication. "No, and I never expect to come again."

The miner perceived power in his guest's resolute taciturnity, and the very weight of the silence eventually opened his own lips. From moment to moment the impulse to talk grew stronger within him. There was something as compelling as heat in this reticent visitor whose soul was so intent on inward problems that it perceived nothing of interest in an epaulet of gold on the shoulder of Mount Solidor.

"Few come this trail now," the miner volunteered, as he cleared the table. "I am alone and seldom see a human being drifting my way. I do not invite them."

The stranger refilled his pipe and again leaned back against the wall in ponderous repose. If he heard his host's remark he gave no sign of it, and yet, despite the persistence of his guest's silence—perhaps because of it—the lonely gold-seeker babbled on with increasing candor, contradicting

himself, revealing, hiding, edging round his story, confessing to his hopes of riches, betraying in the end the secrets of his lonely life. It was as if the gates of his unnatural reserve had broken down and the desire to be heard, to be companioned, had over-borne all his early caution.

"It's horribly lonesome up here," he confessed. "Sometimes I think I'll give it all up and go back to civilization. When I came here the pass had its traffic; now no one rides it, which is lucky for me," he added. "I have no prying visitors—I mean no one to contest my claim—and yet a man can't do much alone. Even if my ore richens I must transport it or build a mill. Sometimes I wonder what I'm living for, stuck away in this hole in the hills. I was born to better things—"

He checked himself at this moment, as if he were on the edge of self-betrayal, but his listener seemed not vitally interested in these personal details. However, he made some low-voiced remark, and, as if hypnotized, the miner resumed his monologue.

"The nights are the worst. They are endless—and sometimes when I cannot sleep I feel like surrendering to my fate—" Here again he broke off sharply. "That's nonsense, of course. I mean, it seems as if a life were too much to pay for a crazy act—I mean a mine. You'll ask why I don't sell it, but it's all I have and, besides, no one has any faith in it but myself. I cannot sell, and I can't live down there among men."

Gabbling, keeping time to his nervous feet and hands, endlessly repeating himself, denying, confessing, the miner raged on, and through it all the dark-browed guest smoked tranquilly, too indifferent to ask a question or make comment; but when, once or twice, he lifted his eyes, the garrulous one shuddered and turned away, a scared look on his haggard face. He seemed unable to endure that steady glance.

At last, for a little space, he remained silent; then, as if compelled by some increasing magic in his hearer, he burst forth:

"I'm not here entirely by my own fault—I mean my own choice. A man is a product of his environment, you know that, and mine made me idle, wasteful. Drink got me—drink made me mad—and so—and so—here I am struggling to win back a fortune. Once I gambled—on the wheel; now I am

gambling with nature on the green of these mountain slopes; but I'll win—I have already won—and soon I shall sell and go back to the great cities."

Again his will curbed his treacherous tongue, and, walking to the doorway, he stood for a moment, looking out; then he fiercely snarled:

"Oh, God, how I hate it all—how I hate myself! I am going mad with this life! The squeak of these shadowy conies, the twitter of these unseen little birds, go on day by day. They'll drive me mad! If you had not come to-night I could not have slept—I would have gone to the mill, and that means drink to me—drink and oblivion. You came and saved me. I feared you—hated you then; now I bless you."

Once more he seemed to answer an unspoken query:

"I have no people. My mother is dead, my father has disowned me—he does not even know I am alive. I'm the black devil of the family—but I shall go back—"

His face was working with passion, and though he took a seat opposite his guest, his hands continued to flutter aimlessly and his head moved restlessly from side to side.

"I don't know why I am telling all this to you," he went on after a pause. "I reckon it's because of the weakness of the thirst that is coming over me. Some time I'll go down to those hell-holes at the mills and never come back—the stuff they sell to me is destructive as fire—it is poison! You're a man of substance, I can see that—you're no hobo like most of the fellows out here—that's why I'm talking to you. You remind me of some one I know. There's something familiar in your eyes."

The man with the beard struck the ashes from his pipe and began scraping it. "There is always a woman in these cases," he critically remarked.

The miner took this simple statement as a challenging question. His excitement visibly increased, but he did not at once reply. He talked on aimlessly, incoherently, struggling like a small animal in a torrent. He rose at last, and as he stood in the doorway, breathing deeply, his face livid in the sunset light, the muscles of his jaw trembled.

The stranger observed his host's agitation, but put away his pipe with slow and steady hand. He said nothing, and yet an observer would have declared he held the other and weaker man in the grasp of an inexorable hypnotic silence. Finally he fixed a calm, cold glance upon his host, as if summoning him to answer.

"Yes," the miner confessed, "there is always a woman in the case—another and more fortunate man. The woman is false, the man is treacherous. You trust and they betray. Such beings ruin and madden—they make outlaws such as I am—"

"Love is above will," asserted the millwright, with decision.

The other man fiercely turned. "I know what you mean—you mean the woman is not to be condemned—that love goes where it is drawn. That is true, but deceit is not involuntary—it is deliberate—"

"Sometimes we deceive ourselves."

"In her case it was deceit," retorted the miner, who was now so deeply engaged with his own story that each general observation on the part of his guest was taken to be specific and personal.

The room was growing dusky, and the stranger's glance appeared keener, more insistent, as his body melted into the shadow. His shaggy head and black beard all but disappeared; only the faint outlines of his forehead remained, and yet, as his physical self faded into the gloom, his personality, his psychic self, loomed larger. His will enveloped the hermit, drawing upon him with irresistible power. It was as if he were wringing him dry of a confession as the priest closes in upon the culprit.

"I had my happy days—my days of care-free youth," the unquiet man was saying. "But my time of innocence was short. Evil companions came early and reckless deeds followed.... I knew I was losing something, I knew I was being drawn downward, but I could not escape. Day and night I called for help, and then—*she* came—"

"Who came?"

"The one who made me forget all the others, the one who made me ashamed."

"And then?"

"And then for a time I was happy in the hope that I might win her and so redeem my life."

"And she?"

"She pitied me—at first—and loved me—at least I thought so."

As his excitement increased his words came slower, burdened with passion. He spoke like a prisoner addressing a judge, his voice but a husky whisper.

"I told her I was unworthy of her—that was when I believed her to be an angel. I promised to begin a new life for her sake. Then she promised me—helped me—and all the while she was false to me—false as a hell-cat!"

"How?" queried the almost invisible man, and his voice was charged with stern demand.

"All the time she was promised to another man—and that man my enemy."

Here his frenzy flared forth in a torrent of words.

"Then—then I went mad. My brain was scarred and numb. I lost all sense of pity—all fear of law—all respect for woman. I only knew my wrongs—my despair—my hate. I watched, I waited, I found them together—"

"And then? What did you do then?" demanded the stranger, rising from his seat with sudden energy, his voice deep, insistent, masterful. "Tell me what you did?"

The miner's wild voice died to a hesitant whisper. "I—I fled."

"But before that—before you fled?"

"What is it to you?" asked the hermit, gazing with scared eyes at the man who towered above him like the demon of retribution. "Who are you?"

"I am the avenger!" answered the other. "The man you hated was my brother. The woman you killed was his wife."

The fugitive fell upon his knees with a cry like that of one being strangled.

Out of the darkness a red flame darted, and the crouching man fell to the floor, a crumpled, bloody heap.

For a long time the executioner stood above the body, waiting, listening from the shadow to the faint receding breath-strokes of his victim. When all was still he restored his weapon to its sheath and stepped over the threshold into the keen and pleasant night.

As he closed the door behind him the stranger raised his eyes to Solidor, whose sovereign, cloud-like crest swayed among the stars.

"Now I shall rest," he said, with solemn satisfaction.



THE TRAIL TRAMP

*—mounted wanderer, horseman of the
restless heart, still rides from place to
place, contemptuous of gold, carrying in
his parfleche all the vanishing traditions
of the West.*



v

THE TRAIL TRAMP

KELLEY AFOOT

I

Kelley was in off the range and in profound disgust with himself, for after serving honorably as line-rider and later as cow-boss for ten years or more, he had ridden over to Keno to meet an old comrade. Just how it happened he couldn't tell, but he woke one morning without a dollar and, what was worse, incredibly worse, without horse or saddle! Even his revolver was gone.

In brief, Tall Ed, for the first time in his life, was set afoot, and this, you must understand, is a most direful disaster in cowboy life. It means that you must begin again from the ground up, as if you were a perfectly new tenderfoot from Nebraska.

Fort Keno was, of course, not a real fort; but it was a real barracks. The town was an imitation town. The fort, spick, span, in rows, with nicely planted trees and green grass-plats (kept in condition at vast expense to the War Department), stood on the bank of the sluggish river, while just below it and across the stream sprawled the town, drab, flea-bitten, unkempt, littered with tin cans and old bottles, a collection of saloons, gambling-houses and nameless dives, with a few people—a very few—making an honest living by selling groceries, saddles, and coal-oil.

Among the industries of Keno City was a livery-and-sales stable, and Kelley, with intent to punish himself, at once applied for the position of hostler. "You durned fool," he said, addressing himself, "as you've played the drunken Injun, suppose you play valet to a lot of mustangs for a while."

As a disciplinary design he felicitated himself as having hit upon the most humiliating and distasteful position in Keno. It was understood that Harford of the Cottonwood Corral never hired a real man as hostler. He seemed to prefer bums and tramps, either because he could get them

cheaper or else because no decent man would work for him. He was an "arbitrary cuss" and ready with gun or boot. He came down a long trail of weather-worn experiences in the Southwest, and showed it in both face and voice. He was a big man who had once been fatter, but his wrinkled and sour visage seldom crinkled into a smile. He had never been jolly, and he was now morose.

Kelley hated him. That, too, was another part of his elaborate scheme of self-punishment—hated, but did not fear him, for Tall Ed Kelley feared nothing that walked the earth or sailed the air. "You bum," he continued to say in bitter derision as he caught glimpses of himself of a morning in the little fragment of broken glass which, being tacked on the wall, served as mirror in the office. "You durned mangy coyote, you need a shave, but you won't get it. You need a clean shirt and a new bandanna, but you won't get them, neither—not yet awhile. You'll earn 'em by going without a drop of whisky and by forking manure fer the next six months. You hear me?"

He slept in the barn on a soiled, ill-smelling bunk, and his hours of repose were broken by calls on the telephone or by some one beating at the door late at night or early in the morning; but he always responded without a word of complaint. It was all lovely discipline. It was like batting a measly bronco over the head in correction of some grievous fault (like nipping your calf, for example), and he took a grim satisfaction in going about degraded and forgotten of his fellows, for no one in Keno knew that this grimy hostler was cow-boss on the Perco. This, in a certain degree, softened his disgrace and lessened his punishment, but he couldn't quite bring himself to the task of explaining just how he had come to leave the range and go into service with Harford.

The officers of the fort, when tired of the ambulance, occasionally took out a team and covered rig, and so Kelley came in contact with the commanding officer, Major Dugan, a fine figure of a man with carefully barbered head and immaculate uniform. In Kelley's estimation he was almost too well kept for a man nearing fifty. He was, indeed, a gallant to whom comely women were still the fairest kind of game.

In truth, Tall Ed as hostler often furnished the major with a carriage, in which to make some of his private expeditions, and this was another and final disgrace which the cowman perceived and commented upon. To assist

an old libertine like the major in concealing his night journeys was the nethermost deep of "self-discipline," but when the pretty young wife of his employer became the object of the major's attention Kelley was thrown into doubt.

Anita Harford, part Spanish and part German, as sometimes happens in New Mexico, was a curious and interesting mixture with lovely golden-brown hair and big, dark-brown eyes. She had the ingratiating smile of the señora, her mother, and the moods of gravity, almost melancholy, of her father.

She had been away in Albuquerque during the first week of Kelley's hostlership, and though he had heard something of her from the men about the corral, he had no great interest in her till she came one afternoon to the door of the stable, where she paused like a snow-white, timid antelope and softly said:

"Are you the new hostler?"

"I am, miss."

She smiled at his mistake. "I am Mrs. Harford. Please let me have the single buggy and bay Nellie."

Kelley concealed his surprise. "Sure thing, mom. Want her right now?"

"If you please."

As she moved away so lightly and so daintily Kelley stared in stupefaction. "Guess I've miscalculated somewhere. Old Harf must have more drag into him than I made out. How did the old seed get a woman like that? 'Pears like he's the champion hypnotic spieler when it comes to 'skirts.'"

He hitched-up the horse in profound meditation. For the first time since his downfall his humiliation seemed just a trifle deeper than was necessary. He regretted his filthy shirt and his unshorn cheeks, and as he brought the horse around to the door of the boss's house he slipped out of the buggy on the off side, hurriedly tethered the mare to the pole, and retreated to his alley like a rat to its burrow. The few moments when Anita's clear eyes had rested upon him had been moments of self-revelation.

"Kelley, you're all kinds of a blankety fool," said he. "You're causing yourself a whole lot of extra misery and you're a disgustin' object, besides. It isn't necessary fer you to be a skunk in order to give yourself a welting. Go now and get a shave and a clean shirt, and start again."

This he did, and out of his next week's pay he bought a clean pair of overalls and a new sombrero, so that when he came back to the barn Harford was disturbed.

"Hope you aren't going to pull out, Kelley? You suit me, and if it's a question of pay, I'll raise you a couple of dollars on a week."

"Oh no, I'm not leaving. Only I jest felt like I was a little too measly. 'Pears like I ought to afford a clean shirt. It does make a heap of difference in the looks of a feller. No, I'm booked to stay with you fer a while yet."

Naturally thereafter little Mrs. Harford filled a large place in Kelley's gloomy world. He was not a romantic person, but he was often lonesome in the midst of his self-imposed penance. He forbade himself the solace of the saloon. He denied himself a day or even an hour off duty, and Harford, secretly amazed and inwardly delighted, went so far one day as to offer him a cigar.

Kelley waved it away. "No, I've cut out the tobacco, too."

This astounded his boss. "Say, it's a wonder you escaped the ministry."

"It's more of a wonder than you know," replied Kelley. "I was headed right plumb that way till I was seventeen. My mother had it all picked out fer me. Then I broke away."

Harford, with the instinctive caution of the plainsman, pursued the subject no further. He was content to know that for a very moderate wage he had secured the best man with horses that the stable had ever known. His only anxiety related to the question of keeping his find.

"Kelley's too good to be permanent," he said to his wife that night. "He'll skip out with one of the best saddle-horses some night, or else he'll go on a tearing drunk and send the whole outfit up in smoke. I don't understand the cuss. He looks like the usual hobo out of a job, but he's as abstemious as a New England deacon. 'Pears like he has no faults at all."

Anita had been attracted to Kelley, lowly as he looked, and, upon hearing his singular virtues recounted by her husband, opened her eyes in augmented interest. All the men in her world were rough. Her father drank, her brothers fought and swore and cheated, and her husband was as free of speech in her presence as if she were another kind of man, softening his words a little, but not much. Therefore, the next time she met Kelley she lingered to make conversation with him, rejoicing in his candid eyes and handsome face. She observed also that his shirt was clean and his tie new. "He looks almost like a soldier," she thought, and this was her highest compliment.

Surrounded as she was by gamblers, horse-jockeys, cattle-buyers, and miners, all (generally speaking) of the same slouchy, unkempt type, she recognized in the officers of the fort gentlemen of highest breeding and radiant charm. Erect, neat, brisk of step, the lieutenants on parade gave off something so alien, yet so sweet, that her heart went out to them collectively, and when they lifted their caps to her individually, she smiled upon them all with childish unconsciousness of their dangerous qualities.

Most of the younger unmarried men took these smiles to be as they were, entirely without guile. Others spoke jestingly (in private) of her attitude, but were inclined to respect Harford's reputation as a gunman. Only the major himself was reckless enough to take advantage of the young wife's admiration for a uniform.

Kelley soon understood the situation. His keen eyes and sensitive ears informed him of the light estimation in which his employer's wife was held by the major; but at first he merely said, "This is none of your funeral, Kelley. Stick to your currycomb. Harford is able to take care of his own."

This good resolution weakened the very next time Anita met him and prettily praised him. "Mr. Harford says you are the best man he ever had, and I think that must be so, for my pony never looked so clean and shiny."

Kelley almost blushed, for (as a matter of faithful history) he had spent a great deal of time brushing bay Nellie. She did indeed shine like a bottle, and her harness, newly oiled and carefully burnished, glittered as if composed of jet and gold.

"Oh, that's all right; it's a part of my job," he replied, as carelessly as he could contrive. "I like a good horse"—"and a pretty woman," he might have added, but he didn't.

Although Anita lingered as if desiring a word or two more, the tall hostler turned resolutely away and disappeared into the stable.

Bay Nellie, as the one dependable carriage-horse in the outfit of broncos, had been set aside for the use of Anita and her friends, but Kelley had orders from Harford to let the mare out whenever the women did not need her, provided a kindly driver was assured, and so it happened that the wives of the officers occasionally used her, although none of them could be called friends or even acquaintances of little Mrs. Harford.

Kelley observed their distant, if not contemptuous, nods to his employer's wife as they chanced to meet her on the street, but he said no word, even when some of the town loafers frankly commented on it. He owed nothing to Harford. "It's not my job to defend his wife's reputation." Nevertheless, it made him hot when he heard one of these loafers remark: "I met the old major the other evening driving along the river road with Harf's wife. Somebody better warn the major, or there'll be merry hell and a military funeral one of these days."

"I reckon you're mistaken," said Kelley.

"Not by a whole mile! It was dark, but not so dark but that I could see who they were. They were in a top buggy, drivin' that slick nag the old man is so choice about."

"When was it?" asked Kelley.

"Night before last. I met 'em up there just at the bend of the river."

Kelley said no more, for he remembered that Anita had called for the horse on that date just about sundown, and had driven away alone. She returned alone about ten—at least, she drove up to the stable door alone, but he recalled hearing the low tones of a man's voice just before she called.

It made him sad and angry. He muttered an imprecation against the whole world of men, himself included. "If I hadn't seen her—if I didn't know how sweet and kind and pretty she was—I wouldn't mind," he said to himself. "But to think of a little babe like her—" He checked himself. "That old

cockalorum needs killing. I wonder if I've got to do it?" he asked in conclusion.

II

Harford came home the next day, and for several weeks there was no further occasion for gossip, although Kelley had his eyes on the major so closely that he could neither come nor go without having his action analyzed. He kept close record of Anita's coming and going also, although it made him feel like a scoundrel whenever she glanced at him. He was sure she was only the thoughtless child in all her indiscretions, with a child's romantic admiration of a handsome uniform.

"I'll speak to her," he resolved. "I'll hand her out a word of warning just to clear my conscience. She needs a big brother or an uncle—some one to give her a jolt, and I'll do it!"

The opportunity came one day soon after Harford's return, but his courage almost failed at the moment of meeting, so dainty, so small, so charming, and so bird-like did the young wife seem.

She complimented him again on the condition of the mare and asked, timidly, "How much does my husband pay you?"

"More than I'm worth," he replied, with gloomy self-depreciation.

She caught the note of bitterness in his voice and looked at him a moment in surprised silence, her big eyes full of question. "What made you say that?"

Kelley, repenting of his lack of restraint, smiled and said: "Oh, I felt that way—for a minute. You see, I used to lead a high life of ease. I was a nobleman—an Irish lord."

She smiled and uttered an incredulous word, but he went on:

"Yes, although my name is Kelley, I belong to a long line of kings. I'm working as hostler just to square myself fer having killed a man. You see, my queen was kind o' foolish and reckless and let a certain English duke hang round her till I got locoed, and, being naturally quick on the trigger, I slew him."

She was not stupid. She understood, and with quick, resentful glance she took the reins from his hands and stepped into the carriage.

Kelley, silenced, and with a feeling that he had bungled his job, fell back a pace, while she drove away without so much as a backward glance.

"I reckon she got it," he said, grimly, as he went back to his work. "I didn't put it out just the way I had it in my head, but she 'peared to sense enough of it to call me a Piute for butting in. If that don't work on her I'll tack a warning on the major which nobody will misread fer a joke."

As the hours of the afternoon went by he became more and more uneasy. "I hope she'll turn up before dark, fer Harf is liable to get back any minute," he said a dozen times, and when at last he saw her coming up the street with a woman in the seat beside her he breathed deeply and swore heartily in his relief. "I guess my parable kind o' worked," he said, exultantly. "She's kept clear of the old goat this trip."

The little lady stopped her horse at the door of the stable and with a cool and distant nod alighted and walked away.

"I'm the hostler now—sure thing," grinned Kelley. "No raise of pay fer Tall Ed this week."

He was in reality quite depressed by the change in her attitude toward him. "Reckon I didn't get just the right slaunch on that warning of mine—and yet at the same time she ought to have seen I meant it kindly.—Oh well, hell! it's none o' my funeral, anyway. Harford is no green squash, he's a seasoned old warrior who ought to know when men are stealing his wife." And he went back to his dusty duties in full determination to see nothing and do nothing outside the barn.

Nevertheless, when, thereafter, anybody from the fort asked for bay Nellie, he gave out that she was engaged, and the very first time the major asked for the mare Kelley not only brusquely said, "She's in use," but hung up the receiver in the midst of the major's explanation.

The town gossips were all busy with the delightful report that Mrs. Harford had again been seen driving with the major, whose reputation for gallantry, monstrously exaggerated by the reek of the saloons, made even a single hour of his company a dash of pitch to the best of women. Kelley speculated on just how long it would take Harford to learn of these hints

against his wife. Some of his blunt followers were quite capable of telling him in so many words that the major was doing him wrong, and when they did an explosion would certainly take place.

One day a couple of Harford's horses, standing before the stable, became frightened and ran away up the street. Kelley, leaping upon one of the fleetest broncos in the stalls, went careering in pursuit just as Anita came down the walk. He was a fine figure of a man even when slouching about the barn, but mounted he was magnificent. It was the first time he had ridden since the loss of his own outfit, and the feel of a vigorous steed beneath his thighs, the noise of pounding feet, the rush of air, filled his heart with mingled exultation and regret. He was the centaur again.

Anita watched him pass and disappear with a feeling of surprise as well as of admiration. She was skilled in reading the character of men on horseback, and peculiarly sensitive to such an exhibition of grace and power. Her hostler was transformed into something new and wholly admirable, and she gladly took the trouble to watch for his return, as she could not witness the roping and the skilful subduing of the outlaws.

The picture he made as he tore along, swinging his rope, had displaced that of the dirty, indifferent hostler, and Anita thereafter looked upon him with respect, notwithstanding his presumptuous warning, which still lay heavy in her ears.

She still resented his interference, but she resented it less now that she knew him better. She began to wonder about him. Who was he? Why was he the hostler? Naturally, being wise in certain ways of men, she inferred that strong drink had "set him afoot"; but when she hesitantly approached her husband on this point, his reply was brusque: "I don't know anything about Kelley, and don't want to know. So long as he does his work his family vault is safe."

Still desiring to be informed, she turned to her servants, with no better results; they knew very little about Tall Ed, "but we like him," they were free to say.

This newly discovered mystery in the life of her hostler accomplished what his warning had failed to do; it caused her to neglect her correspondence with the major. His letter lay in a hollow willow-tree on the

river road unread for nearly a week. And when, one afternoon, she finally rode by to claim it, her interest was strangely dulled. The spice of the adventure was gone.

As she was about to deliver her pony to Kelley that night he handed her an envelope, and, with penetrating glance, said: "I found this on the river road to-day. I wouldn't write any more such—if I was you; it ain't nice and it ain't safe."

It was her own letter, the one she had but just written and deposited in the tree. She chilled and stiffened under the keen edge of Kelley's contemptuous pity, then burned hot with illogical rage.

"What right—? You spied on me. It's a shame!"

"So it is!" he agreed, quietly; "but I don't want any killing done—unless I do it myself."

"You are a thief," she accused.

"All right," he answered, dispassionately. "Spy—keeper—big brother—dog—anything goes—only I don't intend to let you slide to hell without a protest. You're nothing but a kid—a baby. You don't know what you're going into. I'm an old stager; I know a whole lot that I wish I didn't know. I've known women who *said* they didn't care—lots of 'em—but they did; they all cared. They all knew they'd lost out. There's only one end to the trail you're starting in on, and it ain't a pretty one. Harf married you in good faith, and even if he *is* gettin' old and slow-footed and skinny, he's your husband and entitled to a square deal."

Blinded by her tears, and weak with passionate resentment of his tone, she could scarcely clamber down from the carriage. As soon as her feet touched the ground she started away. Kelley retained her by the force of his hand upon her wrist.

"Wait a moment," he said, huskily. "You're mad now and you want to murder me, but think it all over and you'll see I'm your friend."

There was something in his voice which caused her to look squarely up into his face, and the tenderness she saw there remained long in her memory.

"You're too sweet and lovely to be the sport of a cheap skate like that. Don't throw yourself away on any man. Good-by and God bless ye."

She walked away with bent head and tear-blinded eyes, her heart filled with weakness and pain. She was like a child justly punished, yet resenting it, and mingled with her resentment was a growing love and admiration for the man whose blunt words had bruised her soul in the hope of her redemption.

Kelley went back to his little office, gathered his small belongings together, and called up Harford on the 'phone. "I'll take that blue cayuse and that Denver-brand saddle, and call it square to date.... Yes, I'm leaving. I've got a call to a ranch over on the Perco. Sorry, but I reckon I've worked out my sentence.... All right. So long."

Ten minutes later he was mounted and riding out of town. The air was crisp with autumn frost and the stars were blazing innumerable in the sky. A coyote had begun his evening song, and to the north rose the high, dark mass of the Book cliffs. Toward this wall he directed his way. He hurried like one fleeing from temptation, and so indeed he was.

KELLY AS MARSHAL

I

Along about '96 Sulphur Springs had become several kinds of a bad town. From being a small liquoring-up place for cattlemen it had taken on successively the character of a land-office, a lumber-camp, and a coal-mine.

As a cow town it had been hardly more than a hamlet. As a mining center it rose to the dignity of possessing (as Judge Pulfoot was accustomed to boast) nearly two thousand souls, not counting Mexicans and Navajos. It lay in the hot hollows between piñon-spotted hills, but within sight spread the grassy slopes of the secondary mountains over whose tops the snow-lined peaks of the Continental Divide loomed in stern majesty.

The herders still carried Winchesters on their saddles and revolvers strung to their belts, and each of them strove to keep up cowboy traditions by unloading his weapon on the slightest provocation. The gamblers also

sustained the conventions of their profession by killing one another now and again, and the average citizen regarded these activities with a certain approval, for they all denoted a "live town."

"The boys need diversion," said the mayor, "and so long as they confine their celebrations to such hours as will not disturb the children and women—at least, the domestic kind of women—I won't complain."

And really, it is gratifying to record that very few desirable citizens were shot. Sulphur continued to thrive, to glow in the annals of mountain chivalry, until by some chance old Tom Hornaby of Wire Grass was elected Senator. That victory marked the beginning of the decline of Sulphur.

Hornaby was Pulfoot's candidate, and the judge took a paternal pride in him. He even went up to the capital to see him sworn in, and was there, unfortunately, when the humorous member from Lode alluded to Hornaby as "my esteemed colleague from 'Brimstone' Center, where even the judges tote guns and the children chew dynamite"—and what was still more disturbing, he was again in the capital when the news came of the shooting and robbing of a couple of coal-miners, the details of which filled the city papers with sarcastic allusions to "Tom Hornaby's live town on The Stinking Water."

Hornaby, being a heavy owner of land in and about Sulphur, was very properly furious, and Judge Pulfoot—deeply grieved—was, indeed, on the instant, converted. A great light fell about him. He perceived his home town as it was—or at least he got a glimpse of it as it appeared to the timid souls of civilized men. He cowered before Hornaby.

"Tom, you're right," he sadly agreed. "The old town needs cleaning up. It sure is disgraceful."

Hornaby buttered no parsnips. "You go right back," said he, "and kick out that bonehead marshal of yours and put a full-sized man into his place, a man that will cut that gun-play out and distribute a few of those plug-uglies over the landscape. What chance have I got in this Legislature as the 'Senator from Brimstone Center'? I'll never get shet of that fool tag whilst I'm up here."

"You certainly have a right to be sore," the judge admitted. "But it ain't no boy's job, cleaning up our little burg. It's going to be good, stiff work. I

don't know who to put into it."

"I do."

"Who?"

"My foreman, Ed Kelley."

"I don't know him."

"Well, I do. He's only been with me a few months, but I've tried him and he's all right. He's been all over the West, knows the greasers and Injuns, and can take care of himself anywhere. The man don't live that can scare him. You notice his eyes! He's got a glare like the muzzle of a silver-plated double-barrel shotgun. He don't know what fear is. I've seen him in action, and I know."

The judge was impressed. "Will the board accept him?"

"They've *got* to accept him or go plumb to the devil down there. These articles and speeches have put us in wrong with the whole state. This wild West business has got to be cut out. It scares away capital. Now you get busy!"

The judge went back resolved upon a change of administration. The constituent who held the office of marshal was brave enough, but he had grown elderly and inert. He was, in truth, a joke. The gamblers laughed at him and the cowboys "played horse" with him. The spirit of devilry was stronger than it had ever been in the history of the county.

"Something religious has got to be done," the judge argued to the city fathers, and, having presented Hornaby's message, demanded the installation of Kelley.

The board listened attentively, but were unconvinced. "Who is this Kelley? He's nothing but a tramp, a mounted hobo. Who knows him?"

"Hornaby knows him and wants him, and his order goes. Let's have him in and talk with him, anyhow."

Kelley was called in. He showed up a tall, composed young fellow of thirty, with weather-worn face and steady gray eyes in which the pupils were unusually small and very dark blue. His expression was calm and his

voice pleasant. He listened in amused silence while the judge told him what the program was. Then he said:

"That's a whale of a job you've laid out for me; but Hornaby's boss. All is, if I start in on this, you fellows have got to see me through. It's a right stiff program and I need some insurance. 'Pears to me like there should be a little pot for Tall Ed at the end of this game—say, three dollars a day and a couple of hundred bones when everything is quiet."

To this the judge agreed. "You go in and clean up. Run these gunmen down the valley. Cut out this amatoor wild West business—it's hurting us. Property is depreciating right along. We certainly can't stand any more of this brimstone business. Go to it! We'll see that you're properly reimbursed."

"All right, Judge. But you understand if I go into this peacemaking war I draw no political lines. I am chief for the time being, and treat everybody alike—greasers, 'Paches, your friends, my friends, everybody."

"That's all right. It's your deal," said the judge and the aldermen.

II

Tall Ed had drifted into Sulphur from the Southwest some six months before, and although fairly well known among the ranchers on the Wire Grass, was not a familiar figure in town. The news of his appointment was received with laughter by the loafers and with wonder by the quiet citizens, who coldly said:

"He appears like a full-sized man, but size don't count. There's Clayt Mink, for instance, the worst little moth-eaten scrap in the state, and yet he'll kill at the drop of a hat. Sooner or later he's going to try out this new marshal same as he did the others."

This seemed likely, for Mink owned and operated the biggest gambling-house in Sulphur, and was considered to be (as he was) a dangerous man. He already hated Kelley, who had once protected a drunken cattleman from being almost openly robbed in his saloon. Furthermore, he was a relentless political foe to Hornaby.

He was indeed a mere scrap of a man, with nothing about him full-sized except his mustache. And yet, despite his unheroic physique, he was quick

and remorseless in action. In Italy he would have carried a dagger. In England he would have been a light-weight rough-and-tumble fighter. In the violent West he was a gunman, menacing every citizen who crossed his inclination, and he took Kelley's appointment as a direct affront on the part of Hornaby and Pulfoot.

"He'd better keep out of my way," he remarked to his friends, with a malignant sneer.

Kelley was not deceived in his adversary. "He's a coward at heart, like all these hair-hung triggers," he said to Pulfoot. "I'm not hunting any trouble with him, but—" It was not necessary to finish his sentence; his voice and smile indicated his meaning.

The town was comparatively quiet for the first month or two after Kelley took office. It seemed that the rough element was reflectively taking his measure, and Hornaby's herders, as they rode in and out of town, told stories of Tall Ed's rough and ready experiences, which helped to establish official confidence in him.

"I reckon we've done the right thing this time," wrote Pulfoot to Hornaby. "The boys all seem to realize we've got a *man* in office."

This calm, this unnatural calm, was broken one night by Mink himself, who shot and all but killed the livery-stable keeper in a dispute over roulette. Knowing that his deed would bring the new marshal down upon him at once, the gambler immediately declared determined war.

"The man who comes after me will need a wooden overcoat," he promulgated. "I won't stand being hounded. That hostler was pulling his gun on me. I got him first, that's all. It was a fair fight, and everybody knows it."

The liveryman was, in fact, armed at the time, and the disposition of many citizens was to "let him learn his lesson." But Judge Pulfoot, fearing Hornaby's temper, ordered Kelley to get his man.

"Tom wants that weasel disciplined," he said. "He's a damage to the community."

Kelley received his orders with calmness. "Well, Judge," he said, after a little pause, "I'll get him, but I'd like to do it in my own way. To go after him

just now gives him the inside position. He'll hear of me the minute I start and will be backed up into the corner somewhere with his gun all poised."

"Are you afraid?"

"You can call it that," the young marshal languidly replied. "I don't believe in taking fool chances. Mink is a dead shot, and probably wire-edged with whisky and expecting me. My plan is to wait until he's a little off his guard—then go in quick and pull him down."

To this the judge gave reluctant consent. But when, a few hours later, he heard that Mink had disappeared he was indignant. "You get that devil or we'll let you out," he said, and showed a telegram from Hornaby protesting against this new outbreak of violence. "The old man's red-headed over it."

"I know it," said Kelley. "I heard from him to that effect. If the hostler dies we won't see Mink no more. If he's in town I'll get him. Good *night*."

III

A few days later, as he was walking up the street, half a dozen men successively spoke to him, saying, "Mink's at home, loaded—and looking for you!" And each of them grinned as he said it, joyously anticipating trouble.

Without a word, other than a careless, "That so?" Kelley passed on, and a thrill of excitement ran through the hearts of the loafers.

It was about sunset of a dusty autumn afternoon, and the cowboys and miners (gathered in knots along the street), having eaten their suppers, were ready to be entertained. Upon seeing Kelley approach with easy stride they passed the joyous word along. Each spectator was afraid he might miss some part of the play.

Kelley was fully aware that his official career and perhaps his life hung in the balance. To fail of arresting the desperado was to brand himself a bungler and to expose himself to the contempt of other sure-shot ruffians. However, having faced death many times in the desert and on the range, he advanced steadily, apparently undisturbed by the warnings he had received.

Just before reaching Mink's saloon he stepped into Lemont's drug-store, a cheap little shop where candy and cigars and other miscellaneous goods were sold. The only person in the place was Rosa Lemont, a slim, little maid of about fifteen years of age.

"Hello, Rosie," he said, quietly. "I want to slip out your back door." He smiled meaningly. "The street is a trifle crowded just now."

With instant comprehension of his meaning she led the way. "Don't let them kill you," she whispered, with scared lips.

"I'll try not to," he answered, lightly.

Once in the alley, he swung his revolver to a handy spot on his thigh and entered the saloon abruptly from the rear.

The back room, a rude dance-hall, was empty, but the door into the barroom was open, and he slipped through it like a shadow. Mink was not in sight, but the barkeeper stood rigidly on duty.

"Hello, Jack!" called Kelley, as he casually approached the bar. "Where's the boss?"

Before he had finished his question he detected his man reflected in the mirror behind the bar. The gambler imagined himself to be hidden behind the screen which separated the women's drinking-place from the main room, and did not know that Kelley had seen him in the glass. His revolver was in his hand and malignant purpose blazed in his eyes—and yet he hesitated. Lawless as he was, it appeared that he could not instantly bring himself to the point of shooting an officer in the back.

Kelley, realizing his disadvantage, and knowing that any attempt to forestall the action of his enemy would be fatal, cheerily called out to an acquaintance who stood in a stupor of fear, farther up the bar: "Howdy, Sam! Come and have a drink." His jovial tone and apparent ignorance of danger prolonged Mink's moment of indecision. The third man thought Kelley unaware of his danger, but did not have the courage to utter a sound.

The marshal, perceiving certain death in the assassin's eyes, was about to whirl in a desperate effort to get at least one shot at him, when something happened! Some one caromed against the screen. It toppled and fell upon the gambler, disconcerting his aim. His bullet went wide, and Kelley was

upon him like a tiger before he could recover control of his weapon, and they both went to the sawdust together.

Now came a singular revelation of the essential cowardice of the desperado. Deprived of his revolver and helpless in Kelley's great hands, he broke down. White, trembling, drooling with terror, he pleaded for his life. "Don't shoot—don't kill me!" he repeated over and over.

"I ought to kill you," argued Kelley, with a reflective hesitation which wrought his captive to a still greater frenzy of appeal.

"I beg—I beg," he whined. "Don't shoot!"

Amazed and disgusted with the man's weakness, Kelley kicked him in the ribs. "Get up!" he said, shortly.

Mink arose, but no sooner was he on his feet than his courage returned. "I'll have your heart for this," he said, venomously. Then his mind took a sudden turn. "Who pushed that screen onto me?" he asked. "I'll kill the man who did that."

"You'll have time to figure out that problem in the quiet of 'the jug,'" said Kelley. "Come along."

At the door of the calaboose the gambler braced himself. "I won't go in there!" he declared. "I won't be juggled—I'll die right here—"

Kelley's answer was a jerk, a twist, and a sudden thrust, which landed the redoubtable booster in the middle of his cell. "You can die inside if you want to," he said, and turned the key on him. "My responsibility ends right here."

IV

The street was crowded with excited men and women as Kelley came back up the walk. One or two congratulated him on his escape from sudden death, but the majority resented him as "the hired bouncer" of the land-boomers in the town.

"Who pushed that screen?" was the question which everybody asked of Kelley.

"I didn't see," he responded. "I was *busy* just about that time."

In truth he had only glimpsed a darting figure, but one he knew! Who else but Rosa Lemont could have been so opportune and so effective in her action? She alone knew of his presence in the alley.

She was only a plain little hobbledehoy, half Mexican and half French, and not yet out of short dresses, and Kelley had never paid her any attention beyond passing the time of day, with a kindly smile; and yet with the fervid imagination of her race she had already conceived a passionate admiration for Kelley. Knowing that he was entering Mink's death-trap, she had followed him like a faithful squire, eager to defend, and, understanding his danger to the full, had taken the simplest and most effective means of aiding him. From the doorway she had witnessed his victory; then flying through the rear door, had been in position at the store window as he passed with his prisoner on his way to the calaboose.

When Kelley came back to her door, with intent to thank her for what she had done, he found the room full of excited men, and with instinctive delicacy passed on his way, not wishing to involve her in the story of the arrest.

It appeared that all the men of the town who thrived by lawlessness and vice now decided to take up Mink's case and make his discharge an issue. A sudden demonstration of their political power brought the judge to terms. He weakened. The gambler was released with a fine of one hundred dollars and a warning to keep the peace, and by noon of the following day was back in his den, more truculent than ever.

Kelley was properly indignant. "But the man tried to kill me!" he protested to the court.

"He swears not," replied the justice. "We have punished him for resisting an officer. That is the best we can do."

"What about Jake?"

"Oh, well! That was 'war.' Jake had a gun, and Mink is able to prove that he shot in self-defense. Furthermore, he has settled with Jake."

Kelley argued no more. He could have called Rosa in as a witness to the attempt upon his life, but to do so would expose her to public comment, and

her big, solemn, worshipful eyes had already produced in him a vague pity. Without understanding fully her feeling, he knew that she looked up to him, and he perceived that she was born to sorrow in larger measure than she deserved. Sallow, thin, boyish, she gave promise of a kind of beauty which would sometime make her desired of both white men and brown.

"Poor little mongrel!" he said to himself. "She's in for misery enough without worrying over me."

"Well, I'm up against it now," Kelley remarked to Dad Miller, Hornaby's foreman, the next time he met him. "Mink's friends have thrown a scare into the judge and he has turned that coyote loose against me. Looks like I had one of two things to do—kill the cuss or jump the town."

"Shoot him on sight," advised Miller.

"If I do that I'm 'in bad' with the court," Kelley argued. "You see, when I took him before, I had the law on my side. Now it's just man to man—until he commits another crime. Killing me wouldn't be a crime."

"That's so," mused his friend. "You're cinched any way you look at it."

Kelley went on: "Moreover, some of my greaser friends have started a line of fool talk about making me sheriff, and that has just naturally set the whole *political* ring against me. They'd just as soon I got killed as not—a little sooner. I've a right to resign, haven't I? Nobody has a license to call me a coward after what I've done, have they?"

"No license; but I reckon they will, all the same," responded his friend.

Kelley's face hardened. "Well, I'll disappoint 'em. I'm going to stay with it." However, he went to the mayor and voiced his resentment of the court's action.

His Honor pretended to be greatly concerned. "Now, don't quit on us, Ed. Hornaby expects you to stay put. You're the only man who can clean up the town. You've done great work already, and we appreciate it. In fact, we're going to raise your pay."

"Pay to a corpse don't count," retorted Kelley. "It's a question of backing. You fellows have got to stand behind me."

"We'll do it, Ed. Only, Hornaby thinks you'd better put a card in the paper saying that you have no intention of going into politics."

"Oh, hell!" said Kelley, disgustedly. "Is Hornaby suspicious of me, too? Well, for that I've a mind to run," and he went out in deep disgust.

As the days went by and no open movement against him took place, his vigilance somewhat relaxed. Mink kept to his lair like some treacherous, bloodthirsty animal, which was a bad sign.

At heart Tall Ed was restless and discontented. Each day he walked the streets of the fly-bit town; dreaming of the glorious desert spaces he had crossed and of the high trails he had explored. He became more and more homesick for the hills. Far away to the north gleamed the snowy crest of the Continental Divide, and the desire to ride on, over that majestic barrier into valleys whose purple shadows allured him like banners, grew stronger. Each night he lifted his face to the stars and thought of his glorious moonlit camps on the Rio Perco sands, and the sound of waterfalls was in his dreams.

"What am I here for?" he asked himself. "Why should I be watch-dog—me, a wolf, a free ranger! Why should I be upholding the law? What's the law to a tramp?"

Had it not been for a curious sense of loyalty to Hornaby, added to a natural dislike of being called a quitter, he would have surrendered his star and resumed his saddle. He owned a good horse once more and had earned nearly two hundred dollars. "With my present outfit I can amble clear across to Oregon," he assured himself, wistfully.

As he stood with uplifted face, dreaming of the mountains, Rosa Lemont came down the street, and as she passed him said in a low voice: "Mink's on the plaza—crazy drunk. Watch out!"

Kelley straightened and cast an unhurried glance around him. No one was in sight but a group of cow-punchers tying their horses in front of a saloon, and a few miners seated on the edge of the walk. Nevertheless, he knew the girl had good reason for her warning, and so, after walking a block or two in the opposite direction, he turned and came slowly back up the main street till he reached Lemont's doorway, where he paused, apparently interested in something across the street.

Rosa came from within and with equally well-simulated carelessness leaned against the door-frame. "Mink's bug-house," she explained, "and got a Winchester. He's just around the corner, waiting for you. He says he's going to shoot you on sight." She stammered a little with excitement, but her voice was low.

"Much obliged, Rosie," he replied, feelingly. "Don't worry. I may see him first. And listen; while I have a chance I want to thank you for pushing that screen onto him. It was a good job."

"That's all right," she answered, hastily. "But please be careful."

"Don't worry," he gravely replied. "I've beat him once and I can do it again." And after a pause he added: "I reckon you're the only one that cares what happens to me—but don't mix in this game, little one. Don't do it."

A crowd had gathered in the street, with attention concentrated as if for a dog-fight, and Kelley, pushing his way through the circle, suddenly confronted Mink, who, as the object of interest, was busied in rolling a cigarette, while his Winchester leaned against a post. To this fact Kelley probably owed his life, for in the instant between the gambler's recognition and the snatching up of his rifle Kelley was able to catch and depress the muzzle of the gun before it was discharged. The bullet passed low, entering the wooden sidewalk close to his foot. "I'll take that gun," he said, and would have immediately overpowered his adversary had not several of the by-standers furiously closed in upon him. Single-handed he was forced to defend himself against these, his fellow-citizens, as well as against Mink, who struggled like a wildcat for the possession of his gun. One man seized the marshal from behind, pinioning his arms. Another hung upon his neck. A third dogged at his knees, a fourth disarmed him.

Battered, bruised, covered with blood and dirt, the marshal fought like a panther weighed down with hounds. Twice he went to earth smothered, blinded, gasping, but rose again almost miraculously, still unconquered, until at last, through the sudden weakening of the men on his right arm he gained possession of the rifle, and with one furious sweep brought it down on the gambler's head. Another circling stroke and his assailants fell away. With blazing eyes he called out: "*Get back there now! Every man of you!*"

Breathing hard, he looked them over one by one. "You're a pretty bunch of citizens," he said, with cutting contempt. "You ought to be shot—every man jack of you!" Then glancing down at the wounded gambler at his feet, he added: "Some of you better take this whelp to a doctor. He needs help."

Lemont and another of Mink's friends took up the unconscious man and carried him into the drug-store, and Kelley followed, with a feeling that all the town was against him, and that he must re-arm himself for a night of warfare. His revolver was gone, and to replace it and to gain a breathing-space he retreated to his room, his endurance all but exhausted.

He had no regret for what he had done. On the contrary, he took a savage satisfaction in having at last ended Mink, but as he hurriedly buckled on his cartridge-belt, he foresaw the danger ahead of him in Mink's friends, who, he knew, would get him if they could.

The patter of feet in the hall and a knock at the door startled him. "Who's there?" he demanded, catching up his rifle.

"It's Rosa," called a girlish voice. "Let me in."

"Are you alone?"

"Yes. Open! Quick!"

He opened the door, gun in hand. "What is it, Rosie?" he gently asked.

"They're coming!" she answered, breathlessly.

"Who're coming?"

"That saloon crowd. They're almost here!"

Other footsteps sounded on the stairs. "Run away, girl," said Kelley, softly. "There's going to be trouble—"

Rosie pushed him back into the room. "No, no! Let me stay! Let me help you fight!" she pleaded.

While still he hesitated, Mrs. Mink, a short, squat woman with eyes aflame with hate, rushed through the doorway and thrust a rifle against Kelley's breast. Quick as a boxer Rosa pushed the weapon from the woman's hands and with desperate energy shoved her backward through the door and closed it.

"Run—run!" she called to the marshal.

But Kelley did not move, and something in his face turned the girl's face white. He was standing like a man hypnotized, every muscle rigid. With fallen jaw and staring eyes he looked at the weapon in his hand. At last he spoke huskily:

"Girl, you've saved my soul from hell. You surely have!" He shivered as if with cold, rubbing his hands stiffly. "Yes," he muttered, "a second more and I'd 'a' killed her—killed a woman!"

The sound of a fierce altercation came up the hall. Cautious footsteps were heard approaching, and at last a voice called out, "Hello, Kelley! You there?"

"I am. What's wanted of me?"

"It's the mayor. Let me speak with you a minute."

Kelley considered for a breath or two; his brain was sluggish. "Open the door, Rosie," he finally said and backed against the wall.

The girl obeyed, and the mayor entered, but his hands were open and raised. "Don't shoot, Ed. We're friends." He was followed by the judge and a couple of aldermen.

"It's all right, Ed," said the judge. "Mink's coming to life. Put up your gun. We don't blame you. He had no call to attack an officer like that—"

At the word "officer" Kelley let his rifle slip with a slam to the floor and began to fumble at the badge on his coat. "That reminds me, your Honor," he said, at last. "Here's a little piece of tin that belongs to you—or the city."

He tossed the loosened badge to the mayor, who caught it deftly, protesting: "Oh, don't quit, Ed. You've just about won the fight. Stay with it."

A wry smile wrinkled one side of the trailer's set face. "I'm no fool, your Honor. I know when I've got enough. I don't mind being shot in the back and mobbed and wallered in the dirt—that's all in the day's work; but when it comes to having women pop in on me with Winchesters I must be excused. I'm leaving for the range. I'll enjoy being neighbor to the conies for a while. This civilized life is a little too busy for me."

Rosa, who had been listening, understood his mood much better than the men, and with her small hands upon his arm she pleaded: "Take me with you! I hate these people—I want to go with you."

He turned a tender, pitying, almost paternal glance upon her. "No, girl, no. I can't do that. You're too young. It wouldn't be right to snarl a grown woman's life up with mine—much less a child like you." Then, as if to soften the effect of his irrevocable decision, he added: "Perhaps some time we'll meet again. But it's good-by now." He put his arm about her and drew her to his side and patted her shoulder as if she were a lad. Then he turned. "Lend me a dollar, Judge! I'm anxious to ride."

The judge looked troubled. "We're sorry, Ed—but if you feel that way, why—"

"That's the way I feel," answered the trailer, and his tone was conclusive.

Dusk was falling when, mounted on his horse, with his "stake" in his pocket, Kelley rode out of the stable into the street swarming with excited men. The opposition had regained its courage. Yells of vengeance rose: "Lynch him! Lynch the dog!" was the cry.

Reining his bronco into the middle of the road, with rifle across the pommel of his saddle, Kelley advanced upon the crowd, in the shadowy fringes of which he could see ropes swinging in the hands of Mink's drunken partisans.

"Come on, you devils!" he called. "Throw a rope if you dare."

Awed by the sheer bravery of the challenge, the crowd slowly gave way before him.

The block seemed a mile long to Kelley, but he rode it at a walk, his horse finding his own way, until at last he reached the bridge which led to the high-line Red Mountain road. Here he paused, faced about, and sheathed his Winchester, then with a wave of his hand toward Rosa Lemont, who had followed him thus far, he called out:

"Good-by, girl! You're the only thing worth saving in the whole dern town. *Adios!*"

And, defeated for the first time in his life, Tall Ed turned his cayuse's head to the San McGill range, with only the memory of a worshipful child-woman's face to soften the effect of his hard experience as the Marshal of Brimstone Basin.

PARTNERS FOR A DAY

I

Cinnebar was filled with those who took chances. The tenderfoot staked his claim on the chance of selling it again. The prospector toiled in his overland tunnel on the chance of cracking the apex of a vein. The small companies sank shafts on the chance of touching pay ore, the big companies tunneled deep and drifted wide in the hope of cutting several veins. The merchants built in the belief that the camp was a permanent town, and the gamblers took chances of losing money if their game was honest, and put their lives at hazard if they cheated.

Only the saloon-keepers took no chances whatever. They played the safe game. They rejoiced in a certainty, for if the miners had good luck they drank to celebrate it, and if they had bad luck they drank to forget it—and so the liquor-dealers prospered.

Tall Ed Kelley, on his long trip across "the big flat," as he called the valley between the Continental Divide and the Cascade Range, stopped at Cinnebar to see what was going on. In less than three days he sold his horse and saddle and took a chance on a leased mine. At the end of a year he was half owner in a tunnel that was yielding a fair grade of ore and promised to pay, but he was not content. A year in one place was a long time for him, and he was already meditating a sale of his interest in order that he might take up the line of his march toward the Northwest, when a curious experience came to him.

One night as he drifted into the Palace saloon he felt impelled to take a chance with "the white marble." That is to say, he sat in at the roulette-table and began to play small stakes.

The man who rolled the marble was young and good-looking. Kelley had seen him before and liked him. Perhaps this was the reason he played roulette instead of faro. At any rate, he played, losing steadily at first—then,

suddenly, the ball began to fall his way, and before the clock pointed to ten he had several hundred dollars in winnings.

"This is my night," he said, on meeting the eyes of the young dealer.

"Don't crowd a winning horse," retorted the man at the wheel; and Kelley caught something in his look which checked his play and led him to quit the game. In that glance the gambler had conveyed a friendly warning, although he said, as Kelley was going away: "Be a sport. Give the wheel another show. See me to-morrow."

Kelley went away with a distinct feeling of friendliness toward the youngster, whose appearance was quite unlike the ordinary gambler. He seemed not merely bored, but disgusted with his trade, and Kelley said to himself: "That lad has a story to tell. He's no ordinary robber."

The next afternoon he met the youth on the street. "Much obliged for your tip last night. The game looked all right to me."

"It *was* all right," replied the gambler. "I didn't mean that it was crooked. But I hate to see a good man lose his money as you were sure to do."

"I thought you meant the wheel was 'fixed.'"

"Oh no. It's straight. I call a fair game. But I knew your run of luck couldn't last and"—he hesitated a little—"I'd kinda taken a fancy to you."

"Well, that's funny, too," replied Kelley. "I went over to play your machine because I kind of cottoned to you. I reckon we're due to be friends. My name's Kelley—Tall Ed the boys call me."

"Mine is Morse—Fred Morse. I came out here with a grub-stake, lost it, and, being out of a job, fell into rolling the marble for a living. What are you—a miner?"

"I make a bluff at mining a leased claim up here, but I'll admit I'm nothing but a wandering cow-puncher—a kind of mounted hobo. I have an itch to keep moving. I've been here a year and I'm crazy to straddle a horse and ride off into the West. I know the South and East pretty well—so the open country for me is off there where the sun goes down." His voice had a touch of poetry in it, and the other man, though he felt the bigness of the view, said:

"I never was on a horse in my life, and I don't like roughing it. But I like you and I wish you'd let me see something of you. Where are you living?"

"Mostly up at my mine—but I have a room down here at the Boston House. I pick up my meals anywhere."

The young man's voice grew hesitant. "Would you consider taking me in as a side partner? I'm lonesome where I am."

Kelley was touched by the gambler's tone. "No harm trying," he said, with a smile. "We couldn't do more than kill each other. But I warn you I'm likely any day to buy an old cayuse and pull out. I'm subject to fits like that."

"All right—I'll take the chance. I'm used to taking chances."

Kelley laughed. "So am I."

In this informal way they formed a social partnership, and the liking they mutually acknowledged deepened soon into a friendship that was close akin to fraternal love.

Within a week each knew pretty accurately the origin and history of the other, and although they had but an hour or two of an afternoon for talk, they grew to depend upon each other, strangely, and when one day Morse came into the room in unwonted excitement and said, "Ed, I want you to do something for me," Kelley instantly replied: "All right, boy. Spit it out. What's wanted?"

"I'm in a devil of a hole. My mother and my little sister are coming through here on their way to the Coast. They're going to stop off to see me. I want you to let me in on a partnership in your mine just for a day. They'll only stay a few hours, but I want to have them think I'm making my living in a mine. You get me?"

"Sure thing, Fred. When are they due?"

"To-morrow."

"All right. You get a lay-off from your boss and we'll pull the deal through. I'll tell my old partner I've taken you in on my share and he'll carry out his part of it. He's a good deal of a bonehead, but no talker. But you'll

have to put on some miner's duds and spend to-day riding around the hills to get a little sunburn. You don't look like a miner."

"I know it. That worries me, too."

Having given his promise, Kelley seemed eager to carry the plan through successfully. He was sorry for the youth, but he was sorrier for the mother who was coming with such fond pride in the success of her son—for Morse confessed that he had been writing of his "mine" for a year.

He outfitted his new partner with a pair of well-worn miner's boots and some trousers that were stained with clay, and laughed when Fred found them several inches too long.

"You've got to wear 'em. No! New ones won't work. How would it do for you to be so durn busy at the mine that I had to come down and bring your people up?"

"Good idea!" Then his face became blank. "What would I be busy about?"

"That's so!" grinned Kelley. "Well, let's call it your day off and *I'll* be busy."

"No, I want you to come with me to the train. I need you. You must do most of the talking—about the mine, I mean. I'll say you're the practical miner and I'll refer all questions about the business to you. And we must keep out of the main street. I don't want mother to even *pass* the place I've been operating in."

"What if they decide to stay all night?"

"They won't. They're going right on. They won't be here more than five or six hours."

"All right. We'll find 'em dinner up at Mrs. Finnegan's. If they're like most tourists they'll think the rough-scuff ways of the Boston House great fun. By the way, how old is this little sister?"

"Oh, she must be about twenty-two."

"Good Lord!" Kelley was dashed. He thought a minute. "Well, you attend to her and I'll keep the old lady interested."

"No, you've got to keep close to Flo. I'm more afraid of her than I am of mother. She's sharp as tacks, and the least little 'break' on my part will let her in on my 'stall.' No, you've got to be on guard all the time."

"Well, I'll do my best, but I'm no 'Billie dear,' with girls. I've grew up on the trail, and my talk is mostly red-neck. But I mean well, as the fellow says, even if I don't always do well."

"Oh, you're all right, Kelley. You look the real thing. You'll be part of the scenery for them."

"Spin the marble! It's only for half a day, anyway. They can call me a hole in the ground if they want to. But you must get some tan. I tell you what you do. You go up on the hill and lay down in the sun and burn that saloon bleach off your face and neck and hands. That's *got* to be done. You've got the complexion of a barber."

Morse looked at his white, supple hands and felt of his smooth chin. "You're right. It's a dead give-away. I'll look like a jailbird to them if I don't color up. If I'd only known it a few days sooner I'd have started a beard."

"You'll be surprised at what the sun will do in two hours," Kelley said, encouragingly. "You'll peel afterward, but you'll get rid of the bleach."

II

In truth Morse looked very well the next morning as he stood beside Kelley and watched the High Line train come in over the shoulder of Mogallon and loop its cautious way down the mine-pitted slopes. His main uneasiness was caused by the thought that his mother might ask some man on the train if he knew her son, and he was disturbed also by a number of citizens lounging on the platform. Some of them were curious about the change in him: "Hello, Fred! Going fishing, or been?"

The boy was trembling as he laid his hand on Kelley's arm. "Ed, I feel like a coyote. It's a dang shame to fool your old mother like this."

"Better to fool her than to disappoint her," answered Tall Ed. "Stiffen up, boy! Carry it through."

The little train drew up to the station and disgorged a crowd of Italian workmen from the smoker and a throng of tourists from the observation-car, and among these gay "trippers" Kelley saw a small, plain little woman in black and a keen-eyed, laughing girl who waved her hand to Fred. "Why, she's a queen!" thought Kelley.

Mrs. Morse embraced her son with a few murmured words of endearment, but the girl held her brother off and looked at him. "Well, you *do* look the part," she said. "What a glorious sunburn—and the boots—and the hat, and all! Why, Fred, you resemble a man."

"I may resemble one," he said, "but here's the real thing. Here's my partner, Tall Ed Kelley." He pulled Kelley by the arm. "Ed, this is my mother—"

"Howdy, ma'am," said Kelley, extending a timid hand.

"And this is my sister Florence."

"Howdy, miss," repeated Kelley.

Florence laughed as she shook hands. "He says 'Howdy' just like the books."

Kelley stiffened a bit. "What should a feller say? Howdy's the word."

"I told you she'd consider you part of the scenery," put in Fred. "Well, now, mother, we're going to take you right up to our mine. It's away on top of that hill—"

"Oh, glorious!" exclaimed Florence. "And is it a real mine?"

"It is. But Kelley is boss, so I'm going to let him tell you all about it. He's the man that found it."

Mrs. Morse looked up at the towering hill. "How do we get there?"

"A trolley-car runs part way, and then—we'll take a cab. Come on," he added, anxiously, for he could see some of his saloon friends edging near.

The trolley came down almost to the station, and in a few moments they were aboard with Kelley seated beside Florence and Mrs. Morse fondly clinging to her son, who seemed more boyish than ever to Kelley. The old trailer was mightily embarrassed by his close contact with a sprightly girl.

He had never known any one like her. She looked like the pictures in the magazines—same kind of hat, same kind of jacket and skirt—and she talked like a magazine story, too. Her face was small, her lips sweet, and her eyes big and bright.

She was chatty as a camp bird, and saw everything, and wanted to know about it. Why were there so many empty cabins? What was the meaning of all those rusty, ruined mills? Weren't there any gardens or grass?

"Why, you see, miss, the camp is an old busted camp. I'm working a lease—I mean, we are—"

"What do you mean by a lease?"

"Well, you see, a lot of men have got discouraged and quit, and went back East and offered their claims for lease on royalty, and I and another feller—and Fred—we took one of these and it happened to have ore in it."

"How long has Fred been with you?—he never mentioned you in his letters."

"Why, it's about a year since we took the lease." Kelley began to grow hot under her keen eyes.

"Strange he never wrote of you. He seems very proud of you, too."

Kelley looked out of the window. "We get along first rate."

The girl studied his fine profile attentively. "I'm glad he fell in with a strong man like you—an experienced miner. He might have made a mistake and lost all his small fortune. My! but it's fine up here! What's that wonderful snowy range off there?"

"That's the Sangre de Cristo Range."

"Sangre de Cristo—Blood of Christ! Those old Spaniards had a lot of poetry in them, didn't they?"

"I reckon so—and a whole lot of stiffening, too. You go through the Southwest and see the country they trailed over—the hot, dry places and the quicksands and cañons and all that. They sure made them Injuns remember when they passed by."

"You know that country?"

"I may say I do. It was my parade-ground for about fifteen years. I roamed over most of it. It's a fine country."

"Why did you leave it? Do you like this better?"

"I like any new country. I like to explore."

"But you're settled for a while?"

"Well, I don't know—if my partner will take my interest, I think I'll shift along. I want to get into Alaska finally. I'd like to climb one of them high peaks."

Fred, who was seated in front, turned. "Mother wants to know what the mine paid last year—you tell her."

"It didn't pay much," replied Kelley, cautiously. "You see, we had some new machinery to put in and some roads to grade and one thing or another—I reckon it paid about"—he hesitated—"about three hundred a month. But it's going to do better this year."

Florence, who was studying the men sharply, then said, "You wrote you were getting about five dollars a day."

Fred's face showed distress. "I meant *net*," he said. "I didn't want to worry you about details of machinery and all that."

Kelley began to feel that the girl's ears and eyes were alert to all discrepancies, and he became cautious—so cautious that his pauses revealed more than his words. But the mother saw nothing, heard nothing, but the face and voice of her son, who pointed out the big mines that were still running and the famous ones that were "dead," and so kept her from looking too closely at the steep grades up which the car climbed.

At length, on the very crest of the high, smooth hill, they alighted and Fred led the way toward a rusty old hack that looked as much out of place on that wind-swept point as a Chinese pagoda.

Florence spoke of it. "Looks like Huckleberry Springs. Whom does its owner find to carry up here?"

"Mostly it carries the minister and undertaker at funerals," replied Kelley.

"Cheerful lot!" exclaimed the girl. "It smells morbid."

"You can't be particular up here," responded Fred. "You'll find our boarding-place somewhat crude."

"Oh, I don't mind crudeness—but I hate decayed pretensions. If this were only a mountain cart now!"

"It was the only kerridge with springs," explained Kelley.

The little mother now began to take notice of her son's partner. "My son tells me you have been very good to him—a kind of big brother. I am very grateful."

"Oh, I've done no more for him than he has for me. We both felt kind of lonesome and so rode alongside."

"It's wonderful to me how you could keep Mr. Kelley out of your letters," said Florence. "He looks exactly like a Remington character, only his eyes are honester and his profile handsomer."

Kelley flushed and Fred laughed. "I never did understand why Remington made all his men cross-eyed."

Mrs. Morse put her small, cold hand on Kelley's wrist. "Don't mind my daughter. She's got this new fad of speaking her mind. She's a good daughter—even if she does say rude things."

"Oh, I don't mind being called 'a good-looker,'" said Kelley, "only I want to be sure I'm not being made game of."

"You needn't worry," retorted Fred. "A man of your inches is safe from ridicule."

"Ridicule!" exclaimed Florence, with a glance of admiration. "You can't ridicule a tall pine."

"I told you she'd have you a part of the landscape," exulted Fred. "She'll have you a mountain peak next."

Kelley, who felt himself at a disadvantage, remained silent, but not in a sulky mood. The girl was too entertaining for that. It amused him to get the point of view of a city-bred woman to whom everything was either strange or related to some play or story she had known. The cabins, the mills, the occasional miners they met, all absorbed her attention, and when they reached the little shaft-house and were met by old Hank Stoddard, Kelley's

partner, her satisfaction was complete, for Hank had all the earmarks of the old prospector—tangled beard, jack-boots, pipe, flannel shirt, and all. He was from the South also, and spoke with a drawl.

"Oh, but he is a joy!" Florence said, privately, to Kelley. "I didn't know such Bret Harte types existed any more. How did you find him?"

"I used to know him down on the Perco. He had a mine down there that came just within a hair-line of paying, and when I ran across him up here he had a notion the mine would do to lease. I hadn't much, only a horse and saddle and a couple of hundred dollars, but we formed a partnership."

"That was before my brother came into the firm."

Kelley recovered himself. "Yes; you see, he came in a little later—when we needed a little ready cash."

She seemed satisfied, but as they went into the mine she listened closely to all that Kelley and Stoddard said. Stoddard's remarks were safe, for he never so much as mentioned Kelley's name. It was all "I" with old Hank—"I did this" and "I did that"—till Florence said to Kelley:

"You junior partners in this mine don't seem to be anything but 'company' for Mr. Stoddard."

"Hank always was a bit conceited," admitted Kelley. "But then, he is a real, sure-enough miner. We are only 'capitalists.'"

"Where did Fred get all the signs of toil on his trousers and boots?" she asked, with dancing eyes.

"Oh, he works—part of the time."

She peered into his face with roguish glance. "Does it all with his legs, I guess. I notice his hands are soft as mine."

Kelley nearly collapsed. "Good Lord!" he thought. "You ought to be a female detective." He came to the line gamely. "Well, there's a good deal of running to be done, and we let him do the outside messenger work."

"His sunburn seems quite recent. And his trousers don't fit as his trousers usually do. He used to be finicky about such things."

"A feller does get kind of careless up here in the hills," Kelley argued.

They did not stay long in the mine, for there wasn't much to see. It was a very small mine—and walking made the mother short of breath. And so they came back to the office and Hank arranged seats on some dynamite-boxes and a keg of spikes, and then left them to talk things over.

"I'm so glad you're up here—where it's so clean and quiet," said the mother. "I'm told these mining towns are dreadful, almost barbaric, even yet. Of course they're not as they were in Bret Harte's time, but they are said to be rough and dangerous. I hope you don't have to go down there often."

"Of course I have to go, mother. We get all our supplies and our mail down there."

"I suppose that's true. But Mr. Kelley seems such a strong, capable person"—here she whispered—"but I don't think much of your other partner, Mr. Stoddard."

"Who? Old Hank? Why, he's steady as a clock. He looks rough, but he's the kindest old chap on the hill. Why, he's scared to death of you and Flo—"

"He has the appearance of a neglected old bachelor."

"Well, he isn't. He has a wife and seven children back in Tennessee—so he says."

"Fred," said Florence, sharply, "I hope you aren't playing off on these partners of yours."

"What do you mean?"

"I mean—letting them do all the hard and disagreeable work."

Kelley interposed. "Don't you worry about us, miss. We aren't complaining. We can't do the part he does. He does all the buying and selling—and—correspondence—and the like of that. But come, it's pretty near noon. I reckon we'd better drift along to Mrs. Finnegan's. The first table is bad enough in our boarding-place."

Again Fred took his mother and left Kelley to lead the way with Florence.

"Now, Mr. Kelley," began the girl, "I must tell you that I don't believe my brother has a thing to do with this mine except to divide the profits. Furthermore, you are trying to cover something up from me. You're doing it

very well, but you've made one or two little 'catches' which have disturbed me. My brother has never mentioned you or Hank in his letters, and that's unnatural. He told us he was interested in a mine which was paying one hundred and fifty dollars a month. Now, why did he say that? I'll tell you why. It's because you pay him a salary and he's not really a partner." She paused to watch his face, then went on. "Now what does he do—what can he do to earn five dollars per day? His palms are as soft as silk—the only callous is on his right forefinger."

Kelley's face, schooled to impassivity, remained unchanged, but his eyes shifted. His astonishment was too great to be entirely concealed. "There's a whole lot of running—and figuring—and so on."

"Not with that little mine. Why, you can't employ more than five men!"

"Six," corrected Kelley, proudly.

"Well, six. You can't afford to pay my brother five dollars a day just to run errands and keep accounts for these six men. You're fooling him. You're paying him a salary out of sheer good nature because you like him. Deny it if you can!"

Kelley looked back to see that Fred was well out of earshot. "He is mighty good company," he admitted.

"There!" she exclaimed, triumphantly. "You can't fool me. I knew there was something queer about this whole arrangement." Then her voice changed. "It's very, very kind of you, Mr. Kelley, and I deeply appreciate it, and if you don't want me to do it—I will not let mother into our secret."

"What's the use? He's happier being called a partner."

"Very well—we'll let it go that way."

Thereafter her manner changed. She was more thoughtful; she looked at him with softer eyes. It seemed to her very wonderful, this friendship between a rough, big man and her brother, who had always been something of a scapegrace at home. Her own regard for Kelley deepened. "Men aren't such brutes, after all."

Her smile was less mocking, her jests less pointed, as she sat at Mrs. Finnegan's long table and ate boiled beef and cabbage and drank the

simmered hay which they called tea. She was opposite Kelley this time, and could study him to better advantage.

Kelley, on his part, was still very uneasy. The girl's uncanny penetration had pressed so clearly to the heart of his secret that he feared the hours which remained. "I'm at the end of my rope," he inwardly admitted. "She'll catch me sure unless I can get away from her."

Nevertheless, he wondered a little and was a trifle chagrined when the girl suddenly turned from him to her brother. He was a little uneasy thereat, for he was certain she would draw from the youngster some admissions that would lead to a full confession.

As a matter of fact, she sought her brother's knowledge of Kelley. "Tell me about him, Fred. Where did you meet him first? He interests me."

"Well," Morse answered, cautiously, "I don't know exactly. I used to see him come down the hill of an evening after his mail, and I kind of took a shine to him and he did to me. At least that's what he said afterward. He has had a wonderful career. He's been all over Arizona and New Mexico alone. He's been arrested for a bandit and almost killed as city marshal, and he has been associated with a band of cattle-rustlers. Oh, you should get him talking. He nearly died of thirst in the desert once, and a snake bit him in the Navajo country, and he lay sick for weeks in a Hopi town."

"What a singular life! Is he satisfied with it?"

"He says he is. He declares he is never so happy as when he is leading a pack-horse across the range."

"I don't wonder you like him," she said, thoughtfully. "But you should do your part. Don't let him be always the giver and you the taker. I'm afraid you shirk on him a little, Fred."

"Why? What makes you think that?"

"Well, your hands are pretty soft for a working miner."

He met her attack bravely. "You don't suppose we do all the pick work in the mine, do you?"

"No. I don't see how you could possibly do any of it. Come now, Freddy, 'fess up.' You've been playing the gentleman in this enterprise and all this

make-up is for our benefit, isn't it?"

Young Morse saw that the safest plan was to admit the truth of her surmise. "Oh, well, I never did have any hand in the actual mining, but then there is plenty of other work to be done."

Her answer was sharp and clear: "Well, then, do it! Don't be a drone."

Something very plain and simple and boyish came out in the young gambler as he walked and talked with his mother and sister, and Kelley regarded him with some amazement and much humor. It only proved that every man, no matter how warlike he pretends to be in public, is in private a weak, sorry soul, dependent on some one; and this youth, so far from being a desperado, was by nature an affectionate son and a loyal brother.

Furthermore, Kelley himself felt very much less the tramp and much more "like folks" than at any time since leaving home ten or fifteen years before. He was careful to minimize all his hobo traits and to correspondingly exalt his legitimate mining and cattle experiences, although he could see that Morse had made Florence curious about the other and more adventurous side of his career.

Florence was now determined to make a study of the town. "I like it up here," she said, as she looked down over the tops of the houses. "It interests me, Fred; I propose that you keep us all night."

"Oh, we can't do that!" exclaimed her brother, hastily. "We haven't room."

"Well, there's a hotel, I should hope."

"A hotel—yes. But it is a pretty bad hotel. You see, it's sort of run down—like the town."

This did not seem to disturb her. Rather, it added to her interest. "No matter. We can stand it one night. I want to see the place. I would like to see a little of its street life to-night. It's all so new and strange to me."

Kelley, perceiving that she was determined upon this stop-over, and fearing that the attempt to railroad her out of town on the afternoon train might add to her suspicions, then said:

"I think we can find a place for you if you feel like staying."

Morse was extremely uneasy, and Florence remarked upon it. "You don't seem overflowing with hospitality, Fred. You don't seem anxious to have us stay on for another day."

He shifted his weight from one foot to the other. "Well, it's a pretty rough old village, Flo—a pretty rough place for you and mother."

"We are not alarmed so long as we have you and Mr. Kelley as our protectors," she replied, smiling sweetly upon Tall Ed.

They had reached the car-line by this time, and were standing looking down the valley, and Fred, pulling out his watch, remarked: "You just have time to make that three-o'clock train. That will connect you with the night express for Los Angeles."

"Fred, what's the matter with you?" queried his sister, sharply. "You seem absolutely determined to get rid of us at once." Then, seeing that she had perhaps gone a little too far, she said, with a smile, "Mother, isn't he the loving son?"

The youth surrendered to her will and dropped all opposition. He appeared to welcome their decision to wait over another day; but Kelley busied himself with thinking how he could ward off any undesired information which might approach the two women—the mother especially. It would be quite wonderful if, with another twenty-four hours to spend, Florence did not get Fred's secret from him.

He decided to put the matter squarely before her, and when they took the car arranged to have her sit beside him in a seat across the aisle from the mother and son, and almost immediately began his explanation by saying, very significantly:

"I reckon the boy is right, Miss Morse. You had better take that three-o'clock train."

She faced him with instant appreciation of the change in his tone. "Why so?" she asked, fixing a clear and steady glance upon his face.

"It will be easier for him and better for—for all of us if you go. He wants to spare your mother from—"

She was quick to perceive his hesitation. "From what?" she asked. And as he did not at once reply she went on, firmly: "You might just as well tell

me, Mr. Kelley. Fred's been up to some mischief. He's afraid, and you're afraid, we'll find out something to his disadvantage. Now tell me. Is it—is it—a woman?"

"No," said Kelley as decisively as he could. "So far as I know Fred's not tangled up *that* way."

Quick as a flash she took him up on his emphasized word. "In what way *is* he tangled up?"

Kelley, more and more amazed at her shrewdness and directness, decided to meet it with blunt candor. "Well, you see, it's like this. When he first came out here he struck a streak of hard luck and lost all he had. He was forced to go to work at anything he could get to earn money, and—you see, when a feller is down and out he's got to grab anything that offers—and so, when Dutch Pete took a liking to him and offered him a job, he just naturally had to take it."

"You mean he has been working at something we wouldn't like to know about?"

"That's the size of it."

"What is this job? It isn't working for you. You wouldn't ask him to do anything that would be disgraceful."

Kelley did not take time to appreciate this compliment. He made his plunge. "No. He has been working for—a saloon."

She showed the force of the blow by asking in a horrified tone, "You don't mean tending bar!"

"Oh no! Not so bad as that," replied Kelley. "Leastways it don't seem so bad to me. He's been rolling the marble in a roulette wheel."

She stared at him in perplexity. "I don't believe—I—I don't believe I understand what that is. Just tell me exactly."

"Well, he's been taking care of a roulette layout."

"You mean he has been gambling?"

"Well, no. He hasn't been gambling. At least, not lately. But he represents the house, you see. He is something like a dealer at faro and is on a salary."

She comprehended fully now—at least she comprehended enough to settle back into her seat with a very severe and somber expression on her face. "That's where his five per day comes from." She mused for a little while on this, and then suddenly another thought came to her: "What about his being your partner?"

Kelley saw that it was necessary to go the whole way, and he said, quietly: "That was all fixed up yesterday. You see, he wanted to save your mother and you, and he came to me—and wanted me to take him in as a partner, and—I did it."

"You mean a partner for a day?"

"Yes. He was mighty nervous about your coming, and I told him I would help him out. Of course, it didn't worry me none, and so I concluded I would do it."

Her face softened as she pondered upon this. "That was very good of you, Mr. Kelley."

"Oh no! You see, I kinda like the boy. And then we've been partners—side partners. We room together."

She looked out of the window, but she saw nothing of the landscape now. "I understand it all. You want me to take mother away before she finds out."

"Pears like that is the best thing for you to do. It would hit her a good deal harder than it does you."

"It hits me hard enough," she replied. "To think of my brother running a gambling-machine in a saloon is not especially reassuring. You say he went into it to carry him over a hard place. I'm afraid you were saving my feelings in saying that, Mr. Kelley. How long has he been in this business?"

"A little less than a year."

"And you want me to go away without trying to get him out of this awful trade?"

"I don't see how you could safely try it. I think he is going to quit it himself. Your coming has been a terrible jolt to him. Now I'll tell you what you do. You take the old lady and pull out over the hill and I'll undertake to get the boy out of this gambling myself."

She was deeply affected by his quiet and earnest manner, and studied him with reflective glance before she said: "You're right. Mother must never know of this. She was brought up to believe that saloons and gambling were the devil's strongest lure for souls, and it would break her heart to know that Fred has become a gambler. I will do as you say, Mr. Kelley. I will take this train. But you must write me and tell me what you do. You will write, won't you?"

"Yes," replied Kelley, hesitatingly. "I'll write—but I ain't much of a fist at it. Of course, I may not make a go of my plan, but I think it will work out all right."

She reached her hand to him, as if to seal a compact, and he took it. She said: "I don't know who you are or what you are, Mr. Kelley. But you've been a loyal friend to my brother and very considerate of my mother and me, and I appreciate it deeply."

Kelley flushed under the pressure of her small fingers, and replied as indifferently as he could: "That's all right, miss. I've got a mother and a sister myself."

"Well, they'd be proud of you if they could know what you have done to-day," she said.

His face took on a look of sadness. "They might. But I'm glad they don't know all I've been through in the last ten years."

III

Morse was surprised, almost delighted, when his sister announced her decision to take the afternoon train. "That's right," he said. "You can stop on your way back in the spring. Perhaps Kelley and I will have our own house by that time."

The train was on the siding, nearly ready to start, and there was not much chance for further private conference, but Florence succeeded in getting a few final words with Kelley.

"I wish you would tell me what your plan is," she said. "You needn't if you don't want to."

Kelley seemed embarrassed, but concluded to reply. "It is very simple," said he. "I'm going to make him an actual partner in the mine. I'm going to deed him an interest, so that when you come back in the spring he won't have to lie about it."

Her glance increased his uneasiness. "I don't understand you, Mr. Kelley. You must *love* my brother."

He could not quite meet her glance as he answered. "Well, I wouldn't use exactly that word," he said, slowly, "but I've taken a great notion to him—and then, as I say, I have an old mother myself."

The bell on the engine began to ring, and she caught his hand in both of hers and pressed it hard. "I leave him in your hands," she said, and looked up at him with eyes that were wet with tears, and then in a low voice she added: "If I dared to I'd give you a good hug—but I daren't. Good-by—and be sure and write."

As they stood to watch the train climb the hill, Morse drew a deep sigh and said: "Gee! but Flo is keen! I thought one while she was going to get my goat. I wonder what made her change her mind all of a sudden?"

Kelley looked down at him somberly. "I did."

"You did? How?"

"I told her what you had really been working at."

The boy staggered under the force of this. "Holy smoke! Did you do that?"

"Sure I did. It was the only way to save that dear old mother of yours. I told your sister also that I was going to stop your white-marble exercise, and I'm going to do it if I have to break your back."

There was no mistaking the sincerity and determination of Kelley's tone, and the young man, so far from resenting these qualities, replied, meekly: "I want to get out of it, Ed. I've been saying all day that I must quit it. But what can I do?"

"I'll tell you my plan," said Kelley, with decision. "You've got to buy my interest in the mine."

Morse laughed. "But I haven't any money. I haven't three hundred dollars in the world."

"I'll take your note, provided your sister will indorse it, and she will."

The young fellow looked up at his tall friend in amazement which turned at last into amusement. He began to chuckle. "Good Lord! I knew you'd made a mash on Flo, but I didn't know it was mutual. I heard her say, 'be sure and write.'" He slapped Kelley on the back. "There'll be something doing when she comes back in the spring, eh?"

Kelley remained unmoved. "There will be if she finds you rolling that white marble."

"She won't. I'll take your offer. But what will you be doing?"

"Climbing some Alaska trail," replied Kelley, with a remote glance.

?

THE PROSPECTOR

*—still pushes his small pack-mule
through the snow of glacial passes
seeking the unexplored, and therefore
more alluring, mountain range.*



THE PROSPECTOR

Old Pogosa was seated in the shade of a farm-wagon, not far from the trader's store at Washakie, eating a cracker and mumbling to herself, when a white man in miner's dress spoke to her in a kindly voice and offered her an orange. She studied him with a dim, shining, suspicious gaze, but took the orange. Eugene, the grandson of her niece, stood beside the stranger, and he, too, had an orange.

"Tell her," said the white man, "that I want to talk with her about old days; that I am a friend of her people, and that I knew Sitting Bull and Bear Robe. They were great chiefs."

As these words were interpreted to the old witch, her mouth softened a little and, raising her eyes, she studied her visitor intently. At last she said: "Ay, he was a great chief, Sitting Bull. My cousin. I came to visit Shoshoni many moons ago. Never returned to my own people."

To this the miner replied, "They say your husband, Iapi, was one of the sheep-eaters exiled to the mountains?"

Her eyes widened. Her gaze deepened. She clipped her forefinger in sign of agreement. "It was very cold up there in winter. We were often hungry, for the game had all been driven to the plain and we could not follow. Many of our children died. All died but one."

The stranger, whose name was Wetherell, responded with a sigh: "My heart is heavy when I hear of it. Because you are old and have not much food I give you this money." And he handed her a silver dollar and walked away.

The next day, led by Eugene, Wetherell and Kelley, his partner, again approached the old Sioux, this time with a generous gift of beef.

"My brother, here, is paper-chief," he explained. "As a friend of the red people he wants to put in a book all the wrongs that the sheep-eaters suffered."

In this way the gold-seekers proceeded to work upon Pogosa's withered heart. Her mind was clouded with age, but a spark of her old-time cunning still dwelt there, and as she came to understand that the white men were eager to hear the story of the lost mine she grew forgetful. Her tongue halted on details of the trail. Why should not her tale produce other sides of bacon, more oranges, and many yards of cloth? Her memory wobbled like her finger—now pointing west, now north. At one time the exiles found the gold in the cabin in a bag—like shining sand; at another it lay in the sand like shining soldiers' buttons, but always it was very beautiful to look upon, and always, she repeated, the white men fled. No one slew them. They went hurriedly, leaving all their tools.

"She knows," exulted Wetherell. "She knows, and she's the one living Indian who can direct us." To Eugene he exclaimed: "Say to her pretty soon she's going to be rich—mebbe go home to Cheyenne River. If she shows us the trail we will take her to her own people."

Like a decrepit eagle the crone pondered. Suddenly she spoke, and her speech was a hoarse chant. "You are good to me. The bones of my children lie up there. I will go once more before I die."

Kelley was quick to take advantage of sunset emotion. "Tell her we will be here before sunrise. Warn her not to talk to any one." And to all this Eugene gave ready assent.

Wetherell slept very little that night, although their tent stood close beside the singing water of the Little Wind. They were several miles from the fort and in a lonely spot with only one or two Indian huts near, and yet he had the conviction that their plans and the very hour of their starting were known to other of the red people. At one moment he was sure they were all chuckling at the "foolish white men"; at another he shivered to think how easy it would be to ambush this crazy expedition in some of the deep, solitary defiles in those upper forests. "A regiment could be murdered and hidden in some of those savage glooms," said he to himself.

Kelley slept like a top, but woke at the first faint dawn, with the precision of an alarm-clock. In ten minutes he had the horses in, and was throwing the saddles on. "Roll out, Andy," he shouted. "Here comes Eugene."

Wetherell lent himself to the work with suddenly developed enthusiasm, and in half an hour the little train of laden animals was in motion toward the hills. Pogosa was waiting, squatted on the ground at some distance from her tepee. Slipping from his horse, he helped her mount. She groaned a little as she did so, but gathered up the reins like one resuming a long-forgotten habit. For years she had not ventured to mount a horse, and her withered knees were of small service in maintaining her seat, but she made no complaint.

Slowly the little train crawled up the trail, which ran for the most part along the open side of the slope, in plain view from below. At sunrise they were so well up the slope that an observer from below would have had some trouble in making out the character of the cavalcade. At seven o'clock they entered the first patch of timber and were hidden from the plain.

On the steep places, where the old squaw was forced to cling to her saddle, groaning with pain, the kindly Wetherell walked beside her, easing her down the banks. In crossing the streams he helped her find the shallowest fording, and in other ways was singularly considerate. Kelley couldn't have done this, but he saw the value of it.

"It's a hard trip and we've got to make it as easy for the old bird as we can."

"She's human," retorted Wetherell, "and this ride is probably painful for her, mentally as well as physically."

"I s'pose it does stir her up some," responded Kelley. "She may balk any minute and refuse to go. We'd better camp early."

A little later Eugene called out, "She says set tepee here." And Kelley consented.

Again it was Wetherell who helped her from her saddle and spread his pack for her to rest upon. He also brought a blanket and covered her as tenderly as if she were his own grandmother. "She's pretty near all in," he said, in palliation of this action. He took a pleasure in seeing her revive under the influence of hot food.

When she began to talk, Eugene laughingly explained: "She stuck on you. She say you good man. Your heart big for old Injun woman."

Kelley chuckled. "Keep it up, Andy," he called through the tent. "I leave all that business to you."

Pogosa's face darkened. She understood the laugh. "Send him away," she commanded Eugene, all of which made Kelley grin with pleasure.

The whole enterprise now began to take on poetry to Wetherell. The wilderness, so big, so desolate, so empty to him, was full of memories to this brown old witch. To her the rushing stream sang long-forgotten songs of war and the chase. She could hear in its clamor the voices of friends and lovers. This pathway, so dim and fluctuating, so indefinite to the white man, led straight into the heroic past for her. Perhaps she was treading it now, not for the meat and flannel which Kelley had promised her, but for the pleasure of reliving the past. She was young when her husband was banished. In these splendid solitudes her brave young hunter adventured day by day. Here beside one of these glorious streams her children were born in exile; here they suffered the snows of winter, the pests of summer; and here they had died one by one, till only she remained. Then, old and feeble, she had crawled back into the reservation, defiant of Washakie, seeking comfort as a blind dog returns to the fireside from which he has been cruelly spurned.

As she slept, the men spread a map on the ground, and for the hundredth time Wetherell measured the blank space lying between Bonneville Basin and Frémont's Peak marked "unexplored," and exclaimed:

"It's wonderful how a mountain country expands as you get into it. Don't look much on the map, but, gee! a fellow could spend ten years looking for this mine, and then be no better off than when he started."

"Yes," responded Kelley, "it's certainly up to you to cherish the old lady."

In the morning Wetherell dressed hastily and crept into the little tent where Pogosa lay. "How are you, granny?" he asked. She only shook her head and groaned.

"She say her back broke," Eugene interpreted.

A brisk rubbing with a liniment which he had brought from his kit limbered the poor, abused loins, and at last Pogosa sat up. She suddenly caught Wetherell's hand and drew it to her withered breast.

"Good white man," she cried out.

"Tell her I'll make her eyes well, too," he commanded Eugene. "The medicine will hurt a little, but it will make her eyes stronger to see the trail."

Kelley could not suppress his amusement as he watched Wetherell's operations. "You'll spoil gran'ma," he remarked. "She'll be discontented with the agency doctor. I'm not discouragin' your massage operations, mind you, but I can't help thinking that she'll want clean towels, and an osteopath to stroke her back every morning, when she goes back to her tepee."

"If she only holds out long enough to help us to find the mine she can have a trained nurse, and waiting-maid to friz her hair—if she wants it frizzed."

"You don't mean to let her in as a partner?"

"I certainly do! Isn't she enduring the agonies for us? I'm going to see that she is properly paid for it."

"A hunk of beef and plenty of blankets and flannel is all she can use; but first let's find the mine. We can quarrel over its division afterward."

"I doubt if we get her ahorse to-day. She's pretty thoroughly battered up."

"We must move, Andy. Somebody may trail us up. I want to climb into the next basin before night. Let me talk to her."

She flatly refused to move for Kelley, and Eugene said: "She too sick. Legs sick, back sick, eyes sick. Go no further."

Kelley turned to Wetherell. "It's your edge, Andy. She's balked on me."

Wetherell took another tack. He told her to rest. "By and by I'll come and rub your back again and fix your eyes. To-morrow you will feel strong and well." To this she made no reply.

All the day Kelley kept his eyes on the back trail, expecting each moment to see some dusky trailer break from the cover. As night began to fall it was Wetherell who brought a brand and built a little fire near the door to Pogosa's tent so that the flame might cheer her, and she uttered a sigh of comfort as its yellow glare lighted her dark tepee walls. He brought her bacon, also, and hot bread and steaming coffee, not merely because she was

useful as a guide, but also because she was old and helpless and had been lured out of her own home into this gray and icy world of cloud.

"Eddie," he said, as he returned to his partner, "we're on a wild-goose chase. The thing is preposterous. There isn't any mine—there can't be such a mine!"

"Why not? What's struck you now?"

"This country has been traversed for a century. It is 'sheeped' and cattle-grazed and hunted and forest-ranged—"

Kelley waved his hand out toward the bleak crags which loomed dimly from amid the slashing shrouds of rain. "Traversed! Man, nobody ever does anything more than ride from one park to another. The mine is not in a park. It's on some of these rocky-timbered ridges. A thousand sheep-herders might ride these trails for a hundred years and never see a piece of pay quartz. It's a big country! Look at it now! What chance have we without Pogosa? Now here we are on our way, with a sour old wench who thinks more of a piece of bread than she does of a hunk of ore. It's up to you, Andy—you and your 'mash.'"

"Well, I've caught the mind-reading delusion. I begin to believe that I understand Pogosa's reasoning. She is now beginning to be eaten by remorse. She came into this expedition for the food and drink. She now repents and is about to confess that she knows nothing about the mine. She and Eugene have conspired against us and are 'doing' us—good."

"Nitsky! You're away off your base. The fact is, Pogosa is a Sioux. She cares nothing for the Shoshoni, and she wants to realize on this mine. She wants to go back to her people before she dies. She means business—don't you think she don't; and if her running-gear don't unmesh to-night or to-morrow she's going to make good—that's my hunch."

"I hope you're right, but I can't believe it."

"You don't need to. You keep her thinking you're the Sun-god—that's your job."

It rained all that day, and when night settled down it grew unreasonably warm for that altitude, and down on the marshes the horses stood, patiently enduring the gnats and mosquitoes. They plagued Pogosa so cruelly that

Wetherell took his own web of bobinet and made a protecting cage for her head and hands. Never before had she been shielded from the pests of outdoor life. She laughed as she heard the baffled buzzing outside her net, and, pointing her finger, addressed them mockingly. Wetherell took the same joy in this that a child takes in the action of a kitten dressed as a doll. To Eugene he said:

"You tell her Injun plenty fool. He don't know enough to get gold and buy mosquito netting. If she is wise and shows me the mine she will never be bitten again. No flies. No mosquitoes. Plenty beef. Plenty butter and hot biscuits. Plenty sugar and coffee. White man's own horse carry her back to her people."

It took some time to make the old woman understand this, and then she replied briefly, but with vigor, and Eugene translated it thus: "White man all same big chief. Go find mine, *sure*, for you. No want other white man to have gold. All yours."

The morning broke tardily. The rain had ceased, but the gray mist still hid the peaks, and now and then the pines shook down a shower of drops upon the tent cloth as if impatient of the persistent gathering of moisture. Otherwise the forest was as still as if it were cut from bronze.

Kelley arose and, going outside, began kicking the embers together. "Wake up, Andy. It's a gray outlook we have," he announced, after a careful survey. "The worst sign is this warmth and stillness. We're in the heart of the storm, and the mosquitoes are hellish."

As Wetherell was creeping from the tent door one of the pines quivered and sent down a handful of drops, squarely soaking the back of his neck, and a huge mosquito stuck savagely to the end of his nose. He was not in the best of humor as he straightened up.

"I can stand cold and snow, or wet and cold, but this hot, sticky, dark weather irritates me. Let's climb high and see if we can't reach the frost-line."

"We'll be frosty enough when this storm passes," Kelley said, comfortingly. Then in a note of astonishment and surprise, "Well, look at that!"

Wetherell looked where he pointed, and beheld Pogosa squatting before a meager fire at her tent door, her head carefully draped in her bobinet. He forgot his own lumps and bumps, and laughed. "So doth the white man's civilization creep upon and subdue the Amerind, destroying his robust contempt for the elements and making of him a Sybarite."

Eugene appeared, grinning ruefully. "Heap dam' moskeets. Drink my blood all night."

"I reckon you got gran'ma's share," said Kelley.

Pogosa met Wetherell's glance with an exultant smile and pointed at the net as if to say: "See, I am safe. The angry brutes cannot touch me."

"The old girl is on her taps this morning. She deserves a reward. Wait a jiffy. There"—and Kelley uncorked a flask and poured a wee drop of an amber-colored liquid into the cup of coffee which Wetherell was about to take to her—"say nothing and see what happens."

She ate a rousing breakfast and was especially pleased with the coffee. Kelley repeated the dose, and she, much invigorated, ordered Eugene to bring her pony to her. This tickled Kelley mightily.

"You see how it is! She's already the millionairess. Who ever heard of an Injun getting up a horse for an old squaw? Look at Eugene!"

Eugene was indeed in open rebellion, and Wetherell, not caring to have trouble with him, went down and brought up the pony himself. He also gave the old woman his slicker and insisted on her wearing it, whereat Eugene wondered again.

The rain was beginning as they took their way over the meadow, and Wetherell was near to being bogged the first crack out of the box. "Do we go up that cliff?" he asked.

Pogosa waved her forefinger back and forth as though tracing the doublings of the trail.

Kelley scanned the wall narrowly. "I don't quite see it," he remarked, openly, "but I reckon I can find it," and he spurred his horse to the front.

"No! No!" screamed Pogosa in a sudden fury, her voice shrill and nasal. Kelley stopped, and she motioned Wetherell to his place in the lead.

With a comical look in his eyes the trailer fell back. "'Pears like I ain't good enough to precede her Majesty. Go ahead, Andy."

Wetherell, in much doubt of his ability to scale that cliff, started forth. The old trail could be seen dimly, and also the recent tracks of three horses. They were not precisely fresh, but they gave some uneasiness.

"Who made 'em, Eugene, and when?" he asked.

"One man riding—white man," announced Eugene. "Two pack-horse—very light pack—made—mebbe so—three days ago."

"The forest-ranger from the other side, possibly."

Wetherell, by watching the hoof-marks, by studying the conformation of the cliff before him, and by glancing back now and again at Pogosa, contrived to find the way. Slowly and for several hours they climbed this vast dike. It was nearly eleven thousand feet above the sea here, and Kelley himself breathed with effort as he climbed.

"I begin to see why people don't use this trail much," he said, as they stopped to rest on one of the broad shelves. "I'm beginning to wonder how we're going to pack our ore to market over this road."

"It will take mighty rich ore to pay its own freight," responded Wetherell.

Pogosa seemed strangely excited. Her eyes were gleaming, her face working with emotion.

"See the old girl!" said Kelley. "We must be hot on the trail of the mine. It don't look like mineral formation, but gold is where you find it."

"Go on," signed Pogosa.

The way seemed interminable, and at times Wetherell despaired of getting his withered commander into the park which he was sure lay above this dike. At noon they halted long enough to make coffee. Kelley flavored it as before, and Pogosa was ready to go on an hour later.

As they rose above the dike and Bonneville's Peak came into view a low humming sound startled the hunters. It came from Pogosa. With eyes lit by the reviving fires of memory, she was chanting a hoarse song. She seemed to have thrown off half the burden of her years. Her voice gradually rose till her weird improvisation put a shiver into Wetherell's heart. She had

forgotten the present; and with hands resting on the pommel of her saddle, with dim eyes fixed upon the valley, was reliving the past.

"She singing old hunting song," Eugene explained. "Many years ago she sing it. This heap fine hunting-ground then. Elk, big-horn, bear. All fine things in summer. Winter nothing but big-horn. Sheep-eaters live here many summers. Pogos' young and happy then. Now she is old and lonesome. People all gone. Purty soon she die. So she say."

Even the unimaginative mind of Tall Ed Kelley thrilled to the tragic significance of this survivor of a dying race chanting her solitary song. Her memory was quickening under the touch of these cliffs and the sound of these streams. She was retracing the steps of her youth.

Kelley interpreted it differently. "She's close to it," he called. "It's here in this valley, in some of these ridges."

Resolutely, unhesitatingly, Pogosa rode down the first stream which ran to the north, making directly for a low hill on which could be discerned a low comb of deflected rocks of a dark color. At last, riding up the ledge, she slipped from her horse and, tottering forward, fell face downward on the grass beside an upturned giant slab of gray stone.

The men stared in wonder, searching the ground for evidence of mineral. None could be seen. Suddenly lifting her head, the crone began to sing again, uttering a heart-shaking wail which poured from her quivering lips like the cry of the forsaken. The sight of her withered hands strained together and the tears in her sunken cheeks went to the soul. The desolate rocks, the falling rain, the wild and monstrous cliffs, the encircling mountains, all lent irresistible power to her grief. She seemed the minstrel of her race mourning for a vanished world.

"Come away," Eugene urged with a delicacy which sprang from awe. "*Her husband buried there.*"

Deeply touched to know that her grief was personal, and filled, too, with a kind of helpless amazement at this emotional outbreak, the gold-seekers withdrew down the slope, followed by the riderless pony, leaving the old woman crouched close against the sepulcher of her dead, pouring forth the sobbing wail of her song.

"This looks like the end of our mine," said Kelley, gloomily. "I begin to think that the old witch led us up here just for the sake of visiting that grave."

"It looks that way," responded Wetherell, "but what can we do? You can't beat her, and we've done all we could to bribe her."

Eugene advised: "You wait. Bimeby she got done cryin'. To-morrow she got cold—want meat, coffee—plenty bad. Then we go get her."

They went into camp not far away in the edge of a thicket of scraggly wind-dwarfed pines, and put up their tents for the night.

"Wouldn't it put a cramp into you," began Kelley, as they stood beside their fire, "to think that this old relict has actually led us all the way up here in order to water the grave of a sweetheart who died forty years ago?"

"It shows how human she is."

"Human! She's superhuman. She's crazy, that's what she is."

"It is all very wonderful to me, but I'm worried about her. She mustn't stay out there in this rain. It's going to turn cold. See that streak in the west?"

As Wetherell left the camp-fire and began to climb back toward the comb of rocks he felt not merely the sheer immensity of this granite basin, but the loneliness, its almost insupportable silence and emptiness. With the feeling of one who intrudes he called to the old woman. He stooped and put his arm about her. "Come," he said. "You will die here. Come to the fire."

She suffered him to lead her away, but her head hung on her breast, her arms were limp.

Back at the camp-fire, after seeing that Pogosa had been properly taken care of, the men faced each other in gloomy silence.

"Right here we take our medicine, partner," remarked Kelley. "Here we put a dot and double the line. I'd like to break over that divide and see how it looks in there, but our lady friend seems indisposed, and I guess we'll just toast our knees and think where we missed it."

"After all," said Wetherell, soothingly, "this morning may be merely incidental. Let us be patient. She may recover." And at dark he carried some

hot drink over to her tepee, but found her sleeping, and decided not to awaken her.

Back at their fire, as the night deepened, the men lighted their pipes, and with blankets at their backs huddled close about it. An imperious voice broke from Pogosa's tent. Wetherell looked around at Eugene.

"Did you speak?" he asked.

Eugene protested. "No. Pogosa talk."

"It sounded like a chief's voice," Kelley began. "A vigorous voice."

Eugene, trembling like a scared puppy, crept close to Wetherell. His voice was a mere whisper. "That no Pogos'—that Injun spirit talking."

Kelley was amused. "A spirit, eh? What does this spirit Injun say?"

"Say, 'White man with red beard listen—come closer and listen'—"

"That's you, Andy. Draw close. Your side partner has something to say."

Wetherell, alarmed by this delirium of his patient, rose to his feet, and as he did so her harsh voice uttered a short phrase which stiffened Eugene with fright. He left his place and sidled after Wetherell.

"She say *me*, Eugene, come talk for you."

"Very true. You'll need him. This may be a dying confession," argued Kelley.

"You go ahead in tepee," Eugene urged. "Me sit outside. Pogos' medicine now. See 'um vision. Spirits talk to her."

As he peered in at the tepee door Wetherell perceived Pogosa dimly. She was sitting erect in her bed. Her eyes were wide, the pose of her head erect and vigorous. She appeared a span taller, and when she spoke her voice seemed to issue from a deep and powerful chest.

With Eugene as a scared interpreter, Pogosa said: "Here, now where we are encamped, a battle took place many winters ago, and some of the exiles were slain. One of these was Iapi, the husband of Pogosa. He it was who could not speak Shoshoni."

Impatiently Kelley asked, "Will she be able to show us the mine?"

"She will try, but she is old and her mind is misty. She say she is grateful to you, Red Beard, and will give the gold to you. She asks that you take her back to her own people after you find the mine."

"Is the mine far from here?" asked Wetherell, gently.

"No, but it is very hard to find."

"Can't you trace the trail on a piece of paper for me?" he inquired.

"No, Pogosa cannot make the road. She can only tell you. Send the other white man away."

"Vamoose!" Wetherell called with a note of triumph in his voice, and Tall Ed faded away.

With faltering voice Pogosa began the all-important part of her tale: "The mine is on the head of the Wind River. Not far, but the way is very hard. Pogosa will not be able to lead you. From where we are you cross the valley to the mountain. You turn to your right and descend to a small lake lying under a bank of snow. This bank is held up by a row of black rocks. Below this lake is a stream and a long hill of round stones, all mixed together. On the west side of this ridge, just above another small lake, you will find the mine."

"Can it be approached from below?"

"No, a great cañon and many cliffs are there—" Her voice ceased abruptly. As suddenly as if life had been instantly withdrawn, she fell back upon her bed, and Eugene, released from the grasp of her hand, fled to Kelley, leaving Wetherell alone with the mystery.

"She seems to have dropped into a sort of trance," he said to Kelley, as he came back to the camp-fire.

"Have you faith enough to follow those directions?" asked his partner.

"I certainly have."

Kelley laughed. "She may have a different set of directions to-morrow night. What do you say, Eugene? Pogosa all same fraud?"

Eugene, cowering close to the fire, needed not speech to make evident his awe of the battle-field. "Injun spirits all round," he whispered. "Hear

'em? They cry to Pogos'." He lifted a hand in warning.

"It's only the wind in the dead pines," said Kelley.

"Plenty Injun spirits. *They cry!*" persisted Eugene.

"There speaks the primitive man," remarked Wetherell. "Our ancestors in Ireland or Wales or Scotland all had the same awe and wonder of the dark—just as the negroes in the South believe that on certain nights the dead soldiers of Lee and Grant rise and march again."

Kelley yawned. "Let's turn in and give the witches full swing. It's certainly their kind of a night."

Eugene spoke up. "Me sleep in your tepee. Pogos' scare me plenty hard."

Ridicule could not affect him, and out of pity for his suffering Wetherell invited him to make down his bed in the doorway of his own little tent.

"I hope gran'ma won't have another fit in the middle of the night," said Kelley, sleepily. "If she does, you can interview her alone. I'm dead to the world till dawn."

Nothing happened after this save that an occasional nervous chill overcame Eugene and caused him to call out, "What's that?" in a suppressed tone. "You hear 'em voice?" he asked several times; to all of which Wetherell replied, "It is the wind. Lie down; it is only the wind."

Musing upon the singular business in the deep of the night, Wetherell concluded that Pogosa, in a moment of emotional exaltation, and foreseeing her inability to guide him in person, had taken this method of telling him truly where the mine lay.

A mutter of voices in Pogosa's tepee interrupted his thought. "She is delirious again," he thought, but the cold nipped, and he dreaded rising and dressing. As he hesitated he thought he could distinguish two voices. Shaking Eugene, he whispered, "Listen, Eugene, tell me what is going on in Pogosa's tent."

The half-breed needed no awakening. "She speak Sioux. I no speak Sioux. Some Sioux man's talk with her. Mebbe so her husband."

Wetherell smiled and snuggled down in his bed. "All right, Eugene. If Iapi is there he will take care of her. Good night."

Morning broke gloriously clear, crisp, and frosty. The insects were inert. The air had lost its heat and murk. The sun struck upon the sides of the tepees with cheerful glow, and all was buoyant, normal, and bracing as the partners arose.

Hurrying to Pogosa's tepee, Wetherell peeped in. "I wonder if she remembers her performance?" he asked himself, but could not determine, since she refused to answer Eugene when he questioned her. She took the food which Wetherell gave her, but did not eat or drink. Slowly she rose and hobbled away over the frosty grass toward the grave of Iapi.

"That's a bad sign," observed Kelley. "What's she going to do now, Eugene?"

"She's goin' put meat by stone. Mebbe so Injun spirits come eat."

"Well, she'd better absorb some of the grub herself."

"I think it's a beautiful act," professed Wetherell, lifting his field-glass to study her motions. "She's happy now. She and her dead sweetheart are together again."

"I know Iapi once," Eugene volunteered. "He big man, very strong. Good rider. One spring all people hungry. No game. Ponies weak. Iapi say go kill sheep. Washakie hear of killing sheep. Send warriors. Iapi here. Make battle. Kill mebbe so four, six Injun. Kill Iapi. Washakie sorry now. His spirit cry in trees last night."

"Better let Pogosa alone for the day. The sun is warming the rocks. She is no longer cold. We can leave our camp here and scout around on our own account, returning this afternoon."

They rode across the valley in the direction indicated by the Voice. It was a bewildering maze into which the prospector must descend in search of the gold which is marked in yellow letters on some maps of the state. Several times did Wetherell drop into the basins, searching in vain for the small lake and the black-walled bank of snow, but at last Eugene's eye detected faint indications of a trail.

"We've struck the right road this time," exulted Wetherell. "Here is the wall of black rocks." There was no snow, but he argued that, the season

having been extraordinarily warm and wet, this landmark had temporarily disappeared.

"I am sure this is the lake and stream," declared Wetherell. "See where the snow has lain."

"How far down do you figure the mine was?"

"Some miles below, near a second lake. I'm afraid we can't make it this trip. It will be dark by the time we reach camp. We'll just mark the spot and come back to-morrow."

Kelley was for pushing on. "What matter if we don't get back?"

"I'm thinking of Pogosa—"

He shrugged his shoulders. "There's grub and shelter handy. She can come down any time and feed."

"Yes, but I hate to think of her all alone. She may be worse."

"Send Eugene back. We don't need him now."

Wetherell was almost as eager to go on as Kelley, but could not banish the pathetic figure of Pogosa so easily. Now that all signs pointed to the actual mine, his blood was fired with passion for the gold.

"Eugene, go back and wait for us. See that Pogosa is comfortable. We'll return by dark."

The word "dark" sent a shiver through Eugene. He shook his head. "No. I'm afraid. Spirits come again."

"Come on," said Kelley. "You can't make him do that. If we hurry we can get down to the other lake and back by sunset. The squaw will take care of herself. She's used to being alone—besides, the spirits are with her."

With the hope that it was not far, Wetherell yielded and set off down the slope, following the bank of the stream. Soon the other lake could be seen not far below them, and, slipping, sliding amid a cascade of pebbles, the gold-seekers, now glowing with certainty of success, plunged straight toward the pool. Two or three times this precipitous method of descent led them into blind alleys from which they were obliged to climb, but at last, just as the sun went behind the imperial peak, they came out upon the shore

of the little tarn which lay shallowly over a perfectly flat floor of cream-colored sand.

"Here we are," called Kelley. "Now if your ghost proves a liar, Pogosa must answer for it. Here is the rocky ridge on the east—"

"And here is trail," called Eugene, pointing to a faint line leading straight into the pines.

Wetherell spurred his horse into this trail, and in less than five minutes came upon the mine. It was not a shining thing to look at, so he did not shout. It was merely a cavernous opening in a high ledge of dark rock. On one side stood the sunken and decaying walls of a small log hut. The roof had fallen in, and vines filled the interior. In front of the door and all about, lumps of reddish, rusty-looking rock were scattered. A big stone hollowed in the middle showed that it had been used as a mortar for crushing the ore. The tunnel itself was irregular in shape and almost high enough to admit a horse. It dipped slightly from the threshold.

Tall Ed spoke first, in a tone of suppressed excitement. "Well, let's see what she's like."

"I trust Pogosa. Up goes our poster," replied Wetherell.

"All right. You put up the sign while I examine this ore."

With his hatchet Wetherell set to work hewing a square face on a tree. He was putting the first tack in his placard when Kelley walked over toward him, and with exaggeratedly quiet voice said:

"Just look at that, will you?"

Wetherell took the lump of ore and thrilled to the sight. It needed no expert to discern the free gold which lay in thin scales and sparkling lumps all through the rock.

"I want to yell," said Kelley, and his voice trembled.

"Don't do it!" said Wetherell. "Let's hurry back to camp and move down here. I won't feel safe till we do."

"I don't leave this place to-night, Andy. You and Eugene go back to camp. I'll stay here and hold down the find."

Wetherell, tremulous with excitement and weak in the knees, remounted his horse and set off for camp. It was a long climb, and the latter part of it tedious by reason of the growing darkness and the weariness of the horses. Wetherell's pony would not lead and was fairly at the end of his powers, but at last they reached their camping-place. Wetherell's first thought was of Pogosa. She was nowhere in sight and her tepee was empty.

"She on hill," declared Eugene. "Lying down on stone. Injun cry there three days."

"The poor old thing! She'll be famished and chilled to the bone. It's a shame, our leaving her alone this way. But that's the way of the man in love with gold. Greed destroys all that is tender and loyal in a man. I am going right up and bring her down. Eugene, you start a fire and put some coffee on to boil."

With a heart full of pity the repentant gold-seeker hurried toward the cairn. The crumpled little figure, so tragic in its loneliness and helpless grief, was lying where he had left it. She did not stir at the sound of his footsteps, nor when he laid his hand softly on her shoulder.

"Come, Pogosa," he said, with gentle authority. "Come, coffee, fire waiting. We found the mine. You're rich. You shall go back to your people. Come!"

Something in the feel of her shoulder, in the unyielding rigidity of her pose, startled and stilled him. He shook her questioningly. She was stark as stone. Her body had been cold for many hours. Her spirit was with Iapi.

THE OUTLAW

*—still seeks sanctuary in the green
timber, finding the storms of the granite
peaks less to be feared than the fury of
his neighbors.*



VII

THE OUTLAW

I

Freeman Ward, geologist for the government, was not altogether easy in his mind as he led his little pack-train out of Pinedale, a frontier settlement on the western slope of the Rocky Mountain divide, for he had permitted the girl of his deepest interest to accompany him on his expedition.

Alice Mansfield, accustomed to having her way, and in this case presuming upon Ward's weakness, insisted on going. Outwardly he had argued against it, making much of the possible storms, of the rough trails, of the cold and dampness. But she argued that she was quite as able to go as Mrs. Adams, the wife of the botanist of the expedition. So Ward had yielded, and here these women were forming part of a cavalcade which was headed for Frémont Peak, concerning whose height and formation the leader wished to inform himself. Alice was, however, a bit dashed by Ward's change of manner as he laid upon his train his final instructions.

"There is to be no skylarking," he said, "and no back-tracking. Each one is to exercise great care. We cannot afford to lose a horse nor waste our provisions. This is not a picnic excursion, but a serious government enterprise. I cannot turn back because of any discomfort you may encounter in camp."

"I am ready for what comes," Alice answered, smilingly.

But she rode for the rest of the day remarkably silent. There had been times when she was certain that Ward cared a great deal for her—not in the impersonal way indicated by his reprimand—but in the way of a lover, and she was very fond of him, had indeed looked forward to this trip in his company as one sure to yield hours of delightful intimacy. On the train he had been very devoted, "almost lover-like," Peggy Adams insisted. But now she was dismayed by his tone of military command.

Their first day's march brought them to a beautiful water called Heart Lake, which shone dark and deep amid its martial firs at the head of one of the streams which descended into the East Fork, and there the guides advised a camp. They were now above the hunters, almost above the game, in a region "delightfully primeval," as the women put it, and very beautiful and peaceful.

After the tents were in order and the supper eaten, Alice, having tuned up her little metal banjo, began to twitter tender melodies (to the moon, of course), and the long face of the man of science broadened and he seemed less concerned about rocks and fauna and flora.

The camp was maintained at Heart Lake for a day while Ward and his men explored the various gorges in order to discover a way into Blizzard Basin, which was their goal. They returned to camp each time more and more troubled about the question of taking the women over the divide into the "rough country" which lay to the north.

"It is a totally different world," Adams explained to his wife. "It is colder and stormier over there. The forest on the north slopes is full of down-timber and the cliffs are stupendous. I wish you girls were back in the settlement," and in this wish Ward heartily joined.

However, the more they talked the more determined the women were to go.

It was like a May day the following noon as they left timber-line and, following the row of tiny monuments set up by the foresters, entered upon the wide and undulating stretch of low edges which led to the summit. The air was clear and the verdureless shapes of the monstrous peaks stood sharp as steel against the sky. The tender grass was filled with minute glistening flowers. The wind was gentle, sweet, moist, and cool.

"Pooh!" said Alice, "this is absurdly easy. Freeman has been telling us dreadful tales all along just to be rid of us."

But she began to admit that her escort of four strong men was a comfort, as the guide explained that this "rough country" had long been known as the retreat of cattle-thieves and outlaws.

"Do you think there are any such men in here now?" asked Mrs. Adams.

"Undoubtedly," Ward said; "but I don't think, from the condition of this trail, that they come in on this side of the range. I suspect it's too lonely even for a cattle-thief."

They unsaddled that night on the bank of a stream near a small meadow, and around the camp-fire discussed the trail which they were to take next day. The guides agreed that it was "a holy terror," which made Alice the more eager to traverse it.

"I like trails that make men quake. I welcome adventure—that's what I came for," she said.

Early the next forenoon, as they were descending the steep north-slope trail, Alice gave out a cry of pain, and Adams called to Ward:

"Hold on! Allie's horse is down."

Ward was not surprised. He rode in continual expectation of trouble. She was forever trying short cuts and getting snared in the fallen logs. Once she had been scraped from her saddle by an overhanging bough, and now, in attempting to find an easier path down a slippery ridge, her horse had fallen with her. Ward was ungracious enough to say:

"Precisely what I've warned her against," but he hurried to her relief, nevertheless.

"Are you badly hurt?" he asked, as she stood before him, striving to keep back her tears of pain.

"Oh no, not at all badly. My foot was jammed a little. Please help me on to my horse; I'll be all right in a minute."

She put so good a face on her accident that he helped her into her saddle and ordered the train to move on; but Peggy perceived that the girl was suffering keenly.

"Sha'n't we stop, Allie?" she called, a few minutes later.

"No. I'll be all right in a few minutes."

She rode on for nearly half an hour, bravely enduring her pain, but at last she turned to Mrs. Adams and cried out: "I can't stand it, Peggy! My foot pains me frightfully!"

Adams again called to Ward and the procession halted, while Ward came back, all his anger gone.

"We'll go into camp," he said, as he examined her bruised foot. "You're badly hurt."

"It's a poor place to camp, Professor," protested Gage. "If she can go on for about fifteen minutes—"

"I'll try," she said; "but I can't bear the stirrup, and my shoe is full of blood."

Ward, who was now keenly sympathetic, put her on his own horse and walked beside her while they slowly crawled down into the small valley, which held a deep and grassy tarn. Here they went into camp and the day was lost.

Alice was profoundly mortified to find herself the cause of the untimely halt, and as she watched the men making camp with anxious, irritated faces she wept with shame of her folly. She had seized the worst possible moment, in the most inaccessible spot of their journey, to commit her crowning indiscretion.

She was ill in every nerve, shivering and weak, and remained for that day the center of all the activities of the camp. Ward, very tender even in his chagrin, was constantly at her side, his brow knotted with care. He knew what it meant to be disabled two hundred miles from a hospital, with fifty miles of mountain trail between one's need and a roof, but Alice buoyed herself up with the belief that no bones were broken, and that in the clear air of the germless world her wound would quickly heal.

She lay awake a good part of that night, hearing, above the roar of the water, the far-off noises of the wild-animal world. A wolf howled, a cat screamed, and their voices were fear-inspiring.

She began also to worry about the effect of her mishap on the expedition, for she heard Ward say to Adams: "This delay is very unfortunate. Our stay is so limited. I fear we will not be able to proceed for some days, and snow is likely to fall at any time."

What they said after that Alice could not hear, but she was in full possession of their trouble. It was not a question of the loss of a few days; it

meant the possible failure of the entire attempt to reach the summit.

"Peggy," she declared, next morning, "the men must push on and leave you with me here in the camp. I will not permit the expedition to fail on my account."

This seemed a heroic resolution at the moment, with the menacing sounds of the night still fresh in her ears, but it was the most natural and reasonable thing in the world at the moment, for the sun was rising warm and clear and the valley was as peaceful and as beautiful as a park.

Mrs. Adams readily agreed to stay, for she was wholly free from the ordinary timidities of women, but Ward, though sorely tempted, replied:

"No. We'll wait a day or two longer and see how you come on."

At this point one of the guides spoke up, saying: "If the women would be more comfortable in a cabin, there's one down here in the brush by the lake. I found it this morning when I was wranglin' the horses."

"A cabin! In this wild place?" said Alice.

"Yes, ma'am—must be a ranger's cabin."

Ward mused. "If it's habitable it would be warmer and safer than a tent. Let's go see about it."

He came back jubilant. "It doesn't seem to have been occupied very recently, but is in fair shape. We'll move you right down there."

The wounded girl welcomed the shelter of a roof, and it was good to feel solid logs about her helpless self. The interior of the hut was untidy and very rude, but it stood in a delightful nook on the bank of a pond just where a small stream fell into the valley, and it required but a few minutes of Mrs. Adams's efforts to clear the place out and make it cozy, and soon Alice, groaning faintly, was deposited in the rough pole bunk at the dark end of the room. What an inglorious end to her exalted ride!

Ward seemed to understand her tears as he stood looking down upon her, but he only said: "I dislike leaving you, even for the day. I shall give up my trip."

"No, no! you must go on!" she cried out. "I shall hate myself if you don't go on."

He reluctantly yielded to her demand, but said: "If I find that we can't get back to-morrow I will send Gage back. He's a trusty fellow. I can't spare Adams, and Smith and Todd—as you know—are paying for their trip."

Mrs. Adams spoke up firmly. "You need not worry about us. We can get along very well without anybody. If you climb the peak you'll need Gage. I'm not afraid. We're the only people in this valley, and with this staunch little cabin I feel perfectly at home."

"That's quite true," replied Ward in a relieved tone. "We are above the hunters—no one ever crosses here now. But it will be lonely."

"Not at all!" Alice assured him. "We shall enjoy being alone in the forest."

With slow and hesitating feet Ward left the two women and swung into his saddle. "I guess I'll send Gage back, anyhow," he said.

"Don't think of it!" called Peggy.

As a matter of fact, Alice was glad to have the men pull out. Their pity, their reproach, irritated her. It was as if they repeated aloud a scornful phrase—"You're a lovely and tempting creature, but you're a fool—hen just the same."

The two women spent the day peacefully, save now and then when Alice's wounded foot ached and needed care; but as night began to rise in the cañon like the smoke of some hidden, silent, subterranean fire, and the high crags glowed in the last rays of the sun, each of them acknowledged a touch of that immemorial awe of the darkness with which the race began.

Peggy, seating herself in the doorway, described the scene to her patient, who could see but little of it. "Oh, but it's gloriously uncanny to be here. Only think! We are now alone with God and His animals, and the night."

"I hope none of God's bears is roaming about," replied Alice, flippantly.

"There aren't any bears above the berries. We're perfectly safe. My soul! but it's a mighty country! I wish you could see the glow on the peaks."

"I'm taking my punishment," replied Alice. "Freeman was very angry, wasn't he?"

"If it breaks off the match I won't be surprised," replied Peggy, with resigned intonation.

"There wasn't any match to break off."

"Well!" replied the other, and as she slowly rose she added: "I won't say that he is perfectly distracted about you, but I do know that he thinks more of you than of any other woman in the world, and I've no doubt he is worrying about you this minute."

II

It was deep moonless night when Alice woke with a start. For a few moments she lay wondering what had roused her—then a bright light flashed and her companion screamed.

"Who's there!" demanded the girl.

In that instant flare she saw a man's face, young, smooth, with dark eyes gleaming beneath a broad hat. He stood like a figure of bronze while his match was burning, then exclaimed in breathless wonder:

"Great Peter's ghost! a woman!" Finally he stepped forward and looked down upon the white, scared faces as if uncertain of his senses. "Two of them!" he whispered. As he struck his second match he gently asked: "Would you mind saying how you got here?"

Alice spoke first. "We came up with a geological survey. I got hurt and they had to leave us behind."

"Where's your party gone?"

"Up to the glaciers."

"When did they leave?"

"Yesterday morning."

"When do you expect them back?"

"Not for two or three days."

He seemed to ponder a moment. "You say you're hurt? Where?"

"My horse slipped and fell on my foot."

"Wait a minute," he commanded. "I'll rustle a candle. I left one here."

When his form came out of the dark blur behind his candle Alice perceived that he was no ordinary hunter. He was young, alert, and very good-looking, although his face was stern and his mouth bitter. He laid aside his hat as he approached the bunk in which the two women were cowering as mice tremble before a cat. For a full minute he looked down at them, but at last he smiled and said, in a jocular tone:

"You're sure-enough women, I can see that. You'll excuse me—but when a man comes back to a shack in the middle of the night in a place like this and finds a couple of women in a bunk he's likely to think he's seeing pictures in his sleep."

"I can understand that," Alice returned, recovering her self-command. "You're the ranger, I suppose? I told my friend here that you might return."

"I'm mighty glad I did," he said, heartily.

"Thank you; you're very kind."

He bent a keen glare upon her. "What's your name?"

"Alice Mansfield."

"What's your friend's name?"

"Mrs. Adams."

"Are you a missis, too?"

She hesitated. This was impertinent, but then she herself was an intrusive guest. "No," she answered, "I am not married."

"Where are you from?"

"New York City."

"You're a long way from home."

"Yes, I'm feeling that this minute." She drew the coverlet a little closer to her chin.

He quickly read this sign. "You needn't be afraid of me."

"I'm not."

"Yes, you are. You're both all of a tremble and white as two sheep—"

"It isn't that," wailed the girl; "but I've twisted my foot again." Her moan of pain broke the spell that bound Peggy.

"Would you leave, please, for a moment?" she called to the owner of the cabin. "I've got to get up and doctor my patient."

"Sure!" he exclaimed, moving toward the door. "If I can do anything let me know."

As soon as her patient's aching foot was eased Peggy opened the door and peeped out. A faint flare of yellow had come into the east, and beside the fire, rolled in his blanket, the ranger was sleeping. Frost covered everything and the air was keen.

"He's out there on the cold ground—with only one blanket."

"What a shame! Tell him to come inside—I'm not afraid of him."

"Neither am I—but I don't believe he'll come. It's 'most morning, anyway—perhaps I'd better not disturb him."

"Take one of these quilts to him—that will help some."

Mrs. Adams lifted one of the coverlets and, stealing softly up, was spreading it over the sleeper when he woke with a start, a wild glare of alarm in his eyes.

"Oh, it's you!" he said in relief. Then he added, as he felt the extra cover: "That's mighty white of you. Sure you don't need it?"

"We can spare it. But won't you come inside? I'm sorry we drove you out of your cabin."

"That's all right. I'm used to this. Good night. I'm just about dead for sleep."

Thus dismissed, Peggy went back and lay down beside Alice. "He says he's quite comfortable," she remarked, "and I hope he is, but he doesn't look it."

When she woke again it was broad daylight and Alice was turning restlessly on her hard bed. In the blaze of the sun all the mystery of the

night vanished. The incident of the return of the ranger to his cabin was as natural as the coming of dawn.

"He probably makes regular trips through here," said Mrs. Adams.

But the wounded girl silently differed, for she had read in the man's eyes and voice a great deal more than belonged to the commonplace character of a forest-ranger. That first vision of his face burned deep.

She had seen on the wall of the station at "the road" the description of a train-robber which tallied closely with this man's general appearance, and the conviction that she was living in the hidden hut of an outlaw grew into a certainty. "I must not let him suspect my discovery," she thought.

Mrs. Adams (who had not read the placard) treated the young fellow as if he were one of the forest wardens, manifesting complete confidence in him.

He deftly helped her about breakfast, and when she invited him into the cabin he came readily, almost eagerly, but he approached Alice's bed with a touch of hesitation, and his glance was softer and his voice gentler as he said:

"Well, how do you stack up this morning?"

"Much better, thank you."

"Must have been a jolt—my coming in last night the way I did?"

"I guess the 'jolt' was mutual. You looked surprised."

He smiled again, a faint, swift half-smile. "Surprised! That's no name for it. For a minute I thought I'd fallen clear through. I hope you didn't get a back-set on account of it."

"Oh no, thank you."

"How many men are in your party?"

"Six, counting the guides."

"Who are the men?"

She named them, and he mused darkly, his eyes on her face. "I reckon I can't wait to make their acquaintance. I'm going on down the Green River to-day. I'm sorry to miss 'em. They must be a nice bunch—to leave two women alone this way."

He ate heartily, but with a nicety which betrayed better training than is usual to men in his position. He remained silent and in deep thought, though his eyes were often on Alice's face.

As he rose to go he said to Peggy: "Would you mind doing up a little grub for me? I don't know just when I'll strike another camp."

"Why, of course! I'll be glad to. Do you have to go?"

"Yes, I must pull out," he replied, and while she was preparing his lunch he rolled a blanket and tied it behind his saddle. At last he re-entered the cabin and, again advancing to Alice's bedside, musingly remarked: "I hate to leave you women here alone. It doesn't seem right. Are you sure your party will return to-night?"

"Either to-night or to-morrow. Professor Ward intends to climb Frémont Peak."

"Then you won't see him for three days." His tone was that of one who communes with himself. "I reckon I'd better stay till to-morrow. I don't like the feeling of the air."

She explained that Gage, one of the guides, would return in case the professor wished to remain in the heights.

"Well, I'll hang around till toward night, anyhow."

He went away for half an hour, and upon his return presented a cleanly shaven face and a much less savage look and bearing. He hovered about the door, apparently listening to Peggy's chatter, but having eyes only for the wounded girl. He seized every slightest excuse to come in, and his voice softened and his manner changed quite as markedly, and at last, while Mrs. Adams was momentarily absent, he abruptly said:

"You are afraid of me; I can see it in your eyes. I know why. You think you know who I am."

"Yes; I'm sure of it."

"What makes you think so?"

"I saw your picture in the railway station."

He regarded her darkly. "Well, I trust you. You won't give me away. I'm not so sure of her." He nodded his head toward the open door.

"What would be the good of my betraying you?"

"Two thousand dollars' reward is a big temptation."

"Nonsense! If I told—it would be for other reasons. If I were to betray your hiding-place it would be because society demands the punishment of criminals."

"I'm not a criminal. I never lifted a cent from any man. I didn't get a dollar from the express company—but I tried—I want you to know, anyway," he continued, "that I wouldn't rob an individual—and I wouldn't have tried this, only I was blind drunk and desperate. I needed cash, and needed it bad."

"What did you need it for?" asked Alice, with a steady look.

He hesitated, and a flush crept across his brown face. His eyes wavered. "Well, you see, the old home was mortgaged—and mother was sick—"

"Oh, bosh! Tell me the truth," she demanded. "The papers said you did it for a girl. Why not be honest with me?"

"I will," he responded, impulsively. "Yes, that's right. I did it for a girl—and afterward, when I was on the run, what did she do? Threw me down! Told everything she knew—the little coyote—and here I am hunted like a wolf on account of it." His face settled into savage lines for a moment. But even as he sat thus another light came into his eyes. His gaze took account of Alice's lips and the delicate, rounded whiteness of her neck and chin. Her like he had never met before. The girls he had known giggled; this one smiled. His sweetheart used slang and talked of cattle like a herder, but this woman's voice, so sweet and flexible, made delightfully strange music to his ears.

Peggy's return cut short his confidence, and while she was in the cabin he sat in silence, his eyes always on the girl. He seized every opportunity to speak to her, and each time his voice betrayed increasing longing for her favor.

Mrs. Adams, who had conceived a liking for him, ordered him about as freely as though he were a hired guide, and he made himself useful on the

slightest hint.

Alice, on her part, was profoundly interested in him, and whenever her foot would permit her to think of anything else, she pitied him. In the madness of his need, his love, he had committed an act which made all the world his enemy, and yet, as she studied his form and expression, her heart filled with regret. He was very attractive in the Western way, with nothing furtive or evasive about him.

With a directness quite equal to his own she questioned him about his reckless deed.

"Why did you do it?" she exclaimed in despair of his problem.

"I don't know. Hanged if I do, especially now. Since seeing you I think I was crazy—crazy as a loon. If I'd done it for you, now, it wouldn't have been so wild. You're worth a man's life. I'd die for you."

This outburst of passion, so fierce and wild, thrilled the girl; she grew pale with comprehension of his mood. It meant that the sight of her lying there had replaced the old madness with a new one. She was unprepared for this furious outflaming of primitive admiration.

"You mustn't talk like that to me," she protested, as firmly as she could.

He sensed her alarm. "Don't you be scared," he said, gently. "I didn't mean to jar you. I only meant that I didn't know such women as you were in the world. I'd trust you. You've got steady eyes. You'd stick by the man that played his whole soul for you, I can see that. I come of pretty good stock. I reckon that's why you mean so much to me. You get hold of me in a way I can't explain."

"Why don't you fly?" she asked him. "Every minute you spend here increases your danger. The men may return at any moment."

"That's funny, too," he answered, and a look of singular, musing tenderness fell over his face. "I'd rather sit here with you and take my chances."

"But you must not! You are imperiling your life for nothing."

"You're mistaken there. I'm getting something every minute—something that will stay with me all my life. After I leave you it doesn't matter. I came

into the hills just naturally, the way the elk does. After that girl reported me, life didn't count. Seeing you has changed me. It matters a whole lot to me this minute, and when I leave you it's stormy sunset for me, sure thing."

Alice gazed upon him with steady eyes, but her bosom rose and fell with the emotion which filled her heart. She debated calling for Mrs. Adams, but there was something in the droop of the outlaw's head, in the tone of his voice, which arrested her. However sudden and frenzied his admiration might seem to others, it was sincere and manly, of that she was persuaded. Nevertheless, she was deeply perturbed.

"I wish you would go," she entreated at last, huskily. "I don't want to see you taken. You have made yourself a criminal and I ought not to find excuses for you, but I do. You're so young. It doesn't seem as if you knew what you were doing. Why don't you ride away into the wild north country and begin a new life somewhere? Can't you escape to Canada?"

He seized eagerly upon her suggestion. "Will you write to me if I do?"

"No, I cannot promise that."

"Why can't I play the ranger here and wait upon you till the men return?"

"Because Professor Ward read that placard with me. He will know you instantly. I wish you'd go. Gage may come at any moment now."

Peggy came in with disturbed look. "It looks like rain," she announced; "the clouds are settling down all over the peaks."

The outlaw sprang up and went to the door. "It looked bad when I got up," he said, as he studied the sky. "I guess we're in for trouble. It may be snow."

His fears were soon realized. Rain began to fall in a thin drizzle, and at four o'clock the first faint flakes of snow began to flash amid the gray veils of the water-drops. The women looked at each other in alarm as the cabin's interior darkened with the ominous shadow of the storm.

"I don't like this a bit," said Peggy, after a while. "This is no mountain squall. I wish the men were here."

"It can't be anything that will last," replied Alice. "It isn't time for the winter snows."

"I know," replied Peggy. "But it's snowing perfect feather beds now, and no wind. Lucky this forest-ranger is here. The men may get lost in this storm."

"Mercy! Don't speak of such a thing!" exclaimed Alice; but she knew, just the same, that Ward and his party were high in the peaks, far, far above the cabin, and that the storm there would be proportionately fiercer. She listened with growing thankfulness to the outlaw's blows upon the dry limbs of wood that he was chopping for the fire. He was very capable and would not desert them—of that she felt assured.

As the man worked on, the women both came to keen realization of the serious view he took of the storm. He mounted his horse and with his rope dragged great bundles of fagots from the thickets. As he came up, laden with one of his bundles of hard-won fuel, Mrs. Adams asked:

"You don't think it will keep this up, do you?"

"You never can tell what will happen in these mountains. It doesn't generally snow much till later, but you can't bank on anything in this range."

Alice called to him and he stepped inside. "What do you think we'd better do?" she asked.

"There isn't a thing you can do, miss. It's just a case of stick it out. It may let up by sundown; but, as it is, your party can't get back to-night, and if you don't mind I'll camp down just outside the door and keep the fire going."

"You will be a comfort to us," she replied, "but I feel that—that you ought to be going. Isn't it dangerous for you? I mean you will be shut in here."

"If I'm shut in, others are shut out," he answered, with a grim smile. "My job is to keep fire." With these words he returned to his work of breaking limbs from the dead firs.

Alice said: "If it does turn out as this—this ranger says—if the storm keeps up, you mustn't let him sleep out in the snow."

"Of course not," said Peggy. "He can sleep inside. I trust him perfectly—and, besides, you have your revolver."

Alice smiled a little, wondering how Peggy's trust would stand the strain of a fuller knowledge concerning their guardian's stirring career.

III

In spite of her knowledge of the mountains and her natural intrepidity of character the wounded girl's heart sank as the snow and the night closed down over the tiny cabin in its covert of firs. To be on foot in such gloom, in the heart of such a wilderness, was sufficiently awe-inspiring, but to be helpless on a hard bed was to feel the utter inconsequence of humankind. "Suppose the storm blocks the trails so that the men cannot return for a week? What will we do for food?"

Each time she heard the outlaw deliver his burden of wood her heart warmed to him. He was now her comfort and very present stay. "If it should happen that the trails become impassable he alone will stand between us and death," she thought.

The outlaw came in to say, abruptly, "If you weren't hurt and if I weren't in such a hurry I'd rather enjoy this."

He slashed his sombrero against his thigh as he spoke, and Mrs. Adams answered his remark without knowledge of its inner meaning.

"You mustn't think of sleeping outdoors to-night—Mr.—?"

"Smith. I belong to the big family, the Smiths," he promptly replied.

"Why don't you take away that improvised table by the wall and make your bed there?"

"We'll need the table," he responded in a matter-of-fact tone. "I'll just crawl under it. What's giving me most trouble is the question of grub. They didn't leave you any too much, did they?"

"But you can kill game, can't you?" asked Peggy.

"We're pretty high up for elk, and the blue grouse are scarce this year, but I reckon I can jump a deer or a ground-hog. We won't starve, anyway."

Alice perceived in his voice a note of exultation. He was glad of his reprieve, and the thought of being her protector, at least for the night, filled

him with joy. She read his mind easily and the romance of this relationship stirred her own heart. The dramatic possibilities of the situation appealed to her. At any moment the men might return and force her into the rôle of defender. On the other hand, they might be confined for days together in this little cabin, and in this enforced intimacy Peggy was sure to discover his secret and his adoration.

The little hovel was filled with the golden light of the blazing fagots, and through the open door Alice could see the feathery crystals falling in a wondrous, glittering curtain across the night. The stream roared in subdued voice as though oppressed by the snows, and the shadow of the fugitive as he moved about the fire had a savage, primal significance which awed the girl into silence.

He was very deft in camp work, and cooked their supper for them almost as well as they could have done it themselves, but he refused to sit at the table with Peggy. "I'll just naturally stick to my slicker, if you don't mind. I'm wet and my hands are too grimy to eat with a lady."

Alice continued to talk to him, always with an under-current of meaning which he easily read and adroitly answered. This care, this double meaning, drew them ever closer in spirit, and the girl took an unaccountable pleasure in it.

After supper he took his seat in the open doorway, and the girl in the bunk looked upon him with softened glance. She had no fear of him now; on the contrary, she mentally leaned upon him. Without him the night would be a terror, the dawn an uncertainty. The brave self-reliance of his spirit appeared in stronger light as she considered that for weeks he had been camping alone, and that but for this accident to her he would be facing this rayless wintry night in solitude.

He began again to question her. "I wish you'd tell me more about yourself," he said, his dark eyes fixed upon her. "I can't understand why any girl like you should come up here with a bunch of rock-sharps. Are you tied up to the professor?"

If Peggy expected her patient to resent this question she must have been surprised, for Alice merely smiled as if at the impertinence of a child.

Mrs. Adams replied: "I can tell you that she is—and a very fortunate girl her friends think her."

He turned to her with unmoved face. "You mean he's got money, I reckon."

"Money and brains and good looks and a fine position."

"That's about the whole works, ain't it—leastwise he will have it all when he gets you. A man like that doesn't deserve what he's got. He's a chump. Do you suppose I'd go off and leave you alone in a hole like this with a smashed leg? I'd never bring you into such a country, in the first place. And I certainly wouldn't leave you just to study a shack of ice on the mountainside."

"I urged him to go, and, besides, Peggy is mistaken; we're not engaged."

"But he left you! That's what sticks in my crop. He can't be just right in his head. If I had any chance of owning you I'd never let you out of my sight. I wouldn't take a chance. I don't understand these city fellows. I reckon their blood is thinned with ice-water. If I had you I'd be scared every minute for fear of losing you. I'd be as dangerous to touch as a silver-tip. If I had any place to take you I'd steal you right now."

This was more than banter. Even Mrs. Adams perceived the passion quivering beneath his easy, low-toned speech. He was in truth playing with the conception of seizing this half-smiling, half-musing girl whose helpless body was at once a lure and an inspiration. It was perfectly evident that he was profoundly stirred.

And so was Alice. "What," she dared ask herself, "will become of this?"

IV

To the outlaw in the Rocky Mountain cabin in that stormy night it was in every respect the climax of his life. As he sat in the doorway, looking at the fire and over into the storm beyond, he realized that he was shaken by a wild, crude lyric of passion. Here was, to him, the pure emotion of love. All the beautiful things he had ever heard or read of girlhood, of women, of marriage, rose in his mind to make this night an almost intolerable blending of joy and sorrow, hope and despair.

To stay time in its flight, to make this hour his own, to cheat the law, to hold the future at bay—these were the avid desires, the vague resolutions, of his brain. So sure as the day came this happiness would end. To-morrow he must resume his flight, resigning his new-found jewel into the hands of another. To this thought he returned again and again, each time with new adoration for the girl and added fury and hate against his relentless pursuers and himself. He did not spare himself! "Gad! what a fool I've been—and yet, if I had been less a fool I would not be here and I would never have met her." He ended with a glance toward Alice.

Then he arose, closed the door of the cabin, and stood without beside the fire, so that the women might prepare for bed. His first thought of suicide came to him. Why not wait with his love as long as possible—stay till the law's hand was in the air above his head, uplifted to strike, and then, in this last moment, die with this latest, most glorious passion as climax to his career? To flee meant endless fear, torment. To be captured meant defeat, utter and final dismay.

A knock upon the door startled him, and Peggy's voice cut short his meditation. "You can come in now, Mr. Smith," she said.

The broad crystals were still falling thickly and the fire was hissing and spluttering around a huge root which he had rolled upon it. In its light the cabin stood hardly higher than a kennel, and yet it housed the woman whose glance had transformed his world into something mystical. A man of commonplace ancestry would have felt only an animal delight in shelter and warmth, but this youth was stirred to a spiritual exaltation. The girl's bosom, the rounded beauty of her neck, appealed to him, but so also did the steady candor of her gaze and the sweet courage of her lips. Her helplessness roused his protective instinct, and her words, the sound of her voice, so precise, so alien-sweet, filled him with bitter sadness, and he re-entered the house in such spirit of self-abasement as he had never known before.

He lay down upon the hard floor in silence, his audacity gone, his reckless courage deep-sunk in gloomy foreboding.

Alice, on her part, could not free her mind from the burden of his crime. He was so young and so handsome, to be hunted like a noxious beast! She had at the moment more concern of him than of Ward, and in this lay a certain disloyalty. She sighed deeply as she thought of the outlaw resuming

his flight next day. Would it not be better for him to sacrifice himself to the vengeance of the state at once and so end it? What right had she to shield him from the law's demand? "He is a criminal, after all. He must pay for his rash act."

She could not sleep, and when he rose to feed the fire she softly asked, "Does it still storm?"

"No," he answered in a tone that voiced disappointment; "the sky is clear."

"Isn't that cheering!" she exclaimed, still in the same hushed voice.

"For you," he replied. "For me it's another story." He felt the desire for a secret consultation which moved her, and on his way back to his corner he halted and fixed his eyes upon her in hungry admiration of her fire-lit face. Then he spoke: "I should have pulled out before the storm quit. They can trail me now. But no matter; I've known you."

She still kept to ambiguous speech. "Wouldn't it be better to give up and take your—misfortune, and begin again? Professor Ward and I will do all we can to help you."

"That's mighty white of you," he responded, slowly. "But I can't stand the thought of confinement. I've been free as an Injun all my life. Every way of the wind has been open to me. No; just as long as I can find a wild spot I must keep moving. If it comes to 'hands up!' I take the short cut." He tapped his revolver as he spoke.

"You mustn't do that," she entreated. "Promise me you won't think of that!"

He made a stride toward her, but a movement of her companion checked him.

"Is it morning?" Peggy sleepily asked.

"Not quite," answered the outlaw, "but it's time for me to be moving. I'd like to hear from you some time," he said to Alice, and his voice betrayed his sadness and tenderness. "Where could I reach you?"

She gave her address with a curious sense of wrong-doing.

He listened intently. "I'll remember that," he said, "when I've forgotten everything else. And now—" He reached his hand to her and she took it.

"Poor boy! I'm sorry for you!" she whispered.

Her words melted his heart. Dropping on his knees beside her bed, he pressed her fingers to his lips, then rose. "I'll see you again—somewhere—some time," he said, brokenly. "Good-by."

No sooner had the door closed behind the outlaw than Peggy rose in her place beside Alice and voiced her mystification. "Now what is the meaning of all that?"

"Don't ask me," replied the girl. "I don't feel like talking, and my foot is aching dreadfully. Can't you get up and bathe it? I hate to ask you—but it hurts me so."

Peggy sprang up and began to dress, puffing and whistling with desperation. As soon as she was dressed she ran to the door and opened it. All was still a world of green and white. "The fire is almost out," she reported, "and I can see Mr. Smith's horse's tracks."

V

It was about ten o'clock when a couple of horsemen suddenly rounded the point of the forest and rode into the clearing. One of them, a slender, elderly man with gray, curly beard and a skin like red leather, dismounted and came slowly to the door, and though his eyes expressed surprise at meeting women in such a place, he was very polite.

"Mornin', ma'am," he said, with suave inflection.

"Good morning," Peggy replied.

"Fine snowy mornin'."

"It is so." She was a little irritated by the fixed stare of his round, gray eyes.

He became more direct. "May I ask who you are and how you happen to be here, ma'am?"

"You may. I'm Mrs. Adams. I came up here with my husband, Professor Adams."

"Where is he?"

"He has gone up the trail toward Frémont. He is a botanist."

"Is that his horse's tracks?"

Alice called sharply, "Peggy!"

Mrs. Adams turned abruptly and went in.

The stranger turned a slow gaze upon his companion. "Well, this beats me. 'Pears like we're on the wrong trail, Bob. I reckon we've just naturally overhauled a bunch of tourists."

"Better go in and see what's inside," suggested the other man, slipping from his horse.

"All right. You stay where you are."

As he stepped to the door and rapped, Peggy opened it, but Alice took up the inquiry.

"What do you want?" she asked, imperiously.

The man, after looking keenly about, quietly replied: "I'm wonderin' how you women come to be here alone, but first of all I want to know who made them tracks outside the door?"

Alice ignored the latter part of his question and set about satisfying his wonder. "We came up here with a geological survey, but my horse fell on my foot and I couldn't ride, so the men had to leave me behind—"

"Alone?" sharply interrogated the man.

"No; one man stayed."

"What was his name?"

"I don't know. We called him Smith."

"Was he the man that rode away this morning?"

"What does that matter to you?" asked the girl. "Why are you so inquisitive?"

He maintained his calm tone of mild authority. "I'm the sheriff of Uinta County, ma'am, and I'm looking for a man who's been hiding out in this basin. I was trailin' him close when the snow came on yesterday, and I didn't know but what these tracks was his."

Peggy turned toward Alice with an involuntary expression of enlightenment, and the sheriff read it quickly. Slipping between the two women, he said:

"Jest a minute, miss. What sort of a looking man was this Smith?"

Alice took up the story. "He was rather small and dark—wasn't he, Peggy?"

Peggy considered. "I didn't notice him particularly. Yes, I think he was."

The man outside called: "Hurry up, Cap. It's beginning to snow again."

The sheriff withdrew toward the door. "You're both lying," he remarked without heat, "but it don't matter. We'll mighty soon overhaul this man on the horse—whoever he is. If you've been harboring Hall McCord we'll have to take you, too." With that threat as a farewell he mounted his horse and rode away.

Peggy turned to Alice. "Did you know that young fellow was an outlaw?"

"Yes; I saw his picture and description on a placard in the railway station. I recognized him at once."

"Why didn't you tell me?"

"Well, I liked his looks, and, besides, I wanted to find out if he were really bad or only unfortunate."

"What has he done?"

"They say he held up a train!"

"Merciful Heavens! a train-robber! What's his real name?"

"The name on the placard was Hall McCord."

"And to think he was in the same room with us last night, and you were chumming with him! I can't understand you. Are you sure he is the robber?"

"Yes. He confessed to having tried to rob the express car."

"He seemed such a nice fellow. How did he come to do it?"

Alice concluded not to honor the other girl by bringing her into the discussion. "Oh, it is hard to say. Need of money, I suppose. Poor boy, I pity him."

"They'll get him, sure. They can follow his tracks as easy as anything. I don't suppose I ought to say it, but I hope he'll get away. Don't you?"

"Yes, I do!" was Alice's fervent response. "But see! it's snowing again. It may cover his trail."

Peggy went to the door and gazed long and keenly at the peaks. When she turned her face was solemn. "Allie, this is getting pretty serious for us. If the men don't come to-day they may get snowed up entirely."

Alice stifled a wail. "Oh, if I were only able to walk I wouldn't mind. I could help gather fuel and keep the fire going."

"There's plenty of wood for another day, but I'm worried about the men. Suppose they are up on that glacier?"

"I'm not worried about them, but I know they are worrying about us. They'll surely start back this morning; but they may not be able to reach us till night."

The light of the morning had turned gray and feeble. The air was still and the forest soundless, save now and then when a snow-laden branch creaked with its burden.

There was something majestic as well as menacing in this all-pervading solemn hush.

Peggy went about her duties as cheerfully as she could, but with a wider knowledge of mountaineering than Alice had. She was at heart quite terrified. "We're going to miss our nice outlaw," she remarked. "He was so effective as a purveyor of wood." Then she went to the door and looked out. "That sheriff will never keep his trail," she said.

"What's that?" suddenly asked Alice.

Both listened. "I hear it!" whispered Peggy. "It's a horse—there! Some one spoke."

"It's Freeman!" Alice joyously called out. "Coohoo!"

No one replied, and Peggy, rushing to the door, met the young outlaw, who appeared on the threshold with stern, set face.

"Who's been here since I left? Your party?"

Peggy recoiled in surprise and alarm, and Alice cried out, "Why did you come back?"

"Two men on horseback have been here since I left. Who were they?" His voice was full of haste.

"One of them said—he was the—the sheriff," Alice replied, faintly.

He smiled then, a kind of terrifying humor in his eyes. "Well, the chances are he knew. They took my trail, of course, and left in a hurry. Expected to overhaul me on the summit. They've got their work cut out for 'em."

"How did they miss you?" the girl asked, huskily.

"Well, you see, when I got up where I could view the sky I was dead sure we were in for a whooping big snow-storm, and I just couldn't leave you girls up here all alone, so I struck right down the cañon in the bed of the creek—the short cut. I don't like to back-trail, anyway; it's a bad habit to get into. I like to leave as blind a trail as I can." His face lighted up, grew boyish again. "They're sure up against a cold proposition about now. They'll lose my track among the rocks, but they'll figure I've hustled right on over into Pine Creek, and if they don't freeze to death in the pass they'll come out at Glover's hay-meadow to-morrow night. How's the wood-pile holding out?"

"Please go!" cried Alice. "Take your chance now and hurry away."

"I'm not used to leaving women in such a fix. The moment I saw that the blizzard was beginning all over again I turned back."

"You haven't had any breakfast?" said Peggy.

"Nothing to speak of," he replied, dryly. "I wasn't thinking of breakfast when I pulled out."

"I'll get you some."

Alice could not throw off the burden of his danger. "What will you do when my people return?"

"I don't know—trust to luck."

"You are very foolish. They are certain to come to-day."

"They won't know who I am if you women don't give me away."

"I'm sure Freeman—Professor Ward—will know you, for he also saw the placard."

"That's no sign. Suppose he does—maybe he won't think it is his job to interfere. Anyway"—here his voice became decisive—"I won't leave you in such a fix as this." His eyes spoke to her of that which his tongue could not utter. "I wanted an excuse to come back, anyway," he concluded. "No matter what comes now, my job is here to protect you."

She did not rebuke him, and Peggy—though she wondered at his tone—was too grateful for his presence even to question Alice's motive in permitting such remarks.

As for Alice, she felt herself more and more involved in the tangled skein of his mysterious life. His sudden and reckless abandonment of the old love which had ruined him, and the new and equally irrational regard which he now professed for her, filled her with a delicious marveling.

He appealed to a woman's imagination. He had the spice of the unknown. In her relationship with Ward there was no danger, no mystery—his courtship narrowly escaped being commonplace. She had accepted his attentions and expected to marry him, and yet the thought of the union produced, at its warmest, merely a glow of comfort, a sense of security, whereas the hint of being loved and protected by this Rob Roy of the hills, this reckless Rough Rider of the wilderness, was instinct with romance. Of course his devotion was a crazy folly, and yet, lying there in her rough bunk, with an impenetrable wall of snow shutting out the rest of the world, it was hard not to feel that this man and his future had become an inescapable part of her life—a part which grew in danger and in charm from hour to hour.

Full two miles above the level of her own home, surrounded by peaks unscalably wild and lonely, deserted by those who should care for her, was

it strange that she should return this man's adoring gaze with something of the primal woman's gratitude and submission?

The noon darkened into dusk as they talked, slowly, with long pauses, and one by one the stirring facts of the rover's life came out. From his boyhood he had always done the reckless thing. He had known no restraint till, as a member of the Rough Riders, he yielded a partial obedience to his commanders. When the excitement of the campaigns was over he had deserted and gone back to the round-up wagon and the camp-fire.

In the midst of his confidences he maintained a reserve about his family which showed more self-mastery than anything else about him. That he was the black sheep of an honorable flock became increasingly evident. He had been the kind of lad who finds in the West a fine field for daredevil adventure. And yet there were unstirred deeps in the man. He was curious about a small book which Alice kept upon her bed, and which she read from time to time with serene meditation on her face.

"What is that?" he asked.

"My Bible."

"Can I see it?"

"Certainly."

He took it carefully and read the title on the back, then turned a few of the leaves. "I'm not much on reading," he said, "but I've got a sister that sends me tracts, and the like." He returned to the fly-leaf. "Is this your name?"

"Yes."

"'Alice Mansfield,'" he read; "beautiful name! 'New York City'! That's pretty near the other side of the world to me." He studied the address with intent look. "I'd like to buy this book. How much will you take for it?"

"I'll trade it for your weapon," she replied.

He looked at her narrowly. "You mean something by that. I reckon I follow you. No, I can't do that—not now. If I get into business over the line I'll disarm, but in this country a fellow needs to be protected. I want this book!"

"For the fly-leaf?"

He smiled in return. "You've hit it."

She hesitated. "I'll give you the book if you'll promise to read it."

He clapped the covers together and put the volume in his pocket. "It's mine! I'll read every word of it, if it takes an age, and here's my hand on it."

She gave him her hand, and in this clasp something came to her from his clutching fingers which sobered her. She drew her hand away hastily and said: "If you read that book—and think about it—it will change your whole world."

He, too, lost his brightness. "Well, I'm not so anxious to keep up this kind of life. But if anybody changes me it will be you."

"Hush!" she warned with lifted finger.

He fell back, and after a little silence went out to wait upon the fire.

"It seems to me," said Peggy, reprovingly, "that you're too gracious with this mountaineer; he's getting presumptuous."

"He doesn't mean to be. It's his unsophisticated way. Anyhow, we can't afford to be captious to our host."

"That's true," admitted Peggy.

The night shut down with the snow still falling, but with a growing chill in the air.

"The flakes are finer," the outlaw announced, as he came in a little later. "That is a good sign. It is growing colder and the wind is changing. It will pinch hard before sun-up, and the worst of it, there's no way to warm the cabin. We can't have the door open to-night. I'm worried about you," he said to Alice. "If only those chumps had left a man-size ax!"

The two women understood that this night was to bring them into closer intimacy with the stranger than before. He could not remain outdoors, and though they now knew something of his desperate character, they had no fear of him. He had shown his chivalry. No one could have been more considerate of them, for he absented himself at Peggy's request instantly

and without suggestion of jocularly, and when he came in and found them both in bed he said:

"I reckon I'll not make down to-night—you'll need all your blankets before morning"; and thereupon, without weighing their protests, proceeded to spread the extra cover over them.

Alice looked up at him in the dim light of the candle and softly asked: "What will you do? You will suffer with cold!"

"Don't worry about me; I'm an old campaigner. I still have a blanket to wrap around my shoulders. I'll snooze in a corner. If you hear me moving around don't be worried; I'm hired to keep the fire going even if it doesn't do us much good inside."

The chill deepened. The wind began to roar, and great masses of snow, dislodged from the tall trees above the cabin, fell upon its roof with sounds like those of soft, slow footfalls. Strange noises of creaking and groaning and rasping penetrated to Alice's ears, and she cowered half in fear, half in joy of her shelter and her male protector. Men were fine animals for the wild.

She fell asleep at last, seeing her knight's dim form propped against the wall, wrapped in a blanket Indian-wise, his head bowed over the book she had given him, a candle smoking in his hand.

She woke when he rose to feed the fire, and the current of cold air which swept in caused her to cover her mouth with the blanket. He turned toward her.

"It's all over for sure, this time," he said. "It's cold and goin' to be colder. How are you standing it? If your feet are cold I can heat a stone. How is the hurt foot?" He drew near and looked down upon her anxiously.

"Very much easier, thank you."

"I'm mighty glad of that. I wish I could take the pain all on myself."

"You have troubles of your own," she answered, as lightly as she could.

"That's true, too," he agreed in the same tone. "So many that a little one more or less wouldn't count."

"Do you call my wound little?"

"I meant the foot was little—"

She checked him.

"I didn't mean to make light of it. It sure is no joke." He added, "I've made a start on the book."

"How do you like it?"

"I don't know yet," he answered, and went back to his corner.

She snuggled under her warm quilts again, remorseful, yet not daring to suggest a return of the blanket he had lent. When she woke again he was on his feet, swinging his arms silently. His candle had gone out, but a faint light was showing in the room.

"Is it morning?" she asked.

"Just about," he replied, stretching like a cat.

The dawn came gloriously. The sun in far-splashing splendor slanted from peak to peak, painting purple shadows on the snow and warming the boles of the tall trees till they shone like fretted gold. The jays cried out as if in exultation of the ending of the tempest, and the small stream sang over its icy pebbles with resolute cheer. It was a land to fill a poet with awe and ecstatic praise—a radiant, imperial, and merciless landscape. Trackless, almost soundless, the mountain world lay waiting for the alchemy of the sun.

VI

The morning was well advanced when a far, faint halloo broke through the silence of the valley. The ranger stood like a statue, while Peggy cried out:

"It's one of our men!"

Alice turned to the outlaw with anxious face. "If it's the sheriff stay in here with me. Let me plead for you. I want him to know what you've done for us."

The look that came upon his face turned her cold with fear. "If it is the sheriff—" He did not finish, but she understood.

The halloo sounded nearer and the outlaw's face lightened. "It's one of your party. He is coming up from below."

Impatiently they waited for the new-comer to appear, and though he seemed to draw nearer at every shout, his progress was very slow. At last the man appeared on the opposite bank of the stream. He was covered with snow and stumbling along like a man half dead with hunger and fatigue.

"Why, it's Gage!" exclaimed Peggy.

It was indeed the old hunter, and as he drew near his gaunt and bloodless face was like that of a starved and hunted animal. His first word was an anxious inquiry, "How are ye?"

"All well," Peggy answered.

"And the crippled girl?"

"Doing nicely. Thanks to Mr. Smith here, we did not freeze. Are you hungry?"

The guide looked upon the outlaw with glazed, protruding eyes. "Hungry? I'm done. I've been wallerin' in the snow all night and I'm just about all in."

"Where are the others?" called Alice from her bed.

Gage staggered to the door. "They're up at timber-line. I left them day before yesterday. I tried to get here, but I lost my bearin's and got on the wrong side o' the creek. 'Pears like I kept on the wrong side o' the hogback. Then my horse gave out, and that set me afoot. I was plum scared to death about you folks. I sure was."

Peggy put some food before him and ordered him into silence. "Talk later," she said.

The outlaw turned to Alice. "That explains it. Your Professor Ward trusted to this man to take care of you and stayed in camp. You can't blame him."

Gage seemed to have suddenly become old, almost childish. "I never was lost before," he muttered, sadly. "I reckon something must have went wrong in my head. 'Pears like I'm gettin' old and foolish."

Alice exchanged glances with the outlaw. It was plain that he was in no danger from this dazed and weakened old man who could think of nothing but the loss of his sense of direction.

As the day advanced the sun burned clear. At noon it was warm enough to leave the door open, and Alice, catching glimpses of the flaming world of silver and purple and gold, was filled with a desire to quit her dark corner.

"I'm going to get up!" she exclaimed. "I won't lie here any longer."

"Don't try it!" protested Peggy.

"I'm going to do it!" she insisted. "I can hobble to the door if you help me."

"I'll carry you," said the outlaw. "Wrap her up and I'll get her a seat."

And so, while Mrs. Adams wrapped her patient in a blanket, the outlaw dragged one of the rough, ax-hewn benches to the door and covered it with blankets. He put a stone to heat and then re-entered just as Alice, supported by Peggy, was setting foot to the floor. Swiftly, unhesitating, and very tenderly he put his arms about her and lifted her to the bench in the doorway before the fire.

It was so sweet to feel that wondrous body in his arms. His daring to do it surprised her, but her own silent acquiescence, and the shiver of pleasure which came with the embarrassment of it, confused and troubled her.

"That's better," he said as he dropped to the ground and drew the blankets close about her feet. "I'll have a hot stone for you in a minute."

He went about these ministrations with an inward ecstasy which shone in his eyes and trembled in his voice. But as she furtively studied his face and observed the tremor of his hands in tender ministration she lost all fear of him.

After three days in her dark corner of the hut the sunshine was wondrously inspiring to the girl, although the landscape on which she gazed was white and wild as December. It was incredible that only a few hours lay between the flower-strewn valley of her accident and this silent and desolate, yet beautiful, wilderness of snow. And so, as she looked into the eyes of the outlaw, it seemed as though she had known him from spring to

winter, and her wish to help him grew with every hour of their acquaintanceship.

She planned his defense before Ward and Adams. "When they know how kind and helpful he has been they can but condone his one rash deed," she argued in conclusion.

He was sitting at her feet, careless of time, the law, content with her nearness, and mindful only of her comfort, when a distant rifle-shot brought him to his feet with the swiftness of the startled stag.

"That's your expedition," he said, "or some one who needs help."

Again the shots rang out, *one, two, three—one, two, three*. "It's a signal! It's your party!"

Peggy uttered a cry of joy and rushed outside, but Alice turned an unquiet gaze on the outlaw. "You'd better fly!"

"What is the use?" he answered, bitterly. "The snow is so deep there is no show to cross the range, and my horse is weak and hungry."

Gage appeared at the door. "Lemme take your gun, stranger; I want to answer the signal."

"Where's your own?"

"I left it on my horse," the old man answered, sheepishly.

The young fellow looked at Alice with a keen glitter in his eyes. "I'll make answer myself," he said; "I'm very particular about my barkers."

Alice, as she heard his revolver's answering word leap into the silent air and bound and rebound along the cliffs, was filled with a sudden fear that the sheriff might be guided back by the sound—and this indeed the fugitive himself remarked as he came back to his seat beside her.

"If he's anywhere on this side of the divide he'll sure come back. But I've done my best. The Lord God Almighty has dropped the snow down here and shut me in with you, and I'm not complaining."

There was no answer to be made to this fatalism of utterance, and none to the worship of his eyes.

"Lift me up!" commanded Alice; "I want to look out and see if I can see anybody."

The outlaw took her in his arms, supporting her in the threshold in order that she might see over the vast sea of white. But no human being was to be seen.

"Take me back—inside," Alice said to the man who had her in his arms. "I feel cold here."

Once again, and with a feeling that it was, perhaps, for the last time, he carried her back to her bench and re-enveloped her in her blankets.

"Stay here with me now," she whispered to him, as she looked up into his face.

And the outlaw, filled with gladness and pride, threw himself on the floor beside her.

VII

The signal pistol-shots came nearer and nearer, but very slowly; and as the outlaw sat beside Alice's couch he took her Bible from his pocket and said:

"I made a stab at reading this last night."

She smiled. "I saw you. How did you like it?"

"I didn't exactly get aboard someway."

"What was the trouble?"

"I guess it was because I kept thinking of you—and my own place in the game. Three days ago I didn't care what became of me, but now I want a chance. I don't see any chance coming my way, but if I had it I'd make use of it." He looked at her a moment in silence, then with sudden intensity broke forth. "Do you know what you mean to me? When I look at your face and eyes I'm crazy hungry for you."

She shrank from him and called to Mrs. Adams.

He went on. "Oh, you needn't be afraid. I just wanted to say it, that's all. If there was only some other way to straighten myself—but I can't go to jail.

I can't stand up to be clipped like a poodle-dog, then put on striped clothing and walk lock-step—I can't do it! They'll put me in for ten years. I'd be old when I got out." He shuddered. "No, I won't do that! I'd rather die here in the hills."

She grew white in sympathy. "It is a frightful price to pay for one insane act, and yet—crime should be punished."

"I'm getting my punishment now," he replied, with darkly brooding glance. "There's a good old man and two women, my sisters, waitin' for me down the slope. If I could reach home I'd try to live straight, but it's a long and dangerous trail between here and there."

Peggy now ran into the cabin. "It's the expedition," she announced. "I can see Freeman."

"I reckon this is where I get off," said the outlaw in a tone of mingled relief and dismay.

"No, no!" Alice entreated. "Stay till Freeman comes. He will help you. Let me explain to him. I know he will not betray you."

He looked at her again with that intent, longing worship in his eyes, and answered, "I accept the chance for the sake of one more hour with you."

The outlaw stepped to the door, and he saw a man at the head of his train mid-leg deep in snow, leading his horse, breaking the way for his followers, who were all on foot, crawling, stumbling, and twisting among the down-timber, unmindful of the old trail.

At sight of that big and resolute leader, with flowing black beard and ruddy face, the outlaw was filled with jealous sadness. To find Ward a man of superb physical prowess, the kind that measures peaks for the fun of it, was disturbing, and without defining his feeling he was plunged into melancholy musing. And when later Ward entered, and, stooping over the couch, kissed Alice, the end of his idyl seemed to him announced.

In the bustle of the moment, in the interchange of anxious, hurried inquiries, the outlaw stood aside in the corner, unnoticed, till Alice caught Ward's arm and said:

"Freeman, this is Mr. Smith, to whom we owe a great deal. He has taken the utmost care of us. We would have frozen but for him."

Ward shook hands with the outlaw, but wonderingly asked of Alice, "But where was Gage?"

The outlaw answered, "Gage got lost and only turned up a couple of hours ago."

Ward turned to Alice in horror. "Good Lord! And you were here alone—crippled—in this storm?"

"No—that's what I'm telling you. Mr. Smith came and took care of us. He brought our wood, he cooked for us, he kept our fire going. He gave up his bed, even his blankets, for us. You should be very generous to him."

Ward again reached a hearty hand. "I'm tremendously obliged to you."

The outlaw quailed under all this praise. "There was mighty little to do," he answered. "I only shared my fire with them."

Ward studied him closer. "Haven't we met before?"

"No, I reckon not."

"I'm quite sure I've seen you somewhere. What are you doing up in here?"

Alice interposed. "What are we going to do?"

Ward turned to the outlaw. "What would you advise? I've only had one idea, and that was to reach this cabin. Now what would you do?"

The outlaw was ready. "I would send a part of the men with the horses down the valley to grass and I'd wait here till Miss Mansfield is able to ride."

"Will this snow go off?"

"That's my notion."

"It's certain we can't camp here—the horses must have grass."

"I'll be able to ride in a day or two," Alice said, bravely.

"We could frame up a portable bed and carry you," suggested the outlaw; "but it can't be done to-night, so you'd better send your outfit down to the marsh to camp. The horses are worn out and so are the men."

"Will you guide them to grass and help them find shelter?"

The outlaw hesitated for an instant, and Alice interposed: "No, no! let Gage do that. I want Mr. Smith to remain here."

Ward perceived in her entreaty something of anxiety and fear, and after the men and horses had started down the slope he turned to the outlaw and said: "I'm mighty grateful to you, Mr. Smith. It must have surprised you to find these women here."

The outlaw dryly replied, "It did!"

Alice added: "It was in the middle of the night, too; but Mr. Smith was very nice about it. He slept outdoors without a word of complaint."

Ward had figured the situation to conclusion: "Smith is a poacher," and though he had a savage dislike of these illicit game-slaughterers, he could not but be glad of the presence of this particular outlaw, and resolved to overlook his trade in gratitude for his cabin and service.

The outlaw helped Adams and Ward to clear away the snow for a tent, and Alice, seeing the three men thus amicably joined in her defense, could not find it in her heart to condemn one of them as a criminal. Here in the white isolation of the peaks the question of crime and its punishment became personal. To have this man's fate in her hand was like grasping the executioner's sword for herself.

"If women had to punish criminals themselves, with their own hand," she asked, "how many of them would do it?"

Peggy came in and whispered to her: "No one else seems to have recognized him. He may get away safely. I hope he will. Shall we tell the men who he is?"

"Yes, we shall have to do that soon, but I'm afraid they won't take the sentimental view of him that we do. I tremble to think of what they will do when they know."

Ward explained to Adams: "Our friend Smith here is a poacher—but as our account stands I don't feel it my duty to report him, do you?"

"No; Peggy tells me he has acted like a gentleman all through."

In this spirit they made themselves comfortable for the night.

The sun set gloriously, but the air bit ever sharper, and while Peggy went about her cooking, assisted by her husband and the outlaw, Alice pulled Ward down to her bedside and hurriedly began:

"You remember that placard we read in the station—the one about the train-robber?"

"Yes!"

"Well, this is the man—our Mr. Smith."

Ward looked at her a moment with reflective eyes, then exclaimed: "You're right! I thought I'd seen him somewhere."

"And the sheriff is after him. He was here yesterday morning."

"Here?"

"Yes. You see, Mr. Smith stayed with us till he thought the storm was over, then rode away, intending to cross the divide, but when the snow began again he turned back. He said he couldn't leave us alone. He left us just before dawn, and four or five hours afterward the sheriff came. Of course he saw the poor fellow's trail and instantly set off after him."

"But why didn't they meet?"

"Because Mr. Smith came back a different way and then the blizzard came on and covered up his tracks. He thinks the sheriff has gone on over the divide. You must help him, Freeman. Help him to get away and find some way to give him a start. Nobody could have been more considerate, and I can't see him taken by these cold-blooded men who want that two thousand dollars' reward. He really could have escaped, only for us. He came back to protect us."

Ward pondered. "The problem is not so easy of solution. A train robbery is a pretty serious matter. I'm very grateful to him, but to connive at his escape is itself a punishable act. Why did you tell me? I could have passed it over—"

"Because I'm afraid the sheriff may come back at any moment."

Ward's brow was troubled. "I could ignore his deed and pretend not to know who he is, but definitely to assist a bandit to escape is a very serious matter."

"I know it is; but remember he gave up his chance to cross the divide in order to keep us from suffering."

"I wish you hadn't told me," he repeated, almost in irritation. "If the sheriff only keeps on over the range Smith can take care of himself."

As the outlaw re-entered the cabin Alice acknowledged in him something worth a woman to love. In the older man was power, security, moral, mental, and physical health, the qualities her reason demanded in a husband; but in the other was grace and charm, something wildly admirable. He allured as the warrior, intrepid and graceful, allured the maiden, as the forest calls the householder. Something primordial and splendid and very sweet was in her feeling toward him. There could be no peaceful wedlock there, no security of home, no comfort, only the exquisite thrill of perilous union, the madness of a few short weeks—perhaps only a few swift days of self-surrender, and then, surely, disaster and despair. To yield to him was impossible, and yet the thought of it was tantalizingly sweet.

When she looked toward Ward she perceived herself sitting serenely in matronly grace behind a shining coffee-urn in a well-ordered, highly civilized breakfast-room, facing a most considerate husband who nevertheless was able to read the morning paper in her presence. When she thought of life with the outlaw all was dark, stormy, confused, and yet the way was lit by his adoring eyes. A magical splendor lay in the impulse. His love, sudden as it seemed, was real—she was certain of that. She felt the burning power, the conjury of its flame, and it made her future with Ward, at the moment, seem dull and drab.

"Why, why could not such a man and such a passion come with the orderly and the ethical?" she asked herself.

At the best he was fitted only for the mine or the ranch, and the thought of life in a lonely valley, even with his love to lighten it, made her shudder. On one side she was a very practical and far-seeing woman. The instant she brought her reason to bear on the problem she perceived that any further acquaintance with this man was dangerous. They must part here at this moment, and yet she could not let him go without in some way making him feel her wish to help him.

VIII

Ward and the outlaw were discussing plans for getting out of the basin when Adams came in to say, "A couple of other weary wanderers are turning up."

"The sheriff!" instantly exclaimed Alice, her face whitening in swift dismay.

In that moment the forester was transformed. With a weapon in his hand he stood aside, his eyes on the door, a scowl of battle on his face. He resembled a wolf with bared fangs ready to die desperately.

Ward, quick to read his purpose, interposed. "Wait!" he commanded. "Stay here; I'll see them. Don't be rash."

As he passed out into the firelight the outlaw, without relaxing his vigilance, said in a low voice, "Well, girl, I reckon here's where I say good night."

"Don't resist," she pleaded. "Don't fight, please! Please! What is the use? Oh, it's too horrible! If you resist they will kill you!"

There was no fear in his voice as he replied: "They may not; I'm handy with my gun."

She was breathless, chilled by the shadow of the impending tragedy. "But that would be worse. To kill them would only stain your soul the deeper. You must not fight!"

"It's self-defense."

"But they are officers of the law."

"No matter; I will not be taken alive."

She moaned in her distress, helplessly wringing her hands. "O God! Why should I be witness of this?"

"You won't be. If this is the sheriff I am going to open that door and make a dash. What happens will happen outside. You need not see it. I'm sorry you have to hear it. But I give you my word—if you must hear something I will see to it that you hear as little as possible."

The latch clicked—he stepped back, and again stood waiting, silent, rigid, ready to act, murderous in design.

Mrs. Adams entered quickly, and, closing the door behind her, hurriedly whispered: "It's the sheriff. Hide! The men will hold them as long as they can. Hide!"

The outlaw looked about and smiled. "Where?" he asked, almost humorously. "I'm not a squirrel."

"Under the bunk. See, there is room."

He shook his head. "No, I refuse to crawl. I won't sneak. I never have. I take 'em as they come."

"For my sake," pleaded Alice. "I can't bear to see you killed. Hide yourself. Go to the door," she said to Peggy. "Don't let them in. Tell Freeman—" She rose and stood unsteadily, forgetful of her own pain.

Mrs. Adams urged her to lie down, but she would not. The moments passed in suspense almost too great to be endured.

"Listen!" commanded the outlaw. "They're coming in."

As they harkened Ward's voice rose clearly. "You can't miss the camp," he was saying, as if speaking to some one at a distance. "Just keep the trail in the snow and you'll find them. I'm sorry we can't put you up—but you see how it is."

"They're going!" exclaimed Alice. "Thank God, they're going!"

"It can't be they'll go without searching the shack," the fugitive muttered, in no measure relaxing his attitude of watchful menace. "They're playing a game on us."

Again the latch clicked, and this time it was Ward who confronted the outlaw's revolver mouth.

"It's all right," Ward called, instantly understanding the situation. "They're gone. The old man was about played out, for they've been fighting snow all day, but I told him we couldn't take care of them here and they have gone on down to the camp. He thinks you got over the divide. You are all right for the present."

"They'll come back," replied the other. "It only puts the deal off a few hours. They'll return, trailin' the whole camp after them. What can I do? My horse is down there in the herd."

"That's bad," exclaimed Ward. "I wonder if I could get him for you?"

"If I had him he's weak and hungry, and the high places are feet deep in drifts. It doesn't signify. I'm corralled any way you look at it, and the only thing left is to fight."

"There's our trail to the glacier," Ward musingly suggested; "it's a pretty deep furrow—you might make it that way."

A spark of light leaped into the man's eyes. "How far up does it run? Where does it end?"

"In Glacier Basin, just at timber-line."

The outlaw pondered, speaking his thought aloud. "From there across to the Indian reservation there isn't a wolf track.... It's a man's job crossing there, almost sure death, but it's my only show." He had replaced his weapon in his belt and was weighing his chance, his eyes fixed on Alice's face. To leave this shelter, this warm circle of light, this sweet girlish presence, and plunge into the dark, the cold and the snow, was hard. No one but a man of unconquerable courage would have considered it. This man was both desperate and heroic. "It's my only chance and I'll take it," he said, drawing his breath sharply. "I'll need your prayers," he added, grimly, with eyes that saw only the girl. "If I fail you'll find me up there. I carry my sleeping-powder with me." He touched his revolver as he spoke.

Alice's mind, sweeping out over that desolate expanse, had a moment's vision of him as he would appear toiling across those towering cliffs, minute as a fly, and her heart grew small and sick.

"Why don't you stay and take your lawful punishment?" she asked. "You will surely perish up there in the cold. Wait for sunlight at least."

"I am ready to stay and to die here, near you," he replied, with a significant glance.

"No, no, not that!" she cried out. "Talk to him, Freeman; persuade him to give himself up. I've done my best to influence him. Don't let him uselessly sacrifice himself."

Ward perceived something hidden in her voice, some emotion which was more than terror, deeper than pity, but his words were grave and kindly. "It is a frightful risk, young man, but the trail to the glacier is your only open road. The sheriff is tired. Even if he finds out that you are here he may not come back to-night. He will know you cannot escape. You can't stir without leaving a telltale mark. If you could only get below the snow on the west slope—"

"Whichever trail I take it's good-by," interrupted the fugitive, still addressing Alice. "If there was anything to live for—if you'd say the word!"—she knew what he meant—"I'd stay and take my schooling." He waited a moment, and she, looking from his asking face to Ward's calm brow, could not utter a sound. What could she promise? The outlaw's tone softened to entreaty. "If you'll only say I may see you again on the other side of the range 'twill keep my heart warm. Can't you promise me that? It's mighty little."

He was going to almost certain death, and she could not refuse this. "You may write to me—" she faltered. "You know my address—"

He struck the little book in his pocket. "Yes, I have it safe. Then I may see you again?"

Alice, supported by Mrs. Adams, unsteadily rose. "Yes, yes, only go. They are coming back! I can hear them."

He took her hand. "Good-by," he said, chokingly. "You've given me heart." He bent swiftly and kissed her forehead. "I'll win! You'll hear from me."

"Hurry!" she wildly cried. "I hear voices!"

He caught up his hat and opened the door. As he faced them his lips were resolute and his eyes glowing. "It's only good night," he said, and closed the door behind him.

"Hold!" shouted Ward. "You must take some food." He tore the door open. "Wait—"

Even as he spoke a pistol-shot resounded through the night. It cut through the deathly silence of the forest like a spiteful curse, and was answered by another—then, after a short pause, a swift-tearing volley followed.

"They are killing him!" cried Alice.

They brought him in and laid him at her feet. He had requested this, but when she bent to peer into his face he had gone beyond speech. Limp and bloody and motionless he lay, with eyes of unfathomable regret and longing, staring up at her, and as the men stood about with uncovered heads she stooped to him, forgetful of all else; knelt to lay her hand upon his brow.

"Poor boy! Poor boy!" she said, her eyes blinded with tears.

His hand stirred, seeking her own, and she took it and pressed it in both of hers. "Jesus be merciful!" she prayed, softly.

He smiled faintly in acknowledgment of her presence and her prayer, and in this consolation died.

Wonderingly, with imperious frown, she rose and confronted the sheriff. "How is it that you are unhurt? Did he not fight?"

"That's what I can't understand, miss," he answered. "He fired only once, and then into the air. 'Pears like he wanted to die."

Alice understood. His thought was of her. "You shall hear as little as possible," he had said.

"And you killed him—as he surrendered," she exclaimed, bitterly, and turned toward the dead man, whose face was growing very peaceful now, and with a blinding pain in her eyes she bent and laid a final caressing hand upon his brow.

As she faced the sheriff again she said, with merciless severity: "I'd rather be in his place than yours." Then, with a tired droop in her voice, she appealed to Ward: "Take me away from here. I'm tired of this savage world."

THE LEASER

*—the tenderfoot hay-roller from the
prairies—still tries his luck in some
abandoned tunnel—sternly toiling for his
sweetheart far away.*

VIII

THE LEASER

The only passenger in the car who really interested me was a burly young fellow who sat just ahead of me, and who seemed to be something more than a tourist, for the conductor greeted him pleasantly and the brakeman shook his hand. We were climbing to Cripple Creek by way of the Short Line, but as "the sceneries" were all familiar to me, I was able to study my fellow-passengers.

The man before me was very attractive, although he was by no interpretation a gentle type. On the contrary, he looked to be the rough and ready American, rough in phrase and ready to fight. His corduroy coat hunched about his muscular shoulders in awkward lines, and his broad face, inclining to fat, was stern and harsh. He appeared to be about thirty-five years of age.

The more I studied him the more I hankered to know his history. The conductor, coming through, hailed him with:

"Well, gettin' back, eh? Had a good trip?"

Once or twice the miner—he was evidently a miner—leaned from the window and waved his hat to some one on the crossing, shouted a cheery, "How goes it?" and the brakeman asked:

"How did you find the East?"

From all this I deduced that the miner had been away on a visit to New York, or Boston, or Washington.

As we rose the air became so cool, so clear, so crisp, that we seemed to be entering a land of eternal dew and roses, and as our car filled with the delicious scent of pine branches and green grasses, the miner, with a solemn look on his face, took off his hat and, turning to me, said, with deep intonation:

"This is what I call *air*. This is good for what ails me."

"You've been away," I stated rather than asked.

"I've been back East—back to see the old folks—first time in eleven years."

"What do you call East?" I pursued.

"Anything back of the Missouri River," he replied, smiling a little. "In this case it was Michigan—near Jackson."

"Citizen of the camp?" I nodded up the cañon.

"Yes, I'm workin' a lease on Bull Hill."

"How's the old camp looking?"

"All shot to pieces. Half the houses empty, and business gone to pot. It's a purty yellow proposition now."

"You don't say! It was pretty slow when I was there last, but I didn't suppose it had gone broke. What's the matter of it?"

"Too many monopolists. All the good properties have gone into one or two hands. Then these labor wars have scared operators away. However, I'm not complainin'. I've made good on this lease of mine." He grinned boyishly. "I've been back to flash my roll in the old man's face. You see, I left the farm rather sudden one Sunday morning eleven years ago, and I'd never been back." His face changed to a graver, sweeter expression. "My sister wrote that mother was not very well and kind o' grievin' about me, so, as I was making good money, I thought I could afford to surprise the old man by slapping him on the back. You see, when I left, I told him I'd never darken his door again—you know the line of talk a boy hands out to his dad when he's mad—and for over ten years I never so much as wrote a line to any of the family."

As he mused darkly over this period, I insinuated another question. "What was the trouble?"

"That's just it! Nothing to warrant anything more than a cuss-word, and yet it cut me loose. I was goin' around now and then with a girl the old man didn't like—or rather, my old man and her old man didn't hitch—and, besides, her old man was a kind of shiftless cuss, one o' these men that

raised sparrows in his beard, and so one Sunday morning, as I was polishin' up the buggy to go after Nance, who but dad should come out and growl:

"'Where ye goin' with that buggy?'

"'None o' your dam' business,' I snaps back, hot as hell in a secunt, 'but just to touch you up, I'll tell you. I'm goin' over to see Nance McRae.'

"Well, sir, that set him off. 'Not with my horses,' says he, and, grabbin' the buggy by the thills, he sent it back into the shed. Then he turned on me:

"'If you want to see that girl, you walk! I won't have you usin' my tired animals to cart such trash—'

"I stopped him right there. He was a big, raw-boned citizen, but I was a husky chunk of a lad myself and ready to fight.

"'Don't you speak a word against Nance,' I says, 'for if you do I'll waller ye right here and now; and as for your horse and buggy, you may keep 'em till the cows come home. Here's where I get off. You'll never see me again.'

"Gee! I was hot! I went in, packed up my grip, and hit the first train for the West."

"Just as thousands of other angry boys have done," I said, realizing to the minutest detail this scene. "They never think of going East."

"No, the West is the only place for a man in trouble—at least, so it seems to me."

"Where did you go? What did you do?"

He mused again as if recalling his struggles. "I dropped off in Kansas and got a job on a farm and fussed around there for the fall and winter. Then I got the minin' fever and came to Victor. Of course, there wasn't anything for a grass-cutter like me to do in the hills but swing a pick. I didn't like underground work, and so I went on a ranch again. Well, I kept tryin' the minin' game off and on, prospectin' here and there, and finally I got into this leasin' business, and two years ago I secured a lease on the 'Red Cent' and struck it good and plenty. Oh, I don't intend to say it's any Portland—but it pays me and I've been stackin' up some few dollars down at the Commercial Bank, and feelin' easy."

The man's essential sturdiness of character came out as he talked, and his face lost the heavy and rather savage look it had worn at first. I had taken a seat beside him by this time and my sincere interest in his affairs seemed to please him. He was eager to talk, as one who had been silent for a long time.

I led him back to the point of most interest to me. "And so at last you relented and went home? I hope you found the old folks both alive? Did they know where you were?"

"Yes. My sister saw my name in a paper—when I made my stake—and wrote, and mother used to send word—used to mention dad occasionally." He laughed silently. "It sure is great fun, this goin' back to the home pasture with a fat wad in your pants pocket—Lord! I owned the whole town."

"Tell me about it!" I pleaded.

He was ready to comply. "Our house stood near the railway, about four miles this side of Jackson, and you bet I had my head out of the window to see if it was all there. It was. It looked just the same, only the old man had painted it yellow—and seemed like I could see mother settin' on the porch. I'd had it all planned to hire the best automobile in town and go up there in shape to heal sore eyes—but changed my plan.

"I'll give 'em more of a shock if I walk out and pretend to be poor and kind o' meek," I says to myself.

"So I cached my valise at the station and I wallered out there through the dust—it was June and a dry spell and hot. Judas priest! I thought I'd sweat my wad into pulp before I got there—me just down from the high country! On the way I got to wonderin' about Nancy. 'Is she alive, I wonder?'

"Do you mean to say you left *her* without a word of good-by?"

He looked down at his knee and scratched a patch of grease there. "That's what! I was so blame mad I cut loose of the whole outfit. Once or twice sis had mentioned Nance in a casual kind of way, but as I didn't bite—she had quit fishin', and so I was all in the dark about her. She might 'ave been dead or married or crazy, for all I knew. However, now that I was on my way back with nineteen thousand dollars in the bank and a good show for more, I kind o' got to wonderin' what she was sufferin' at."

"I hope she was married to a banker in town and the owner of an electric brougham. 'Twould have served you right."

He smiled again and resumed his story. "By the time I reached the old gate I was dusty as a stage-coach, and this old corduroy suit made me look as much like a tramp as anybody. As I came onto the old man he was waterin' a span o' horses at the well. Everything looked about the same, only a little older—he was pretty gray and some thinner—and I calls out kind o' meek-like:

""Can I get a job here, mister?"

"He looked me over a spell, then says, 'No, for I'm purty well supplied with hands.'

""What you need is a boss,' I says, grinnin'.

"Then he knew me, but he didn't do no fancy start—he just growled out kind o' surly:

""I'm competent to do all the bossin' on this place,' he says.

""You may think so,' I joshed him, 'but if I couldn't keep a place lookin' a little slicker 'n this, I'd sell out and give some better man a chance.'

"Did that faze him? Not on your life. He checked up both horses before he opened his mouth again.

""You don't look none too slick yourself. How comes it you're trampin' this hot weather?"

"I see what he was driving at and so I fed him the dope he wanted.

""Well, I've had hard luck,' I says. 'I've been sick.'

""You don't look sick,' he snapped out, quick as a flash. 'You look tolerable husky. You 'pear like one o' these chaps that eat up all they earn—eat and drink and gamble,' he went on, pilin' it up. 'I don't pity tramps a bit; they're all toppers.'

"I took it meek as Moses.

""Well,' I says, 'I'm just out of the hospital, and whilst I may seem husky, I need a good quiet place and a nice easy job for a while. Moreover, I'm terrible hungry.'

"'You go 'long up to the house,' he says, 'and tell the girl in the kitchen to hand you out a plate of cold meat. I'll be along in a minute.'

"And off he went to the barn, leavin' me shakin' with his jolt. He was game all right! He figured me out as the prodigal son, and wa'n't goin' to knuckle. He intended for me to do all the knee exercise. I drifted along up the path toward the kitchen.

"Judas! but it did seem nice and familiar. It was all so green and flowery after camp. There ain't a tree or a patch of green grass left in Cripple; but there, in our old yard, were lylock-trees, and rose-bushes climbin' the porch, and pinks and hollyhocks—and beehives, just as they used to set—and clover. Say, it nearly had me snifflin'. It sure did."

The memory of it rather pinched his voice as he described it, but he went on.

"Of course I couldn't live down there now—it's too low, after a man has breathed such air as this."

He looked out at the big clouds soaring round Pike's Peak.

"But the flowers and the grass they did kind o' get me. I edged round on the front side of the house, and, sure enough, there sat mother, just as she used to—in the same old chair.

"Cap, I want to tell you, I didn't play no circus tricks on *her*. Her head had grown white as snow and she looked kind o' sad and feeble. I began to understand a little of the worry I'd been to her. I said good evening, and she turned and looked at me. Then she opened her arms and called out my name."

His voice choked unmistakably this time, and it was a minute or two before he resumed.

"No jokes, no lies doin' there! I opened right up to her. I told her I'd done well, but that I didn't want father to know it just yet, and we sit there holdin' hands when the old man hove round the corner.

"'Stephen,' says mother, kind o' solemn, 'here's our son Edward.'

"Did the old man wilt, or climb the line fence and offer to shake hands? Nitsky! He just shoved one hip onto the edge of the porch and remarked:

"Does this dry spell reach as far as where you've been?"

He broke into silent laughter again, and I joined him. This was all so deeply characteristic of the life I had known in my youth that I writhed with delight. I understood the duel of wits and wills. I could see it proceed as my companion chuckled.

"Well, sir, we played that game all the evening. I told of all the bad leases I'd tackled—and how I'd been thrown from a horse and laid up for six months. I brought out every set-back and bruise I'd ever had—all to see if the old man would weaken and feel sorry for me."

"Did he?"

"Not for a minute! And sometimes, as I looked at him, I was sorry I'd come home; but when I was with mother I was glad. She 'phoned to sis, who lived in Jackson, and sis came on the lope, and we had a nice family party. Sis touched on Nancy McRae.

"You remember her?' she asked.

"I seem to,' I says, kind of slow, as if I was dredgin' my mind to find something.

"Well, she's on the farm, just the same as ever—takin' care of the old man. Her mother's dead.'

"I didn't push that matter any farther, but just planned to ride over the next morning and see how she looked.

"All that evening sis and I deviled the old man. Mother had told sis about my mine—and so she'd bring out every little while how uncertain the gold-seekin' business was and how if I'd stayed on the farm I could 'a' been well off—and she'd push me hard when I started in on one of my hard-luck stories. I had to own up that I had walked out to save money, and that I was travelin' on an excursion ticket 'cause it was cheap—and so on.

"The old man's mouth got straighter and straighter and his eyes colder—but I told mother not to say anything till next day, and she didn't, although he tossed and turned and grunted half the night. He really took it hard; but he finally agreed to harbor me and give me a chance—so mother told me next morning—which was Sunday. I had planned to get home Saturday night.

"Next morning after breakfast—and it *was* a breakfast—I strolled out to the barn and, the carriage-shed door being open, I pulled the old buggy out—'peared like it was the very same one, and I was a-dustin' the cushions and fussin' around when the old man came up.

""What you doin' with that buggy?" he asks.

""I jest thought I'd ride over and see Nance McRae," I says, just as I did eleven years before.

""I reckon you better think again," he says, and rolls the buggy back into the shed, just the way he did before. 'If you want to see Nance McRae you can walk,' he says, and I could see he meant it.

""All right," I says, and out I stepped without so much as saying good-by, intendin' to go for good this time.

"I went across the road to Martin's and got a chance to 'phone into Jackson, and in about twenty minutes I was whirlin' over the road in a red-cushioned automobile that ran smooth as oil, and inside of half an hour I was rollin' through McRae's gate.

"Now, up to this time, I hadn't any notion of a program as to Nancy; I was all took up with gettin' ahead of dad. But when I found myself in front of old McRae, more down at the heel and raggeder in the seat than ever, I was a whole lot set back. What was I to say to him and to her? I didn't know. He was gappin' at me with the eyes of an owl, and so I opened up.

""I see you have no lightnin'-rods?" I says. 'In this day and age of the world you can't afford to go without lightnin'-rods.'

"He wa'n't no fool, if he did wear rats in his hair, and he says:

""I thought you was a cream-separator man. Are lightnin'-rods comin' into style again?"

""My kind is," I says.

""Well, the trade must be lookin' up," he says, walkin' round and round my machine and eyin' it. 'I'm thinkin' of havin' one of them wagons for haulin' milk to town. Won't you light out?"

""Don't care if I do," I says, and out I rolled, feelin' a little shaky.

"I was mighty anxious to see Nance by this time, but felt shy of askin' about her.

"What *is* the latest kink in rods?' asked the old cuss.

"These kind I sell,' I says, 'are the kind that catch and store the electricity in a tank down cellar. Durin' a thunder-storm you can save up enough to rock the baby and run the churn for a week or two.'

"I want 'o know,' he says. 'Well, we 'ain't got a baby and no churn—but mebbe it would run a cream-separator?'

"Sure it would.'

"All the time we was a-joshin' this way he was a-studyin' me—and finally he said:

"You can't fool me, Ed. How are ye?'

"And we shook hands. I always liked the old cuss. He was a great reader—always talkin' about Napoleon—he'd been a great man if he'd ever got off the farm and into something that required just his kind o' brain-work.

"Come in,' he says. 'Nance will want to see you.'

"The minute he said that I had a queer feelin' at the pit o' my stummick—I did, sure thing. 'It's a little early for a call,' I says, 'and I ain't in Sunday clothes.'

"That don't matter,' he says; 'she'll be glad to see you any time.'

"You'd 'a' thought I'd been gone eleven weeks instead of eleven years.

"Nance wasn't a bit like her dad. She always looked shipshape, no matter what she was a-doin'. She was in the kitchen, busy as a gasoline-motor, when we busted through the door.

"Nance!' the old man called out, 'here's Ed Hatch.'

"She didn't do any fancy stunts. She just straightened up and looked at me kind o' steady for a minute, and then came over to shake hands.

"I'm glad to see you back, Ed,' she says."

The stress of this meeting was still over him, as I could see and hear, and I waited for him to go on.

"She hadn't changed as much as mother. She was older and sadder and kind o' subdued, and her hand felt calloused, but I'd 'a' known her anywhere. She was dressed in a blue calico dress, but she was sure handsome still, and I said to her:

"'You need a change of climate,' I says, 'and a different kind of boss. Colorado's where you ought to be,' I went on.

"For half an hour I kept banterin' her like that, and though she got pink now and then, she didn't seem to understand—or if she did she didn't let on. She stuck to her work whilst the old man and me watched her. Seein' her going about that kitchen that way got me locoed. I always liked to watch mother in the kitchen—and Nance was a genuine housekeeper, I always knew that.

"Finally I says:

"'I hain't got any buggy, Nance—the old man wouldn't let me have one last Sunday—I mean eleven years ago—that's what threw me off the track—but I've got a forty-horse-power car out here. Suppose you put on your best apron and take a ride with me.'

"She made some words as women will, but she got ready, and she did look handsomer than ever as she came out. She was excited, I could see that, but she was all there! No jugglin' or fussin'.

"'Climb in the front seat, dad,' I says. 'It's me and Nance to the private box. Turn on the juice,' I says to the driver.

"Well, sir, we burned up all the grease in the box lookin' up the old neighbors and the places we used to visit with horse and buggy—and every time I spoke to the old man I called him 'Dad'—and finally we fetched up at the biggest hotel in the town and had dinner together.

"Then I says: 'Dad, you better lay down and snooze. Nance and me are goin' out for a walk.'

"The town had swelled up some, but one or two of the old stores was there, and as we walked past the windows I says: 'Remember the time we stood here and wished we could buy things?'

"She kind o' laughed. 'I don't believe I do.'

"'Yes, you do,' I says. 'Well, we can look now to some account, for I've got nineteen thousand dollars in the bank and a payin' lease on a mine.'"

Up to this minute he had been fairly free to express his real feelings—hypnotized by my absorbed gaze—but now, like most Anglo-Saxons, he began to shy. He began to tell of a fourteen-dollar suit of clothes (bought at this store) which turned green in the hot sun.

"Oh, come now!" I insisted, "I want to know about Nancy. All this interests me deeply. Did she agree to come back with you?"

He looked a little bit embarrassed. "I asked her to—right there in front of that window. I said, 'I want you to let me buy you that white dress.'"

"'Judas priest! I can't let you do that,' she says.

"'Why not?' I said. 'We're goin' to be married, anyhow.'"

"'Is that so?' she asked. 'I hadn't heard of it.'"

"Oh, she was no babe, I tell you. We went back to the hotel and woke up the old man, and I ordered up the best machine in the shop—a big seven-seated, shiny one, half as long as a Pullman parlor-car, with a top and brass housin's and extra tires strapped on, and a place for a trunk—an outfit that made me look like a street-railway magnate. It set me back a whole lot, but I wanted to stagger dad—and I did. As we rolled up to the door he came out with eyes you could hang your hat on.

"'What's all this?' he asked.

"I hopped out.

"'Miss McRae,' I says, 'this is my father. Dad, this is Mister McRae. I think you've met before.'"

He chuckled again, that silent interior laugh, and I was certainly grinning in sympathy as he went on.

"'Just help me with this trunk,' I says. 'The horses bein' tired, I just thought I'd have a dray to bring up my duds.'"

"Well, sir, I had him flat down. He couldn't raise a grunt. He stood like a post while I laid off my trunk; but mother and sis came out and were both very nice to Nance. Mother asked her to get out, and she did, and I took 'em

all for a ride later—all but dad. Couldn't get him inside the machine. Nance stayed for supper, and just as we were goin' in dad said to me:

"How much does that red machine cost you an hour?"

"About two dollars."

"I reckon you better send it back to the shop," he says. "You can take Nance home in my buggy."

"It was his surrender; but I didn't turn a hair."

"I guess you're right," I says. "It is a little expensive to spark in—and a little too public, too."

The whistle of the engine announcing the station helped him out.

"Here's Victor, and my mine is up there on the north-west side. You can just see the chimney. I've got another year on it, and I'm goin' to raise dirt to beat hell durin' all the time there is left, and then I'm goin' to Denver."

"And Nance?"

"Oh, she's comin' out next week," he said, as he rose to take down his valise. "I've bought a place at the Springs."

"Good luck to you both," said I, as he swung from the train.

THE FOREST RANGER

*—hardy son of the pioneers—
representing the finer social order of the
future, rides his lonely trail, guarding
with single-hearted devotion the splendid
heritage of us all.*

THE FOREST RANGER

I

One April day some years ago, when the rustling of cattle (a picturesque name for stealing) was still going on in one of our central mountain states, Abe Kitsong, a rancher on the Shellfish, meeting Hanscom, the forest ranger of that district, called out:

"Say, mister, do you know that some feller has taken a claim in our valley right bang up against your boundary line?"

"Yes," replied Hanscom. "I've an eye on him. He's started a cabin already."

"I didn't know that land was open or I'd 'a' took it myself. Who is the old chap, anyway?"

"I don't know where he comes from, but his name is Kauffman—Pennsylvania Dutch, I reckon."

"Watson will be hot when he runs agin' the fence that feller's puttin' up."

"Well, the man's in there and on the way to a clear title, so what are you going to do about it?"

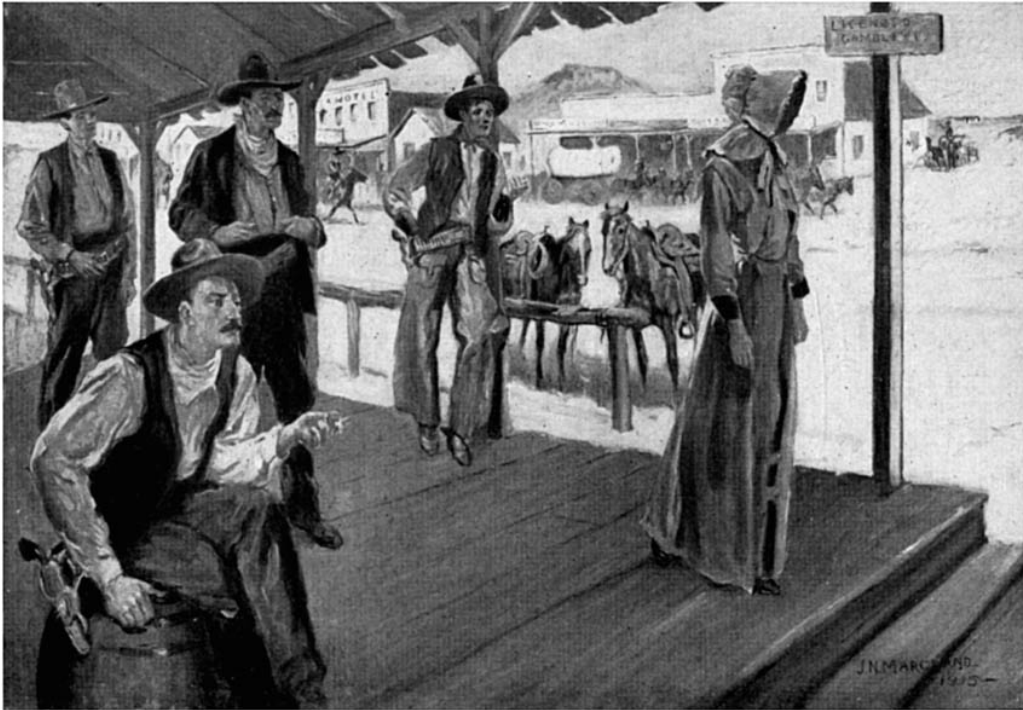
"I don't plan for to do anything, but Watson will sure be sore," repeated Kitsong.

The ranger smiled and rode on. He was a native of the West, a plain-featured, deliberate young fellow of thirty who sat his horse with the easy grace which marks the trailer, while Abe Kitsong, tall, gaunt, long-bearded, and sour-faced, was a Southerner, a cattleman of bad reputation with the alfalfa farmers farther down the valley. He was a notable survivor of the "good old days of the range," and openly resented the "punkin rollers" who were rapidly fencing all the lower meadows. Watson was his brother-in-law, and together they had controlled the upper waters of the Shellfish, making a last stand in the secluded valley.

The claim in question lay in a lonely spot at the very head of a narrow cañon, and included a lovely little meadow close clasped by a corner of the dark robe of forest which was Hanscom's especial care, and which he guarded with single-hearted devotion. The new cabin stood back from the trail, and so for several weeks its owner went about his work in undisturbed tranquillity. Occasionally he drove to town for supplies, but it soon appeared that he was not seeking acquaintance with his neighbors, and in one way or another he contrived to defend himself from visitors.

He was a short man, gray-mustached and somber, but his supposed wife (who dressed in the rudest fashion and covered her head, face, and shoulders with an old-fashioned gingham sunbonnet) was reported by Watson, her nearest neighbor, to be much younger than her husband and comely. "I came on her the other day without that dinged bunnit," said he, "and she's not so bad-looking, but she's shy. Couldn't lay a hand on her."

In spite of this report, for a month or two the men of the region, always alert on the subject of women, manifested but a moderate interest in the stranger. They hadn't much confidence in Watson's judgment, anyhow, and besides, the woman carried herself so ungracefully and dressed so plainly that even the saloon-door loafers cast contemptuous glances upon her as she hurried by the post-office on her way to the grocery. In fact, they put the laugh on Watson, and he would have been buying the drinks for them all had not the postmaster come to his rescue.



THE WOMAN CARRIED HERSELF SO
UNGRACEFULLY AND DRESSED SO PLAINLY
THAT EVEN THE SALOON-DOOR LOAFERS CAST
CONTEMPTUOUS GLANCES UPON HER [ToList](#)

"Ed's right," said he. "She's younger than she looks, and has a right nice voice."

"Is it true that her letters come addressed in two different names?" queried one of the men.

"No. Her letters come addressed 'Miss Helen McLaren.' What that means I can't say. But the old man spoke of her as his daughter."

"I don't take much stock in that daughter's business," said one of the loafers. "There's a mouse in the meal somewhere."

Thereafter this drab and silent female, by her very wish to be left alone, became each day a more absorbing topic of conversation. She was not what she seemed—this was the verdict. As for Kauffman, he was considered a man who would bear watching, and when finally, being pressed to it, he

volunteered the information that he was in the hills for his daughter's health, many sneered.

"Came away between two days, I'll bet," said Watson. "And as fer the woman, why should her mail come under another name from his? Does that look like she was his daughter?"

"She may be a stepdaughter," suggested the postmaster.

"More likely she's another man's wife," retorted Watson.

During the early autumn Kauffman published the fact that he had registered a brand, and from time to time those who happened to ride up the valley brought back a report that he owned a small but growing herd of cattle. Watson did not hesitate to say that he had never been able to find where the new-comer bought his stock—and in those days no man was quite free from the necessity of exhibiting a bill of sale.

However, the people of the town paid small attention to this slur, for Watson himself was not entirely above suspicion. He was considered a dangerous character. Once or twice he had been forced, at the mouth of a rifle, to surrender calves that had, as he explained, "got mixed" with his herd. In truth, he was nearly always in controversy with some one.

"Kauffman don't look to me like an 'enterprising roper,'" Hanscom reported to his supervisor. "And as for his wife, or daughter, or whatever she is, I've never seen anything out of the way about her. She attends strictly to her own affairs. Furthermore," he added, "Watson, as you know, is under 'wool-foot surveillance' right now by the Cattle Raisers' Syndicate, and I wouldn't take his word under oath."

The supervisor shared the ranger's view, and smiled at "the pot calling the kettle black." And so matters drifted along till in one way or another the Kitsongs had set the whole upper valley against the hermits and Watson (in his cups) repeatedly said: "That fellow has no business in there. That's my grass. He stole it from me."

His resentment grew with repetition of his fancied grievance, and at last he made threats. "He's an outlaw, that's what he is—and as for that woman, well, I'm going up there some fine day and snatch the bunnit off her and see what she really looks like!"

"Better go slow," urged one of his friends. "That chap looks to me like one of the old guard. *He* may have something to say about your doings with his daughter."

Watson only grinned. "He ain't in no position to object if she don't—and I guess I can manage her," he ended with drunken swagger.

Occasionally Hanscom met the woman on the trail or in the town, and always spoke in friendly greeting. The first time he spoke she lifted her head like a scared animal, but after that she responded with a low, "Howdy, sir?" and her voice (coming from the shadow of her ugly headgear) was unexpectedly clear and sweet. Although he was never able to see her face, something in her bearing and especially in her accent pleased and stirred him.

Without any special basis for it, he felt sorry for her and resolved to help her, and when one day he met her on the street and asked, in friendly fashion, "How are you to-day?" she looked up at him and replied, "Very well, thank you, sir," and he caught a glimpse of a lovely chin and a sad and sensitive mouth.

"She's had more than her share of trouble, that girl has," he thought as he passed on.

Thereafter a growing desire to see her eyes, to hear her voice, troubled him.

Kauffman stopped him on the road next day and said: "I am Bavarian, and in my country we respect the laws of the forest. I honor your office, and shall regard all your regulations. I have a few cattle which will naturally graze in the forest. I wish to take out a permit for them."

To this Hanscom cordially replied: "Sure thing. That's what I'm here for. And if you want any timber for your corrals just let me know and I'll fix you out."

Kauffman thanked him and rode on.

As the weeks passed Hanscom became more and more conscious of the strange woman's presence in the valley. He gave, in truth, a great deal of thought to her, and twice deliberately rode around that way in the hope of catching sight of her. He could not rid himself of a feeling of pity. The

vision of her delicately modeled chin and the sorrowful droop in the line of her lips never left him. He wished—and the desire was more than curiosity—to meet her eyes, to get the full view of her face.

Gradually she came to the exchange of a few words with him, and always he felt her dark eyes glowing in the shadow of her head-dress, and they seemed quite as sad as her lips. She no longer appeared afraid of him, and yet she did not express a willingness for closer contact. That she was very lonely he was sure, for she had few acquaintances in the town and no visitors at all. No one had ever been able to penetrate to the interior of the cabin in which she secluded herself, but it was reported that she spent her time in the garden and that she had many strange flowers and plants growing there. But of this Hanscom had only the most diffused hearsay.

Watson's thought concerning the lonely woman was not merely dishonoring—it was ruthless; and when he met her, as he occasionally did, he called to her in a voice which contained something at once savage and familiar. But he could never arrest her hurrying step. Once when he planted himself directly in her way she bent her head and slipped around him, like a partridge, feeling in him the enmity that knows no pity and no remorse.

His baseness was well known to the town, for he was one of those whose tongues reveal their degradation as soon as they are intoxicated. He boasted of his exploits in the city and of the women he had brought to his ranch, and these revelations made him the hero of a certain type of loafer. His cabin was recognized as a center of disorder and was generally avoided by decent people.

As he felt his dominion slipping away, as he saw the big farmers come in down below him and recognized the rule of the Federal government above him, he grew reckless in his roping and branding. He had not been convicted of dishonesty, but it was pretty certain that he was a rustler; in fact, the whole Shellfish community was under suspicion. As the ranger visited these cabins and came upon five or six big, hulking, sullen men, he was glad that he had little business with them. They were in a chronic state of discontent with the world and especially with the Forest Service.

With the almost maniacal persistency of the drunkard, Watson now fixed his mind upon the mysterious woman at the head of the valley. He talked of no one else, and his vile words came to Hanscom's ears. Watson's cronies

considered his failure to secure even a word with the woman a great joke and reported that he had found the door locked when he finally followed her home.

Hanscom, indignant yet helpless to interfere, heard with pleasure that the old man had threatened Watson with bodily harm if he came to his door again, that with all his effrontery Watson had not yet been able to set his foot across the threshold, and that he had gone to Denver on business. "He'll forget that poor woman, maybe," he said.

Thereafter he thought of her as freed from persecution, although he knew that others of the valley held her in view as legitimate quarry.

His was a fine, serious, though uncultivated nature. A genuine lover of the wilderness, he had reached that time of life when love is cleansed of its devastating selfishness, and his feeling for the lonely woman of the Shellfish held something akin to great poetry.

His own solitary, vigorous employment, his constant warfare with wind and cloud, had made him a little of the seer and something of the poet. Woman to him was not merely the female of his species; she was a marvelous being, created for the spiritual as well as for the material need of man.

In this spirit he had lived, and, being but a plain, rather shy farmer and prospector, he had come to his thirtieth year with very little love history to his credit or discredit. He was, therefore, peculiarly susceptible to that sweet disease of the imagination which is able to transform the rudest woman into beauty. In this case the very slightness of the material on which his mind dwelt set the wings of his fancy free. He brooded and dreamed as he rode his trail as well as when he sat beside his rude fireplace at night, listening to the wind in the high firs. In all his thought he was honorable.

II

One day in early autumn, as he was returning to his station, Hanscom met Abe Kitsong just below Watson's cabin, riding furiously down the hill. Drawing his horse to a stand, the rancher called out:

"Just the man I need!"

"What's the trouble?"

"Ed Watson's killed!"

Hanscom stared incredulously. "No! Where—when?"

"Last night, I reckon. You see, Ed had promised to ride down to my place this morning and help me to raise a shed, and when he didn't come I got oneasy and went up to see what kept him, and the first thing I saw when I opened the door was him layin' on the floor, shot through and through." Here his voice grew savage. "And by that Kauffman woman!"

"Hold on, Abe!" called the ranger, sharply. "Go slow on that talk. What makes you think that woman—any woman—did it?"

"Well, it jest happened that Ed had spilled some flour along the porch, and in prowling around the window that woman jest naturally walked over it. You can see the print of her shoes where she stopped under the window. You've got to go right up there—you're a gover'nment officer—and stand guard over the body while I ride down the valley and get the coroner and the sheriff."

"All right. Consider it done," said Hanscom, and Kitsong continued his frenzied pace down the valley.

The ranger, his blood quickening in spite of himself, spurred his horse into a gallop and was soon in sight of the Shellfish Ranch, where Watson had lived for several years in unkempt, unsavory bachelorhood, for the reason that his wife had long since quit him, and only the roughest cowboys would tolerate the disorder of his bed and board. Privately, Hanscom was not much surprised at the rustler's death (although the manner of it seemed unnecessarily savage), for he was quarrelsome and vindictive.

The valley had not yet emerged from the violent era, and every man in the hills went armed. The cañons round about were still safe harbors for "lonesome men," and the herders of opposition sheep and cattle outfits were in bitter competition for free grass. Watson had many enemies, and yet it was hard to think that any one of them would shoot him at night through an open window, for such a deed was contrary to all the established rules of the border.

Upon drawing rein at the porch the ranger first examined the footsteps in the flour and under the window, and was forced to acknowledge that all signs pointed to a woman assailant. The marks indicated small, pointed, high-heeled shoes, and it was plain that the prowler had spent some time peering in through the glass.

For fear that the wind might spring up and destroy the evidence, Hanscom measured the prints carefully, putting down the precise size and shape in his note-book. He studied the position of the dead man, who lay as he had fallen from his chair, and made note of the fact that a half-emptied bottle of liquor stood on the table. The condition of the room, though disgusting, was not very different from its customary disorder.

Oppressed by the horror of the scene, the ranger withdrew a little way, lit his pipe, and sat down to meditate on the crime.

"I can't believe a woman did it," he said. And yet he realized that under certain conditions women can be more savage than men. "If Watson had been shot on a woman's premises it wouldn't seem so much like slaughter. But to kill a man at night in his own cabin is tolerably fierce."

That the sad, lonely woman in the ranch above had anything to do with this he would not for a moment entertain.

He turned away from the problem at last and dozed in the sunshine, calculating with detailed knowledge of the trail and its difficulties just how long it would take Kitsong to reach the coroner and start back up the hill.

It was nearly four o'clock when he heard the feet of horses on the bridge below the ranch, and a few minutes later Kitsong came into view, heading a motley procession of horsemen and vehicles. It was evident that he had notified all his neighbors along the road, for they came riding in as if to a feast, their eyes alight with joyous interest.

The coroner, a young doctor named Carmody, took charge of the case with brisk, important pomp, seconded by Sheriff Throop, a heavy man with wrinkled, care-worn brow, who seemed burdened with a sense of personal responsibility for Watson's death. He was all for riding up and instantly apprehending the Kauffmans, but the coroner insisted on looking the ground over first.

"You study the case from the outside," said he, "and I'll size it up from the inside."

As the dead man had neither wife nor children to weep for him, Mrs. Kitsong, his sister, a tall, gaunt woman, assumed the rôle of chief mourner, while Abe went round uttering threats about "stringing the Kauffmans up," till the sheriff, a good man and faithful officer, jealous of his authority, interfered.

"None of that lynching talk! There'll be no rope work in this county while I am sheriff," he said, with noticeable decision.

In a few moments Carmody, having finished his examination of the body, said to the sheriff: "Go after this man Kauffman and his daughter. It seems they've had some trouble with Watson and I want to interrogate them. Search the cabin for weapons and bring all the woman's shoes," he added. And while the sheriff rode away up the trail on his sinister errand, Hanscom with sinking heart remained to testify at the inquest.

A coroner in the mountains seven thousand feet above the sea-level and twenty miles from a court-house must be excused for slight informalities in procedure, and Carmody confidentially said to the ranger:

"I don't expect for a minute the sheriff will find the Kauffmans. If they did for Watson, they undoubtedly pulled out hotfoot. But we've got to make a bluff at getting 'em, anyway."

To this the ranger made no reply, but a sense of loss filled his heart.

As soon as the jury was selected the condition of the body was noted, and Abe Kitsong, as witness, was in the midst of his testimony (and the shadows of the great peaks behind the cabin had brought the evening chill into the air) when the sheriff reappeared, escorting a mountain wagon in which Kauffman and his daughter were seated.

Hanscom stared in mingled surprise and dismay—surprise that they had not fled and dismay at the girl's predicament—and muttered: "Now what do you think of that! It takes an Eastern tenderfoot to kill a man and then go quietly home and wait for results."

Kauffman glared about him defiantly, but the face of the girl remained hidden in her bonnet; only her bowed head indicated the despair into which she had fallen.

With a deep sense of pity and regret, Hanscom went to meet her. "Don't be scared," he said. "I'll see that you have a square deal."

She peered down into his face as he spoke, but made no reply, and he conceived of her as one burdened with grief and shame and ready for any fate.

The sheriff, his face showing an agony of perplexity, turned over to the coroner all the weapons and other "plunder" he had brought from the house, and querulously announced that he couldn't find a shotgun anywhere around, and only one small rifle. "And there wasn't a pointed shoe on the place," he added, forcibly.

"That proves nothing," insisted Abe. "They've had time to hide 'em or burn 'em."

"Well, bring them both over here and let's get to business," said the coroner. "It's getting late."

As Hanscom assisted the accused woman from the wagon he detected youth and vigor in her arm. "Don't be afraid," he repeated. "I will see that you are treated right."

Her hand clung to his for an instant as she considered the throng of hostile spectators, for she apprehended their hatred quite as clearly as she perceived the chivalrous care of the ranger, and she kept close to his side as he led the way to the cabin.

Kauffman was at once taken indoors, but the young woman, under guard of a deputy, was given a seat on the corner of the porch just out of hearing of the coroner's voice.

Carmody, who carried all the authority, if not all the forms, of a court into his interrogation, sharply questioned the old man, who said that his name

was Frederick Kauffman and that he was a teacher of music.

"I was born near Munich," he added, "but I have lived in this country forty years, mostly in Cincinnati. This young lady is my stepdaughter. It is for her health that I came here. She has been very ill."

Carmody nodded to the sheriff, and Throop with a deep sigh and most dramatic gesture lifted the shroud which concealed the dead man. "Approach the body," commanded the coroner, and the jurors watched every motion with wide, excited eyes, as though expecting involuntary signs of guilt; but Kauffman calmly gazed upon the still face beneath him.

"Do you recognize this body?" demanded the coroner.

"I do," said Kauffman.

"When did you see him last?"

"Oh, two or three days ago," answered Kauffman.

"You may be seated," said the coroner.

Under close interrogation the old man admitted that he had had some trouble with Watson. "Once I forced him to leave my premises," he said. "He was drunk and insulting."

"Did you employ a weapon?"

"Only this"—here he lifted a sturdy fist—"but it was sufficient. I have not forgotten my gymnastic training."

Prompted by Kitsong, who had assumed something of the attitude of a prosecuting attorney, the coroner asked, "Has your daughter ever been in an asylum?"

Although this question plainly disturbed him, Kauffman replied, after a moment's hesitation, "No, sir."

"Where were you last night?"

"At home."

"Was your daughter there?"

"Yes."

"All the evening?"

"Yes, sir."

"Are you sure she did not leave the house?"

"Perfectly sure."

The coroner took up a small rifle which the sheriff had leaned against the wall. "Is this your rifle?"

The old man examined it. "I think so—yes, sir."

"Have you another?"

"No, sir."

"That is all for the present, Mr. Kauffman. Sheriff, ask Miss Kauffman to come in."

As the woman (without the disfiguring head-dress which she habitually wore) stepped to the center of the room a murmur of surprise arose from the jury and the few spectators who were permitted to squat along the walls. She not only appeared young; she was comely. Her face, though darkly tanned, was attractive, and her hair, combed rigidly away from her brow, was abundant and glossy. The line of her lips was firm yet sweet, and her long, straight nose denoted the excellence of her strain. Even her hands, reddened and calloused by labor, were well kept and shapely. But it was through her bearing that she appealed most strongly to the ranger and the coroner. She was very far from being humble. On the contrary, the glance which she directed toward Carmody was remote and haughty. She did not appear to notice the still, sheeted shape in the corner.

In answer to a query she informed the jury that her name was Helen McLaren; that she was a native of Kentucky and twenty-six years of age. "I came to the mountains for my health," she said, curtly.

"You mean your mental health?" queried the coroner.

"Yes. I wanted to get away from the city for a while. I needed rest and a change."

The coroner, deeply impressed with her dignity and grace, leaned back in his chair and said: "Now before I ask the next question, Miss McLaren, I want to tell you that what you say in answer may be used against you in

court, and according to law you need not incriminate yourself. You understand that, do you?"

"Yes, sir. I think I do."

"Very well. Now one thing more. It is usual in cases of this kind to have some one to represent you, and if you wish Mr. Hanscom, the forest ranger, will act for you."

The glance she turned on Hanscom confused him, but he said: "I'm no lawyer, but I'll do my best to see that you are treated fairly."

She thanked him with a trustful word, and the coroner began.

"You have had a great sorrow recently, I believe?"

"Yes, sir."

"A very bitter bereavement?"

"Yes, sir."

"Have you any near relatives living?"

"Yes, sir. A sister and several aunts and uncles."

"Do they know where you are?"

"No, sir—at least, not precisely. They know I am in the mountains."

"Will you give me the names and addresses of these relatives?"

"I would rather not, if you please. I do not care to involve them in any troubles of mine."

"Well, I won't insist on that at this point. But I would like to understand whether, if I require it, you will furnish this information?"

"Certainly. Only I would rather not disturb them unnecessarily."

Her manner not only profoundly affected the coroner; it soon softened the prejudices of the jury, although four of them were immediate friends and neighbors of Kitsong. They all were manifestly astonished at the candor of her replies.

The coroner himself rose and solemnly disclosed the corpse. "Do you recognize this man?" he asked.

She paled and shrank from the face, which was brutal even in death, but answered, quietly, "I do."

"Did you know him when alive?"

"I did not."

This answer surprised both the coroner and his jury.

"Your stepfather testified that he came to your home."

"So he did. But I refused to see him. My stepfather met him outside the door. I never spoke to him in my life."

"You may be seated again," said Carmody, and after a slight pause proceeded: "Why did you dislike the deceased? Was he disrespectful to you?"

"He was."

"In what way?"

She hesitated and flushed. "He wrote to me."

"More than once?"

"Yes, several times."

"Have you those letters?"

"No; I destroyed them."

"Could you give me an idea of those letters?"

Hanscom interposed: "She can't do that, Mr. Coroner. It is evident that they were vile."

The coroner passed this point. "You say he called at your house—how many times?"

"Two or three, I think."

"Was your father at home each time?"

"Once I was alone."

"Did you meet Watson then?"

"No. I saw him coming in the gate and I went inside and locked the door."

"What happened then?"

"He beat on the door, and when I failed to reply he went away."

"Was he drunk?"

"He might have been. He seemed more like an insane man to me."

Kitsong broke in, "I don't believe all this—"

"When was that?"

"Night before last, at about this time or a little earlier."

"Was he on foot?"

"No; he came on horseback."

"Did he ride away on horseback?"

"Yes, though he could scarcely mount. I was surprised to see how well he was able to manage his horse."

"Did you tell your father of this?"

"No."

"Why not?"

She hesitated. "He would have been very—very much disturbed."

"You mean he would have been angry?"

"Yes."

The coroner suddenly turned the current of his inquiry. "Do you always wear shoes such as you now have on?"

Every eye in the room was directed toward her feet, which were shod in broad-toed, low-heeled shoes.

She was visibly embarrassed, but she answered, composedly: "I do—yes, sir. In fact, I go barefoot a great deal while working in the garden. The doctor ordered it, and, besides, the ordinary high-heeled shoes seem foolish up here in the mountains."

"Will you be kind enough to remove your shoe? I would like to take some measurements from it."

She flushed slightly, but bent quickly, untied the laces, and removed her right shoe.

The coroner took it. "Please remain where you are, Miss McLaren." Then to the jury, who appreciated fully the importance of the moment, "We will now compare this shoe with the footprints."

"Don't be disturbed, miss," whispered the ranger. "I know the size and shape of those footprints."

The sheriff cleared the way to the porch, where the little patch of flour had been preserved by ropes stretched from post to post, and the outside crowd, pressing closer, watched breathlessly while the jury bent together and compared the shoes and the marks.

It required but a few moments' examination to demonstrate that the soles of the accused woman's shoes were larger and broader and entirely different in every way.

"She may have worn another shoe," Kitsong put in.

"Of course! We'll find that out," retorted the coroner.

As they returned to the room Hanscom said to the witness: "Now be very careful what you reply. Take plenty of time before you answer. If you are in doubt, say nothing."

In the sympathy of his glance her haughty pose relaxed and her eyes softened. "You are very kind," she said.

"I don't know a thing about law," he added, apologetically, "but I may be able to help you."

The coroner now told the jury that Mr. Hanscom, as representing the witness at the hearing, would be allowed to ask any questions he pleased before the end of the hearing.

"But I must insist upon taking measurements of your bare feet, Miss McLaren."

The jury grinned and the girl flushed with anger, but at a word from the ranger yielded and drew off her stocking.

Hanscom, while assisting the coroner in measurements, said, "I'm sorry, miss, but it is necessary."

The examination proved that her bare foot was nearly two sizes wider and at least one size longer than the footprints in the flour. Furthermore, it needed but a glance for the jury, as well as the doctor, to prove that she had been going barefoot, as she claimed, for many weeks. Her foot was brown and her toes showed nothing of the close confinement of a pointed shoe.

Carmody, returning to his seat, conferred with the jury, designating the difference between the telltale marks on the porch and the feet of the witness, and Hanscom argued that the woman who made the telltale tracks must have been small.

"Miss McLaren could not possibly wear the shoe that left those marks in the flour," he said.

"We are on the wrong trail, I guess," one of the jury frankly stated. "I don't believe that girl was ever on the place. If she or the old man had been guilty, they wouldn't have been hanging around home this morning. They'd have dusted out last night."

And to this one other agreed. Four remained silent.

The ranger seized on these admissions. "There is nothing, absolutely nothing, to connect the tracks in the flour with the person who did the shooting. It may have been done by another visitor at another time."

"Well," decided the coroner, "it's getting dark and not much chance for hotel accommodations up here, so I guess we'd better adjourn this hearing." He turned to Helen. "That's all, Miss McLaren."

As Hanscom handed back her shoe he said: "I hope you won't worry another minute about this business, miss. The jury is certain to report for 'persons unknown.'"

"I'm very grateful for your kindness," she answered, feelingly. "I felt so utterly helpless when I came into the room."

"You've won even the jury's sympathy," he said.

Nevertheless, as she left the room, he followed closely, for the Kitsongs, who had been denied admittance, were openly voicing their dissatisfaction with the coroner's verdict. "She ought to be held, and the old man ought to be held," they insisted.

"One or the other of them shot Watson," declared Abe to Carmody. "No matter if the girl's foot doesn't just exactly fit the tracks. She could jam her foot into a narrow shoe if she tried, couldn't she? If you let that girl pull the wool over your eyes like that you ain't fit to be coroner."

Carmody's answer was to the point. "The thing for your crowd to do is to quit chewing the rag and get this body down the valley and decently buried. I can't stand around here all night listening to amateur attorneys for the prosecution."

"Vamose!" called the sheriff, and in ten minutes the crowd was clattering down the trail in haste to reach food and shelter, leaving the Kauffmans to take their homeward way alone.

Hanscom helped the girl into the wagon and rode away up the valley close behind her, his mind filled with the singular story which she had so briefly yet powerfully suggested. That she was a lady masquerading in rough clothing was evident even before she spoke, and the picture she made, sitting in the midst of that throng of rough men and slatternly women, had profoundly stirred his imagination. He longed to know more of her history, and it was the hope of still further serving her which led him to ride up alongside the cart and say:

"Here's where my trail forks, but I shall be very glad to go up and camp down at your gate if you feel at all nervous about staying alone."

Kauffman, who had regained his composure, answered, "We have no fear, but we are deeply grateful for your offer."

The ranger dismounted and approached the wagon, as if to bring himself within reach, and the girl, looking down at him from her seat with penetrating glance, said:

"Yes, we are greatly indebted to you."

"If I can be of any further help at any time," the young forester said, a little hesitatingly, "I hope you will let me know." His voice so sincere, his

manner so unassuming, softened her strained mood.

"You are very kind," she answered, with gentle dignity. "But the worst of this trial is over for us. I cannot conceive that any one will trouble us further. But it is good to know that we have in you a friend. The valley has always resented us."

He was not yet satisfied. "I wish you'd let me drop around to-morrow or next day and see how you all are. It would make me feel a whole lot better."

The glance which she gave him puzzled and, at the moment, daunted him. She seemed to search his soul, as if in fear of finding something unworthy there. At last she gave him her strong, brown hand.

"Come when you can. We shall always be glad to see you."

III

Hanscom rode away up the trail in a singularly exalted mood. The girl with whom he had been so suddenly related in a coroner's inquest filled his mind to the exclusion of all else. He saw nothing, heard nothing of the forest. Helen's sadness, her composure, her aloofness, engaged his imagination.

"She's been sick and she's been in trouble," he decided. "She's out here to get away from somebody or something."

Over and over again he recounted her words, lingering especially upon the sweetness of her voice and the searching quality of that last look she had given him. He unsaddled his horse mechanically, and went about his cabin duties with listless deftness.

Lonely, cut off from even the most formal intercourse with marriageable maidens, he was naturally extremely susceptible to the charm of this cultivated woman. The memory of her handsome foot, the clasp of her strong fingers, the lines of her lovely neck—all conspired to dull his appetite for food and keep him smoking and musing far into the night, and these visions were with him as he arose the next morning to resume his daily duties in the forest. They did not interrupt his work; they lightened it.

As the hours went by, the desire to see her grew more and more intense, and at last, a couple of days later while riding the trail not far above the Kauffman ranch, he decided that it was a part of his day's work to "scout round" that way and inquire how they were all getting on. He was strengthened in this determination by the reports which came to him from the ranchers he met. No other clue had developed, and the Kitsongs, highly incensed at the action of the jury, not only insisted that the girl was the murderess, but that the doctor was shielding her for reasons of his own—and several went so far as to declare their intention to see that the Kauffmans got their just punishment.

It is true, the jury admitted that they were divided in their opinion, but that the coroner's attitude brought about a change of sentiment. The fact that the woman didn't wear and couldn't wear so small a shoe was at the moment convincing. It was only later, when the Kitsong sympathizers began to argue, that they hesitated.

Mrs. Abe Kitsong was especially bitter, and it was her influence which brought out an expression of settled purpose to punish which led to the ranger's decision to go over and see if the old German and his daughter were undisturbed.

As he turned in at the Kauffman gate he caught a glimpse of the girl hoeing in the garden, wearing the same blue sunbonnet in which she had appeared at the inquest. She was deeply engaged with her potatoes and did not observe him till, upon hearing the clatter of his horse's hoofs upon the bridge, she looked up with a start. Seeing in him a possible enemy, she dropped her hoe and ran toward the house like a hare seeking covert. As she reached the corner of the kitchen she turned, fixed a steady backward look upon him, and disappeared.

Hanscom smiled. He had seen other women hurrying to change their workaday dress for visitors, and he imagined Helen hastily putting on her shoes and smoothing her hair. He was distinctly less in awe of her by reason of this girlish action—it made her seem more of his own rough-and-ready world, and he dismounted at her door almost at his ease, although his heart had been pounding furiously as he rode down the ridge.

She surprised him by reappearing in her working-gown, but shod with strong, low-heeled shoes. "Good evening, Mr. Forest Ranger," she said,

smiling, yet perturbed. "I didn't recognize you at first. Won't you 'picket' and come in?" She said this in the tone of one consciously assuming the vernacular.

"Thank you, I believe I will," he replied, with candid heartiness. "I was riding one of my lower trails to-day, so I just thought I'd drop down and see how you were all coming on."

"We are quite well, thank you. Daddy's away just this minute. One of our cows hid her calf in the hills, and he's trying to find it. Won't you put your horse in the corral?"

"No; he's all right. He's a good deal like me—works better on a small ration. A standing siesta will just about do him."

A gleam of humor shone in her eyes. "Neither of you 'pear to be suffering from lack of food. But come in, please, and have a seat."

He followed her into the cabin, keenly alive to the changes in her dress as well as in her manner. She wore her hair plainly parted, as at the hearing, but it lay much lower about her brow and rippled charmingly. She stood perfectly erect, also, and moved with a fine stride, and the lines of her shoulders, even under a rough gray shirtwaist, were strong and graceful. Though not skilled in analyzing a woman's "outfit," the ranger divined that she wore no corset, for the flex of her powerful waist was like that of a young man.

Her speech was noticeably Southern in accent, as if it were a part of her masquerade, but she brought him a chair and confronted him without confusion. In this calm dignity he read something entirely flattering to himself.

"Evidently she considers me a friend as well as an officer," he reasoned.

"I hope you are a little hungry," she said. "I'd like to have you break bread in our house. You were mighty kind to us the other day."

"Oh, I'm hungry," he admitted, meeting her hospitality half-way. "Seems like I'm always hungry. You see, I cook my own grub, and my bill of fare isn't what you'd call extensive, and, besides, a man's cooking never relishes the way a woman's does, anyhow."

"I'll see what I can find for you," she said, and hurried out.

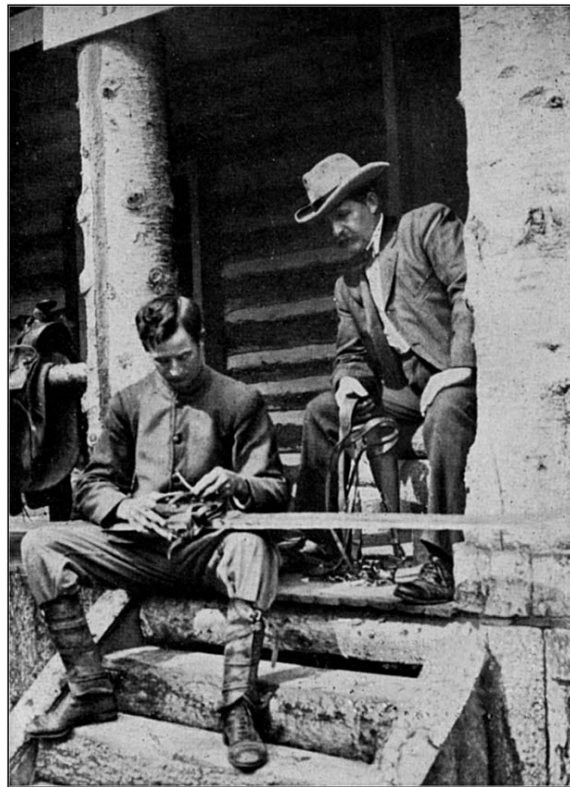
While waiting he studied the room in which he sat with keenest interest. It was rather larger than the usual living-room in a mountain home, but it had not much else to distinguish it. The furniture was of the kind to be purchased in the near-by town, and the walls were roughly ceiled with cypress boards; but a few magazines, some books on a rude shelf, a fiddle-box under the table, and a guitar hanging on a nail gave evidence of refinement and taste and spoke to him of pleasures which he had only known afar. The guitar especially engaged his attention. "I wonder if she sings?" he asked himself.

Musing thus in silence, he heard her moving about the kitchen with rapid tread, and when she came in, a few minutes later, bearing a tray, he thought her beautiful—so changed was her expression.

"I didn't wait for the coffee," she smilingly explained. "You said you were hungry and so I have brought in a little 'snack.' The coffee will be ready soon."

"Snack!" he exclaimed. "Lady! This is a feast!" And as she put the tray down beside him he added: "This puts me right back in Aunt Mary's house at Circle Bend, Nebraska. I don't rightly feel fit to sit opposite a spread like that."

She seemed genuinely amused by his extravagance. "It's nothing but a little cold chicken and some light bread. I made the bread yesterday; and the raspberry jam is mine also."



THE AUTHOR AND A FOREST RANGER [To List](#)

"It's angels' food to me," he retorted, as he eyed the dainty napkins and the silver spoons and forks. "You don't know what this means to a man who lives on rice and prunes and kittle bread. I have a guilty feeling; I do, indeed. Seems like I'm getting all this thanksgiving treat under false pretenses. Perhaps you think I'm an English nobleman in disguise. But I'm not—I'm just a plain dub of a forest ranger, ninety dollars a month and board myself."

She laughed at his disclaimer, and yet under her momentary lightness he still perceived something of the strong current of bitter sadness which had so profoundly moved him at the inquest and which still remained unexplained; therefore he hesitated about referring to the Watson case.

As he ate, she stood to serve him, but not with the air of a serving-maid; on the contrary, though her face was bronzed by the winds, and her hands calloused by spade and hoe, there was little of the rustic in her action. Her blouse, cut sailor fashion at the throat, displayed a lovely neck (also burned

by the sun), and she carried herself with the grace of an athlete. Her trust and confidence in her visitor became more evident each moment.

"No," she said in answer to his question. "We hardly ever have visitors. Now and then some cowboy rides past, but you are almost the only caller we have ever had. The settlers in the valley do not attract me."

"I should think you'd get lonesome."

She looked away, and a sterner, older expression came into her face. "I do, sometimes," she admitted; then she bravely faced him. "But my health is so much better—it was quite broken when I came—that I have every reason to be thankful. After all, health is happiness. I ought to be perfectly content, and I am when I think how miserable I once was."

"Health is cheap with me," he smilingly replied. "But I get so lonesome sometimes that I pretty near quit and go out. Do you intend to stay here all winter?"

"We expect to."

He thought it well to warn her. "The snow falls deep in this valley—terribly deep."

She showed some uneasiness. "I know it, but I'm going to learn to snow-shoe."

"I wish you'd let me come over and teach you."

"Can you snow-shoe? I thought rangers always rode horseback."

He smiled. "You've been reading the opposition press. A forest ranger who is on the job has got to snow-shoe like a Canuck or else go down the valley after the snow begins to fall. It was five feet deep around my cabin last year. I hate to think of your being here alone. If one of you should be sick, it would be—tough. Unless you absolutely have to stay here, I advise you to go down the creek."

"Perhaps our neighbors and not the snow will drive us out," she replied. "They've already served notice."

He looked startled. "What do you mean by that?"

Without answering, she went to the bookshelf and took down a folded sheet of paper. "Here is a letter I got yesterday," she explained, as she handed it to him.

It was a rudely penciled note, but entirely plain in its message. "Spite of what the coroner found, most folks believe you killed Ed Watson," it began, abruptly. "Some of us don't blame you much. Others do, and they say no matter what the jury reports you've got to go. I don't like to see a woman abused, so you'd better take warning and pull out. Do it right away." It was signed, "A Friend."

The ranger read this through twice before he spoke. "Did this come through the mail?"

"Yes—addressed to me."

He pretended to make light of it. "I wouldn't spend much time over that. It's only some smart Aleck's practical joke."

"I don't think so," she soberly replied. "It reads to me like a sincere warning—from a woman. I haven't shown it to daddy yet, and I don't know whether to do so or not. I thought of going over to see you, but I was not sure of the way. I'm glad Providence sent you round to-day, for I am uncertain about what to do."

"I'm a little uneasy about that warning myself," he confessed, after a pause. "I hear the Kitsong gang is bitterly dissatisfied with the result of the inquest thus far. They still insist on connecting you in some way with the shooting. Fact is, I came over to-day to see if they had made any new move."

All the lightness had gone out of his face now, and in the girl's eyes the shadow deepened as she said:

"It seems to me that I have drawn more than my share of trouble. I came out here hoping to find a sanctuary, and I seem to have fallen into a den of wolves. These people would hang me if they could. I don't understand their hate of us. They resent our being here. Sometimes I feel as if they were only trying to drive us from our little ranch."

"Of course, all this talk of violence is nonsense," he vigorously went on. "They can make you a whole lot of discomfort, but you are in no danger."

Her glance was again remote as she said: "I cannot take that murder case seriously. It all seems a thousand miles away from me now. And yet I am afraid for daddy's sake. Why connect me with it? Is there no other woman to accuse? Do you suppose a woman did the shooting? I don't."

"No. I think the footprints were accidental. I figure the killing was done by some man who had it in for Watson. He was always rowing with his help, and there are two or three Mexicans who have threatened to get him. At the same time, I don't like this letter. They're a tough lot in this valley." He mused a moment. "Yes, I guess you'd better plan to go."

Her gaze wandered. "I hate to leave my garden and my flowers," she said, sadly. "After all, I've had some very peaceful hours in this nook." Her face brightened. She became the genial hostess again. "If you have finished your lunch, I wish you would come out and see my crops."

He followed her gladly, and their talk again became cheerfully impersonal. Truly she had done wonders in a small space and in a short time. Flower-beds glowed beside the towering rocks. Small ditches supplied the plants with water, and from the rich red soil luscious vegetables and fragrant blooms were springing.

All animation now, she pointed out her victories. "This is all my work," she explained, proudly. "Daddy isn't much of a hand with the spade or the hoe. Therefore I leave the riding and the cows to him. I love to paddle in the mud, and it has done me a great deal of good."

"What will you do with all this 'truck'?"

"Daddy intends to market it in town."

"He's away a good deal, I take it."

"Yes, I'm alone often all day, but he's always home before dark."

He voiced his concern. "I don't like to think of your being alone, even in the daytime." He spoke as one who had been swiftly advanced from stranger to trusted friend. "I'll tell you what I'll do," he continued, as if moved by a sudden thought. "I'll go into camp across the creek for to-night, and then if anything goes wrong I'll be within call."

"Oh no! Don't think of doing that! You must not neglect your duties. Daddy is a pretty good marksman, and I have learned to handle a rifle, and,

besides"—here her tone became ironic—"in the chivalrous West a woman need not fear."

"There is a whole lot of hot air about that Western chivalry talk," he retorted. "Bad men are just as bad here as anywhere, and they're particularly bad on the Shellfish. But, anyhow, you'll call on me if I can be of any use, won't you?"

"I certainly shall do so," she responded, heartily, and there was confidence and liking in her eyes as well as in the grip of her hand as she said good-by.

When in the saddle and ready to ride away he called to her, "You won't mind my coming over here again on Saturday, will you?"

"No, indeed. Only it is so far."

"Oh, the ride is nothing. I don't like to think of your being here alone."

"I'm not afraid. But we shall be glad to see you just the same."

And in appreciation of her smile he removed his hat and rode away with bared head.

The young ranger was highly exalted by this visit, and he was also greatly disturbed, for the more he thought of that warning letter and the conditions which gave rise to it, the more menacing it became. It was all of a piece with the tone and character of the Shellfish gang, for this remote valley had long borne an evil reputation, and Watson and Kitsong had been its dominating spirits for more than twenty years and deeply resented Kauffman's settlement in the cañon.

"It would be just like old Kit to take the law into his own hands," the ranger admitted to himself. "And the writing in that letter looked to me like Mrs. Abe Kitsong's."

Instead of going up to the Heart Lake sheep-camp, as he had planned to do, he turned back to his station, moved by a desire to keep as near the girl as his duties would permit. "For the next few days I'd better be within call," he decided. "They may decide to arrest her—and if they do, she'll need me."

He went about his evening meal like a man under the influence of a drug, and when he sat down to his typewriter his mind was so completely filled

with visions of his entrancing neighbor that he could not successfully cast up a column of figures. He lit his pipe for a diversion, but under the spell of the smoke his recollection of just how she looked, how she spoke, how she smiled (that sad, half-lighting of her face) set all his nerves atingle. He grew restless.

"What's the matter with me?" he asked himself, sharply, but dared not answer his own question. He knew his malady. His unrest was that of the lover. Thereafter he gave himself up to the quiet joy of reviewing each word she had uttered, and in doing so came to the conclusion that she was in the mountains not so much for the cure of her lungs or throat as to heal the hurt of some injustice. What it was he could not imagine, but he believed that she was getting over it. "As she gets over it she'll find life on the Shellfish intolerable and she'll go away," he reasoned, and the thought of her going made his country lonesome, empty, and of no account.

"I wish she wouldn't go about barefoot," he added, with a tinge of jealousy. "And she mustn't let any of the Shellfish gang see her in that dress." He was a little comforted by remembering her sudden flight when she first perceived him coming across the bridge, and he wondered whether the trustful attitude she afterward assumed was due entirely to the fact that he was a Federal officer—he hoped not. Some part of it sprang, he knew, from a liking for him.

The wilderness was no place for a woman. It was all well enough for a vacation, but to ask any woman to live in a little cabin miles from another woman, miles from a doctor, was out of the question. He began to perceive that there were disabilities in the life of a forester. His world was suddenly disorganized. Life became complex in its bearings, and he felt the stirrings of new ambitions, new ideals. Civilization took on a charm which it had not hitherto possessed.

He was awakened at dawn the following morning by the smell of burning pine—a smell that summons the ranger as a drum arouses a soldier. Rushing out of doors, he soon located the fire. It was off the forest and to the southeast, but as any blaze within sight demanded investigation, he put a pot of coffee on the fire and swiftly roped and saddled one of his horses. In thirty minutes he was riding up the side of a high hill which lay between the

station and Otter Creek, a branch of the Shellfish, at the mouth of which, some miles below, stood Kitsong's ranch.

It was not yet light, the smoke was widely diffused, and the precise location of the blaze could not be determined, but it appeared to be on the Shellfish side of the ridge, just below Watson's pasture. Hence he kept due south over the second height which divided the two creeks. It was daylight when he reached the second hogback, and the smoke of the fire was diminishing, but he thought it best to ride on to renew his warning against the use of fire till the autumn rains set in, and he had in mind also a plan to secure from Mrs. Kitsong a specimen of her handwriting and to pick up whatever he could in the way of gossip concerning the feeling against the Kauffmans.

He was still some miles from the ranch, and crossing a deep ravine, when he heard the sound of a rifle far above him. Halting, he listened intently. Another shot rang out, nearer and to the south, and a moment later the faint reports of a revolver. This sent a wave of excitement through his blood. A rifle-shot might mean only a poacher. A volley of revolver-shots meant battle.

Reining his cayuse sharply to the right and giving him the spur, he sent him on a swift, zigzagging scramble up the smooth slope. A third rifle-shot echoed from the cliff, and was answered by a smaller weapon, much nearer, and, with his hair almost on end with excitement, he reached the summit which commanded the whole valley of the Otter, just in time to witness the most astounding drama he had ever known.

Down the rough logging road from the west a team of horses was wildly galloping, pursued at a distance by several horsemen, whose weapons, spitting smoke at intervals, gave proof of their murderous intent. In the clattering, tossing wagon a man was kneeling, rifle in hand, while a woman, standing recklessly erect, urged the flying horses to greater speed. Nothing could have been more desperate, more furious, than this running battle.

"My God! It's the Kauffman team!" he exclaimed, and with a shrill shout snatched his revolver from its holster and fired into the air, with intent to announce his presence to the assailing horsemen. Even as he did so he saw one of the far-off pursuing ruffians draw his horse to a stand and take deliberate aim over his saddle at the flying wagon. The off pony dropped in

his traces, and the vehicle, swinging from the road, struck a boulder and sent the man hurtling over the side; but the girl, crouching low, kept her place. Almost before the wheels had ceased to revolve she caught up the rifle which her companion had dropped and sent a shot of defiance toward her pursuers.

"Brave girl!" shouted Hanscom, for he recognized Helen. "Hold the fort!" But his voice, husky with excitement, failed to reach her.

She heard the sound of his revolver, however, and, believing him to be only another of the attacking party, took aim at him and fired. The bullet from her rifle flew so near his head that he heard its song.

Again her rifle flashed, this time at the man above her, and again the forester shouted her name. In the midst of the vast and splendid landscape she seemed a minute brave insect defending itself against invading beasts. Her pursuers, recognizing the ranger's horse, wheeled their ponies and disappeared in the forest.

Hanscom spurred his horse straight toward the girl, calling her name, but even then she failed to recognize him till, lifting his hat from his head, he desperately shouted:

"Don't shoot, girl—don't shoot! It's Hanscom—the ranger!"

She knew him at last, and, dropping her rifle to the ground, awaited his approach in silence.

As he leaped from his horse and ran toward her she lifted her hands to him in a gesture of relief and welcome, and he took her in his arms as naturally as he would have taken a frightened child to his breast.

"Great God! What's the meaning of all this?" he asked. "Are you hurt?"

She was white, but calm. "No, but daddy is—" And they hastened to where the old man lay crumpled up beside a rock.

Hanscom knelt to the fallen man and examined him carefully. "He's alive—he isn't wounded," he said. "He's only stunned. Wait! I'll bring some water."

Running down to the bank, he filled his hat from the flood, and with this soon brought the bruised and sadly bewildered rancher back to

consciousness.

Upon realizing who his rescuer was Kauffman's eyes misted with gratitude. "My friend, I thank God for you. We were trying to find you. We were on our way to claim your protection. We lost our road, and then these bandits assaulted us."

The girl pieced out this explanation. She told of being awakened in the night by a horse's hoofs clattering across the bridge. Some one rode rapidly up to the door, dismounted, pushed a letter in over the threshold, and rode away. "I rose and got the letter," she said. "It warned us that trouble was already on the way. '*Get out!*' it said. I roused daddy, we harnessed the horses and left the house as quickly as we could. We dared not go down the valley, so we tried to reach you by way of the mill. We took the wrong road at the lake. Our pursuers trailed us and overtook us, as you saw."

It was all so monstrous that the ranger could scarcely believe it true—and yet, there lay the dead horse and here was the old man beside the stone. He did not refer to his own narrow escape, and apparently Helen did not associate him with the horseman at whom she had fired with such bewildering zeal.

IV

It was a rugged and barren setting for love's interchange, and yet these two young souls faced each other, across the disabled old man, with spirits fused in mutual understanding. Helen's face softened and her eyes expressed the gratitude she felt. At the moment the ranger's sturdy frame and plain, strong-featured face were altogether admirable to her. She relied upon him mentally and physically, as did Kauffman, whose head was bewildered by his fall.

Hanscom roused himself with effort. "Well, now, let's see what's to be done next. One of your horses appears to be unhurt, but the other is down." He went to the team and after a moment's examination came back to say: "One is dead. I'll harness my own saddler in with the other, and in that way we'll be able to reach my cabin. You must stay there for the present."

Quickly, deftly, he gathered the scattered goods from the ground, restored the seat to the wagon, untangled the dead beast from its harness, and

substituted his own fine animal, while Helen attended to Kauffman. He recovered rapidly, and in a very short time was able to take his seat in the wagon, and so they started down the road toward the valley.

"It's a long way round by the wagon road," Hanscom explained. "But we can make the cabin by eleven, and then we can consider the next move."

To this Helen now made objection. "We must not bring more trouble upon you. They will resent your giving us shelter. Take us to the railway. Help us to leave the state. I am afraid to stay in this country another night. I want to get away from it all to-day."

A shaft of pain touched the ranger's heart at thought of losing her so soon after finding her, and he said: "I don't think that is necessary. They won't attempt another assault—not while you are under my protection. I'd like the pleasure of defending you against them," he added, grimly.

"But I'm afraid for daddy. I'm sure he wounded one of them, and if he did they may follow us. You are very good and brave, but I am eager to reach the train. I want to get away."

To this Kauffman added his plea. "Yes, yes, let us go," he said, bitterly. "I am tired of these lawless savages. We came here, thinking it was like Switzerland, a land inhabited by brave and gentle people, lovers of the mountains. We find it a den of assassins. If you can help us to the railway, dear friend, we will ask no more of you and we will bless you always."

The ranger could not blame them for the panic into which they had fallen, and frankly acknowledged that it was possible for Kitsong to make them a great deal of trouble. Reluctantly he consented.

"I am sorry to have you go, but I reckon you're justified. There is a way to board the northbound train without going to town, and if nothing else happens we'll make the eastbound express. That will take you out of the state with only one stop."

Conditions were not favorable for any further expression of the deep regret he felt, for the road was rough, and with only one seat in the wagon he was forced to perch himself on his up-ended saddle, and so, urging the team to its best, he spoke only to outline his plan.

"I'll drive you to the Clear Creek siding," he explained. "All trains stop there to take on water, and No. 3 is due round about one. We can make it easily if nothing happens, and unless the Kitsong gang get word from some of these ranches we pass, you will be safely out of the country before they know you've gone."

They rode in silence for some time, but as they were dropping down into the hot, dry, treeless foot-hills the ranger turned to explain: "I'm going to leave the main road and whip out over the mesa just above the Blackbird Ranch, so don't be surprised by my change of plan. They are a dubious lot down there at the Blackbird, and have a telephone, so I'd just as soon they wouldn't see us at all. They might send word to Abe. It'll take a little longer, and the road is rougher, but our chances for getting safely away are much better."

"We are entirely in your hands," she answered, with quiet confidence. Her accent, her manner, were as new to him as her dress. She no longer seemed a young girl masquerading, but a woman—one to whom life was offering such stern drama that all her former troubles seemed suddenly faint and far away.

Kauffman was still suffering from his fall, and it became necessary for Helen to steady him in his seat. Her muscles ached with the strain, but she made no complaint, for she feared the ranger might lessen the speed of their flight.

Upon turning into the rough road which climbed the mesa, the horses fell into a walk, and the ranger, leaping from the wagon, strode alongside, close to the seat on which the girl sat.

"All this is not precisely in the Service Book," he remarked, with a touch of returning humor, "but I reckon it will be accounted 'giving aid and succor to settlers in time of need.'"

She was studying him minutely at the moment, and it pleased her to observe how closely his every action composed with the landscape. His dusty boots, clamped with clinking spurs, his weather-beaten gray hat, his keen glance flashing from point to point (nothing escaped him), his every word and gesture denoted the man of outdoor life, self-reliant yet self-unconscious; hardy, practical, yet possessing something that was reflective

as well as brave. Her heart went out to him in tenderness and trust. Her shadow lifted.

He had no perception of himself as a romantic figure; on the contrary, while pacing along there in the dust he was considering himself a sad esquire to the woman in whose worshipful service he was enlisted. He was eager to know more about her, and wondered if she would answer if he were to ask her the cause of her exile. Each moment of her company, each glimpse of her face, made the thought of losing her more painful. "Will I ever see her again?" was the question which filled his mind.

At the top of the mesa he again mounted to his seat on the upturned saddle, and kept the team steadily on the trot down the swiftly descending road. The sun was high above them now, and every mile carried them deeper into the heat and dust of the plain, but the girl uttered no word of complaint. Her throat was parched with thirst, but she did not permit him to know even this, for to halt at a well meant delay. They rode in complete silence, save now and again when the ranger made some remark concerning the character of the ranches they were passing.

"We are down among the men of the future now," he said—"the farmers who carry spades instead of guns."

Once they met a boy on horseback, who stared at them in open-mouthed, absorbed interest, and twice men working in the fields beckoned to them, primitively curious to know who they were and where they were going.

But Hanscom kept his ponies to their pace and replied only by shouting, "Got to catch the train!" In such wise he stayed them in their tracks, reluctant but helpless. At last, pointing to a small, wavering speck far out upon the level sod, he called with forceful cheerfulness: "There's the tank. We'll overhaul it in an hour." Then he added: "I've been thinking. What shall I do about the cabin? Shall I pack the furniture and ship it to you?"

"No, no. Take it yourself or give it away. I care very little for most of the things, except daddy's violin and my guitar. Those you may keep until we send for them."

"I shall take good care of the guitar," he asserted, with a look which she fully understood. "What about the books?"

"You may keep them also. We'd like you to have them—wouldn't we, daddy?"

"Yes, yes," said Kauffman. "There is nothing there of much value, but such as they are they are yours."

"I shall store everything," the young fellow declared, firmly, "in the hope that some day you will come back."

"That will never be! My life here is ended," she asserted.

"You will not always feel as you do now," he urged. "All the people of the county are not of Watson's stripe."

"That is true," she said. "I shall try not to be unjust, but I see now that in seeking seclusion in that lonely cañon we thrust ourselves among the most lawless citizens of the state, and cut ourselves off from the very people we should have known. However, I have had enough of solitude. My mind has changed. This week's experience has swept away the fog in my brain. I feel like one suddenly awakened. I see my folly and I shall go back to my people—to the city."

The ranger, recognizing something inflexible in this, made no further appeal.

There was nothing at the tank but a small, brown cottage in which the wife of the Mexican section boss lived, and to her Hanscom committed his charges and turned to the care of his almost exhausted team. The train was late, the guard at the tank said, and in consequence the ranger was torn between an agony of impatience and a dread of parting.

It was probable that some of the Kitsongs were in the raiding party, and if they were hurt the Kauffmans were not safe till the state line was passed. It would be easy to head them off by a wire. It was a hideous coil to throw about a young girl seeking relief from some unusual sorrow, and though he longed even more deeply to keep her under his protection, he made no objection to her going.

Returning to the section-house, he shared with her the simple meal which the reticent, smiling little Mexican woman had prepared, and did his best to cheer Kauffman with a belief in the early arrival of the train.

"It will be here soon, I am sure," he said.

Helen detected the lack of elation in his tone, and understood in some degree the sense of loss which made him heartsick, and yet she could not bring herself to utter words of comfort.

At the close of the meal, as they set out to walk across the sand to the switch, he said to her: "Am I never to see you again?"

"I hope so—somewhere, somehow," she replied, evasively.

"I wish you'd set a time and place," he persisted. "I can't bear to see you go. You can't realize how I shall miss you."

A fleeting gleam of amusement lighted her face. "You have known me only a few days."

"Oh yes, I have. I've known you all summer. You kept me busy thinking about you. The whole country will seem empty now."

She smiled. "I didn't know I filled so much space in the landscape. I thought I was but a speck in it." She hesitated a moment, then added: "I came out to lose myself in nature. I had come to hate men and to despise women. I was sick of my kind. I wanted to live like a savage, a part of the wild, and so—forget."

"Animals sometimes live alone; savages never do," he corrected, "unless they are outlawed from their tribe."

"That's what I tried to do—outlaw myself from my tribe. I wanted to get away from foolish comment, from malicious gossip."

"Are you ready to go back to it now—I mean to the city?"

"No, not quite; and yet this week's experience has shaken me and helped me. You have helped me, and I want to thank you for it. I begin to believe once more in good, brave, simple manhood. You and daddy have revived my faith in men."

"Some man must have hurt you mighty bad," he said, simply. Then added: "I can't understand that. I don't see how any man could do anything but just naturally *worship* you."

She was moved by the sincerity of his adoration, but she led him no farther in that direction. "At first I thought I had won a kind of peace. I was almost content in a benumbed way. Then came my arrest—and you. It was

a rough awakening, but I begin to see that I still live, that I am young, that I can become breathless with excitement. This raid, this ride, has swept away all that deathlike numbness which had fallen upon me. I've had my lesson. Now I can go back. I must get away from here."

Under the spell of her intense utterance the ranger's mind worked rapidly, filling in the pauses. "Yes, you'd better go away, but I'm not going to let you pass out of my life—not if I can help it! I'm going to resign and go where you go—"

She laid a protesting hand upon his arm. "No, no!" she said. "Don't do that. Don't resign. Don't change your plans on my account. I'm not worth such a sacrifice, such risk."

"You're worth any risk," he stoutly retorted, with some part of her own intensity in his voice. "I can't think of letting you go. I need you in my business." He smiled wanly. "I'm only a forest ranger at ninety dollars per month, but I'm going to be something else one of these days. I won't mind a long, rough trail if I can be sure of finding you at the end of it."

The far-away whistle of the train spurred him into fierce demand. "You'll let me write to you, and you will reply once in a while, won't you? It will give me something to look forward to. You owe me that much!" he added.

"Yes, I will write," she promised. "But I think it better that you should forget me. I hope we have not involved you in any trouble with your neighbors or with the coroner."

"I am not worrying about that," he answered. "I am only concerned about you. I would go to jail in a minute to save you any further worry."

"You are putting me so deeply in your debt that I can never repay you," she replied.

"A letter now and then will help," he suggested.

The train, panting, wheezing, hot with speed, came to a creeping halt, and the conductor, swinging out upon the side track, greeted the ranger pleasantly. "Hello, Hans! What are you doing here?"

Hanscom returned his greeting gravely. "Billy, here are some friends of mine, just down from the hills. Take good care of them for me, will you?"

"Sure thing, major," said the conductor. He helped Kauffman aboard, then turned to Helen. "Now, lady," he said, holding out a hand, "I'm sorry the step is so high, but—"

The ranger, stooping, took the girl in his arms and set her feet on the lower step. "Good-by," he said, huskily. Then added: "For now. Write me soon."

She turned and looked down upon him with a faint smile on her lips and a tender light in her eyes. "I promise. Good-by," she said, and entered the car.

The ranger stood for a long time gazing after the train, then languidly walked away toward his team.

Hanscom turned his face toward the forest with a full knowledge that his world had suddenly lost its charm. At one moment his thought went anxiously forward with the fugitives, at another it returned to confront the problem of his own desires. His act in thus assisting the main witness to escape might displease the court and would undoubtedly intensify the dislike which Kitsong had already expressed toward him. "My stay in the district is not likely to be as quiet as it has been," he said to himself.

However, his own safety was not a question of grave concern. The mystery of Watson's death yet remained, and until that was solved Helen was still in danger of arrest. His mind at last settled to the task of discovering and punishing the raiders. Who was Watson's assassin? What fierce desire for revenge had prompted that savage assault?

There was no necessary connection between that small footprint and the shooting, and yet, until it was proved to be the work of another, suspicion would point to Helen as the only woman of the vicinity who had the motive for the deed. To some the coroner's failure to hold her was almost criminal.

His return to the hills was equivalent to running the gantlet. From every ranch-gate men and boys issued, wall-eyed with curiosity. They, of course, knew nothing of the raiding-party of the morning, but they understood that something unusual had taken place, for was not the ranger's saddle in his wagon, and his saddle-horse under harness, not to mention a streak of blood along the flanks of its mate? The eyes of these solitary cattlemen are as

analytical as those of trained detectives. Nothing material escapes them. Being taught to observe from infancy, they had missed little of the ranger's errand.

"Who were you taking to the train?" they asked.

Hanscom's defense was silence and a species of jocular, curt evasion, and he succeeded at last in getting past them all without resort to direct and violent lying. As he had reason to suspect that one, at least, of the riflemen of the morning belonged to the Blackbird outfit, he decided to avoid that ranch altogether.

It would be absurd to claim that his nerves were perfectly calm and his heart entirely unhurried as he crept across the mesa and dropped into the wooded cañon just above the pasture fence. Although sustained by his authority as a Federal officer, he was perfectly well aware that it was possible for him to meet with trouble when the gang found out what he had done.

Another disturbing thought began to grow in his mind. "If those raiders watched me go down the hill, they may consider it a clever trick to drop in on the Kauffman place and loot the house. They know it is unguarded. Perhaps I ought to throw the saddle on old Baldy and ride over there to make sure about it."

The more he considered this the more uneasy he became. "They're just about sure to run off the stock, or be up to some other devilment," he said. "They might set fire to the house." In the end he roped his extra horse and set out.

Even by the cut-off it was a stiff ride, and it was nearly midnight as he topped the last ridge and came in sight of the cabin. "Hello!" he exclaimed. "Somebody *has* moved in. I'm just in time."

A light was gleaming from the kitchen window, and the ranger's mind worked quickly. No one but members of the raiding-party would think of taking possession of this cabin so promptly. No one else would know that the Kauffmans were away. "That being the case," he said, musingly, "it stands me in hand to walk light and shifty." And he kept on above the ranch in order to drop down through the timber of the cañon.

After tethering his horse upon a little plot of grass just west of the garden, he adjusted his revolver on his thigh at the precise point where it was handiest, and moved forward with care. "They mustn't have time even to *think* fight," he decided.

As he rounded the corner of the stable he heard the voice of a girl singing, and the effect of this upon him was greater than any uproar. It was uncanny. It made him wonder what kind of woman she could be who could carol in the midst of the band of raiders. She might be more dangerous than the men. She certainly added another complication to the situation.

Listening closely, he was able to detect the voices of at least two men as they joined discordantly in the refrain of the song. It was evident that all felt entirely secure, and the task to which the ranger now addressed himself was neither simple nor pleasant. To take these raiders unaware, to get the upper hand of them, and to bring them to justice was a dangerous program, but he was accustomed to taking chances and did not hesitate very long.

Keeping close to the shadow, he crept from the corral to the garden fence and from the covert of a clump of tall sunflowers was able to peer into the cabin window with almost unobstructed vision. A woman was seated on a low chair in the middle of the floor, playing a guitar and singing a lively song. He could not see the men. "I wonder if that door is locked?" he queried. "If it isn't, the job is easy. If it is, I'll have to operate through a screen window."

He remembered that both doors, front and back, were very strong, for Kauffman had been careful to have them heavily hinged and double-barred. They could not be broken except with a sledge. The screen on the windows could be ripped off, but to do that would make delay at the precise moment when a quarter of a second would be worth a lifetime. "No, I've got to gamble on that door being unlocked," he concluded, with the fatalism of the mountaineer, to whom danger is an ever-present side-partner.

With his revolver in his hand, he slid through the garden and reached the corner of the house unperceived. The woman was now playing a dance tune, and the men were stamping and shouting; and under cover of their clamor the ranger, stooping low, passed the window and laid his hand on the knob. The door yielded to his pressure, and swiftly, almost soundlessly, he

darted within and stood before the astounded trio like a ghost—an armed and very warlike ghost.

"What's going on here?" he demanded, pleasantly, as with weapon in complete readiness he confronted them.

He had no need to command quiet. They were all schooled in the rules of the game he was playing, and understood perfectly the advantage which he held over them. They read in his easy smile and jocular voice the deadly determination which possessed him.

The woman was sitting in a low chair with the guitar in her lap and her feet stretched out upon a stool. Her companions, two young men, hardly more than boys, were standing near a table on which stood a bottle of liquor. All had been stricken into instant immobility by the sudden interruption of the ranger. Each stared with open mouth and dazed eyes.

Hanscom knew them all. The girl was the wilful daughter of a Basque rancher over on the Porcupine. One of the boys was Henry Kitsong, a nephew of Abe, and the other a herder named Busby, who had been at one time a rider for Watson.

"Having a pleasant time, aren't you?" the ranger continued, still retaining his sarcastic intonation. From where he stood he could see the bottom of the girl's upturned shoes, and his alert brain took careful note of the size and shape of the soles. A flush of exultation ran over him. "Those are the shoes that left those telltale footprints in the flour," he said to himself.

"You lads had better let me have your guns," he suggested. "Busby, I'll take yours first."

The young ruffian yielded his weapon only when the ranger repeated his request with menacing intonation. "You next, Henry," he said to Kitsong, and, having thus cut the claws of his young cubs, his pose relaxed. "You thought the owners of the place safely out of reach, didn't you? You saw me go down in the valley with them? Well, I had a hunch that maybe you'd take advantage of my absence, so I just rode over. I was afraid you might drop down here and break things up. You see, I'm responsible for all these goods, and I don't want to see them destroyed. That music-box, for instance" (he addressed the girl); "I happen to know that's a high-priced instrument, and I promised the owner to take good care of it. That bottle you fellows dug up I

didn't know anything about, but I guess I'll confiscate that also. It ain't good for little boys." He turned sharply on Kitsong. "Henry, was your father in that band of sharpshooters this morning?"

"No, he wasn't," blurted the boy. "And I wasn't, either."

"We'll see about that in the morning. Which of you rode a blaze-faced sorrel?" Neither answered, and Hanscom said, contentedly: "Oh, well, we'll see about *that* in the morning."

Hanscom had drawn close to the girl, who remained as if paralyzed with fright. "Señorita, I reckon I'll have to borrow one of your shoes for a minute." As he stooped and laid hold of her slipper Busby fell upon him with the fury of a tiger.

Hanscom was surprised, for he had considered the fellow completely cowed by the loss of his revolver. He could have shot him dead, but he did not. He shook him off and swung at him with the big seven-shooter which he still held in his hand. The blow fell upon the young fellow's cheek-bone with such stunning force that he reeled and fell to the floor.

Young Kitsong cried out, "You've killed him!"

"What was he trying to do to me?" retorted Hanscom. "Now you take that kerchief of yours and tie his hands behind him. If either of you makes another move at me, you'll be sorry. Get busy now."

Young Kitsong obeyed, awed by the ranger's tone, and Busby was soon securely tied. He writhed like a wildcat as his strength came back, but he was helpless, for Hanscom had taken a hand at lashing his feet together. There was something bestial in the boy's fury. He would have braved the ranger's pistol unhesitatingly after his momentary daze had passed, for he had the blind rage of a trapped beast, and his strength was amazing.

During all this time the girl remained absolutely silent, her back against the wall, as if knowing that her capture would come next. Hanscom fully expected her to take a hand in the struggle, but he was relieved—greatly relieved—by her attitude of non-resistance.

"Now, Henry," he said, with a breath of relief, "I can't afford to let either you or the señorita out of my sight. I reckon you'll both have to sit right here and keep me company till morning. Mebbe the señorita will bustle

about and make a pot of coffee—that'll help us all to keep awake. But first of all I want both her slippers. Bring 'em to me, Henry."

Kitsong obeyed, and the girl yielded the slippers, the soles of which seemed to interest Hanscom very deeply.

He continued with polite intonation, "We'll all start down the valley at daybreak."

"What do you want of me?" asked the girl, hoarsely.

"I want you as a witness to the assault Busby made on me; and then, you see, you're all housebreakers"—he waved his hand toward the front window, from which the screen had been torn and the glass broken—"and housebreaking is pretty serious business even in this country. Furthermore, you were all concerned in that raid, and I'm going to see that you all feel the full weight of the law."

All the time he was talking so easily and so confidently he was really saying to himself: "To take you three to jail will be like driving so many wolves to market—but it's got to be done."

He was tired, irritable, and eager to be clear of it all. His own cabin at the moment seemed an ideally peaceful retreat. Only his belief that in this girl's small shoe lay the absolute proof of Helen's innocence nerved him to go on with his self-imposed duty. His chief desire was to place these shoes in the coroner's hands and so end all dispute concerning the footprints in the flour.

The girl, whose name was Rita, sullenly made coffee, and as she brought it to him, he continued his interrogation:

"How did you get here?"

"I rode."

"Over the trail? Across the divide?"

"Yes."

"Were you in the raid this morning?"

"What raid? I don't know of any raid."

He knew she was lying, but he only said, "When did you leave home?"

"Three days ago."

"Where have you been?"

"In camp."

"Where?"

She pointed up the stream.

"How long have you been acquainted with this man Busby?"

Here he struck upon something stubborn and hard in the girl's nature. She refused to reply.

"When were you over here last?"

A warning word from Busby denoted that he understood the course of the ranger's questioning and was anxious to strengthen her resistance.

Hanscom had several hours in which to ponder, and soon arrived at a fairly accurate understanding of the whole situation. He remembered vaguely the report of a row between Watson and Busby, and he was aware of the reckless cruelty of the dead man. It might be that in revenge for some savagery on his part, some graceless act toward Rita, this moody, half-insane youth had crept upon the rancher and killed him.

He turned to young Kitsong. "I haven't seen you lately. Where have you been?"

"Over on the Porcupine."

"Working on Gonzales's ranch?"

"Yes, part of the time."

"Does your father know you are back in the valley?"

"No—yes, he does, too!"

"You fired that shot that killed the horse, didn't you?"

Young Kitsong betrayed anxiety. "I don't know what you are talking about."

"Which of you rode the blaze-faced sorrel?"

In spite of himself the boy glanced quickly at the girl, who shook her head.

Hanscom addressed himself to her. "Señorita, which of your friends rode the blaze-faced sorrel?"

Her head dropped in silent refusal to answer.

"Oh, well," said the ranger, "we'll find out in the course of time. My eyesight is pretty keen, and I can swear that it was the man on the sorrel horse that fired the shot that stopped the Kauffman team. Now one or the other of you will have to answer to that charge." His voice took on a sterner note. "What were you doing on Watson's porch last Saturday?"

The girl started and flushed. "I wasn't on his porch."

"Oh yes, you were! You didn't know you left your footprints in some flour on the floor, did you?"

Her glance was directed involuntarily toward her feet, as if in guilty surprise. It was a slight but convincing evidence to the ranger, who went on:

"Who was with you—Busby or Henry?"

"Nobody was with me. I wasn't there. I haven't been in the valley before for weeks."

"You didn't go there alone. You wouldn't dare to go alone in the night, and the man who was with you killed Watson."

She sat up with a gasp, and young Kitsong stared. Their surprise was too genuine to be assumed. "What's that you say? Watson killed?"

"Yes. Watson was shot Monday night. Didn't you know that? Where have you been that you haven't heard of it?"

Young Kitsong was all readiness to answer now. "We've been up in the hills. We have a camp up there."

"Oh," said Hanscom, "kind of a robbers' den, eh? Has Busby been with you?"

"Sure thing. We've all been fishing and hunting—" Here he stopped suddenly, for to admit that he had been hunting out of season was to lay himself liable to arrest as a poacher on the forest. He went on: "We all came down here together."

"What were you doing chasing that team? What was the game in that?"

"Well, he shot at us first," answered the boy.

And Busby shouted from his position in the corner on the floor, "Shut up, you fool!"

The ranger smiled. "Oh, it's got to all come out, Busby. I saw the man on the sorrel horse fire that shot—don't forget that. And I know who made the tracks in the flour. But I am beginning to wonder if you had anything to do with warning the Kauffmans to get out."

He had indeed come to the end of his questioning, for his captives refused to utter another word, and he himself fell silent, his mind engaged with the intricacies of this problem. It might be that these young dare-devils just happened to meet Kauffman on the road and decided to hold him up. It was possible that they knew nothing of the warnings which had been sent. But in that case, who pushed that final warning under the door? Who let them know of trouble from above?

Dawn was creeping up the valley, and, calling young Kitsong from the doze into which he had fallen, he said: "Now, Henry, I'm going to take this bunch down to the sheriff, and you might as well make up your mind to it first as last. You go out and saddle up while the señorita heats up some more coffee, and we'll get ready and start."

Hanscom was by no means as confident as his voice sounded, and, as the young fellow rose to go, only half expected him to show his face again. "Well, let him slip," he said to himself. "I'll be safer without him."

Busby spoke up from the floor. "You stay with the game, Hank, and you ride your own horse."

"You bet I'll ride my own horse," Kitsong violently retorted, from the doorway.

The girl, who understood the significance of this controversy, interposed. "I'll ride the sorrel. He's my horse, anyway."

Hanscom mockingly chimed in. "That's mighty fine and self-sacrificing, but it won't do. The rider who fired that shot was a man. But I'll leave it to Henry. Bring around the horses, and remember, if you slip out with that bay horse I'll *know* you rode the sorrel yesterday."

The situation had become too complicated for the girl, who fell silent, while Busby cursed the ranger in fierce, set terms. "What right have you got to arrest us, anyhow?"

"All the right I need. That shooting began inside the forest boundary, and it's my duty to see that you are placed in the hands of the law." Here his voice took on a note of grim determination. "And I want you to understand there will be no funny business on the way down."

"How can I ride, all tied up like this?" demanded the ruffian.

"Oh, I'm going to untie you, and you are going to come along quietly—either as live stock or freight—you can take your choice."

Busby, subdued by several hours on the floor, was disposed to do as he was told, and Hanscom unbound his legs and permitted him to rise.

As young Kitsong brought the horses around in front of the cabin, Hanscom was not disappointed in finding the girl's saddle on the sorrel. He made no comment.

"Now, Busby, we'll mount you first," he said, and slipped the bridle from the horse. "You see, to make sure of you I am going to lead your pony." He then untied the youth's hands. "Climb on!" he commanded.

Busby silently mounted to his saddle, the girl took the sorrel, and at command Kitsong started down the trail.

"You go next," said Hanscom to the girl, "now you, Busby," he added, and with the rope across the horse's rump—the trick of a trained trailer—he started down the trail.

Sinister as this small procession really was, it would have appeared quite innocent to a casual observer as it went winding down the hill. No one at a little distance would have been able to tell that in the silent determination of the horseman in the rear lay the only law, the only bond which kept these four riders in line. Neither Busby nor Kitsong nor the girl doubted for an instant that if any of them made a deflection, a rush for freedom, they would be shot. They knew that as a Federal officer he had certain authority. Just how much authority they could not determine, but they were aware that the shooting had begun in the forest, which was his domain.

As they sighted Watson's cabin Hanscom was curious to know whether nearing the scene of the crime would have any perceptible effect on Busby. "Will he betray nervousness?" he asked himself.

Quite the contrary. As he came opposite the house, Busby turned in his saddle and asked, "When was Watson killed?"

"Nobody knows exactly. Some time Monday night," answered the ranger.

A few miles down the road they met a rancher coming up the valley with a timber-wagon, and to him the ranger explained briefly the nature of his expedition, and said:

"Now, Tom, I reckon you'll have to turn around and help me take these youngsters to the sheriff. I would rather have them in your wagon than on horseback."

The rancher consented with almost instant readiness.

The prisoners were transferred to the wagon, and in this way the remainder of the trip was covered.

V

The county jail was a square, brick structure standing in the midst of a grove of small cottonwood-trees (planted in painful rows), and the sheriff's office and his wife's parlor, situated on opposite sides of the hall, occupied the front part of the first story, while the rear and the basement served as kitchen and dungeon keep. Generally the lockup was empty and the building quite as decorous as any other on the street, although at certain times it resounded with life. On this day it was quiet, and Throop and his wife, who served as matron, were sitting under a tree as the rancher's wagon halted before the gate.

It was about three o'clock in the afternoon and Hanscom's prisoners were dusty, tired, and sullen as they filed up the walk toward the sheriff, who awaited their approach with an inquiring slant to his huge head. Mrs. Throop retreated to the house.

When at close range Hanscom with a weary smile said, "I've brought you some new boarders, Mr. Sheriff."

"So I see," said the officer, as he motioned them to enter the door. "What's it all about?"

"It's a long story," replied the ranger, "and of course I can't go into it here, but I want you to take charge of these people while I see Carmody and find out what he wants done with them. I think he'll find them valuable witnesses. Incidentally I may say they've been shooting a horse and breaking and entering a house."

The sheriff was deeply impressed with this charge. "Well, well!" he said, studying with especial care the downcast face of the girl. "I thought it might be only killing game out of season, stealing timber, or some such thing." He called a deputy. "Here, Tom, take these men into the guard-room, and, Mrs. Throop, you look after this girl while I go over the case with Mr. Hanscom."

"Don't let 'em talk with anybody," warned the ranger.

The sheriff passed the word to the deputy, "That's right, Tom."

In deep relief the ranger followed the sheriff into his private office and dropped into a seat. "Jeerusalem! I'm tired!" he exclaimed. "That was a nervous job!"

"Cut loose," said the sheriff.

Hanscom then related as briefly as he could the story of the capture. At the end he confessed that he had hardly expected to reach town with all of them. "I had no authority to arrest them. I just bluffed them, as well as the rancher who drove the wagon, into thinking I had. I wanted them for Carmody to question, and I hung to the girl because I believe she can absolutely clear Kauffman and his daughter of any connection—"

Throop, who had listened intently, now broke out: "Well, I hope so. That old man and his girl sure are acquiring all kinds of misery. Kitsong got Carmody to issue a warrant for them yesterday, and I wired the authorities at Lone Rock and had them both taken from the train."

The ranger's face stiffened as he stared at the officer. "You did!"

"I did, and they're on their way back on No. 6."

"How could Carmody do that?" Hanscom demanded, hotly. "He told them to go—I heard him."

"He says not. He says he just excused the girl for the time being. He declares now that he expected them both to stay within call, and when he heard they were running away—"

"How did he know they were running away?"

"Search me! Some one on the train must have wired back."

"More likely the Blackbird Ranch 'phoned in. They are all related to Watson. I was afraid of them." He rose. "Well, that proves that Abe and his gang were at the bottom of that raid."

"Maybe so, but I don't see how Carmody can go into that—his job is to find the man or woman who killed Watson."

"Well, there's where I come in. I've got the girl who made those tracks on the floor."

The sheriff was thoughtful. "I guess you'd better call up Carmody—he's the whole works till his verdict is rendered, and he ought to be notified at once."

A moment's talk with the doctor's office disclosed the fact that he was out in the country on a medical trip, and would not return till late. "Reckon we'll have to wait," said the sheriff.

The ranger's face fell. After a pause he asked, "When does that train get in?"

"About six; it's an hour late."

"And they'll be jailed?"

"Sure thing! No other way. Carmody told me to take charge of them and see that they were both on hand to-morrow."

Hanscom's fine eyes flamed with indignation. "It's an outrage. That girl is as innocent of Watson's killing as you are. I won't have her humiliated in this way."

"You seem terribly interested in this young lady," remarked Throop, with a grin.

Hanscom was in no mood to dodge. "I am—and I'm going to save her from coming here if I can." He started for the door. "I'll see Judge Brinkley and get her released. Carmody has no authority to hold her."

"I hope you succeed," said the sheriff, sympathetically; "but at present I'm under orders from the coroner. It's up to him. So you think you've got the girl who made them tracks?"

"I certainly do, and I want you to hold these prisoners till Carmody gets home. Don't let anybody see them, and don't let them talk with one another. They'll all come before that jury to-morrow, and they mustn't have any chance to frame up a lie."

"All right. I see your point. Go ahead. Your prisoners will be here when you come back."

Hanscom went away, raging against the indignity which threatened Helen. At Carmody's office he waited an hour, hoping the coroner might return, and, in despair of any help from him, set out at last for Brinkley's office, resolute to secure the judge's interference.

The first man he met on the street stopped him with a jovial word: "Hello, Hans! Say, you want to watch out for Abe Kitsong. He came b'ilin' in half an hour ago, and is looking for you. Says you helped that Dutchman and his girl (or wife, or whatever she is) to get away, and that you've been arresting Henry, his nephew, without a warrant, and he swears he'll swat you good and plenty, on sight."

Hanscom's voice was savage as he replied: "You tell him that I'm big enough to be seen with the naked eye, and if he wants me right away he'll find me at Judge Brinkley's office."

The other man also grew serious. "All the same, Hans, keep an eye out," he urged. "Abe is sure to make you trouble. He's started in drinking, and when he's drunk he's poisonous as a rattler."

"All right. I'm used to rattlers—I'll hear him before he strikes. He's a noisy brute."

The ranger could understand that Rita's father might very naturally be thrown into a fury of protest by the news of his daughter's arrest, but Kitsong's concern over a nephew whom he had not hitherto regarded as

worth the slightest care did not appear especially logical or singularly important.

Brinkley was not in his office and so Hanscom went out to his house, out on the north bend of the river in a large lawn set with young trees.

The judge, seated on his porch in his shirt-sleeves, exhibited the placid ease of a man whose office work is done and his grass freshly sprinkled.

"Good evening, Hanscom," he pleasantly called. "Come up and have a seat and a smoke with the gardener."

"I have but a moment," the ranger replied, and plunged again into the story, which served in this instance as a preface to his plea for intervention. "You must help *me*, Judge. Miss McLaren must not go to jail. To arrest her in this way a second time is a crime. She's a lady, Judge, and as innocent of that shooting as a child."

"You surprise me," said Brinkley. "According to all reports she is very, very far from being a lady."

Hanscom threw out his hands in protest. "They're all wrong, Judge. I tell you she *is* a lady, and young and handsome."

"Handsome and young!" The judge's eyes took on a musing expression. "Well, well! that accounts for much. But what was she doing up there in the company of that old Dutchman?"

"I don't know why she came West, but I'm glad she did. I'm glad to have known her. That old Dutchman, as you call him, is her stepfather and a fine chap."

"But Carmody has arrested her. What caused him to do that?"

"I don't know. I can't understand it. It may be that Kitsong has put the screws on him some way."

The judge reflected. "As the only strange woman in the valley, the girl naturally falls under suspicion of having made those footprints."

"I know it, Judge, but you have only to see her—to hear her voice—to realize how impossible it is for her to kill even a coyote. All I ask, now, is that you save her from going to jail."

"I don't see how I can interfere," Brinkley answered, with gentle decision. "As coroner, Carmody has the case entirely in his hands till after the verdict. But don't take her imprisonment too hard," he added, with desire to comfort him. "Throop has a good deal of discretion and I'll 'phone him to make her stay as little like incarceration as possible. You see, while nominally she's only a witness for the state, actually she's on trial for murder, and till you can get your other woman before the jury she's a suspect. If you are right, the jury will at once bring in a verdict against other parties, known or unknown, and she will be free—except that she may have to remain to testify in her own case against the raiders. Don't worry, my dear fellow. It will come out all right."

Hanscom was now in the grasp of conflicting emotions. In spite of Brinkley's refusal to interfere, he could not deny a definite feeling of pleasure in the fact that Helen was returning and that he was about to see her again. "Anyhow, I have another opportunity to serve her," he thought, as he turned down the street toward the station. "Perhaps after the verdict she will not feel so eager to leave the country."

VI

Meanwhile the fugitives on the westbound express were nearing the town in charge of the marshal of Lone Rock, and Helen (who had telegraphed her plight to Hanscom and had received no reply) was in silent dread of the ordeal which awaited her. Her confidence in the ranger had not failed, but, realizing how difficult it was to reach him, she had small hope of seeing his kindly face at the end of her journey.

"He may be riding some of those lonely heights this moment," she thought, and wondered what he would do if he knew that she was returning, a prisoner. "He would come to me," she said, in answer to her own question, and the thought that in all that mighty spread of peak and plain he was the one gracious and kindly soul lent a kind of glamour to his name. "After all, a loyal soul like his is worth more than any mine or mountain," she acknowledged.

The marshal, a small, quaint, middle-aged person with squinting glance and bushy hair, was not only very much in awe of his lovely prisoner, but so

accustomed to going about in his shirt-sleeves that he suffered acutely in the confinement of his heavy coat. Nevertheless, in spite of his discomfort, he was very considerate in a left-handed way, and did his best to conceal the official relationship between himself and his wards. He not only sat behind them all the way, but he made no attempt at conversation, and for these favors Helen was genuinely grateful. Only as they neared the station did he venture to address her.

"Now the sheriff will probably be on hand," he said; "and if he is I'll just naturally turn you over to him; but in case he isn't I'll have to take you right over to the jail. I'm sorry, but that's my orders. So if you'll kindly step along just ahead of me, people may not notice you're in my charge."

Helen assured him that she would obey every suggestion, and that she deeply appreciated his courtesy.

Kauffman's spirit was sadly broken. His age, the rough usage of the day before, and this unwarranted second arrest had combined to take away from him a large part of his natural courage. He insisted that Helen should wire her Eastern friends, stating the case and appealing for aid.

"We need help now," he said. "We are being persecuted."

Helen, however, remembering Carmody's kindness, said: "Don't be discouraged, daddy. It may be that we are only witnesses and that after we have testified we shall be released. Wait until to-morrow; I hate to announce new troubles to my relatives."

"But we shall need money," he said, anxiously. "We have only a small balance."

It was nearly six o'clock as they came winding down between the grassy buttes which formed the gateway to the town, and the girl recalled, with a wave of self-pity, the feeling of exaltation with which she had first looked upon that splendid purple-walled cañon rising to the west. It had appealed to her at that time as the gateway to a mystic sanctuary. Now it was but the lair of thieves and murderers, ferocious and obscene. Only one kindly human soul dwelt among those majestic, forested heights.

She was pale, sad, but entirely composed, and to Hanscom very beautiful, as she appeared in the vestibule of the long day-coach, but her face flushed

with pleasure at sight of him, and as she grasped his hand and looked into his fine eyes something warm and glowing flooded her heart.

"Oh, how relieved I am to find you here!" she exclaimed, and her lips trembled in confirmation of her words. "I did not expect you. I was afraid my telegram had not reached you."

"Did you telegraph me?" he asked. "I didn't get it—but I'm here all the same," he added, and fervently pressed the hands which she had allowed him to retain.

Oblivious of the curious crowd, she faced him in a sudden realization of her dependence upon him, and her gratitude for his stark manliness was so deep, so full, she could have put her hands about his neck. How dependable, how simple, how clear-eyed he was!

He on his part found her greatly changed in both face and voice. She seemed clothed in some new, strange dignity, and yet her glance was less remote, less impersonal than before and her pleasure at sight of him deeply gratifying. In spite of himself his spirits lightened.

"I have a lot to tell you," he began, but the sheriff courteously interposed:

"Put her right into my machine—You go too, Hanscom."

"I couldn't prevent this," he began, sorrowfully, as he took a seat beside her; "but you will not be put into a cell. Mrs. Throop will treat you as a guest."

The self-accusation in his voice moved her to put her hand on his arm in caressing reassurance. "Please don't blame yourself about that," she said. "I don't mind. It's only for the night, anyway. Let us think of to-morrow."

The ride was short and Mrs. Throop, a tall, dark, rather gloomy woman, came to the door to meet her guests with the air of an old-fashioned village hostess, serious but kindly.

"Mrs. Throop," said her husband. "This is Miss McLaren and her father, Mr. Kauffman. Make them as comfortable as you can."

Mrs. Throop greeted Helen with instant kindly interest. "I am pleased to know you. Come right in. You must be tired."

"I am," confessed the girl, "very tired and very dusty. I hope you always put your prisoners under the hose."

"I'll give you my spare chamber," replied the matron, with abstracted glance. "It's next the bath-room. I'm sorry, but I guess your father'll have to go down below."

"What do you mean by that?"

The sheriff explained, "The cells are below."

Helen was instantly alarmed. "Oh no!" she protested. "My father is not at all well. Please give him my room. I'll go down below."

"It won't be necessary for either of you to go below," interposed the sheriff. "Hanscom, I'll put Kauffman in your charge. You can take him to your boarding-house if you want to."

"You're very kind," said Helen, with such feeling that the sheriff reacted to it. "I hope it won't get you into trouble."

"Oh, I don't think it will," he said, cheerily. "So long as I know he's safe, it don't matter where he sleeps."

"Well, you'd better all stay to supper, anyhow," said Mrs. Throop. "It's ready and waiting."

No one but Helen perceived anything unusual in this hearty offhand invitation. To Hanscom it was just another instance of Western hospitality, and to the sheriff a common service, and so a few minutes later they all sat down at the generous table, in such genial mood (with Mrs. Throop doing her best to make them feel at home) that all their troubles became less than shadows.

Although disinclined to go into a detailed story of his return to the hills, Hanscom described the capture of the housebreakers and, in spite of a careful avoidance of anything which might sound like boasting, disclosed the fact that at the moment when he threw open the door of the cabin he had exposed himself to the weapons of a couple of reckless young outlaws and might have been killed.

"You shouldn't have risked that," Helen protested. "Our poor possessions are not worth such cost."

"I couldn't endure the notion of those hoodlums looting the place," he explained.

At the thought of Rita (who was occupying a cell in the women's ward) Helen grew a little sad, for, according to the ranger's own account, she was hardly more than a child, and had been led away by her first passion.

At the close of the meal, upon Mrs. Throop's housewifely invitation, they all took seats in the "front room" and Helen quite forgot that she was a prisoner, and the ranger almost returned to boyhood as he faced the marble-topped table, the cabinet organ, and the enlarged family portraits on the walls, for of such quality were his mother's adornments in the old home at Circle Bend. Something vaguely intimate and a little confusing filled his mind as he listened to the voice of the woman before him. Only by an effort could he connect her with the cabin in the high valley. She was becoming each moment more alien, more aloof, but at the same time more desirable, like the girls he used to worship in the church choir.

Speech was difficult with him, and he could only repeat: "It makes me feel like a rabbit to think I could not keep you from coming here, and the worst of it is I had nothing to offer as security. All I have in the world is a couple of horses, a saddle, and a typewriter."

"It really doesn't matter," she replied in hope of easing his mind. "See how they treat us! They know we're unjustly held and that we shall be set free to-morrow."

Strange to say, this did not lighten his gloom. "And then—you will go away," he said, soberly.

"Yes; we cannot remain here."

"And I shall never see you again," he pursued.

Her face betrayed a trace of sympathetic pain. "Don't say that! *Never* is such a long time."

"And you'll forget us all out here—"

"I shall never forget what you have done, be sure of that," she replied.

Nevertheless, despite the tenderness of her tone and her gratitude openly expressed, something disconcerting had come into her eyes and voice. She

was more and more the lady and less and less the recluse, and as she receded and rose to this higher plane, the ranger lost heart, almost without knowing the cause of it.

At last he turned to Kauffman. "I suppose we'd better go," he said. "You look tired."

"I am tired," the old man admitted. "Is it far to your hotel?"

"Only a little way."

"Good night," said Helen, extending her hand with a sudden light in her face which transported the trailer. "We'll meet again in the morning."

He took her hand in his with a clutch in his throat which made reply difficult; but his glance expressed the adoration which filled his heart.

Kauffman left the house, walking like a man of seventy. "My bones are not broken, but they are weary," he said, dejectedly; "I fear I am to be ill."

"Oh, you'll be all right in the morning," responded the ranger much more cheerily than he really felt.

"Is it not strange that any reasonable being should accuse my daughter and me of that monstrous deed?"

"That is because no one knows you. When the towns-folk come to know you and her they will think differently. That is why I am glad the coroner is to hold his court here in the town."

"Well, if only we are set free—We shall be set free, eh?"

"Surely? But what will you do then? Where will you go?"

"I hope Helen will return to her people." He sighed deeply. "It was all very foolish to come out here. But it was natural. She was stricken, and sensitive—so morbidly sensitive—to pity, to gossip. Then, too, a romantic notion about the healing power of the mountains was in her thought. She wished to go where no one knew her—where she could live the simple life and regain serenity and health. She said: 'I will not go to a convent. I will make a sanctuary of the green hills.'"

"Something very sorrowful must have happened—" said Hanscom, hesitatingly.

The old man's voice was very grave as he replied: "Not sorrow, but treachery," he said. "A treachery so cruel, a betrayal so complete, that when she lost her lover and her most intimate girl friend (one nearer than a sister) she lost faith in all men and all women—almost in God. I cannot tell you more of her story—" He paused a moment, then added: "She believes in you—she already trusts you—and some time, perhaps, she herself will tell the story of her betrayal. Till then you must be content with this—she is here through no fault or weakness of her own."

The ranger, pondering deeply, dared not put into definite form the precise disloyalty which had driven a broken-hearted girl to seek the shelter of the hills, but he understood her mood. Hating her kind and believing that she could lose herself in the immensity of the landscape, she had come to the mountains only to be cruelly disillusioned. The Kitsongs had taught her that in the wilderness a woman is more noticeable than a peak.

Just why she selected the Shellfish for her retreat remained to be explained, and to this question Kauffman answered: "We came here because a friend of ours, a poet, who had once camped in the valley, told us of the wonderful beauty of the place. It is beautiful—quite as beautiful as it was reported—but a beautiful landscape, it appears, does not make men over into its image. It makes them seem only the more savage."

Hanscom, refraining from further question, helped the old man up the stairway to his bed and then returned to the barroom, in which several of the regular boarders were loafing. One or two greeted him familiarly, and it was evident that they all knew something of the capture and were curious to learn more. His answers to their questions were brief: "You'll learn all about it to-morrow," he said.

Simpson, the proprietor of the hotel, jocosely remarked: "Well, Hans, as near as I can figure it out, to-morrow is to be your busy day, but you'd better lay low to-night. The Kitsongs'll get ye, if ye don't watch out."

"I'll watch out. What do you hear?"

"The whole of Shellfish Valley is coming in to see that your Dutchman and his girl gets what's coming to them. Abe has just left here, looking for

you. He's turribly wrought up. Says you had no right to arrest them youngsters and he'll make you sorry you did."

One of the clerks dryly remarked: "They's a fierce interest in this inquest. Carmody will sure have to move over to the court-house. Gee! but he feels his feed! For one day, anyhow, he's bigger than the *entire* County Court."

The ranger had a clearer vision of his own as well as Helen's situation as he replied: "Well, I'm going over to see him. When it comes to a show-down he's on my side, for he needs the witnesses I've brought him."

"Abe sure has got it in for you, Hans. Your standing up for the Dutchman and his woman was bad enough, but for you to arrest Hank without a warrant has set the old man a-poppin'." He glanced at the ranger's empty belt. "Better take your gun along."

"No; I'm safer without it," he replied. "I might fly mad and hurt somebody."

The loafers, though eager to witness the clash, did not rise from their chairs till after Hanscom left. No one wished to betray unseemly haste.

"There'll be something doing when they meet," said Simpson. "Let's follow him up and see the fun."

As he walked away in the darkness the ranger began to fear—not for himself, but for Helen. The unreasoning ferocity with which the valley still pursued her was appalling. For the first time in his life he strongly desired money. He felt his weakness, his ignorance. In the face of the trial—which should mean complete vindication for the girl, but which might prove to be another hideous miscarriage of justice—he was of no more value than a child. Carmody had seemed friendly, but some evil influence had evidently changed his attitude.

"What can I do?" the ranger asked himself, and was only able to answer, "Nothing."

From a sober-sided, capable boy, content to do a thing well, he had developed at thirty into a serious but singularly unambitious man. Loving the outdoor life and being sufficiently resourceful to live alone in a wilderness cabin without becoming morbid, he had naturally drifted into the Forest Service. Without being slothful, he had been foolishly unaspiring,

and he saw that now. "I must bestir myself," he said, sharply. "I must wake up. I must climb. I must get somewhere."

He took close grip on himself. "Carmody must squeeze the truth out of these youngsters to-morrow, and I must help him do it. If Brinkley can't help, I must have somebody else." And yet deep in his heart was the belief that the sight of Helen as she took the witness-chair would do more to clear her name than any lawyer could accomplish by craft or passionate speech.

At the door of Carmody's office he came upon Kitsong and a group of his followers, waiting for him. Abe was in a most dangerous mood, and his hearers, also in liquor, were listening with approval to the description of what he intended to do to the ranger.

"You can't arrest a man without a warrant," he was repeating. "Hanscom's no sheriff—he's only a dirty deputy game-warden. I'll make him wish he was a goat before I get through with him."

Although to advance meant war, Hanscom had no thought of retreating. He kept his way, and as the band of light which streamed from the saloon window fell on him one of the watchers called out, "There's the ranger now."

Kitsong turned, and with an oath of savage joy advanced upon the forester. "You're the man I have been waiting for," he began, with a menacing snarl.

"Well," Hanscom retorted, "here I am. What can I do for you?"

His quiet tone instantly infuriated the ruffian. Shaking his fist close to the ranger's nose, he shouted: "I'll do for you, you loafer! What right had you to arrest them kids? What right had you to help them witnesses to the train? You're off your beat, and you'd better climb right back again."

Righteous wrath flamed hot in the ranger's breast. "You keep your fist out of my face or I'll smash your jaw," he answered, and his voice was husky with passion. "Get out of my way!" he added, as Kitsong shifted ground, deliberately blocking his path.

"You can't bluff me!" roared the older man. "I'm going to have you juggled for false arrest. You'll find you can't go round taking people to jail at your own sweet will."

The battle song in the old man's voice aroused the street. His sympathizers pressed close. All their long-felt, half-hidden hatred of the ranger as a Federal officer flamed from their eyes, and Hanscom regretted the absence of his revolver.

Though lean and awkward, he was one of those deceptive men whose muscles are folded in broad, firm flakes like steel springs. A sense of danger thrilled his blood, but he did not show it—he could not afford to show it. Therefore he merely backed up against the wall of the building and with clenched hands awaited their onset.

Something in his silence and self-control daunted his furious opponents. They hesitated.

"If you weren't a government officer," blustered Abe, "I'd waller ye—But I'll get ye! I'll put ye where that Dutchman and his—"

Hanscom's fist crashing like a hammer against the rancher's jaw closed his teeth on the vile epithet which filled his mouth, and even as he reeled, stunned by this blow, the ranger's left arm flashed in another savage swing, and Abe, stunned by the swift attack, would have fallen into the gutter had not one of his gang caught and supported him.

"Kill him! Kill the dog!" shouted one of the others, and in his voice was the note of the murderer.

Eli Kitsong whipped out his revolver, but the hand of a friendly bystander clutched the weapon. "None of that; the man is unarmed," he said.

At this moment the door of the saloon opened and five or six men came rushing, eager to see, quick to share in a fight. Believing them to be enemies, Hanscom with instant rush struck the first man a heavy blow, caught and wrenched his weapon from his fist, and so, armed and desperate, faced the circle of inflamed and excited men.

"Hands up now!" he called.

"Don't shoot, Hans!" shouted the man who had been disarmed. "We're all friends."

In the tense silence which followed, the sheriff, attracted by the noise, emerged from the coroner's door with a shout and hurled himself like an

enormous ram into the crowd. Pushing men this way and that, he reached the empty space before the ranger's feet.

"What's the meaning of all this?" he demanded, with panting intensity. "Put up them guns." The crowd obeyed. "Now, what's it all about?" he said, addressing Abe.

"He jumped me," complained Kitsong. "I want him arrested for that and for taking Henry without a warrant."

"Where's *your* warrant?" asked Throop.

Abe was confused. "I haven't any yet, but I'll get one."

Throop addressed the crowd, which was swiftly augmenting. "Clear out of this, now! *Vamose*, every man of you, or I'll run you all in. Clear out, I say!" The throng began to move away, for the gestures with which he indicated his meaning were made sinisterly significant by the weapon which he swung. The leaders fell back and began to move away. Throop said to the ranger: "Hans, you come with me. The coroner wants you."

Hanscom returned the revolver to the man from whom he had snatched it. "I'm much obliged, Pete," he said, with a note of humor. "Hope I didn't do any damage. I didn't have time to see who was coming. I wouldn't have been so rough if I'd known it was you."

The other fellow grinned. "'Peared to me like you'd made a mistake, but I couldn't blame you. Feller has to act quick in a case like that."

"Bring your prisoner here," called Carmody from his open door. "I'll take care of him."

"I'll get you yet," called Kitsong, venomously. "I'll get you to-morrow!"

"Go along out o' here!" repeated the sheriff, hustling him off the walk. "You're drunk and disturbing the peace. Go home and go to bed."

With a sense of having made a bad matter worse the ranger followed the coroner into his office and closed the door.

Dr. Carmody, who had held the office of coroner less than a year, had a keen sense of the importance which this his first murder case had given him. His procedure at the cabin had been easy and rather casual, it is true, but contact with the town-folk and a careful perusal of the State Code had given him a decided tone of authority and an air of judicial severity which surprised and somewhat irritated Hanscom, fresh from his encounter with Kitsong.

"What was the cause of that row out there?" demanded the doctor, resuming his seat behind his desk with the expression of a police magistrate.

The ranger, still hot with anger, looked at his questioner with resentful eyes. "Kitsong and his gang were laying for me and I stood 'em off—that's all. Old Abe was out for trouble, and he got it. I punched his jaw and the other outlaws started in to do me up."

Carmody softened a bit. "Well, you're in for it. He'll probably have you arrested and charged with assault and battery."

"If he can," interposed Throop. "He'll find some trouble gettin' a warrant issued in this town to-night."

Carmody continued his accusing interrogation: "What about this report of your helping the Kauffmans to leave the country? Is that true?"

Hanscom's tone was still defiant as he replied: "It is, but I wonder if you know that they were being chased out of the country at the time?"

"Chased out?"

"Yes. After receiving several warnings, they got one that scared them, and so they hitched up and started over early in the morning to find me. On the way they were waylaid by an armed squad and chased for several miles. I heard the shooting, and by riding hard across the Black Hogback intercepted them and scared the outlaws off, but the Kauffmans were in bad shape. One of the horses had been killed and Kauffman himself was lying on the ground. He'd been thrown from the wagon and was badly bruised. The girl was unhurt, but naturally she wanted to get out of the country at once. She wasn't scared; she was plain disgusted. She wanted me to take them to the train, and I did. Any decent citizen would have done the same. I

didn't know you wanted them again, and if I had I wouldn't have tried to hold them at the time, for I was pretty well wrought up myself."

Carmody was less belligerent as he said: "What about arresting these young people? How did that happen?"

"Well, on the way back from the station I got to thinking about those raiders, and it struck me that it would be easy for them to ride down to the Kauffman cabin and do some damage, and that I'd better go over and see that everything was safe. It was late when I got home, but I saddled up and drove across. Good thing I did, for I found the house all lit up, and Henry Kitsong, young Busby, and old Pete Cuneo's girl were in full possession of the place and having a gay time. I arrested the boys for breaking into the house on the theory that they were both in that raid. Furthermore, I'm sure they know something about Watson's death. That's what Abe and Eli were fighting me about to-night—they're afraid Henry was mixed up in it. He and Watson didn't get on well."

The vigor and candor of the ranger's defense profoundly affected Carmody. "You may be right," he said, thoughtfully. "Anyhow, I'll bring them all before the jury to-morrow. Of course, I can't enter into that raid or the housebreaking—that's out of my jurisdiction—but if you think this Cuneo girl knows something—"

"I am certain she does. She made those tracks in the flour."

The coroner turned sharply. "What makes you think so?"

Hanscom then told him of the comparison he had made of her shoes with the drawings in his note-book, and the coroner listened intently.

"That's mighty important," he said, at last. "You did right in bringing her down. I'll defend your action."

Hanscom persisted: "You must make it clear to that jury that Helen McLaren never entered Watson's gate in her life."

Carmody was at heart convinced. "Don't worry," said he. "I'll give you a chance to get all that evidence before the jury, and for fear Abe may try to arrest you and keep you away from the session, I reckon I'd better send you home in charge of Throop." He smiled, and the sheriff smiled, but it was not so funny to the ranger.

"Never mind about me," he said. "I can take care of myself. Kitsong is only bluffing."

"All the same, you'd better go home with Throop," persisted the coroner. "You're needed at the hearing to-morrow, and Miss McLaren will want you all in one piece," he said.

Hanscom considered a moment. "All right. I'm in your hands till to-morrow. Good night."

"Good night," replied Carmody. "Take good care of him," he added to the sheriff as he rose.

"He won't get away," replied Throop. As he stepped into the street he perceived a small group of Kitsong's sympathizers still hanging about the door of the saloon. "What are you hanging around here for?" he demanded.

"Waiting for Abe. He's gone after a warrant and the city marshal," one of them explained.

"You're wasting time and so is Abe. You tell him that the coroner has put Hanscom in my custody and that I won't stand for any interference from anybody—not even the county judge—so you fellers better clear off home."

The back streets were silent, and as they walked along Throop said: "I'm going to lose you at the door of the hotel, but you'd better turn up at my office early to-morrow."

Hanscom said "Good night" and went to his bed with a sense of physical relaxation which should have brought slumber at once, but it didn't. On the contrary, he lay awake till long after midnight, reliving the exciting events of the day, and the hour upon which he spent most thought was that in Mrs. Throop's front room when he sat opposite Helen and discussed her future and his own.

When he awoke it was broad day, and as Kauffman, who occupied a bed in the same chamber, was still soundly slumbering, the ranger dressed as quietly as possible and went out into the street to take account of a dawn which was ushering in the most important morning of his life—a day in which his own fate as well as that of Helen McLaren must be decided.

The air was clear and stinging and the mountain wall, lit by the direct rays of the rising sun, appeared depressingly bald and prosaic, like his own

past life. The foot-hills, in whose minute wrinkle the drama of which he was a vital part had taken place, resembled a crumpled carpet of dull gold and olive-green, and for the first time in his experience L. J. Hanscom, wilderness trailer, acknowledged a definite dissatisfaction with his splendid solitude.

"What does my life amount to?" he bitterly inquired. "What am I headed for? Where is my final camping-place? I can't go on as I'm going. If I were sure of some time getting a supervisor's job, or even an assistant supervisor's position, the outlook would not be so hopeless. But to get even that far means years of work, years of riding." And then, as he thought of his lonely cabin, so unsuited to a woman's life, he said: "No, I must quit the service; that's sure."

Returning to the hotel, he wrote out his resignation with resolute hand and dropped it into the mail-box. "There," he told himself, "now you're just naturally obliged to hustle for a new job," and, strange to say, a feeling of elation followed this decisive action.

Kauffman was afoot and dressing with slow and painful movements as Hanscom re-entered, saying, cheerily, "Well, uncle, how do you feel by now?"

With a wan smile the old man answered: "Much bruised and very painful, but I am not concerned about myself. I am only afraid for you. I hope you will not come to harm by reason of your generous aid to us."

"Don't you fret about me," responded Hanscom, sturdily. "I'm hard to kill; and don't make the mistake of thinking that the whole country is down on you, for it isn't. Abe and his gang are not much better than outlaws in the eyes of the people down here in the valley, and as soon as the town understands the case the citizens will all be with you—and—Helen." He hesitated a little before speaking her name, and the sound of the word gave him a little pang of delight—brought her nearer, someway. "But let's go down to breakfast; you must be hungry."

The old man did not reply as cheerily as the ranger expected him to do. On the contrary, he answered, sadly: "No, I do not feel like eating, but I will go down with you. Perhaps I shall feel better for it."

The dining-room was filled with boarders, and all betrayed the keenest interest in Kauffman. It was evident also that the ranger's punishment of Kitsong was widely known, for several spoke of it, and Simpson warningly said:

"Abe intends to have your hide. He's going to slap a warrant on you as soon as you're out of Carmody's hands and have you sent down the line for assault with intent to kill."

All this talk increased Kauffman's uneasiness, and on the way over to the jail he again apologized for the trouble they had brought upon him.

"Don't say a word of last night's row to Helen," warned Hanscom. "Throop promised to keep it from her, and don't consider Kitsong; he can't touch me till after Carmody is through with me."

The deputy who let them in said that the sheriff was at breakfast—a fact which was made evident by the savory smell of sausages which pervaded the entire hall, and a moment later, Throop, hearing their voices, came to the dining-room door, napkin in hand. "Come in," he called. "Come in and have a hot cake."

"Thank you, we've had our breakfast," Hanscom replied.

"Oh, well, you can stand a cup of coffee, anyway, and Miss Helen wants to see you."

The wish to see Helen brought instant change to the ranger's plan. Putting down his hat, he followed Kauffman into the pleasant sunlit breakfast-room with a swiftly pounding heart.

Helen, smiling cheerily, rose to meet her stepfather with a lovely air of concern. "Dear old daddy, how do you feel this morning?"

"Very well indeed," he bravely falsified.

She turned to Hanscom with outstretched hand. "Isn't it glorious this morning!" she exclaimed, rather than asked.

The sheriff, like the good boomer that he was, interrupted the ranger's reply. "Oh, we have plenty of mornings like this."

She protested. "Please don't say that! I want to consider this morning especially fine. I want it to bring us all good luck."

Evidently Throop had kept his promise to Hanscom, for Helen said nothing of the battle of the night before, and with sudden flare of confidence the ranger said:

"You're right. This is a wonderful morning, and I believe this trial is coming out right, but just to be prepared for anything that comes, I think I'd better get a lawyer to represent you. I don't feel able properly to defend your interests."

"But you must be there," she quickly answered. "You are the one sure friend in all this land."

His sensitive face flushed with pleasure, for beneath the frank expression of her friendship he perceived a deeper note than she had hitherto expressed, and yet he was less sure of her than ever, for in ways not easily defined by one as simple as he she had contrived to accent overnight the alien urban character of her training. She no longer even remotely suggested the hermit he had once supposed her to be. A gown of graceful lines, a different way of dressing her hair, had effected an almost miraculous change in her appearance. She became from moment to moment less of the mountaineer and more of the city dweller, and, realizing this, the trailer's admiration was tinged with something very like despair. He was not a dullard; he divined that these outer signs of change implied corresponding mental reversals. Her attitude toward the mountains, toward life, had altered.

"She is turning away from my world back to the world from which she came," was his vaguely defined conclusion.

Meanwhile the sheriff was saying: "Well, now, Carmody opens court in the town-hall at ten this morning, and, Hans, you are to be on hand early. I'll bring Miss McLaren up in the car about a quarter to ten and have her in the doctor's office, which is only a few doors away."

"How is the Cuneo girl?" asked Hanscom.

"She seems rested and fairly chipper, but I can see she's going to be a bad witness."

Helen's face clouded. "Poor girl! I feel sorry for her."

Mrs. Throop was less sympathetic. "She certainly has made a mess of it. I can't make out which of these raiders she ran away with."

"She's going to defend them both," said Throop; "and she's going to deny everything. I'd like to work the third degree on her. I'd bet I'd find out what she was doing down at Watson's."

Helen, who knew the value which her defenders placed on the correspondence between Rita's shoes and the footprint, was very grave as she said: "I hope she had no part in the murder. Mrs. Throop says she is hardly more than a child."

"Well," warned the sheriff, "we're not the court. It's up to Carmody and his jury."

They said no more about the trial, and Hanscom soon left the room with intent to find a lawyer who would be willing for a small fee to represent the Kauffmans—a quest in which he was unsuccessful.

The sheriff followed him out. "Reckon I'd better take you up to Carmody's office in my car," he said. "Kitsong may succeed in clapping a warrant on your head."

VIII

The valley had wakened early in expectation of an exciting day. The news of the capture of Busby and his companions had been telephoned from house to house and from ranch to ranch, and the streets were already filled with farmers and their families, adorned as for a holiday. The entire population of Shellfish Cañon had assembled, voicing high indignation at the ranger's interference. Led by Abe and Eli, who busily proclaimed that the arrest of Henry and his companions was merely a trick to divert suspicion from the Kauffman woman, they advanced upon the coroner.

Abe had failed of getting a warrant for the ranger, but boasted that he had the promise of one as soon as the inquest should be ended. "Furthermore," he said, "old Louis Cuneo is on his way over the range, and I'll bet something will start the minute he gets in."

Carmody, who was disposed to make as much of his position as the statutes permitted, had called the hearing in a public hall which stood a few doors south of his office, and at ten o'clock the aisles were so jammed with expectant auditors that Throop was forced to bring his witnesses in at the back door. Nothing like this trial in the way of free entertainment had been offered since the day Jim Nolan was lynched from the railway bridge.

Hanscom was greatly cheered by the presence of his chief, Supervisor Rawlins, who came into the coroner's office about a quarter to ten. He had driven over from Cambria in anxious haste, greatly puzzled by the rumors which had reached him. He was a keen young Marylander, a college graduate, with considerable experience in the mountain West. He liked Hanscom and trusted him, and when the main points of the story were clear in his mind he said:

"You did perfectly right, Hans, and I'll back you in it. I'm something of a dabster at law myself, and I'll see that Kitsong don't railroad you into jail. What worries me is the general opposition now being manifested. With the whole Shellfish Valley on edge, your work will be hampered. It will make your position unpleasant for a while at least."

Hanscom uneasily shifted his glance. "That doesn't matter. I'm going to quit the work, anyhow."

"Oh no, you're not!"

"Yes, I am. I wrote out my resignation this morning."

Rawlins was sadly disturbed. "I hate to have you let this gang drive you out."

"It isn't that," replied Hanscom, somberly. "The plain truth is, Jack, I've lost interest in the work. If Miss McLaren is cleared—and she will be—she'll go East, and I don't see myself going back alone into the hills."

The supervisor studied him in silence for a moment, and his voice was gravely sympathetic as he said: "I see! This girl has made your cabin seem a long way from town."

"She's done more than that, Jack. She's waked me up. She's shown me that I can't afford to ride trail and camp and cook and fight fire any more. I've got to get out into the world and rustle a home that a girl like her can be happy in. I'm started at last. I want to do something. I'm as ambitious as a ward politician!"

The supervisor smiled. "I get you! I'm sorry to lose you, but I guess you are right. If you're bent on winning a woman, you're just about obliged to jump out and try something else. But don't quit until I have time to put a man in your place."

Hanscom promised this, although at the moment he had a misgiving that the promise might prove a burden, and together they walked over to the hall.

The crowded room was very quiet as the ranger and his chief entered and took seats near the platform on which the coroner and his jury were already seated. It was evident, even at a glance, that the audience was very far from being dominated, or even colored, by the Shellfish crowd, and yet, as none of the spectators, men or women, really knew the Kauffmans, they could not be called friendly. They were merely curious.

Hanscom was somewhat relieved to find that the jury was not precisely the same as it had been on the hillside. An older and better man had replaced Steve Billop, a strong partisan of Kitsong's; but to counter-balance this a discouraging feature developed in the presence of William Raines, a

dark, oily, whisky-soaked man of sixty, a lawyer whose small practice lay among the mountaineers of Watson's type.

"He's here as Kitsong's attorney," whispered the ranger, who regretted that he had not made greater efforts to secure legal aid. However, the presence of his chief, a man of education and experience, reassured him in some degree.

Carmody, rejoicing in his legal supremacy, and moved by love of drama, opened proceedings with all the dignity and authority of a judge, explaining in sonorous terms that this was an adjourned session of an inquest upon the death of one Edward Watson, a rancher on the Shellfish.

"New witnesses have been secured and new evidence has developed," he said in closing, "and Mr. L. J. Hanscom, the forest ranger, who has important testimony to give, will first take the stand."

Though greatly embarrassed by the eyes of the vast audience and somewhat intimidated by the judicial tone of Carmody's voice, Hanscom went forward and told his story almost without interruption, and at the end explained his own action.

"Of course, I didn't intend to help anybody side-step justice when I took the Kauffmans to the station, because I heard the coroner say he had excused them."

"What about those raiders?" asked one of the jurors. "Did you recognize the man who shot Kauffman's horse?"

Carmody interrupted: "We can't go into that. That has no connection with the question which we are to settle, which is, Who killed Watson?"

"Seems to me there is a connection," remarked Rawlins. "If those raiders were the same people Hanscom arrested in the cabin, wouldn't it prove something as to their character?"

"Sure thing!" answered another of the jurors.

"A man who would shoot a horse like that might shoot a man, 'pears to me," said a third.

"All right," said Carmody. "Mr. Hanscom, you may answer. Did you recognize the man who fired that shot?"

"No, he was too far away; but the horse he rode was a sorrel—the same animal which the Cuneo girl rode."

Raines interrupted: "Will you *swear* to that?"

"No, I won't swear to it, but I think—"

Raines was savage. "Mr. Coroner, we don't want what the witness *thinks*—we want what he *knows*."

"Tell us what you know," commanded Carmody.

"I know this," retorted Hanscom. "The man who fired that shot rode a sorrel blaze-faced pony and was a crack gunman. To drop a running horse at that distance is pretty tolerable shooting, and it ought to be easy to prove who the gunner was. I've heard say Henry Kitsong—"

"I object!" shouted Raines, and Carmody sustained the objection.

"Passing now to your capture of the housebreakers," said he, "tell the jury how you came to arrest the girl."

"Well, as I entered the cabin the girl Rita was sitting with her feet on a stool, and the size and shape of her shoe soles appeared to me about the size and shape of the tracks made in the flour, and I had just started to take one of her shoes in order to compare it with the drawings I carried in my pocket-book when Busby jumped me. I had to wear him out before I could go on; but finally I made the comparison and found that the soles of her shoes fitted the tracks exactly. Then I decided to bring her down, too."

A stir of excited interest passed over the hall, but Raines checked it by asking: "Did you compare the shoes with the actual tracks on the porch floor?"

"No, only with the drawings I had made in my note-book."

Raines waved his hand contemptuously. "That proves nothing. We don't know anything about those drawings."

"I do," retorted Carmody, "and so does the jury; but we can take that matter up later. You can step down, Mr. Hanscom, and we'll hear James B. Durgin."

Durgin, a bent, gray-bearded old rancher, took the stand and swore that he had witnessed a hot wrangle between Kauffman and Watson, and that he had heard the Dutchman say, "I'll get you for this!"

Hanscom, realizing that Durgin was Kitsong's chief new witness, was quick to challenge his testimony, and finally forced him to admit that Watson had also threatened Kauffman, so that the total effect of his testimony was rather more helpful than harmful.

"Is it not a matter of common report, Mr. Coroner," demanded the ranger, "that Watson has had many such quarrels? I am told that he had at least one fierce row with Busby—"

"We'll come to that," interjected Carmody, as Durgin left the chair. "Have you Rita's shoes, Mr. Sheriff?" Throop handed up a pair of women's shoes, and Carmody continued: "You swear these are the shoes worn by Margarita Cuneo when you took charge of her?"

"I do."

"Mr. Hanscom, will you examine these shoes and say whether they are the ones worn by Rita Cuneo when you arrested her?"

Hanscom took them. "I think they are the same, but I cannot tell positively without comparing them with my drawings."

The jury, deeply impressed by this new and unexpected evidence, minutely examined the shoe soles and compared them with the drawings while the audience waited in tense expectancy.

"They sure fit," said the spokesman of the jury.

Raines objected. "Even if they do *seem* to fit, that is not conclusive. We don't know *when* the tracks were made. They may have been made after the murder or before."

"Call Rita Cuneo," said Carmody to the sheriff.

The girl came to the stand, looking so scared, so pale, and so small that some of the women, without realizing the importance of her testimony, clicked their tongues in pity. "Dear, dear! How young she is!" they exclaimed.

Carmody, by means of a few rapid questions gently expressed, drew out her name, her age, and some part of her family history, and then, with sudden change of manner, bluntly asked:

"How did you happen to be in that cabin with those two men?"

Pitifully at a loss, she finally stammered out an incoherent explanation of how they were just riding by and saw the door standing open, and went in, not meaning any harm. She denied knowing Watson, but admitted having met him on the road several times, and hotly insisted that she had never visited his house in her life.

"Where have you been living since leaving home?"

"In the hills."

"Where?"

"At the sawmill."

"How long had you been there when you heard of Watson's death?"

"About two weeks."

"Were you in camp?"

"No, we were staying in the old cabin by the creek."

"You mean Busby and Kitsong and yourself?"

"Yes, sir."

"Well, now, which one of these men did you leave home with—Busby or Kitsong?"

Her head drooped, and while she wavered Raines interposed, arguing that the question was not pertinent. But Carmody insisted, and soon developed the fact that she was much more eager to defend Busby than Kitsong. She denied that he had ever cursed Watson or threatened to do him harm, but the coroner forced her to admit that Busby had told her of having had trouble with the dead man, and then, thrusting a pair of shoes at her, he sternly asked:

"Are these your shoes?"

"No, sir," she firmly declared.

Her answer surprised Hanscom and dazed the sheriff, who exclaimed beneath his breath, "The little vixen!"

Carmody's tone sharpened: "Do you mean to tell me that these are not the shoes you wore in town yesterday?"

"No, I don't mean that."

"What *do* you mean?"

"I mean they're not my shoes. They belong to that Kauffman girl. I found them in that cabin."

Hanscom sprang to his feet. "She's lying, Your Honor."

"Sit down!" shouted Raines.

The entire audience rose like a wave under the influence of the passion in these voices; the sheriff shouted for silence and order, and Carmody hammered on his desk, commanding everybody to be seated. At last, when he could be heard, he rebuked Hanscom.

"You're out of order," he said, and, turning to Raines, requested him to take his seat.

Raines shook his fist at the ranger. "You can't address such remarks to a witness. *You* sit down."

Hanscom was defiant. "I will subside when you do."

"Sit *down*, both of you!" roared Carmody.

They took seats, but eyed each other like animals crouching to spring.

Carmody lectured them both, and, as he cooled, Hanscom apologized. "I'm sorry I spoke," he said; "but the ownership of those shoes has got to be proved. I *know* they belong to this girl!"

"We'll come to that; don't you worry," said Carmody, and he turned to Rita, who was cowering in the midst of this uproar like a mountain quail. "Who told you to deny the ownership of these shoes?"

"Nobody."

"Just reasoned it out yourself, eh?" he asked, with acrid humor. "Well, you're pretty smart."

The girl, perceiving the importance of her denial, enlarged upon it, telling of her need of new shoes and of finding this dry, warm pair in a closet in the cabin. She described minutely the worn-out places of her own shoes and how she had thrown them into the stove and burned them up, and the audience listened with renewed conviction that "the strange woman" was the midnight prowler at the Watson cabin, and that Rita and her companions were but mischievous hoodlums having no connection with the murder.

Hanscom, filled with distrust of Carmody, demanded that the sheriff be called to testify on this point, for he had made search of the cabin in the first instance.

"We proved at the other session that Miss McLaren was unable to wear the shoes which made the prints."

"We deny that!" asserted Raines. "That is just the point we are trying to make. We don't *know* that this Kauffman woman is unable to wear those shoes."

Carmody decided to call young Kitsong, and Throop led Rita away and soon returned with Henry, who came into the room looking like a trapped fox, bewildered yet alert. He was rumpled and dirty, like one called from sleep in a corral, but his face appealed to the heart of his mother, who flung herself toward him with a piteous word of appeal, eager to let him know that she was present and faithful.

The sheriff stopped her, and her husband—whose parental love was much less vital—called upon her not to make a fool of herself.

The boy gave his name and age, and stated his relationship to the dead man, but declared he had not seen him for months. "I didn't know he was dead till the ranger told me," he said. He denied that he had had any trouble with Watson. "He is my uncle," he added.

"I've known relatives to fight," commented the coroner, with dry intonation, and several in the audience laughed, for it was well known to them that the witness was at outs not only with his uncle, but with his father.

"Now, Henry," said the coroner, severely, "we know this girl, Rita, made a night visit to Watson's cabin. We have absolute proof of it. She did not go there alone. Who was with her? Did you accompany her on this trip?"

"No, sir."

"She never made that trip alone. Some man was with her. If not you, it must have been Busby."

A sullen look came into the boy's face. "Well, it wasn't me—I know that."

"Was it Busby?"

He paused for a long time, debating what the effect of his answer would be. "He may of. I can't say."

Carmody restated his proof that Rita had been there and said: "One or the other of you went. Now which was it?"

The witness writhed like a tortured animal, and at last said, "He did," and Mrs. Eli sighed with relief.

Carmody drew from him the fact that Watson owed Busby money, and that he had vainly tried to collect it. He would not say that Rita left camp with Busby, but his keen anxiety to protect her was evident to every one in the room. He admitted that he expected Busby to have trouble with Watson.

Mrs. Kitsong, who saw with growing anxiety the drift of the coroner's questioning, called out: "Tell him the truth, Henry; the whole truth!"

Raines silenced her savagely, and Carmody said: "So Busby had tried to collect that money before, had he?"

"Tell him 'yes,' Henry," shouted Eli, who was now quite as eager to shield his son as he had been to convict Helen.

Carmody warned him to be quiet. "You'll have a chance very soon to testify on this very point," he said, and repeated his question: "Busby had had a fight with Watson, hadn't he—a regular knockdown row?"

Henry, sweating with fear, now confessed that Busby had returned from Watson's place furious with anger, and this testimony gave an entirely new direction to the suspicions of the jurors, several of whom knew Busby as a tough customer.

Dismissing Henry for the moment, Carmody recalled Margarita. "You swear you never visited Watson's cabin?" he began. "Well, suppose that I were to tell you that we know you did, would you still deny it?" She looked

at him in scared silence, trying to measure the force of his question, while he went on: "You mounted the front steps and went down the porch to the right, pausing to peer into the window. You kept on to the east end of the porch, where you dropped to the ground, and continued on around to the back door. Do you deny that?"

Amazed by the accuracy of his information and awed by his tone, the girl struggled for an answer, while the audience waited as at a crisis in a powerful play.

Then the coroner snapped out, "Well, what were you doing there?"

She looked at Henry, then at Mrs. Eli. "I went to borrow some blankets," she confessed, in a voice so low that only a few heard her words.

"Was Watson at home?"

"Yes."

"Did you see him?"

"Yes."

"What did he say?"

At this point she became tearful, and the most that could be drawn from her was a statement that Watson had refused to loan or sell her any blankets. She denied that Busby was with her, and insisted that she was alone till Carmody convinced her that she was only making matters worse by such replies.

"Your visit was at night," he said. "You would never have walked in that flour in the daytime, and you wouldn't have gone there alone in the night. Busby wouldn't have permitted you to go to Watson's alone—he knew Watson too well." The force of this remark was felt by nearly every person in the room.

Hanscom said: "Mr. Coroner, this girl is trying to shield Busby, and I want her confronted by him, and I want Eli Kitsong called."

By this time many admitted that they might have been mistaken in accusing the Kauffmans of the deed.

Busby, a powerful young fellow, made a bad impression on the stand. His face was both sullen and savage, and the expression of his eyes furtive. He was plainly on guard even before Raines warned him to be careful.

"My name is Hart Busby," he said, in answer to Carmody. "I'm twenty-six years old. I was born in the East. I've been here eight years." Here he stopped, refusing to say where his parents lived or when he first met Margarita. He flatly denied having had any serious trouble with Watson, and declared that he had not seen him for almost a year.

"What were you doing in the Kauffmans' cabin?" demanded Hanscom. "You won't deny my finding you there, will you?"

He told the same story that Rita had sworn to. "We were riding by and saw that the place was deserted, and so we went in to look around."

"When did *you* first hear of Watson's death?" asked Carmody.

The witness hesitated. A look of doubt, of evasion, in his eyes. "Why, the ranger told us."

"Which of you owns that sorrel horse?" asked one of the jury.

Raines again interposed. "You needn't answer that," he warned. "That's not before the court."

Carmody went on. "Now, Busby, you might as well tell us the truth. Henry and Rita both state that Watson had refused to pay you, and that you had a scrap and Watson kicked you off the place. Is that true?"

Raines rescued him. "You don't have to answer that," he said, and the witness breathed an almost inaudible sigh of relief.

A violent altercation arose at this point between the coroner and the lawyer. Carmody insisted on his right to ask any question he saw fit, and Raines retorted that the witness had a right to refuse to incriminate himself.

"You stick to your bread pills and vials," he said to the coroner, "and don't assume a knowledge of the law. You become ridiculous when you do."

"I know my powers," retorted Carmody in high resentment, "and you keep a civil tongue in your head or I'll fine you for contempt. I may not know all the ins and outs of court procedure, but I'm going to see justice done, and I'm going to see that you keep your place."

"You can't steam-roll me," roared Raines.

The argument became so hot that Throop was forced to interfere, and in the excitement and confusion of the moment Busby mad a dash for the door, and would have escaped had not Hanscom intercepted him. The room was instantly in an uproar. Several of Busby's friends leaped to his aid, and for a few minutes it seemed as if the coroner's court had resolved itself into an arena for battling bears. Busby fought desperately, and might have gained his freedom, after all, had not Rawlins taken a hand.

At last Throop came into action. "Stop that!" he shouted, and fetched Busby a blow that ended his struggles for the moment. "Let go of him, Hanscom," he said. "I'll attend to him."

Hanscom and Rawlins fell back, and Throop, placing one huge paw on the outlaw's shoulder, shoved the muzzle of a revolver against his neck.

"Now you calm right down, young man, and remember you're in court and not in a barroom."

Raines, still unsubdued, shouted out, "You take your gun away from that man, you big stiff!"

"*Silence!*" bellowed Carmody. "I'll have you removed if you utter another word."

"I refuse to take orders from a pill-pusher like you."

"Sheriff, seat that man," commanded Carmody, white with wrath.

Throop, thrusting Busby back into his chair, advanced upon Raines with ponderous menace. "Sit down, you old skunk."

"Don't you touch me!" snarled the lawyer.

"Out you go," said Throop, with a clutch at the defiant man's throat.

Raines reached under his coat-tails for a weapon, but Rawlins caught him from behind, and Throop, throwing his arms around his shoulders in a bearlike hug, carried him to his chair and forced him into it.

"Now will you be quiet?"

The whole room was silent now, silent as death, with a dozen men on their feet with weapons in their hands, waiting to see if Raines would rise.

Breaking this silence, Carmody, lifted by excitement to unusual eloquence, cried out: "Gentlemen, I call upon you to witness that I am in no way exceeding my authority. The dignity of this court must be upheld." He turned to the jury, who were all on end and warlike. "I call upon you to witness the insult which Mr. Raines has put on this court, and unless he apologizes he will be ejected from the room."

Raines saw that he had gone too far, and with a wry face and contemptuous tone of voice muttered an apology which was in spirit an insult, but Carmody accepted the letter of it with a warning that he would brook no further displays of temper.

When the coroner resumed his interrogation of Busby, whose sullen calm had given place to a look of alarm and desperation, he refused to speak one word in answer to questions, and at last Carmody, ordering him to take a seat in the room, called Mrs. Eli Kitsong to the chair.

She was a thin, pale little woman with a nervous twitch on one side of her face, and the excitement through which she had just passed rendered her almost speechless; but she managed to tell the jury that Busby and Watson had fought and that she had warned her son not to run with Hart Busby.

"I knew he'd get him into trouble," she said. "I told Henry not to go with him; but he went away with him in spite of all I could say."

"Did you actually *see* the fight between Busby and Watson?"

"No, I only heard Ed tell about it."

"Did he say Busby threatened to kill him?"

"Yes, he did, but he laughed and said he was not afraid of a fool kid like him."

Busby was deeply disturbed. He sat staring at the floor, moistening his lips occasionally with the tip of his tongue as the coroner called one after another of his neighbors to testify against him. The feeling that Carmody was on the right track spread through the audience, but Abe insisted that the Kauffmans be called to the stand, and to this Hanscom added:

"I join in that demand. Call Miss McLaren. I want the ownership of these shoes settled once and for all."

In the tone of one making a concession, Carmody said, "Very well. Mr. Sheriff, take Busby out and ask Miss McLaren to step this way."

As the young ruffian was led out Rita sprang up as if to follow him, but Carmody restrained her. "Stay where you are. I want you to confront Miss McLaren."

A stir, a sigh of satisfaction, passed over the room, and every eye was turned toward the door through which Helen must approach. Not one of all the town-folk and few of the country-folk had ever seen her face or heard her voice. To them she was a woman of mystery, and for the most part a woman of dark repute, capable of any enormity. They believed that she had been living a hermit life simply and only for the reason that she had been driven out of the East by the authorities, and most of them believed that the man she was living with was her paramour.

Every preconception of her was of this savage sort, and so when the sheriff reappeared, ushering in a tall, composed, and handsome young woman whose bearing, as well as her features, suggested education and refinement, the audience stared in dumb amazement.

Hanscom and Rawlins both rose to their feet, and Carmody, moved by a somewhat similar respect and admiration, followed their example. He went further; he indicated, with a bow, the chair in which she was to sit, while the jurors with open mouths followed her every movement. They could not believe that this was the same woman they had examined at the previous session of the court.

Hanscom, without considering her costume as designed to produce an impression—he was too loyal for that—exulted in its perfectly obvious effect on the spectators, and glowed with confidence over the outcome.

She looked taller, fairer, and younger in her graceful gown, and her broad hat—which was in sharpest contrast to the sunbonnet which had so long been her disguise—lent a girlish piquancy to her glance. Mrs. Brinkley expressed in one short phrase the change of sentiment which swept almost instantly over the room. "Why, she's a *lady*!" she gasped.

Carmody, while not so sure the witness's costume was unpremeditated, nevertheless acknowledged its power. He opened his examination with an

apology for thus troubling her a second time, and explained that new witnesses and new evidence made it necessary.

She accepted his apology with grave dignity, and in answer to questions by Raines admitted that Kauffman had told her of his clash with Watson over some cattle.

"But he never threatened to shoot Watson. He is not quarrelsome. On the contrary, he is very gentle and patient, and only resented Watson's invasion of our home."

Upon being shown the shoes which Rita Cuneo had worn she sharply answered:

"No, they are not mine. I could not wear them. They are much too small for me."

This answer, though fully expected by Hanscom and the coroner, sent another wave of excitement over the audience, and when Carmody said, almost apologetically, "Miss McLaren, will you kindly try on these shoes?" the women in the room rose from their seats in access of interest, and loud cries of "Down in front!" arose from those behind them.

Seemingly without embarrassment, yet with heightened color, Helen removed one of her shoes—a plain low walking-shoe—and handed it to Carmody, who received it with respectful care and handed it to the foreman of the jury, asking him to make comparison of it with the footprints.

The jurors, two by two, examined, measured, muttered, while the audience waited in growing impatience for their report. Most of the onlookers believed this to be a much more important test than it really was, and when at last the foreman returned the shoe, saying, "This ain't the shoe that made the tracks," the courtroom buzzed with pleased comment.

Raines was on his feet. "Mr. Coroner, we demand that the witness try on that other pair of shoes. We are not convinced that she cannot wear them."

Carmody yielded, and the room became very quiet as Helen, with noticeable effort, wedged her foot into the shoe.

"I cannot put it on; it is too small," she said to Carmody, and Rita, who sat near, bent a terrified gaze upon her.

Raines then called out: "She's playing off. Have her stand up."

Hanscom, furious at this indignity, protested that it was not necessary, but Helen rose and, drawing aside the hem of her skirt, calmly offered her foot for inspection.

"I can't possibly walk in it," she said, addressing the jury.

One by one the jury clumsily knelt and examined her foot, then returned to their seats, and when the foreman said, "That never was her shoe," a part of the audience applauded his utterance as conclusive.

"That will do, Miss McLaren," said Carmody; "you may step down." And, turning sharply to where Rita sat with open mouth and dazed glance, he demanded: "Do you know what the court calls your testimony? It's perjury! That's what it is! Do you know what we can do to you? We can shut you up in jail. These shoes are yours. Are you ready to say so now?"

She shrank from him, and her eyes fell.

Raines intervened. "You are intimidating the witness," he protested.

Carmody repeated his question, "*Are these your shoes?*"

"Yes, sir," she faintly answered; a sigh of relief, a ripple of applause, again interrupted the coroner.

Hanscom rose. "Mr. Coroner, in view of this testimony, I move Miss McLaren be excused from further attendance on this court."

The unmistakable rush of sympathy toward Helen moved Carmody to dramatize the moment. "Miss McLaren," he said, with judicial poise, "I am convinced that you are not a material witness in this case. You are dismissed."

The hearty handclapping of a majority of the auditors followed, and Helen was deeply touched. Her voice was musical with feeling as she said:

"Thank you, sir. I am very grateful. Is my father also excused?"

"Unless the jury wishes to question him."

The jurors conferred, and finally the spokesman said, "I don't think we'll need him."

"Very well, then, you are both free."

Mrs. Brinkley, a round-faced, fresh-complexioned little woman, who had been sitting near the front seat, made a rush for Helen, eager to congratulate her and invite her to dinner. Others, both men and women, followed, and for a time all business was suspended. It was evident that Helen had in very truth been on trial for murder, and that the coroner's dismissal was in effect her acquittal. Hanscom, on the edge of the throng, waited impatiently for an opportunity to present Rawlins. Raines and Kitsong excitedly argued.

Meanwhile the jury and the coroner were in conference, and at last Carmody called for the finding: "We believe that the late Edward Watson came to his death at the hands of one Hart Busby, with Henry Kitsong and Margarita Cuneo knowing to it, and we move that they be held to the grand jury for trial at the next term of court," drawled the foreman and sat down.

No one applauded now, but a murmur of satisfaction passed over the room. Eli and Abe sprang up in excited clamor, and Raines made violent protest against the injustice of the verdict.

"It's all irregular!" he shouted.

Carmody remained firm. "This finding will stand," he said. "The court is adjourned."

Raines immediately made his way to Hanscom and laid a hand on his shoulder. "In that case," he said, "I'll take you into camp. Mr. Sheriff, I have a warrant for this man's arrest."

Hanscom was not entirely surprised, but he resented their haste to humiliate him before the crowd—and before Helen. "Don't do that now," he protested. "Wait an hour or two. Wait till I can get Miss McLaren and her father out of the country. I give you my word I'll not run away."

Carmody, seeing Raines with his hand on the ranger's arm, understood what it meant and hurried over to urge a decent delay. "Let him put the girl on the train," he said.

"I'll give him two hours," said Raines, "and not a minute more."

Hanscom glanced at Helen and was glad of the fact that, being surrounded by her women sympathizers, she had seen and heard nothing of the enemy's new attack upon him.

IX

Helen and the ranger left the room together, and no sooner were they free from the crowd than she turned to him with a smile which expressed affection as well as gratitude.

"How much we owe to you and Dr. Carmody, and what a sorry interruption we've caused in your work."

He protested that the interruption had been entirely a pleasure, but she, while knowing nothing of his impending arrest, was fully aware that he had undergone actual hardship for her sake, and her plan for hurrying away seemed at the moment most ungracious. Yet this, after all, was precisely what she now decided to do.

"Is there time for us to catch that eastbound express?" she asked.

Her words chilled his heart with a quick sense of impending loss, but he looked at his watch. "Yes, if it should happen to be late, as it generally is." Then, forgetting his parole, in a voice which expressed more of his pain than he knew, he said: "I hate to see you go. Can't you wait another day?"

His pleading touched a vibrant spot in her, but she was resolved. "I have an almost insane desire to get away," she hurriedly explained. "I am afraid of this country. Its people scare me!" A quick change in her voice indicated a new thought. "I hope the Kitsongs will not continue in pursuit of you."

"They won't have a chance to do that," he replied, gloomily. "I'm leaving, too. I have resigned."

"Oh no! You mustn't do that."

"I turned in my papers this morning." He suddenly recalled his parole. "I shall soon be free—I hope—to go anywhere and do anything—and I'd like to keep in touch with you—if you'll let me."

She evaded him. "I shall be very sorry if we are the cause of your leaving the service."

"Well, you are—but not in the way you mean. You have made me discontented with myself, that's all, and I'm going to get out of the tall timber and see if I can't do something in the big world. I want to win your respect."

"I respect you now. Your work as a forester seems to me very fine and honorable."

"The work is all right, but I'm leaving it, just the same. I can't see a future in it. Fact is, I begin to long for a home; that lunch in your cabin started me on a new line of thought."

The memory of his visit to her garden in the valley seemed now like a chapter in the story of a far-off community, and she could hardly relate herself to the hermit girl who served the tea, but the forester—whom she recognized as a lover—was becoming every moment nearer, more insistent. A time of reckoning was at hand, and because she could not meet it she was eager to escape—to avoid the giving of pain. His face and voice had become dear—and might grow dearer. Therefore she made no comment on his statement of a desire for a home, and he asked:

"Don't you feel like going back to your garden once more?"

"No," she answered, sharply, "I never want to see the place again. It is repulsive to me."

Again a little silence intervened. "I hate to think of your posies perishing for lack of care," he said, with gentle sadness. "If I can, I'll ride over once in a while and see that they get some water."

His words exerted a magical power. She began to weaken in resolution. It was not an easy thing to sever the connection which had been so strangely established between herself and this good friend, who seemed each moment to be less the simple mountaineer she had once believed him to be. Western he was, forthright and rough hewn, but he had shown himself a man in every emergency—a candid, strong man. Her throat filled with emotion, but she walked beside him in silence.

He had another care on his mind. "You'd better let me round up your household goods," he suggested.

"Oh no. Let them go; they're not worth the effort."

He insisted. "I don't like to think of any one else having them. It made me hot just to see that girl playing your guitar. I'll have 'em all brought down and stored somewhere. You may want 'em some time."

She was rather glad to find they had reached the door of Carmody's office and that further confidences were impossible, for she was discovering herself to be each moment deeper in his debt and correspondingly less able to withstand his wistful, shy demand.

Mrs. Carmody, a short, fat, excited person, met them in the hall with a cackle of alarm. "I'm awfully glad you've come," she exclaimed. "Your father has been taken with a cramp or something."

Helen paled with apprehension of disaster, for she knew that her father had been keenly suffering all the morning. "Here I am, daddy," she cheerily called, as she entered the room. "It's all right. The inquest is over and we are free to go."

Kauffman, who was lying on a couch in a corner of the office, turned his face and bravely smiled. "I'm glad," he weakly replied. "I was afraid they would call me to the stand again."

Kneeling at his side, she studied his face with anxious care. "Are you worse, daddy? Has your pain increased?"

"Yes, Nellie, it is worse. I fear I am to be very ill."

She took his hand in hers, a pang of remorseful pity wrenching her heart. "Don't say that, daddy," she gently chided. "Keep your good courage." She looked up at the ranger, who stood near with troubled brow. "Mr. Hanscom, will you please find Dr. Carmody and tell him my father needs him?"

With a quick word of assurance he hurried away, and the girl, bending to the care of her stepfather, suffered from a full realization of the fact that he had been brought to this condition by the strength of his devotion to her. "For my sake he exiled himself, for me he has been assaulted, wounded, arrested"—and, looking down upon him in the light of her recovered sense of values, she became very humble.

"Dear old daddy," she wailed, "it's all my fault. What can I do to make amends? You've sacrificed so much for me."

Sick as he was, the old man did his best to comfort her, but she was still sitting on the floor, with head bowed in troubled thought, when Hanscom and Carmody hurried in. Her relief, made manifest by the instant movement with which she gave way to him, was almost childlike.

"Oh, Doctor, I'm glad to see you!" she cried out. "I was afraid your legal duties might keep you."

"Luckily my legal duties are over," he replied, quickly, "and I'm glad of it. I hope I never'll have another such case."

A brief examination convinced him that the sick man should be put to bed, and he suggested the Palace Hotel, which stood but a few doors away.

"He can't travel to-day," he added, knowing that Helen had planned to take the train.

Kauffman insisted on going. "I can walk," he said, firmly. "I feel a little dizzy, but I'll be all right in the coach."

Hanscom was at his side, supporting him. "You'd better wait a day," he said, gently; and Helen understood and sided with him.

Together they helped the sick man to the door and into the doctor's car, and in a few minutes Kauffman was stretched upon a good bed in a pleasant room. With a deep sigh of relief he laid his head upon the soft pillow.

"I am glad not to entrain to-day," he said. "To-morrow will be better for us all."

"Never mind about to-morrow," said Hanscom. "You rest as easy as you can."

Helen followed Carmody into the hall. "Tell me the truth," she demanded. "Is he injured internally?"

"It's hard to say what his injuries are," he cautiously replied. "He's badly bruised and feverish, but it may be nothing serious. However, he can't travel for a few days, that's certain."

She was not entirely reassured by his reply, and her voice was bitterly accusing as she said: "If he should die, I would never forgive myself. He came here on my account."

"There's no immediate danger. He seems strong and will probably throw this fever off in a few hours, but he must be kept quiet and cheerful."

There was a rebuke in his final words, and she accepted it as such. "I'll do the best I can, Doctor," she replied, and returned to her duty.

Hanscom, divining some part of the passion of self-accusation into which the girl had been thrown, eagerly asked, "Is there something more I can do?"

"If you will have our bags brought, I shall be grateful. We may not be able to leave for several days."

"I'll attend to them at once, but"—he looked aside as if afraid of revealing something—"I may be called away during the afternoon on business, and if I am, don't think I'm neglecting you."

"How long will you be gone?"

"I can't tell—for a day or two, perhaps."

The thought of his going gave her a sharp pang of prospective loneliness. "I know you must return to your work," she said, slowly, "but I shall feel very helpless without you," and the voicing of her dependence upon him added definiteness and power to her regret.

He hastened to say: "I won't go if I can possibly help it, be sure of that; but something has come up which may make it necessary for me to—to take a trip. I'll return as soon as I can. I'll hurry away now and bring your baggage; that much I can surely do," and he went out, leaving her greatly troubled by something unexplained in the manner of his going.

Stopping at Carmody's, Hanscom again thanked him for his kindness and warned him not to say one word to Helen about his fight with Abe nor about the warrant that was hanging over him.

"She has enough to worry about as it is," he said; "and if they get me, as they will, I want you to look after her and let me know how she gets on."

Carmody did not attempt to minimize the seriousness of the opposition. "Abe can make a whole lot of trouble for you, in one way and another, and even if you shake him off, you're in for a settlement with old Cuneo, who will reach here to-night. As near as I can discover, he's one of those pop-eyed foreigners who'd just as soon use a knife as not, and Abe will do his best to spur him into jumping you."

"Well, looks like he'll have hard work reaching me, for, unless somebody goes my bail, I'm likely to be safe in the 'cooler' when he gets here."

Carmody had been decidedly friendly all through this troublesome week, and here was a good place for him to say, "I'll go your bail, Hans," but he didn't—he couldn't. He was poor and not very secure in his position, so he let Hanscom go out, and took up his own work with a feeling that he was playing a poor part in a rough game.

The news of Kauffman's illness reached kindly Mrs. Brinkley and moved her to call upon Helen, to offer her services, and in the midst of her polite condolences she said: "Mr. Hanscom's arrest must have infuriated you. It did me."

Helen turned a startled glance upon her visitor. "I didn't know he was arrested."

"Didn't you? Well, he is," said Mrs. Brinkley.

"Why; that can't be true! He was here less than an hour ago."

"He's just been arrested for assaulting Kitsong."

Helen, still unable to believe in this calamity, stammered: "But I don't understand. When did he—When was Kitsong—assaulted?"

"Last night," replied her visitor, with relish, "and you were the cause of it—in a way."

"I?"

"So the story goes. It seems Abe got nasty about you, and Mr. Hanscom resented it. They had a fight and Abe was hurt. Unless somebody bails him out the poor ranger will have to go to jail."

The memory of the ranger's last look completed Helen's understanding of the situation, and she listened abstractedly while her visitor rattled on:

"Of course, the judge can't do anything, much as he likes Mr. Hanscom, and I really don't see who is to go on his bond. He hasn't any relatives here."

At this point Helen raised her head and interrupted her guest's commiserating comment. "Yes, you can do something for me. I wish you would ask Mr. Willing, the vice-president of the First National Bank, to come over here. I want to consult him on a most important business matter, and I cannot leave my father. Will you do this?"

"Certainly, with pleasure. I was hoping to be of use," said Mrs. Brinkley, and she went away greatly wondering what this strange young woman could possibly want of Mr. Willing.

Helen, with eyes fixed on her father's still form, went over every look and word the ranger had uttered and understood at last that the "little trip" he feared was a sentence to the county jail. She was still in profound thought when Mr. Willing was announced. He was a neat, small man, whose position in the bank was largely social. Being a friend of Mrs. Brinkley, and keenly interested in the reports of Helen's romantic appearance in the courtroom, he came to her door in smiling and elaborate courtliness.

Helen coldly checked his gallant advances. "Mr. Willing," she said, with business-like brevity, "I have an account with the Walnut Hills Trust Company, of Cincinnati, and I want a part of that money transferred, by telegraph, to my credit in your bank. Can it be done?"

"It is possible—yes."

"I need these funds at once. I must have them. Will you please wire Mr. Paul Lyford, president of the company, and have five thousand dollars transferred to my credit in your bank?"

Mr. Willing was cautious. He took the name and address. "I will see what can be done," he said, non-committally. "Is there anything else I can do?"

"Yes, I have just heard that Mr. Hanscom has been arrested. If this is true I want him bailed out as soon as possible. I don't know how these things are done, but I want to go on his bond. He should have a lawyer also. He has fallen into this trouble entirely on my account, and I cannot permit him to suffer. He must be defended."

"I'll do what I can," responded Willing, "but, of course, the matter of release, on bail, lies with the judge."

"What judge?"

"Probably Judge Brinkley."

"I am glad of that. Mr. Hanscom knows Judge Brinkley. As soon as you hear from Mr. Lyford let me know, please."

Meanwhile Hanscom had been stopped while bringing the valises to the hotel and was now in Throop's care. Each hour seemed to involve the ranger deeper, ever deeper, in his slough of troubles, for it was reported that Cuneo had 'phoned in from the Cambria power-dam saying he would reach the town in two hours, and one who had talked with him said the receiver burned his ear, so hot was the sheepman's wrath.

Helen, greatly troubled, in an agony of impatience awaited Willing's return, and the housekeeper of the hotel, who came to offer her advice, did not help to tranquillity.

"It's a good thing the ranger's locked up," she said, "for old Cuneo, father of the girl, is in town and on the ranger's trail with blood in his eye."

Of course the eager gossip did not know that the ranger and this handsome girl were something more than acquaintances, hence she felt free to enlarge upon and embroider each scrap of rumor, after the fashion of her kind, and Helen had great difficulty in concealing her increasing anxiety and self-accusation.

"Don't say any of these things in my father's hearing," she sharply urged. "He must be kept free from excitement."

It was a singular, a most revealing experience for Helen to find that her deepening care for her stepfather and a grave sense of responsibility toward Hanscom were bringing out decision and determination in her own character. She increased in vigor and perception. "They shall not persecute this man because he is poor and alone," she declared, recalling with keen sense of pity his frank statement that all his property consisted of a couple of ponies, a saddle, and a typewriter.

She could not leave her father till a nurse came, and, as there was no telephone in her room, she could only wait—wait and think, and in this thinking she gave large space to the forester. Her apathy, her bitterness were both gone. She was no longer the recluse. The mood which had made her a hermit now seemed both futile and morbid—and yet she was not ready to return to her friends and relatives in the East. That life she had also put away. "What if I were to make a new home—somewhere in the West?" she said, and in this speculation the worshipful face of the ranger came clear before her eyes.

She was restless and aching with inaction when a hall-boy announced the return of Mr. Willing, and, stepping into the hall, she discovered an entirely different Mr. Willing. He was no longer gallant; he was quietly respectful. With congratulatory word he handed to her two telegrams, one addressed to her, the other to the bank. One was from the president of the Walnut Hills Trust Company. It read: "Place five thousand dollars to Miss McLaren's credit. See that she wants for nothing. Report if she needs help. Her family is greatly alarmed. Any information concerning her will be deeply appreciated. Ask her to report at once."

The other was to Helen from Mr. Lyford, whom she had known for many years. As she read her face flushed and her eyes misted; then a glowing tide of power, a sense of security, swept over her.

"After all, I am alive and young and rightful owner of this money," she said to herself. "I will claim it and use it for some good purpose, and at this moment, what better purpose than to see that a brave, good man shall not lie in prison?" And, thanking the banker for his aid, she added: "If Mr. Rawlins, the supervisor, is still in town, I wish you would find him and ask him to come to me; tell him I want to see him immediately."

Willing took occasion, as he went through the hotel office down-stairs, to call the proprietor aside and say: "Anything Miss McLaren wants you'd better supply. She's able to pay."

The landlord, who had shared the general suspicion abroad in the community, stared. "Are you sure of that? I was just wondering about these folks. They have the reputation of being as poor as Job's off ox."

"You needn't worry. The girl has a balance in our bank of several thousand dollars."

"You don't tell me!" exclaimed the landlord.

Willing went on, smoothly: "Better give her the parlor and put an extension 'phone in for her use. She needs a trained nurse, but I'll attend to that if you'll see to the 'phone."

In theory, we all despise money; in fact, we find it of wondrous potency. Behold this hotelkeeper mentally taking his feet from his desk and removing his hat when he learned that one of these hermits had unlimited

credit at the bank. Mr. Willing's cashier was also deeply impressed and puzzled.

"What did such a girl mean by living away up there with that Shellfish gang of rustlers and counterfeiters? What's the idea?" he asked, irritably. "She certainly has acted like a fly-by-night up to this time."

"Well, she's established herself now. Her connections are first class," Willing rejoined. "Here's another telegram from Louisville asking full information concerning Miss McLaren and Arnold Kauffman. They don't stop at expense. Evidently they have all been in the dark about the girl's whereabouts and want the facts. Some story to put into a telegram, but I'll do my best."

"Don't scare 'em," cautioned Knight. "Say she's all right and surrounded by friends."

Willing took his turn at smiling. "Didn't look that way this morning, did it? But she's all right now—except that she's terribly wrought up over Hanscom's predicament."

"Well, no wonder. As near as I can figger, he's stood by her like a brother-in-law, and the least she can do is to stick around and help him out."

Conditions between Helen and the ranger were now precisely reversed. It was she who was eagerly trying to save him from the prison cell. She was alarmed, also, by the prediction made by the housekeeper that if the ranger were released on bail he would only be out of the frying-pan into the fire, for old Cuneo would surely meet him and demand satisfaction.

"Perhaps if I were to see Cuneo," she thought, "I could persuade him that Mr. Hanscom had no wish to involve Margarita—that her arrest was only, in a way, incidental to Busby's capture."

She said nothing of this resolution, but sent a note to Throop, requesting him to let Rawlins know that she was ready to bail Hanscom. "It will be a great injustice if he is held on my account."

Throop replied in person, for he liked Helen and was eager to do Hanscom a favor. "Yes," he said, "Hans is in jail, but not in a cell, and I think Rawlins will succeed in reaching the judge and so get out the writ this afternoon."

"Is there not some way for me to help? How much bail is needed?"

"Well, all depends on the judge. The charge the Kitsongs bring is pretty serious. They call it assault with a deadly weapon, and I'll have to testify that Hans was armed when I came into the scrap—and yet Simpson says he left the hotel without his gun—Simpson declares Hanscom said: 'I'm safer without it. I might fly mad and hurt somebody with it!' As I say, I didn't see the beginning of the battle, but when I broke into it, 'peared to me more like a dozen armed men were attacking Hans. They had him jammed up against the wall. He was fighting mad—I must admit that, and later he had a gun. Where he got it, I don't know. However, that shouldn't count against him, for he was only defending himself as any citizen has a right to do."

"Surely the judge will take that into account?"

"He will; but you see the witnesses are mostly all Abe's friends. And then Hans did begin it—he admits he jolted Abe. However, the case will come up before Brinkley, and he's friendly. He'll do all he can."

"Could I see him—I mean the judge?"

"Better not. Judges are fairly testy about being 'seen.' It would look bad—especially after it got noised around that you had money to spend on the case."

"Anyhow, Mr. Rawlins must let me relieve him of the financial part of the burden. It may not be easy for him to sign such a bond."

"It isn't easy—now, that's the truth," admitted Throop. "You see, he's only a young fellow on a salary, and it means a whole lot to a man just starting a home. He might have to pledge his entire outfit."

"Don't let him do that—he mustn't do that! Tell him that I will assume all the hazard."

Throop extended a big paw in a gesture of admiration and his throat needed clearing before he spoke. "You're all *right*!" he said. "Hans is in big luck to have you on his side."

She submitted to his grip with a fine glow in her face. "I *must* be on his side, for he has been on my side all along. He was the one soul in all this land that I could trust."

Throop's statement concerning Rawlins was right. To put up a thousand-dollar bond was a serious matter. It meant pledging his whole fortune, and the case was made the more serious by reason of the probable disapproval of the district office, and yet he liked Hanscom too well not to do all he could for him. Hanscom, who realized quite clearly his former chief's predicament, urged him not to sign.

"The office won't like it, Jack—especially as I have quit the work."

They were in the midst of a heated discussion of this point (in Throop's office) when the sheriff returned from his interview with Helen. He entered wearing a broad smile.

"I've got something for you, Mr. Supervisor. I've got you a date with the handsomest girl in the county."

Rawlins remained calm. "There's only one girl in the world for me, and she's in Cambria, getting supper for me. However, I'm interested. Who is the lady?"

Throop dropped his humorous mask. "Miss McLaren wants to see you. She's fairly anxious about Hans—wants to go on his bond with you, or instead of you."

Hanscom gazed at the sheriff in silence, but Rawlins exclaimed: "Bless the girl! That's fine of her, but does she realize what going on this bond means?"

"She does, and she's willing to back Hans with two thousand dollars if necessary."

Rawlins, frankly astonished, asked: "Two thousand dollars! Has she got it?"

"She has, and a good deal more. Willing of the First National has been in touch with her people back East, and apparently there's no end to what they're ready to do for her. Somebody, a brother or cousin, has come to her rescue like a savings-bank. Hans, you do beat the devil for luck. I was ready to congratulate you before—now I am just plumb, low-down envious."

So far from filling the forester with joy, this news threw him into dark despair. If Helen turned out to be rich his case was even more hopeless than he had imagined it to be. It was sweet to be so defended, so rescued, but it

was also disheartening. With wealth added to the grace which he adored in her, she was lifted far beyond his reach.

"Don't let her go on the bond," he said at last; "it's splendid of her, but if she does that she will be kept here, and I know she is crazy to get away, and we must not let her any deeper into this muss of mine."

Rawlins rose. "Well, I'll go see her, anyway. I'm for letting her help out if she's able and feels like it."

Throop followed him out and down the walk. "That girl's getting terribly interested in Hans—and she has a right to be. No man could have put in better work for a woman than he did for her. She says it's all her fault—and so it is, in a way." He chuckled. "Rather dashes him to find out she's a moneyed person, don't it? But what's the odds? He needn't complain, if she don't."

Helen's deepening interest in the forester expressed itself in the pleasure she took in discussing with Rawlins the means of setting him free.

"All you have to do," the supervisor explained, "is to appear before the judge, deposit a certified check, and sign the paper which the law demands."

"Let us go at once," she said. "My father is sleeping now and the housekeeper will sit with him. I can slip away for an hour."

"The sooner the quicker," agreed Rawlins.

While she was gone on a cautious inspection of the sick-room a messenger-boy came to the door with a telegram. "Gee! but the company is doing business to-day!" he remarked to Rawlins, with a grin. "Here's another fat one."

Rawlins gently pushed him into the hall. "That'll do for you, son," he said. "Fat or thin, you deliver your goods and keep still."

The message was indeed a "fat one," and came, Helen said, from a sister in Chicago, and expressed great anxiety to know exactly what conditions were. "Do you need me?" the writer demanded. "If you do, I will start at once. Let us hear from you. We are all very anxious."

Though visibly affected by this appeal, Helen's reply was brief. "No need of you. I am well and returning East soon. Have all I need."

This she handed in to the operator herself as she and Rawlins were on the way to Judge Brinkley's office; and then with the thought of possibly getting away in a day or two she asked of Rawlins: "When will Mr. Hanscom's trial come off?"

"Not for several weeks, I fear, unless we can do something to have it put forward. You see, they've all conspired to make it a case for the County Court, but the judge may be able to throw it back into the Justice Court, where it really belongs. At the worst, Hans should only be fined, but, of course, we can't say a word. We can only wait till the hearing."

A few hours ago she would have been fiercely impatient at this prospect of delay, but now, most strangely, she found herself accepting, without protest, a further stay in the town, for it came as a part of her pledged service in the aid of an unselfish young man, and she was definitely, distinctly moved at the thought of helping him.

"By the way, Mr. Rawlins, I notice you call Mr. Hanscom Hans. Is that his Christian name?"

"Oh no, that's only his nickname. He signs his reports L. J. Hanscom. I think his real name is Lawrence. I don't know why everybody calls him 'Hans'—probably because he is so friendly and helpful. Everybody likes him except that Shellfish Valley crowd, and they feel, I suppose, that I put him down here to keep tab on them, which is the fact. They're a nest of bad ones—a lot of hold-overs from the past—and would have frozen him out long ago if they could."

Knowing the ranger's first name seemed to bring him still nearer, and she began to feel a little uneasy about the way in which he might take her share in his liberation. "Suppose he should misread it!"

On the street corner near the judge's office they encountered a dozen men, grouped around a small, dark, middle-aged citizen with very black hair, a long mustache, and a fumed-oak complexion, who seemed to be monologuing for the enlightenment of the crowd. He looked like a Mexican, or some exile from the south of Europe, and as Helen and Rawlins paused for a moment they heard him say in a voice of pathetic

softness: "I blame nobody but heem, Hart Busby. He steal my girl away. I have no fight with any one else."

This was the dreaded Cuneo, the father of Margarita, whose coming promised death to the ranger! The imaginary savage with ready knife, the infuriated giant with blazing eyes, gave place to the actuality of this gentle, stricken; melancholy little sheepherder, who had no insane desire to avenge himself on any one, much less on Hanscom. Helen's resolution to meet and placate the dreaded Basque gave place to pity and a sense of relief.

Rawlins viewed the matter humorously and laughed softly. "Hans needn't worry about that little mongrel."

"He has suffered—he is suffering now," Helen replied. "I wish he might have his girl and take her home."

Judge Brinkley's chambers consisted of two large rooms stacked with law-books to the ceiling, and in the outer one a couple of rough-looking men and a discouraged-looking little woman were sitting, waiting for an interview. Ordinarily Helen would have passed the woman without a second thought; now she wondered what her legal troubles might be.

The judge gave precedence to Helen and the supervisor and invited them to his private office at once. Although he had some inkling of the romantic attachment between the ranger and this fine young woman, he did not presume upon it in any way, even in his answer to her questions.

"I hardly think a serious case can be made out against Hanscom," he said, "but you will soon know, for a preliminary hearing will be granted within a day or two. Meanwhile," he added, "I am very glad to issue an order for his liberation on bond."

Helen thanked him most warmly, and, with the writ of release in hand, Rawlins asked if she would not like to present it to the sheriff himself. At first she declined, thinking of her own embarrassment, but as she recalled the unhesitating action with which Hanscom had always acted in her affairs, she changed her mind and consented, and with her consent came a strong desire to let him know that her gratitude had in it something personal. Secretly she acknowledged a wish to see his rugged, serious face light up with the relief which the release would bring. His mouth, she remembered, was singularly refined and his smile winning.

On the way Rawlins spoke of Hanscom's resignation in terms of sincere regret. "If he will only stay in the service, I am sure he will be promoted; but I cannot blame him for feeling lonely."

At the jail door Helen's self-consciousness increased mightily. Her resolution almost failed her.

"What will he think of me coming to him in this way?" was the question which disturbed her, and she was deeply flushed and her pulse quickened as Rawlins, quite unconscious of her sudden panic, led the way into the sheriff's office and with eager haste presented her to Throop, who greeted her with the smile and gesture of an old acquaintance.

The supervisor lost no time. "We've come on business," he said. "We want Hanscom, Mr. Sheriff. This young lady has gone on his bond in my stead, and here is an order for his release, signed by Judge Brinkley."

Throop was genuinely pleased. "Hah! I'm glad of that," he said, as he took the paper. After a moment's glance at it he said: "All right, you can have the body. Go into the parlor and I'll send him in to you."

Helen obeyed silently, knowing that Rawlins would remain in the office—which he did—leaving her to receive the ranger alone.

He came in with eyes alight with worship. "I'm heartily obliged to you," he said, boyishly. "I thought I was in for a week or two of cell life and reflection."

She met his gratitude with instant protest. "Please don't thank me; I am only repaying a little of our debt. Won't you be seated?" she added, acting the part of hostess in her embarrassment. "Of course I don't mean that. You must be anxious to leave this place."

"I was, but I'm not so anxious now. How is Mr. Kauffman?"

"Much easier. He was sleeping when I left."

"I'm glad of that. He's had a hard week, and so have you, and yet"—he hesitated—"you are looking well in spite of it all."

"That is the strange part of it," she admitted. "I am stronger and happier than I have been for two years. I have just heard from my family in the East."

His eyes became grave. "Then you will go back to them?"

"I think so, but not at once—not till after your trial—it would be grossly ungrateful for me to go now. I shall wait till you are free."

His fine, clear, serious eyes were steadily fixed upon her face as she said this, and she knew that he was extracting from every word and tone their full meaning, and it frightened her a little.

At last he said, in a voice which was tense with emotion, "Then I hope I shall never be free."

She hastened to lessen this tension. "The judge has promised to grant you a hearing soon. Mr. Rawlins thinks it only a case for Justice Court, anyway." She rose. "But let me see Mrs. Throop for a few minutes and then we will go."

"Wait a moment," he pleaded, but she would not stay her course—she dared not.

They found Mrs. Throop in the hall, discussing the interesting situation with Rawlins, and when Helen extended her hand and began to thank her again for her kindness, the matron cut her short. "Never mind that now. I want you should all stay to supper."

Helen expressed regret and explained that it was necessary to return to the bedside of her father, and so they managed to get away, although Mrs. Throop followed them to the door, inviting them both to come again. She saw no humor in this, though the men had their joke about it.

Rawlins discreetly dropped back into the office, and the two young people passed on into the street.

"You must let me watch with your father to-night," Hanscom said. "I've been a nurse—along with the rest of my experiences."

"If I need you I shall certainly call upon you, and if you need money you must call upon me."

There was something warmer than friendship in her voice, but the ranger was a timid man in any matter involving courtship, and he dared not presume on anything so vague as the change of a tone or the quality of a smile. Nevertheless he said:

"I cannot imagine how it happens that you are here in this rough country, but I am glad you are. I shall be glad all my life—even if you go away and forget me."

"I shall not forget you," she replied, "not for what you've done, but for what you are." And in this declaration lay a profound significance which the man seized and built upon.

"I am not even a forest ranger now. I am nothing but a dub—and you—they say are rich—but some day I'm going to be something else. I haven't any right—to ask anything of you—not a thing, but I must—I can't think of you going entirely out of my life. I want you to let me write to you. May I do that?"

Her answer was unexpected. "You once spoke of getting a transfer to a forest near Denver. If you should do that, you might see me occasionally—for I may make my home in Colorado Springs."

He stopped and they faced each other. "Does that mean that you *want* me to stay in the service?"

Her face was pale, but her eyes were glowing. "Yes."

His glance penetrated deeper. "And you will wait for me?"

"As long as you think it necessary," she answered, with a smile whose meaning did not at once make itself felt, but when it did he reached his hand as one man to another. She took it, smiling up at him in full understanding of the promise she had made.

"Right here I make a new start," he said.

"I shall begin a new life also," she replied, and they walked on in silence.

AFTERWORD

Have you seen sunsets so beautiful that your heart ached to watch them fade? So my heart aches to see the trails fading from the earth.

As I re-enter the mountain forest I am a reactionary. I would restore every hill-stream to its former beauty if I could. I would carry forward every sign, every symbol, of the border in order that the children of the future should not be deprived of any part of their nation's epic westward march.

I here make acknowledgment to the trail and the trail-makers. They have taught me much. I have lifted the latch-string of the lonely shack, and broken bread with the red hunter. I know the varied voices of the coyote, wizard of the mesa. The trail has strung upon it, as upon a silken cord, opalescent dawns and ruby sunsets. My camping-places return in the music of gold and amber streams. The hunter, the miner, the prospector, have been my companions and my tutors—and what they have given me I hold with jealous hand.

The high trail leads away to shadow-dappled pools. It enables me to overtake the things vanishing, to enter the deserted cabin, to bend to the rude fireplace and to blow again upon the embers, gray with ashes, till a flame leaps out and shadows of mournful beauty dance upon the wall.

I am glad that I was born early enough to hear the songs of the trailers and to bask in the light of their fires.

A handwritten signature in cursive script, reading "Roylin Garland". The signature is written in dark ink and is underlined with a single horizontal stroke.

Transcriber's Note

Typographical errors corrected in the text:

Page 108 ranche changed to ranch
Page 109 penon changed to piñon
Page 171 to changed to do
Page 314 worthy changed to worth
Page 316 misnumbered section V changed to VI
Page 329 misnumbered section VI changed to VII
Page 331 jurisdiction changed to jurisdiction
Page 338 misnumbered section VII changed to VIII
Page 358 misnumbered section VIII changed to IX
Page 362 Kaufman changed to Kauffman

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HIGH TRAILS ***

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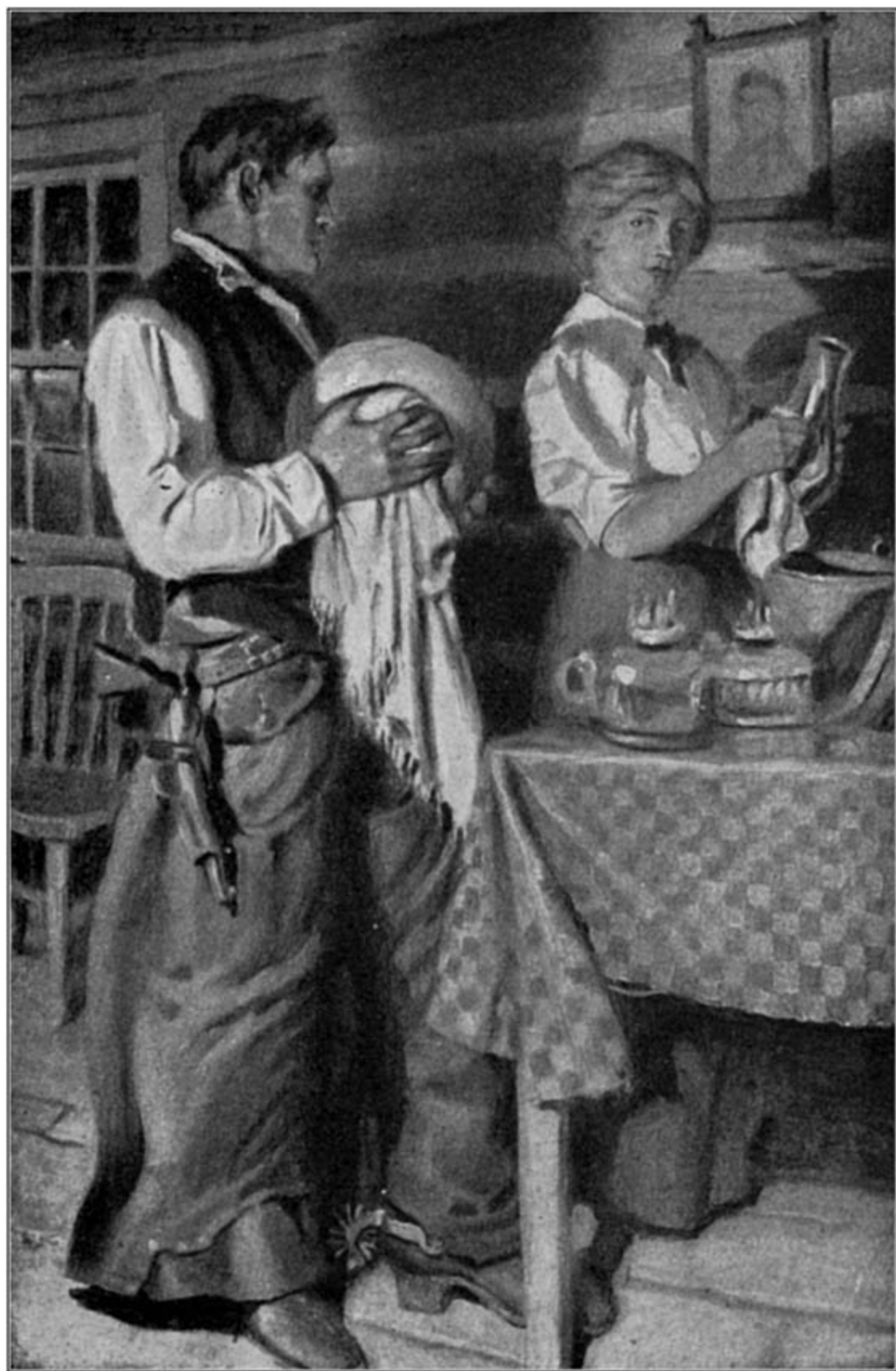
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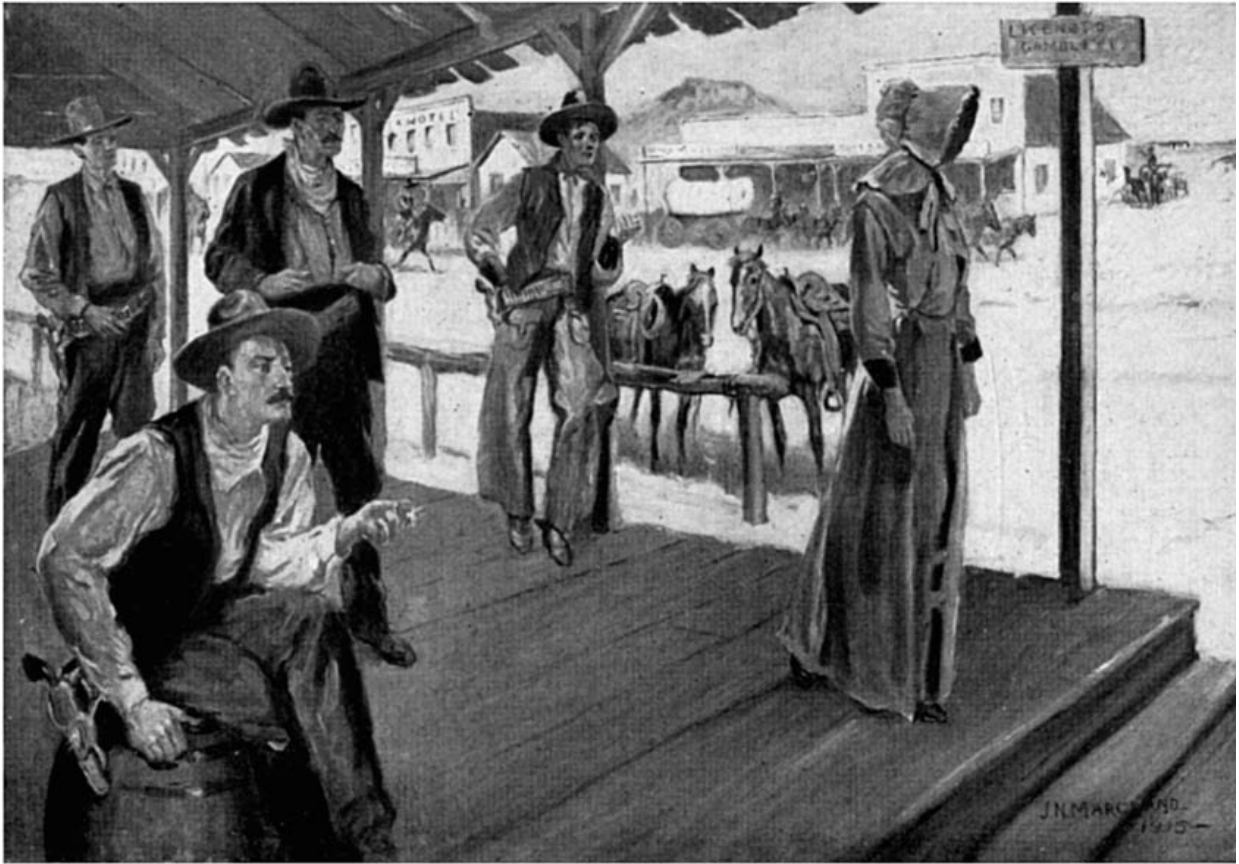
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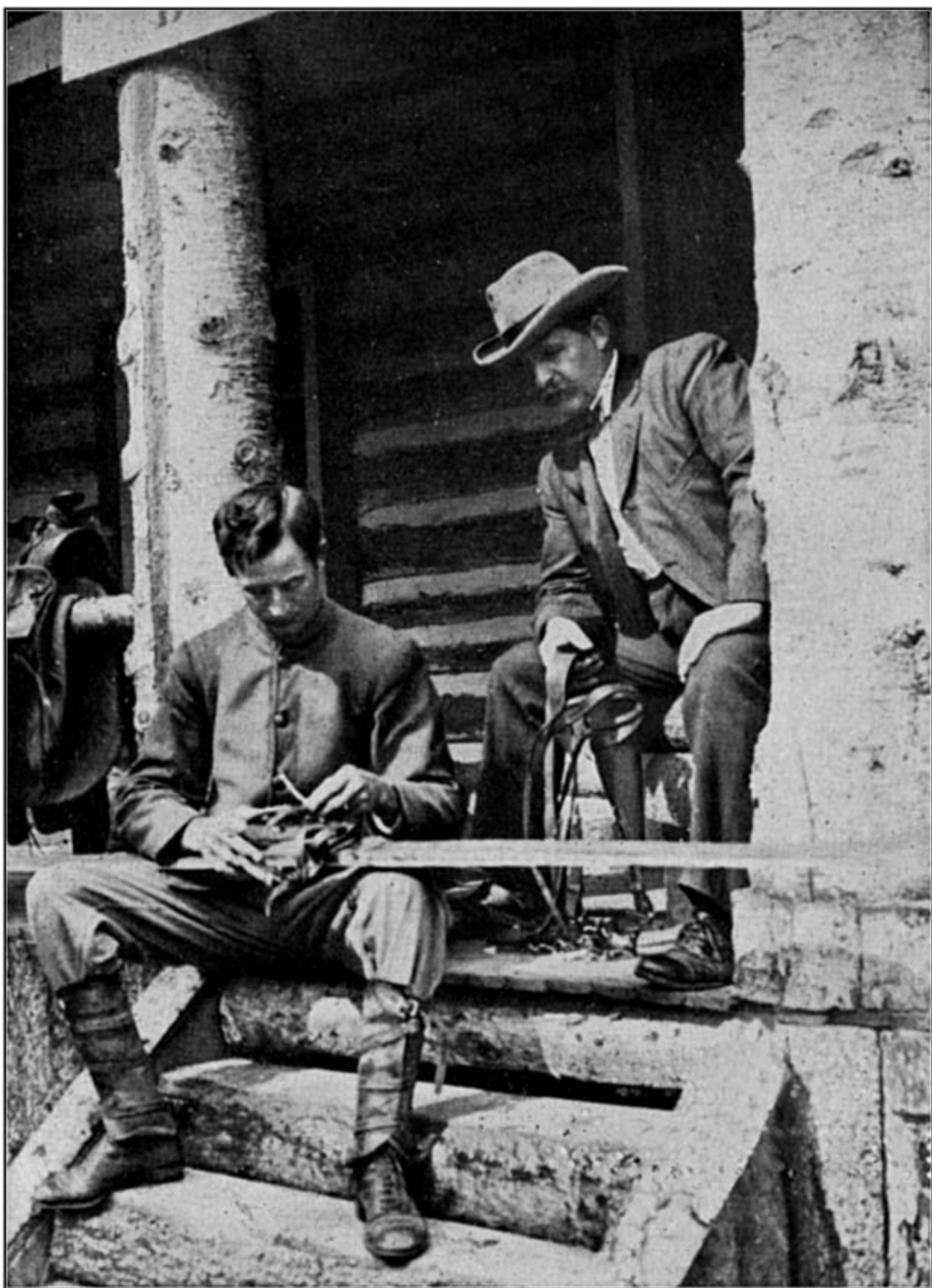
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